The Corporation of the Town of Ajax

GENERAL GOVERNMENT COMMITTEE

Monday, June 12, 2023
Open Meeting at 1:00 p.m.
Closed Session to follow immediately after open session
Hybrid Meeting
Council Chambers, Town Hall
65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Hybrid Meeting: This meeting occurs in person and will be live streamed for viewing at www.ajax.ca/live. Electronic participation is permitted pursuant to Council's Procedure By-law and may be arranged by e-mailing clerks@ajax.ca.

L. Bower, Chair
J. Dies, Vice Chair

Open Meeting

1. Call To Order & Acknowledgement of Traditional Treaty Lands

2. Disclosure of Pecuniary Interest

3. Adoption of Minutes

3.1 **Regular Meeting – May 8, 2023**.....4

4. Consent Agenda – *Considered to be routine, these items may be approved by one motion. Items may be separated and referred to the Discussion Agenda*

4.1 **CAO-2023-12: Temporary Emergency Shelter (27 Station Street) Update**
S. Baker, Chief Administrative Officer / S. Paterson, Government Relations and Strategic Initiatives Coordinator.....16

4.2 **FIN-2023-13: 2023 Development Charge Background Study Update**
D. Valentim, Director of Finance/Treasurer / M. Chee, Lead, Long-Range Financial Planning and Development 20

4.3 **FIN-2023-14: Indexing of Municipal Development Charges – July 1, 2023**
D. Valentim, Director of Finance/Treasurer / J. Mepham, Manager, Budgets and Accounting 23

4.4 **FIN-2023-15: 2024 Budget Timetable**
D. Valentim, Director of Finance/Treasurer 27

4.5 **FIN-2023-16: Annual Investment Report – January 1, 2022 to December 31, 2022**
D. Valentim, Director of Finance/Treasurer / C. Chowdhry, Senior Financial Analyst 30

4.6 **OES-2023-13: Contract Award – Fire Station #2 Renovation**
D. Meredith, Director of Operations & Environmental Services / L. Sinclair, Supervisor of Facility Capital Projects & Asset Management 46

4.7 **OES-2023-14: Contract Award – Meadows North Neighbourhood Park Construction**
D. Meredith, Director of Operations & Environmental Services / T. Nguyen, Landscape Architect.....51

4.8 **OES-2023-18: Contract Award – Town Hall Parking Lot Improvements**
D. Meredith, Director of Operations & Environmental Services / R. Solaiman, Capital Projects Coordinator 57

4.9 **OES-2023-19: Contract Award – Rossland Road Widening from Westney Road to Lake Ridge Road Detail Design**
D. Meredith, Director of Operations & Environmental Services / R. Fernando, Manager, Infrastructure & Asset Management 67

4.10 **PDS-2023-24: Update to Traffic By-law 45-2020, Community Safety Zones**
G. Romanowski, Director of Planning & Development Services / D. Pandya, Manager of Transportation Planning 77

4.11 **PDS-2023-25: Update to Traffic By-law 45-2020, No Stopping**
G. Romanowski, Director of Planning & Development Services / D. Pandya, Manager of Transportation Planning 89

4.12 **LIS-2023-09: Unbudgeted Technology Expenses – Council Chambers**
N. Cooper, Director of Legislative & Information Services/Clerk / J. McWilliam, Manager of Legislative Services/Deputy Clerk 111

5. Discussion

None

6. Presentations

6.1 **PDS-2023-22: 2022 Development Application Approval Process Review**
G. Romanowski, Director of Planning & Development Services / S. McReelis, Manager, Building Approvals & Chief Building Official.....114

6.2 **PDS-2023-23: More Ways to Get Around: E-Scooters and E-Bikes**
G. Romanowski, Director of Planning & Development Services / A. De Francia, Active Transportation Coordinator 192

7. Closed Session

7.1 Statutory Committees & Boards Membership Appointments

- *To discuss personal matters about an identifiable individual, including municipal or local board employees [Sec. 239 (2)(b), Municipal Act, 2001, as amended]*

8. Adjournment

DRAFT MINUTES - Subject to Approval

Minutes of the General Government Committee Meeting Held in the Council Chambers, Ajax Town Hall and Electronically At 1:00 p.m. on May 8, 2023

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Present:	Chair – Regional Councillor	S. Lee
	Regional Councillor	M. Crawford
	Councillors	L. Bower
		N. Henry
		R. Tyler Morin
	Mayor	S. Collier
Regrets:	Regional Councillor	J. Dies

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Chair Lee called the meeting to order at 1:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interests.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: L. Bower

That the Minutes of the regular meeting of the General Government Committee held on April 11, 2023 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.2, 4.3, 4.6, 4.8, 4.9, 4.11, 4.12, 4.13 and 4.14 for discussion.

4.1 CAO-2023-07: Social Media Policy Update

Committee Members asked questions regarding social media sharing, tagging permissions, management and administration of personal and constituent-facing social media accounts, social media policies among area municipalities, application of Council's Code of Conduct, requirements for the Town to adopt a social media policy, strategies to mitigate disrespectful behaviour, administering social media groups, protections available to Council Members, notification requirements related to moderating and blocking, and consultation with the Integrity Commissioner regarding provisions set out in the policy. Devon Jarvis, Supervisor of Communications & Engagement, Shane Baker, Chief Administrative Officer, and Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to questions from Committee Members.

Main Motion

Moved by: S. Collier

That the proposed update to Social Media Policy 055 (ATT-1) of the addition of section 3.3. *Management and Administration – Council Member Accounts* be approved.

Motion to Refer

Moved by: N. Henry

That amendments to the social media policy be referred to the Integrity Commissioner for their review and input respecting the application of Council's Code of Conduct and that staff report back to Council in September 2023.

CARRIED

4.2 CAO-2023-09: 2023 Council Member Remuneration

Committee Members asked questions regarding compensation for the Deputy Mayor, rationale for advances in the Deputy Mayor's role, annual salary namely if Council has a conflict of interest given Council approved the CUPE Collective Agreement, and impacts to Council salaries if CUPE negotiations are not settled. S. Baker and N. Cooper, responded to questions from Committee Members.

Moved by: S. Collier

That the attached 2023 Council Remuneration By-Law be brought forward to the May 15, 2023 Council Meeting for approval.

That the Clerk be directed to take the necessary steps to ensure that the Deputy Mayor role in Ajax is properly defined within the relevant Town by-laws and/or policies, and report back to Council for related approvals as necessary.

CARRIED

4.3 FIN-2023-07: 2022 Cash in Lieu of Parkland, Cash in Lieu of Parking and Community Benefits Charge – Annual Statement

Committee Members sought clarification regarding Town utilized Section 37 Community Benefits Charge developments. Geoff Romanowski, Director of Planning & Development Services, responded to the question.

DRAFT

Moved by: R. Tyler Morin

That the report "2022 Cash in Lieu of Parkland, Cash in Lieu of Parking and Community Benefits Charge - Annual Statement" be received for information.

CARRIED

4.4 FIN-2023-08: 2022 Canada Community-Building Fund Annual Report

Moved by: S. Collier

That the report "2022 Canada Community-Building Fund Annual Report" be received for information.

CARRIED

4.5 FIN-2023-09: 2022 Development Charge Reserve Funds – Treasurer's Annual Statement

Moved by: S. Collier

That the report "2022 Development Charge Reserve Funds – Treasurer's Annual Statement" be received for information.

CARRIED

4.6 FIN-2023-10: 2022 Operating Results and Year-end Reserve Allocations

Committee Members asked questions regarding non-realized capital gains calculations and opportunities to capture target balances and surplus allocations for all reserves. Dianne Valentim, Director of Finance/Treasurer, responded to questions from Committee Members.

Moved by: S. Collier

1. That the report on the 2022 Operating Results be received for information.

2. That Council approve the following 2022 Year End Allocations to Reserves, as recommended by the Director of Finance in accordance with the Financial Sustainability Plan:

Reserve	Allocation
Capital Contingency Reserve	$ 1,277,686
Vehicle & Equipment Reserve	$ 1,989,700
Building Maintenance Reserve	$ 1,647,481
Development Reserve	$ 930,000
Strategic Initiatives Reserve	$ 401,200

CARRIED

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4.7 **FIN-2023-11: Capital Account Closing Report, March 31, 2023**

Moved by: S. Collier

1. That Council receive the attached listing of Capital Account closings as of March 31st, 2023 for information.

2. That funding transfers to/from the Reserves/Reserve Funds from the March 31st, 2023 Capital Account Closings, in accordance with the Financial Sustainability Plan, and changes in project funding sources as described in this report, be approved as follows:

Reserve / Reserve Fund	Transfers to	Transfers from	Net Transfers
Capital Contingency Reserve	($41,876.99)	$56,472.70	$14,595.71
Building Maintenance Reserve	($118,271.60)	$41,686.37	($76,585.23)
General Infrastructure Reserve	($148,901.70)	$35,491.06	($113,410.64)
Strategic Initiatives Reserve	($209,076.65)	-	($209,076.65)
Roads Maintenance Reserve	-	$20,355.47	$20,355.47
Vehicle/Equipment Replacement Reserve	($14,486.16)	$42,775.16	$28,289.00
Development Reserve	($118,158.01)	$3,954.06	($114,203.95)
Stormwater Maintenance Reserve	($24,147.02)	-	($24,147.02)
Development Charges 2018	-	$17,541.75	$17,541.75
Total Transfers	**($674,918.13)**	**$ 218,276.57**	**($456,641.56)**

3. That the over-expenditure of $7,448.81 (net of HST rebate) on 1014411 Automated Speed Enforcement, previously awarded to Signalisation Kalitec on May 10, 2021 by Council, be received for information.

CARRIED

4.8 **AFES-2023-02: Contract Award – Supply & Delivery – Pumper/Rescue Fire Truck**

Committee Members asked questions regarding financing options and rationale for funds allocated to contingency and travel. D. Valentim and Aaron Burridge, Interim Fire Chief, responded to questions from Committee Members.

Moved by: L. Bower

1. That council award the contract for the supply and delivery of a Pumper/Rescue Fire Truck to Commercial Emergency Equipment in the amount of $1,521,611.67 (inclusive of all taxes).

2. That council approve funding of $36,158.43 to be allocated to Capital No. 1032411 from the Vehicle/Equipment Replacement Reserve.

CARRIED

4.9 **OES-2023-16: Contract Award – Range Line Road Reconstruction from Pickering Beach Road to Shoal Point Road**

Committee Members asked questions regarding sidewalk continuity on Range Line Road, drainage infrastructure, cycling infrastructure, multi-use path considerations, project costs, project scope, project timelines, and communication strategies. Ranil Fernando, Manager of Infrastructure & Asset Management, responded to questions from Committee Members.

Moved by: L. Bower

1. That Council award the contract for Range Line Road Reconstruction from Pickering Beach Road to Shoal Point Road including mill and overlay of Shoal Point Road to Dufferin Construction Company in the amount of $3,444,333.79 (inclusive of all taxes).

2. That Council approve funding of $1,817,295.24, to be allocated from the following Capital Accounts from the Canada Community Building Fund:

1034011 – Range Line Resurfacing – Cherry Road to Shoal Point Road	$1,821,711.96
1034111 – Range Line Recons - Pickering Beach Road to Cherry Road	($ 4,416.72)
Total	$ 1,817,295.24

3. That Council award the contract for the Contract Administration and Material Testing to R.V. Anderson in the amount of $290,797.31 (inclusive of all taxes) for the Range Line Road Reconstruction project.

CARRIED

4.10 **OES-2023-12: Contract Award – Buried Streetlight System Replacement**

Moved by: S. Collier

1. That Council award the contract for Buried Streetlight System Replacement, to Hastings Utilities Contracting Ltd. in the amount of $736,308.00 (inclusive of all taxes).

2. That Council award the contract for Contract Administration ~ Buried Streetlight System Replacement, to Morrison Hershfield Limited in the amount of $42,250.70 (inclusive of all taxes).

CARRIED

4.11 **OES-2023-17: Removal/Replacement of Digital Screens**

Committee Members asked questions regarding project scope, project costs, alternative options, costs associated with the removal of digital screens, and opportunities to relocate the Welcome sign at Westney Road/Highway 2. Dave Meredith, Director of Operations & Environmental Services and S. Baker, responded to questions from Committee Members.

Main Motion

Moved by: S. Collier

1. That Council award the contract for the removal and/or replacement of four (4) digital screens, to Provincial Sign Systems in the estimated amount of $152,098.00 (inclusive of all taxes).

2. That Council approve funding of $148,060.00 to be allocated to a Capital Account from Capital Contingency Reserve.

CARRIED

Amendment

Moved by: M. Crawford

That the sign at the intersection of Highway 2/Westney Road be non-illuminated.

CARRIED

Main Motion as Amended

Moved by: S. Collier

1. That Council award the contract for the removal and/or replacement of four (4) digital screens, to Provincial Sign Systems in the estimated amount of $152,098.00 (inclusive of all taxes).

2. That Council approve funding of $148,060.00 to be allocated to a Capital Account from Capital Contingency Reserve.

3. That the sign at the intersection of Highway 2/Westney Road be non-illuminated.

CARRIED

4.12 **PDS-2023-19: Review of Underutilized Town Facilities Update**

Committee Members asked questions regarding lease criteria framework, status of the Innovation Program, opportunities to utilize Sundial Sales Pavilion for the Makerspace, appraised values, rental rates, highest and best use of Hartrick House, size of subject lands, operating and capital costs, property appraisal process, scope of work for Quaker Meeting House, opportunities to include an affordable housing condition in an Agreement of Purchase & Sale, opportunities to amend current zoning and permitted uses, and the current condition, current use and capacity of Sundial Sales Pavilion. Samuel Twumasi, Manager of Economic Development, G. Romanowski, S. Baker, D. Meredith, and Chris Vida, Director of Recreation & Culture, responded to questions from Committee Members.

Main Motion

Moved by: R. Tyler Morin

1. That the report titled “Underutilized Facilities Report Update” be received for information;

2. That Council direct staff to maintain Hartrick House based on current usage and expand promotion to better maximize usage during weekdays;

3. That staff be directed to report back following the approval of the Arts and Cultural Plan, on the long-term usage of the Sundial Sales Pavilion space.

CARRIED

Amendment

Moved by: S. Collier

That the motion be amended by adding the following:

That staff prepare a fulsome report identifying capital costs, maintenance costs, projected and incurred costs (3-years), highest and best use of residential usage, including affordable housing, on all 8 properties being:

- Hartrick House (120 Roberson Drive)
- Greenwood House (2280 Greenwood Road)
- Greenwood Pavilion
- Central Park Ajax Sales Pavilion (Ajax Plaza)
- Mill Street Firehall (25 Mill Street)
- Sundial Sales Pavilion (99 Barnham Street)
- Quaker Meeting House - Basement Level (457 Kingston Road)
- Village Library (58 Church Street North)

And report back to Council immediately following the approval of the Arts and Cultural Plan on these building capital and maintenance costs past and future as well as revenues from permitting.

CARRIED

Main Motion as Amended

Moved by: R. Tyler Morin

1. That the report titled “Underutilized Facilities Report Update” be received for information;

2. That Council direct staff to maintain Hartrick House based on current usage and expand promotion to better maximize usage during weekdays;

3. That staff be directed to report back following the approval of the Arts and Cultural Plan, on the long-term usage of the Sundial Sales Pavilion space; and

4. That staff prepare a fulsome report identifying capital costs, maintenance costs, projected and incurred costs (3-years), highest and best use of residential usage, including affordable housing, on all 8 properties being:

    - Hartrick House (120 Roberson Drive)
    - Greenwood House (2280 Greenwood Road)
    - Greenwood Pavilion

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- Central Park Ajax Sales Pavilion (Ajax Plaza)
- Mill Street Firehall (25 Mill Street)
- Sundial Sales Pavilion (99 Barnham Street)
- Quaker Meeting House - Basement Level (457 Kingston Road)
- Village Library (58 Church Street North)

And report back to Council immediately following the approval of the Arts and Cultural Plan on these building capital and maintenance costs past and future as well as revenues from permitting.

CARRIED

Committee recessed at 3:13 p.m.

Committee resumed at 3:20 p.m.

4.13 **LIS-2023-09: Updates to Noise By-law**

Committee Members asked questions regarding communication strategies, dog barking provisions, enforcement mechanisms, and response times. Derek Hannan, Manager of By-law Services, responded to questions from Committee Members.

Moved by: M. Crawford

That the proposed updated Noise By-law (ATT-1) be brought forward to the May 15, 2023 meeting of Council for approval.

CARRIED

4.14 **LIS-2023-10: Updates to Public Nuisance and Safety By-law**

Committee Members asked questions regarding intoxication provisions, penalty and enforcement processes, impacts and risks to short term rental property owners, communication strategies, and if provisions for bonfires at the waterfront are included. N. Cooper and D. Hannan, responded to questions from Committee Members.

Moved by: N. Henry

That the proposed updated Public Nuisance and Safety By-law (ATT-1) be brought forward to the May 15, 2023 meeting of Council for approval.

CARRIED

5. Discussion

5.1 **OES-2023-15: Snow Removal Program for Seniors and Qualified Residents**

Committee Members asked questions regarding personal injury claims on private property, Service Level 2 costs, justifications for reduced service levels, number of registered residents receiving Level 1 vs Level 2 services, consultation with current program users and the Age Friendly Committee, program inception date, risk management, years enrolled in the insurance pool, service levels offered by surrounding municipalities, contracted services, opportunities to subsidize costs, service delivery and

staff resources, and opportunities to introduce a liability waiver. D. Meredith, D. Valentim, and S. Baker, responded to questions from Committee Members.

Main Motion

Moved by: R. Tyler Morin

1. That staff be authorized to modify the current Snow Removal Program for Seniors and Qualified Residents to only include the clearing of windrows and municipal sidewalks;

2. That staff be authorized to recruit the required staffing and procure the required equipment to enable the service modifications in Recommendation 1, as detailed in this report; and

3. That new staffing costs be managed through the operating budget management policy, and included as new seasonal Part time staff in the 2024 operating budget.

Motion to Refer

Moved by: N. Henry

That the report be referred back to staff to:

- Establish a revised Seniors Snow Clearing Program with service levels options and associated costing; and
- Once determined by staff, consult with the Accessibility Advisory Committee, Age Friendly Steering Committee and current program participants; and
- Consult with other municipalities to understand how they deliver snow clearing services and the subsidy level incurred by the municipality; and
- Report back to Committee in September 2023.

CARRIED

6. Presentations

6.1 Council Decision Dashboard Demo

Jason McWilliam, Manager of Legislative Services/Deputy Clerk, delivered a presentation regarding the Council Decision Dashboard. J. McWilliam provided an overview of the project and reviewed background, purpose, project scope, key enablers, the PowerBI platform, and benefits. J. McWilliam demonstrated features and functions of the Council Decision Dashboard.

Committee Members asked questions regarding search features and opportunities to collect non-tax revenues from other municipalities. J. McWilliam responded to questions from Committee Members.

There was no motion regarding this item.

6.2 OES-2023-02: Urban Forest Study Update – Technical Report

Tim Field, Manager of Environmental Services reviewed the contents of the written report

and recommendations contained therein. T. Field reviewed benefits of trees, study purpose, study area, urban forest and land cover distribution including trees in each land use category, comparisons between 2009 and 2022 including composition change and size distribution, future planting plans, and staff recommendations.

Committee Members asked questions regarding Town policies related to the destruction or removal of trees during the development process and available penalties for removing trees without permission. T. Field responded to questions from Committee Members.

Moved by: M. Crawford

That Council endorse the Urban Forest Study Update – Technical Report prepared by the Toronto and Region Conservation Authority, dated March 24th, 2023.

CARRIED

6.3 PDS-2023-18: Community Improvement Plans Review: Program Recommendations

Michael Sawchuck, Senior Planner reviewed the contents of the written report and recommendations contained therein. M. Sawchuck reviewed Community Improvement Plan (CIP) background and work to date. M. Sawchuck discussed past and current direction on CIP amendments including effects of Bills 109 and 23 on CIPs, CIP area objectives, proposed Downtown CIP revisions, proposed Pickering Village CIP revisions, program profiles, funding considerations, CIP framework implementation, and staff recommendations.

Committee Members asked questions regarding status of rehabilitation in the Pickering Village Heritage Conservation District, opportunities to replace the Pickering Village sign through the Sign Grant Program, rationale for funding allocations, size, eligibility and projected uptake for the Downtown CIP, and future opportunities for funding allocations to businesses in North Ajax. M. Sawchuck responded to questions from Committee Members.

Moved by: N. Henry

1. That staff be authorized to undertake the required consultation process to amend the Downtown and Pickering Village Community Improvement Plans to realign them with the Town's strategic objectives, as prescribed under Section 28(5) of the *Planning Act*;

2. That program suspensions under the Downtown and Pickering Village Community Improvement Plans be extended until December 31, 2023 (or to the date of approval for any amended Community Improvement Plan, whichever is sooner) for the following programs:

    a. Downtown Community Improvement Plan
        i. Rehabilitation Grant Program;
        ii. Planning and Development Fees Grant Program;
        iii. Development Charge Exemption/Grant Program;
        iv. Reduced Parkland Dedication Requirements Program;

    b. Pickering Village Community Improvement Plan
        i. Development Tax Rebate Program;

ii. Planning and Development Fees Rebate Program;
iii. Development Charge Exemption/Reduction Program;
iv. Reduced Parkland Dedication Requirements Program;

3. That unspent funds from future Downtown and Pickering Village CIP annual budgets be redirected to the CIP Development Improvement Fund, and that these funds be made available for future Town-led initiatives in either CIP area.

CARRIED

Amendment

Moved by: L. Bower

That the motion be amended by adding the following:

That any applications from within the Downtown CIP over the upset limit come to Council for approval.

CARRIED

Main Motion as Amendment

Moved by: N. Henry

1. That staff be authorized to undertake the required consultation process to amend the Downtown and Pickering Village Community Improvement Plans to realign them with the Town's strategic objectives, as prescribed under Section 28(5) of the *Planning Act*;

2. That program suspensions under the Downtown and Pickering Village Community Improvement Plans be extended until December 31, 2023 (or to the date of approval for any amended Community Improvement Plan, whichever is sooner) for the following programs:

   a. Downtown Community Improvement Plan
      i. Rehabilitation Grant Program;
      ii. Planning and Development Fees Grant Program;
      iii. Development Charge Exemption/Grant Program;
      iv. Reduced Parkland Dedication Requirements Program;

   b. Pickering Village Community Improvement Plan
      i. Development Tax Rebate Program;
      ii. Planning and Development Fees Rebate Program;
      iii. Development Charge Exemption/Reduction Program;
      iv. Reduced Parkland Dedication Requirements Program;

3. That unspent funds from future Downtown and Pickering Village CIP annual budgets be redirected to the CIP Development Improvement Fund, and that these funds be made available for future Town-led initiatives in either CIP area.

4. That any applications from within the Downtown CIP over the upset limit come to Council for approval.

CARRIED

DRAFT

7. Closed Session

None

8. Adjournment (5:10 p.m.)

Moved by: L. Bower

That the May 8, 2023 meeting of the General Government Committee be adjourned.

CARRIED

DRAFT

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Samantha Paterson Government Relations and Strategic Initiatives Coordinator
Report #:	CAO-2023-12
Subject:	Temporary Emergency Shelter (27 Station Street) Update
Ward(s):	3
Date of Meeting:	June 12, 2023
Reference:	CAO-2022-13

Recommendation:

That the Temporary Emergency Shelter (27 Station Street) Update be received for information.

Background:

On November 8, 2022, Ajax Council responded to an urgent request for a temporary emergency shelter space from the Regional Municipality of Durham ("the Region") by approving a 5-year Lease Agreement for 27 Station Street. Under the lease agreement, the Town may terminate the lease before the end of the term only if it gives at least sixty days' notice to vacate the premises.

27 Station Street was identified as a potential site in Ajax, due to its being vacant for years and its proximity to other homelessness supports and amenities. Once approved, the Region performed a number of general repairs to the space, including a leaking pipe and damaged hydro meter, as well as retrofits to support its new intended purpose, including the installation of brand-new washrooms. The Region contracted Christian Faith Outreach Centre (CFOC), which operates the Ajax HUB and Doors of Compassion, to manage day-to-day shelter operations.

On December 12, 2022, the 30-bed shelter space opened, utilizing the name the Respite Centre. Since then, it has provided a cumulative 3,800+ nights out of the elements for Ajax's unsheltered community. Most nights the beds are full. The most recent figures, from the month of April, show 61 individuals were served over the course of the month, staying 13 nights on average. These monthly figures are provided by the Region to Town staff, and 5 monthly reports have been posted to ajax.ca/emergencyshelter.

As demand for the shelter space continues, it is the Region's intention to transition the Respite Centre from an emergency warming centre model to a more housing-focused shelter model, maintaining the overnight beds while introducing new programming.

Should development plans proceed at 27 Station Street, the Region would be responsible for transitioning shelter clients should either party terminate the lease agreement in the future.

Should need for the land arise and the building is not required, the Town would be open to the Region relocating the structure to another appropriate vacant site.

Discussion:

Due to continued demand for shelter space in Ajax and Durham, the Region intends to continue operations of the 27 Station Street shelter. The primary function of the Respite Centre to date has been to serve as an emergency warming centre, providing a safe space out of the elements. Moving forward, the 30-bed shelter will remain open as a place to sleep and escape the elements, but will shift to housing-focused programming, increasing the number of services available to clients.

Durham Region's Role as Service System Manager

The Region acts as Service System Manager legislated by the province and as Community Entity designated by the federal government. It is responsible for planning and coordinating the homelessness support system across Durham. The Region has recognized an ongoing high demand for shelter space.

Health and Social Services Report #2023-SS-6 notes that despite increasing the number of available shelter spaces in 2022, demand continues to exceed available supply. Of the 1,446 people who accessed shelter region-wide in 2022, for 60% of them it was their first time.

The province recently announced that Durham Region will receive $18M annually to support homelessness and homelessness prevention programs, as a result of the $202M designated to the Homelessness Prevention Program and Indigenous Supportive Housing Program in the 2023 Provincial Budget. This is a significant increase from what they were previously receiving, approximately $7M annually. The Region is still determining exactly how to allocate this new investment.

Durham Region meanwhile, is continuing work on the Community Safety and Well-Being Plan implementation and the creation of a Homelessness Advocacy Strategy to promote the need for homelessness supports from higher levels of government.

Housing-Focused Shelters and Additional Improvements

A shift to housing-focused programming at the Respite Centre would increase the number of services available to the individuals accessing services. Housing-focused shelters help people move from homelessness to housing as quickly as possible. Shelter programs are designed to be part of the process of helping people end their homelessness while helping to meet their basic needs.

The number of overall beds is not expected to change. However, the Region is examining the feasibility of other physical improvements for the space, including a private fenced outdoor area and showers.

Security

Security is a key priority at the Respite Centre. The shelter space has the following safety and security measures in place:

- Onsite security 7 days a week from 9 pm to 9 am;
- Region-contracted security patrols between all Region shelters;
- Security system connected to emergency services;
- Internal and external cameras; and

- 2-3 staff members on shift 24 hours a day/7 days a week.

In addition to the security offered at the Respite Centre, Town-contracted security patrol downtown daily, from noon to 10 pm, which includes 2-3 daily passes of the Harwood Plaza.

Durham Regional Police West Division also recently launched a bike patrol initiative in the core called the Ajax Safe Streets Enforcement Team (ASSET). Officers have been proactively engaging with shelter clients, staff, and community members in the past several months and believe this engagement will yield positive results.

Community Outreach

Since the Respite Centre opened, Town staff have hosted two community drop-in sessions. Residents were invited to learn more about homelessness in Ajax, shelter operations and staff, and other associated homelessness support programs and agencies. Between the two sessions, approximately 200 individuals attended, including representatives of the business community, residents, shelter clients and staff, and community agencies and service providers.

The conversations were frank and resulted in a number of follow-up meetings, both including and separate of Town staff and has resulted in the Town taking action to address concerns. In May, the Town worked with the Region to install sharps disposal containers in the Harwood Plaza. Further to these community conversations, the Town is working with CFOC to coordinate 2SLGBTQIA+ training, and supporting a rebranding exercise to eliminate brand confusion with a neighbouring business.

The Gap Committee held their own follow-up event as a result of the conversations at the Town sessions, sharing feedback from residents and businesses to unsheltered individuals in an effort foster more positive relationships.

The Town has also recently hired a Strategic Initiatives Coordinator of Community Support Programs to continue to build relationships with community agencies, members of the business community, and area residents, while establishing appropriate policies and procedures relating to homelessness and community safety.

Financial Implications:

The Lease Agreement stipulates the Region pay a basic rental rate of Two ($2.00) Dollars per annum plus HST.

All costs associated with the maintenance and operation of the shelter are the responsibility of the Region.

The Town's existing insurance covers the building and related systems (no additional coverage was required), while the Region is required to hold insurance focused on contents and operational matters.

Communication Issues:

The Town is committed to continued transparency and proactive communication. Each month, the Town posts shelter statistics to ajax.ca/emergencyshelter.

Future community information meetings will be held as needed, and staff are committed to meeting with, and responding to concerns and questions from the neighbouring residents and businesses.

Relationship to the Strategic Plan:

Pillar: Connecting our community

Priority: Improve well-being and quality of life

Section 3.2 of the Strategic Plan promises to “provide services and resources to vulnerable and underrepresented communities.”

The associated internal action speaks directly to the Respite Centre Partnership.

Conclusion:

The 27 Station Street Respite Centre was provided to the Region as a temporary emergency shelter space due to an urgent and pressing demand for shelter beds. With a strong ongoing need for shelter beds, the continued use of the Respite Centre will help support the Town’s unsheltered population, while meeting an important strategic plan priority.

Attachments: NA

Prepared by:

Samantha Paterson, Government Relations and Strategic Initiatives Coordinator

Submitted by:

Christie McLardie, Manager, Public and Strategic Affairs

Approved by:

Shane Baker, Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Michael Chee, CPA, CMA Lead, Long Range Financial Planning and Development
Report #:	FIN-2023-13
Subject:	**2023 Development Charge Background Study Update**
Ward(s):	All
Date of Meeting:	June 12, 2023
Reference:	50-2018 Development Charges By-Law Bill 23, More Homes Built Faster Act, 2022

Recommendation:

That the report "2023 Development Charge Background Study Update" be received for information.

Background:

On July 9, 2018, under Sections 2(1) and 12 of the Development Charges Act, 1997, Council passed Development Charge By-law No. 50-2018 which imposed a schedule of development charges for residential and non-residential development, effective July 9, 2018.

On December 7, 2020, under Sections 2(1) and 19 of the Development Charges Act, 1997, Council passed bylaw 55-2020 amending Development Charge By-law No. 50-2018 to:

1. Remove exemptions for the Town's two Community Improvement Plan (CIP) areas
2. Remove 10% deduction for certain services in accordance with the provisions of Bill 197
3. Reflect the new DC calculation and collection policy (COR-145 -Development Charge Interest approved in May 2020) as required by Bill 108 legislative changes related to timing and collection of development charges
4. Modify the study and By-law to incorporate changes to the statutory exemptions as prescribed in the Development Charges Act

Discussion:

The 2023 Development Charges Background Study (DCBS) update was awarded to Watson and Associates on September 19, 2022. A kickoff meeting was held on October 20, 2022 with all corporate stakeholders to identify the process and information needs. While data gathering efforts were underway, Bill 23 brought sweeping changes to the *Development Charges Act* which were enacted on November 28, 2022. These changes included:

- Historical service level caps changing to a 15 year timeframe rather than 10 years;
- Growth related studies are no longer eligible to be funded by DCs;
- Land acquisition costs, as yet to be determined by regulation, would no longer be eligible for DC funding;
- New mandatory DC exemptions for affordable and attainable residential units, non-profit housing developments and inclusionary zoning residential units;
- New mandatory discounts for rental housing;
- New mandatory phasing of DC rates charged upon the passage of a new by-law;
- Extension of the life of a development charge by-law from five years to ten years after passage, allowing the Town's 2018 bylaw to remain in force until July 8, 2028;

Given the number of resulting changes and potential impacts to the Town, the project team determined that additional time was necessary to do a fulsome review of the cost and benefits of proceeding with a bylaw update.

Staff, with the assistance of the consultant, are in the process of completing the review of the service standards over the past 15 years, the growth related capital project needs, and various other inputs into the calculation of new DC rates.

The underlying assumptions being used for the calculation of the 2023 DCBS such as growth projections and transportation needs supported by the Integrated Transportation Master Plan will not change from the inputs provided for the 2018 DCBS. Currently the notable changes to the potential 2023 DCBS include the escalation of construction costs for Transportation and Facilities.

If a decision is made to proceed with approving a new bylaw in 2023, there will likely be a need to revisit the DC study much before a 10 year expiry in 2033 due to significant expected changes within the next few years. Examples of these changes include the current Provincial/Regional growth targets which would impact services and future capital needs, continued construction costs escalations and impacts of strategic decisions coming out of master plans and studies. The additional costs and staff time to complete another DCBS study within the next few years also needs to be taken into account as well as the mandatory discounting of newly approved DC rates.

Staff are working toward the completion of the analysis work to determine if it is beneficial to proceed with the 2023 DCBS and a bylaw update. This work, with a recommendation regarding next steps, is expected to be done by the end of the year.

Financial Implications:

N/A

Communication Issues:

Council will be advised on the staff recommended course of action once the final analysis is received from Watson and reviewed by staff.

Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan – Action26:

Pillar 2: Growing our Community
Priority: 1. Embrace dynamic and sustainable growth

1.6 Continue to monitor and respond to legislative changes

Pilllar 3: Modernizing our Community
Priority: 5.1 Manage Financial resources and assets to address growing needs

Conclusion:

The 2023 Development Charge Background Study is ongoing and a decision whether to proceed with an update to its bylaw or maintain the current bylaw until its expiry in July 2028 shall be determined.

Attachments:

N/A

Prepared by:

Michael Chee, CPA, CMA – Lead, Long Range Financial Planning and Development

Submitted by:

Dianne Valentim, CPA, CGA – Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Julie Mepham, Manager, Budgets and Accounting
Report #:	FIN-2023-14
Subject:	**Indexing of Municipal Development Charges – July 1, 2023**
Ward(s):	All
Date of Meeting:	June 12, 2023
Reference:	By-law No. 50-2018 Development Charges By-Law By-law No. 55-2020 Amending Development Charges By-law

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Recommendation:

That the report on Indexing of Municipal Development Charges be received for information.

Background:

On July 9, 2018, Council approved Development Charges By-law No. 50-2018 under section 12 of the Development Charges Act, 1997. On December 14, 2020 Council approved By-law No. 55-2020, which amended the existing DC By-law 50-2018 by removing the 10% statutory deduction previously applied to the Parks and Recreation, and Library service categories including the Growth Related studies associated with these services. The changes made did not alter the indexing provisions of the main by-law.

Section 13 of By-law 50-2018, as amended, states: “The development charges referred to in Schedule “B” shall be adjusted annually, without amendment to this by-law, commencing on July 1, 2019, and annually thereafter on July 1, while this by-law is in force, in accordance with the most recent twelve month change in the Statistics Canada Quarterly, “Construction Price Statistics”.”

Through the passage of Bill 23, DC bylaws are able to remain in force up to 10 years from the date of approval. The Town’s bylaw was originally scheduled to be renewed on or before July 8, 2023 but given the Town is not proposing to update its rates prior to to July 1 2023, the DC rates must be indexed.

Discussion:

The Statistics Canada Non-Residential Buildings Construction Price Index (NRBCPI) for the period of March 2022 to March 2023, as released on May 8, 2023 indicates an increase of 12.5% over the index used to calculate the July 1, 2022 DC rates.

It is to be noted that the Q1-2022 index of 133.9 posted by Statistics Canada in May 2022 has since been revised to 134.2. The Town is calculating the DC rate increase using the change between the most recent Q1-2023 index of 150.7 and the one used for the prior DC rate increase of 133.9.

The rise in cost continues to be primarily attributed to a combination of skilled labour shortages, and rising costs of materials and equipment in the construction industry. Wood, plastic and composite materials recorded a large year over year increase and the increasing cost of structural steel framing, concrete and metal fabrications also contributed to the pressures.

The change to the Town of Ajax Development Charges is summarized below:

Town of Ajax Development Charges	**Current**	**Increase**	**Effective Jul 1, 2023**
Residential			
Single & Semi-detached	$34,202	$5,917	$40,119
Apts. Two or more bedrooms	$16,455	$2,846	$19,301
Apts. Less than two bedrooms	$10,340	$1,789	$12,129
Other Dwellings (eg. Townhouses)	$27,007	$4,673	$31,680
Non-Residential - per square foot			
Commercial / Institutional / Industrial	$8.43	$1.46	$9.89

A transition period of approximately three weeks is normally provided at the time of Development Charges (DC) rate indexing to provide municipal staff with time to process complete building permit applications received prior to the July 1, 2023 deadline. Development Charges for such applications will be collected at the pre-indexed rate. A “complete building permit application” means that:

- all required documents and plans have been submitted in final form;
- all fees and charges have been paid in accordance with the DC Act, including the prescribed Town development charges; and
- the Chief Building Official can issue a building permit in accordance with the Building Code Act.

Effective January 1, 2020, Bills 108 and 138 changed the required timing of DC calculation and payment for specific developments. DC rates are frozen at the date of application for approval in a site plan control area (eg. Site Plan, Site Plan Amendment) or through an application for Zoning By-law amendment. The DC rate for such development applications are frozen for up to two years after the application is approved. If the building permit is drawn after the two-year expiry date, development charges will be calculated at the prevailing rate at time of building permit issuance.

As per recent Bill 23 changes, the transition period will not apply to specified developments housing types such as affordable residential units and attainable residential units, non-profit housing developments and inclusionary zoning residential units, as they are now exempt from DC payments.

The impacts of changes from Bill 108 and Bill 23 on the typical transition provisions provided at the time of indexing are considered in Table 1 below. The following table details the conditions under which the June 30, 2023 rate will apply to building permits issued on or before that date.

Table 1 – Development types eligible for the pre-indexed rate

Development type	Complete building permit application received before July 1, 2023	Development charges paid before July 1, 2023	Building permit is issued on or prior to July 21, 2023
Rental housing and Institutional developments as defined in DC Act, subsection 26.1 (2)	Yes	Not required, DCs are to be paid in instalments starting upon occupancy (DC interest charges will apply from date of permit issuance)	Yes
Development subject to DC rate freeze provisions where approval of Site Plan, Site Plan Amendment or Zoning Bylaw Amendment was received on or prior to June 30, 2021	Yes	Yes	Yes
All other development types, not subject to the DC rate freeze provisions	Yes	Yes	Yes

All other building permit applications received on or after July 1, 2023 or those not conforming to the above criteria will be subject to the indexed development charge rates, or the rates prevailing as per subsection 26.2 of the DC Act for Site Plans and Zoning By-Law Amendments plus DC interest calculated to the 1st of the month in which a permit is issued.

Financial Implications:

The purpose of annual indexing is to reflect the current economic environment and the change in cost of capital projects which are identified in the 2018 DC Background Study, as amended.

Communication Issues:

Staff will prepare a brochure outlining the upcoming July 1, 2023 indexing of Development Charges. This brochure will be available on the Town's website, and at the customer service counters of the Finance Department and of the Planning and Development Department. A summary of the total Development Charges effective July 1, 2023 including the Town, Region and Board of Education portions will also be posted on the Town's website. A historical summary of DC rates in effect since January 1, 2020, the effective date of Bill 108 changes, as further amended by Bill 23 will be posted on the Town's Development Charges web page.

Relationship to the Strategic Plan:

N/A

Conclusion:

Residential and Non-Residential Development Charges levied by the Town of Ajax are being indexed by 12.5% in accordance with By-law No. 50-2018, as amended by By-law No. 55-2020.

Attachments:

N/A

Prepared by:

Julie Mepham, CPA, CA – Manager of Budgets and Accounting

Submitted by:

Dianne Valentim, CPA, CGA – Director of Finance, Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Dianne Valentim CPA, CGA – Director of Finance / Treasurer
Report #:	FIN-2023-15
Subject:	**2024 Budget Timetable**
Ward(s):	All
Date of Meeting:	June 12, 2023
Reference:	N/A

Recommendation:

That the report on the 2024 Budget & Forecast Timetable be received for information.

Background:

Each year the budget and forecast timetable is set to ensure understanding and communication of key dates for the annual Budgets and Forecasts.

Discussion:

The Capital and Operating Budgets have been presented to Council both separately and combined based on the Council calendar. In the year following a Council election, both budgets would typically come to Council at the start of the new year, to allow any new council members time to transition into their role prior to budget deliberations. Other years, the Town has brought forward the capital budget in December, prior to the budget year to take advantage of better construction prices by tendering projects early in the cycle and the operating budget in the first quarter of the budget year.

In the years where capital and operating budgets are brought to Council together, staff would often bring forward a pre-budget approval report to request Councils approval on upcoming budget requests in advance of full council deliberations to try and take advantage of better / early construction prices. The pre-budget approval requests are usually capital projects that are required annually, such as road resurfacing.

The last two years, staff have brought forward the operating and capital budgets together for Council approval. There are often capital projects that can have an operating impact and therefore, it is beneficial for Council to review and deliberate both budgets simultaneously. Staff are recommending that both the operating and capital budgets be contemplated on the same date in January 2024 for pubic and Council review, deliberation and approval. This is one month earlier than the 2023 budget.
It is beneficial for staff to have the budget completed earlier in the calendar year to minimize the impact on the year-end work being conducted and to allow tender opportunities to move forward

without the need for pre-budget approval. This accelerated timetable has been reviewed and approved by the Senior Management Team and internal deadlines have been revised to achieve this earlier schedule.

The following key dates have been established to guide the budget process.

Date	Milestone
June 12, 2023	2024 Budget and Forecast Timetable approved by Council
August 18, 2023	Deadline for Council to submit to department Directors and Manager of Public and Strategic Affairs • operating budget changes, and/or • initiatives in line with Strategic Plan, and/or • new capital projects, and/or • changes in timing/scope of existing capital projects
December 18, 2023	Distribution of 2024 Operating and Capital Budget to Council
January 3, 2024	Budgets available to public and posted on Town Website: • 2024 Capital Budget / 2025 – 2033 LRCF • 2024 Operating Budget
January 15, 2024	Public meeting: • 2024 Capital Budget / 2025 – 2033 LRCF presented to Council – 9 am start • 2024 Operating Budget – following Capital budget discussion
January 22, 2024	Council Meeting • Ratification of 2024 Operating Budget • Ratification of 2024 Capital Budget 2025-2033 LRCF
May 2024	General Government Committee • 2023 Operating Budget Surplus Report and Net Year End Reserve Allocations presented

Throughout the year staff receive feedback from a variety of sources (residents, councillors, Region, etc.) on both operating and capital budgets. This feedback helps inform the budget which is presented for Council's consideration. In addition, staff will engage the public through the In My Opinion engagement platform throughout the budget process.

Councillors should undertake discussions with the appropriate department Director for possible additions, changes and/or removals of services or projects in the 2024 operating budget and 2024 capital budget and 2025-2033 long range capital forecast. Through these discussions, the Director will be able to determine the next steps for initiatives identified and, with Finance, develop the Council List. Input from Council, up to August 18, 2023, will be considered in the preparation of 2024 budgets.

Financial Implications:

There are no financial implications associated with this report.

Communication Issues:

The date, time and location of General Government Committee public budget meetings and public engagement opportunities will be advertised on the Town's community page in the News

advertiser, signboards, on the Town's website, social media platforms, and on the In My Opinion engagement platform well in advance of the meeting dates.

All budget and forecast documents, reports, etc., for both current and prior years, are available on the Town's website.

Relationship to the Strategic Plan:

N/A

Conclusion:

The 2024 Budget & Forecast Timetable allows staff to undertake the comprehensive work required to complete the key financial forecasts and budgets.

Attachments:

N/A

Prepared and Submitted by:

Dianne Valentim, CPA, CGA - Director of Finance / Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Charmaine Chowdhry CPA, CGA
Report #:	FIN-2023-16
Subject:	Annual Investment Report – January 1, 2022 to December 31, 2022
Ward(s):	All
Date of Meeting:	June 12th, 2023
Reference:	Investment Policy – Corporate Policy No. 130

Recommendation:

1. That the Annual Investment Report for the period January 1 to December 31, 2022 be received for information.

2. That Council approve the recommended changes to the Investment Policy

Background:

The Investment Policy defines the goals, objectives, and policies for the investment of the Town's surplus cash, reserves, and reserve funds. A requirement of the policy is a report to General Government Committee on an annual basis.

This report summarized the performance for the investment portfolio for 2022 and provides the required statement of the Treasurer.

Discussion:

Annual Investment Reporting – 2022

Interest rate impacts on Income

Eight times a year, the Bank of Canada announces its decision on the setting of the target overnight rate. Since Oct 24th, 2018 and up to the January 22nd, 2020 announcement date the rate has remained unchanged at 1.75%. On March 4th, 2021, the rate was lowered by 0.50% to 1.25% and to counteract the negative impacts of the COVID-19 pandemic was followed by two unexpected reductions of 0.50% on March 13th and 27th. The rate remained unchanged at 0.25% for the remainder of 2021.

In 2022, in response to a high inflation rate reaching a 30 year high of 8.1%, the Bank of Canada aggressively increased the rates eight times to 4.25% at the end of 2022. These rate hikes allowed staff to invest in various treasury instruments such as GICs and High Interest Savings Account

(HISA) as well as the ONE Equity/Bond medium to Long Term Funds, to capitalize on higher-than-expected income in 2022.

Table 1 provides the details of the average bank interest rates for each of the quarters of 2022.

Table 1

TERM TIERED BANK INTEREST	1ST QTR 2022	2ND QTR 2022	3RD QTR 2022	4TH QTR 2022
Banking Arrangement Jan to Mar 2022				
Deposits up to $100M	0.70% - 0.933%			
Deposits greater than $100M	0.50% - 0.733%			
New bank arrangement effective April 1, 2022				
Deposits up to $150M		1.233% - 1.933%	2.530% - 3.525%	3.780% - 4.587%
Deposits greater than $150M		1.033% - 1.75%	2.530% - 3.325%	3.580% - 4.387%

The investment policy was reviewed and updated in 2021 and Council directed staff to begin investing in the ONE FUND portfolio to diversify the Town's investment portfolio and to take advantage of potential higher returns through an experienced investment agent. Municipalities are restricted in their investment options as outlined in the Municipal Act and Ontario Regulation 438/97 (as amended). The Town does not currently have investment specialists on staff, and it was recommended that the Town invest with the ONE Investment Group which was formed for municipalities by Local Authority Service (LAS) and CHUMS Financing Corp (a subsidiary of the Municipal Finance Officers' Association of Ontario) to leverage the investment knowledge that would potentially help the Town achieve higher returns on its medium and long term investments.

The Town's updated policy identifies the asset allocations for the Treasury, Short Term, Medium Term and Long-Term investment tranches. It was originally thought that the cash balances could be reviewed twice a year and the portfolio rebalanced, however, this exercise would be most valuable on an annual basis after the year end calculations and the capital budget requirements are approved by Council. This exercise is completed by finance and is based on the approved capital budget and forecast as well as existing Town commitments, and it is not beneficial to rebalance the portfolio midterm without fully understanding the requirements for the upcoming capital budget.

Table 2 below provides a snapshot of the cash balances held by the Town and the return on the average balances for 2022.

Table 2

Fund	Opening Balance January 1, 2022	July 6, 2022	Closing Balance December 31,2022	Investment Income	Return on Average Balance
Cash and Equivalent - Reserves	110,504,047		66,155,119	2,386,987	2.5%
Cash and Equivalent - Reserve Fund	45,617,706		56,111,554	1,295,945	2.3%
Medium Term Investments	0	13,456,018	13,702,946	247,046	1.8%
Long Term Investments	0	47,707,702	49,155,572	1,447,972	3.0%
	156,121,753		**185,125,191**	**5,377,950**	**2.6%**

Note: Medium and Long Term returns show the 6 month return rates

Based on the reserve commitments and capital forecast requirement, finance identified the short-, medium- and long-term funding requirements, as identified in Table 3 below. Transfers to ONE investment were completed on July 6, 2022, for medium- and long-term funds, moving directly to the target balances in those portfolios, as it appeared at that time that equity markets were favorable.

Table 3

Total Reserve Funds	Commitments prior to 2022	Short Term requirements (1-5 years)*	Medium Term (5-10 years)*	Long Term (10 +years)*
154,363,400	26,738,100	65,213,400	13,730,600	48,681,300

*Includes a cash component which was invested with short-term

Additionally, it was determined that it would be most beneficial to the Town to keep the short term and treasury funds in the bank, High Interest Savings Accounts (HISAs) and Guaranteed Investment Certificates (GICs) as interest rates were increasing and the correlation between interest rates and bonds typically have an inverse affect, whereby if interest rates increase, bond rates would decrease.

The bond portfolios distribute earned income back into the fund and (reinvested) on a quarterly basis and the equity portfolios earned income is distributed (reinvested) annually on December 31. The gains on these portfolios are unrealized until the funds are withdrawn.

Tables 4 and 5 below provide the details of the asset allocation as prescribed in the investment policy and the allocation of funds on July 6, (investment date) as well as December 31, 2022.

Table 4

	Policy Guideline				
Medium Term	**Minimum %**	**Target %**	**Maximum %**	**Town Investment July 2022 %**	**Town Investment December 31, 2022 %**
Cash	0	2	10	0	0
ST Bonds	25	36	45	36	35

	Policy Guideline				
Medium Term	**Minimum %**	**Target %**	**Maximum %**	**Town Investment July 2022 %**	**Town Investment December 31, 2022 %**
Diversified Bonds	25	37	50	37	36
Equity	15	25	35	25	24

Table 5

	Policy Guideline				
Long Term	**Minimum %**	**Target %**	**Maximum %**	**Town Investment July 2022 %**	**Town Investment December 31, 2022 %**
Cash	0	2	10	0	0
Bonds	25	35	45	35	34
Equity	35	63	75	63	61

As noted in the above tables, the Town investments in medium and long term investments adhere to the investment policy guidelines.

Tables 6 and 7 below summarize the investment source and related income earned in 2022. A summary of investment information as of December 31, 2022 is included in Attachment 1, by investment source. Attachment 2 provides a detailed transactions summary of investments made by the Town throughout 2022.

Table 6

INVESTMENT SOURCE	**INVESTMENT INCOME**
Bank Accounts	2,088,145
Treasury Investments - High Interest Savings Account (HISA)	1,179,199
Treasury Investments - GICs	415,588
ONE Investment Bond Fund	311,662
ONE Investment Equity Fund	1,383,356
Total	**5,377,950**

Table 7

Reserves/General Account	2,399,230
Reserve Funds	1,283,702
Reinvested income in Bonds and Equities	1,695,018
Total	**5,377,950**

^*figures may not add due to rounding*

Consistent with the Financial Sustainability Plan, all additional investment interest income earned on general funds and discretionary reserve balances that exceed the investment income budget is transferred to the Discretionary Capital Reserves. For 2022, the investment income budget was $981,100 and therefore, $1,418,129 was transferred to the capital discretionary reserves. Interest earned on non-discretionary reserve funds must be segregated.

The Town also holds investments in Elexicon. The Town receives quarterly dividend payments and annual interest income for promissory notes held by the Town. As per the financial sustainability plan, this investment income is transferred to the Capital reserves. Table 9 provides details on the Town's investment in Elexicon and the interest and dividend income earned in 2022.

Table 9

SUMMARY OF ELEXICON NOTES HELD AT DECEMBER 31, 2022				
Issuer	**Principal**	**Interest Income**	**Interest Rate**	**Dividend**
Elexicon Connections Inc.	14,060,000	580,678	4.13%	
Elexicon Corporation	5,550,000	229,216	4.13%	
Total	19,610,000	809,894		2,056,510

Town's Investment Policy

Council approved the Town's updated Investment Policy at the November 21, 2021 Council meeting.

The fundamental investment goal/objective of the policy continues to ensure the safety and security of the investment principal. The secondary objective is to maintain a reasonable degree of liquidity in order to meet the Town's obligations and the third objective is to maximize the rate of return on the investment portfolio, consistent with the objectives of security and liquidity.

The current mix of investments in GICs was all being held by RBC at December 31, 2022 and the amount exceeded the current policy maximum limits. Staff are requesting a change in the policy limit to allow for greater flexibility in earning higher rates of return where possible and to define where high interest savings accounts (HISA) can be utilized. However, staff will also look to diversify the GIC investments at maturity to ensure safety and security of Town funds.

Investment Policy updates (in red):

1.1. Item 2.1 **Investment Goals/Objectives**

i) Preservation of Capital

The fundamental investment goal/objective is to ensure the safety and security of the investment principal. As the custodian of public funds, safeguarding invested principal is paramount. The Town will employ an investment strategy that seeks to minimize risk of capital losses by mitigating the impact of credit and interest risk where possible. This is mainly accomplished through the selection of instrument issuers, and ~~to a lesser extent, the~~ diversification of instrument types and varying maturity dates.

ii) Maintenance and Liquidity

A secondary objective is to maintain a reasonable degree of liquidity in order to meet the Town's obligations. Liquidity also provides the flexibility necessary to react to changing market and economic conditions as well as unanticipated cash needs.

iii) Competitive Rate of Return

The final objective is to maximize the rate of return on the investment portfolio, consistent with the objectives of security and liquidity of principal.

Item 2.2 b) eligible instruments and their maximum limits:

Instrument Issuer/Guarantor	Not To Exceed (existing policy)	Not To Exceed (recommended change)
1. Bonds, debentures, promissory notes or other evidence of indebtedness issued or guaranteed by the Government of Canada.	$15 million	no change
2. Bonds, debentures, promissory notes or other evidence of indebtedness issued or guaranteed by a Province of Canada.	$10 million per Province	no change
3. High interest Savings Account (HISA), certificates of deposits or investment guaranteed or endorsed by Schedule I banks.	n/a	Unlimited per bank
4. Deposit receipts, deposit notes, ~~certificates of deposit or investment,~~ promissory notes, acceptances or other similar investment instruments issued, guaranteed or endorsed by Schedule I banks.	$25 million per bank	no change
5. Deposit receipts, deposit notes, HISA, certificates of deposit or investment, acceptances or other similar investment instruments issued, guaranteed or endorsed by Schedule II banks.	$5 million per bank	no change
6. Deposit receipts, deposit notes, HISA, certificates of deposit or investment, acceptances or other similar investment instruments issued, guaranteed or endorsed by Loan and Trust Companies licensed under the Loan and Trust Companies Act.	$5 million per Loan and Trust Company	no change
7. Deposit receipts, deposit notes, HISA, certificates of deposit or investment, acceptances or other similar investment instruments issued, guaranteed or endorsed by a Credit Union or League to which applies the Credit Union or Caisse Populaires Act applies.	$5 million per Credit Union and Caisse Populaires	no change
8. ONE – The Public Sector Groups of Funds Joint Investment Pool	$100 million per pool	no change

The recommendation to increase the maximum limit on deposits with Schedule I banks for high interest savings account (HISA), certificates of deposits guaranteed or investments endorsed by

Schedule I banks is twofold. Schedule I banks are understood to be the most secure banks in Canada. Additionally, due to the recent increase in development, the Town has received many large payments resulting in a substantial increase in cash balances. The higher cash balances provide for greater opportunities to bid out higher interest rates which the Town would like to take advantage of. If a Schedule I bank is offering a higher secure interest rate, it is beneficial for the Town to be allowed to invest a pool of funds to maximize the return in a principal protected investment product.

The Town could potentially still be subject to caps on various investment vehicles (amount and / or duration) by individual financial institutions.

The Investment policy will continue to be monitored and reviewed on a regular basis to ensure compliance and take advantage of varying market opportunities.

Financial Implications:
None

Communication Issues:
None

Relationship to the Strategic Plan:

MC Priority 5: Demonstrate sound Financial Management

Item 5.1 – Manage financial resources and assets to address growing needs.
Item 5.2 – Anticipate and respond to risks and opportunities.

Conclusion:

All investments undertaken during the period starting January to December 31, 2022 were in accordance with the Town's investment goals, however, GIC investments were over weighted to one particular financial institution and exceeded the maximum limit prescribed in the policy. Staff are recommending an adjustment to the maximum limit per schedule I bank to allow for better returns and diversification of the investments in compliance with the investment policy.

Attachments:

ATT-1: 2022 Investment Information

ATT-2: 2022 Detailed Investments

ATT-3: Draft Investment Policy

Prepared by:

Charmaine Chowdhry – Senior Financial Analyst

Submitted by:

Dianne Valentim, CPA, CGA – Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

ATT-1: 2022 INVESTMENT SUMMARY

A comparison of average rates for the last four quarters is detailed below, for the funds held on deposit at the bank

TERM TIERED BANK INTEREST	1ST QTR 2022	2ND QTR 2022	3RD QTR 2022	4TH QTR 2022
Banking Arrangement Jan to Mar 2022				
Deposits up to $100M	0.70% - 0.933%			
Deposits greater than $100M	0.50% - 0.733%			
New bank arrangement effective April 1, 2022				
Deposits up to $150M		1.233% - 1.933%	2.530% - 3.525%	3.780% - 4.587%
Deposits greater than $150M		1.033% - 1.75%	2.530% - 3.325%	3.580% - 4.387%

ROYAL BANK CASH SUMMARY BY FUND AT DECEMBER 31, 2022

FUND	BALANCE	INTEREST INCOME
Revenue Fund	$ 21,155,119	$ 1,336,682
Provincial Program Grants	$ 508,558	$ 8,861
Parkland Reserve Fund	$ 5,479,817	$ 119,202
Federal Gas Tax Reserve Fund	$ 4,510,338	$ 243,176
Dev Chgs. (2018) Reserve Fund	$ 12,512,878	$ 365,928
Other (Parking CIL, E payments, Investment Clearing)	$ 7,409	$ 14,297
Total	$ 44,174,119	$ 2,088,145

* Includes interest income from internal debt (see below)

SUMMARY OF INTERNAL DEBT AT DECEMBER 31,2022

	PRINCIPAL	INTEREST	INTEREST
Operations Centre	$ 800,000	$ 31,363	various
Audley Recreation Centre	$ 1,105,000	$ 47,744	various
Fire Headquarters	$ 351,000	$ 16,593	various
Audley Recreation Centre Phase 2	$ 2,321,000	$ 76,197	various
Total	$ 4,577,000	$ 171,896	

SUMMARY OF SHORT, MEDIUM AND LONG TERM INVESTMENTS AT DECEMBER 31, 2022

	FUNDING	PRINCIPAL	INTEREST INCOME	DISTRIBUTED/ REINVESTED INCOME	INTEREST RATE	INVESTMENT DATE
Short Term Investments						
Cashable GICs	Reserve Funds	5,000,000	10,616		1.10% - 1.40%	Feb 22/22
Cashable GICs	Reserve Funds	5,000,000	7,685		1.10%	Feb 22/22
Cashable GICs	Reserve Funds	5,000,000	95,727		1.10% - 4.09%	Feb 22/22
Callable GICs - 1 year	Reserve Funds	10,000,000	156,164		2.40%	May 4/22
30 Days Redeemable GICs	Reserve Funds	23,000,000	92,554		4.59%	Nov 10/22
120 Days Redeemable GICs	Reserve Funds	23,092,555	52,841		5.22%	Dec 16/22
ONE Fund Scotiabank HISA	General Funds	5,000,000	534,641		0.715% - 4.775%	Feb 7/22
Royal Bank of Canada HISA	General Funds	40,000,000	515,664		3.85% - 4.85%	Sep 12/22
Royal Bank of Canada HISA	Reserve Funds	10,000,000	128,894		3.85% - 4.85%	Sep 12/22
Medium Term Investments						
ONE Fund Government Bonds	General Funds	4,943,000		47,018		July 6/22
ONE Fund Diversified Corporate Bonds	General Funds	5,080,300		60,784		July 6/22
ONE Fund Canadian Equity	General Funds	3,432,600		139,244		July 6/22
Long Term Investments						
ONE Fund Diversified Corporate Bonds	General Funds	17,038,400		203,860		July 6/22
ONE Fund Canadian Equity	General Funds	30,669,200		1,244,112		July 6/22
Total		$ 139,256,055	$ 1,594,786	$ 1,695,018		

SUMMARY OF ELEXICON PROMISSARY NOTES HELD AT DECEMBER 31, 2022

ISSUER	PRINCIPAL	INTEREST INCOME	INTEREST RATE
Elexicon Connections Inc.	$ 14,060,000	$ 580,678	4.13%
Elexicon Corporation	$ 5,550,000	$ 229,216	4.13%
Total	$ 19,610,000	$ 809,894	

ATTACHMENT 2

2022 INVESTMENT DETAILS							
INVESTMENTS	**FUND TYPE**	**INVESTMENT DATE**	**REDEMPTION/ MATURITY DATE**	**PURCHASE AMOUNT**	**DISPOSAL AMOUNT**	**INTEREST RATE / RETURN**	**INTEREST / INCOME**
			SHORT TERM INVESTMENTS				
RBC 1 year Cashable GIC #1	DC Reserve Fund	22-Feb-22	24-Mar-22	1,000,000	-1,000,000	1.10%	934
		25-Mar-22	25-Apr-22	1,000,000	-1,000,000	1.40%	1,189
RBC 1 year Cashable GIC #2	DC Reserve Fund	22-Feb-22	24-Mar-22	1,000,000	-1,000,000	1.10%	934
		25-Mar-22	25-Apr-22	1,000,000	-1,000,000	1.40%	1,189
RBC 1 year Cashable GIC #3	DC Reserve Fund	22-Feb-22	24-Mar-22	1,000,000	-1,000,000	1.10%	934
		25-Mar-22	25-Apr-22	1,000,000	-1,000,000	1.40%	1,189
RBC 1 year Cashable GIC #4	DC Reserve Fund	22-Feb-22	24-Mar-22	1,000,000	-1,000,000	1.10%	934
		25-Mar-22	25-Apr-22	1,000,000	-1,000,000	1.40%	1,189
RBC 1 year Cashable GIC #5	DC Reserve Fund	22-Feb-22	24-Mar-22	1,000,000	-1,000,000	1.10%	934
		25-Mar-22	25-Apr-22	1,000,000	-1,000,000	1.40%	1,189
RBC 1 year Cashable GIC #6	DC Reserve Fund	22-Feb-22	14-Apr-22	1,000,000	-1,000,000	1.10%	1,537
RBC 1 year Cashable GIC #7	DC Reserve Fund	22-Feb-22	14-Apr-22	1,000,000	-1,000,000	1.10%	1,537
RBC 1 year Cashable GIC #8	DC Reserve Fund	22-Feb-22	14-Apr-22	1,000,000	-1,000,000	1.10%	1,537
RBC 1 year Cashable GIC #9	DC Reserve Fund	22-Feb-22	14-Apr-22	1,000,000	-1,000,000	1.10%	1,537
RBC 1 year Cashable GIC #10	DC Reserve Fund	22-Feb-22	14-Apr-22	1,000,000	-1,000,000	1.10%	1,537
RBC 1 year Cashable GIC #11	DC Reserve Fund	22-Feb-22	20-Apr-22	1,000,000	-1,000,000	1.10%	1,748
		21-Apr-22	06-Jun-22	1,000,000	-1,000,000	1.92%	2,472
		07-Jun-22	21-Jul-22	1,000,000	-1,000,000	2.55%	3,144
		22-Jul-22	06-Sep-22	1,000,000	-1,000,000	3.58%	4,610
		07-Sep-22	09-Nov-22	1,000,000	-1,000,000	4.09%	7,172
RBC 1 year Cashable GIC #12	DC Reserve Fund	22-Feb-22	20-Apr-22	1,000,000	-1,000,000	1.10%	1,748
		21-Apr-22	06-Jun-22	1,000,000	-1,000,000	1.92%	2,472
		07-Jun-22	21-Jul-22	1,000,000	-1,000,000	2.55%	3,144
		22-Jul-22	06-Sep-22	1,000,000	-1,000,000	3.58%	4,610
		07-Sep-22	09-Nov-22	1,000,000	-1,000,000	4.09%	7,172
RBC 1 year Cashable GIC #13	DC Reserve Fund	22-Feb-22	20-Apr-22	1,000,000	-1,000,000	1.10%	1,748
		21-Apr-22	06-Jun-22	1,000,000	-1,000,000	1.92%	2,472
		07-Jun-22	21-Jul-22	1,000,000	-1,000,000	2.55%	3,144
		22-Jul-22	06-Sep-22	1,000,000	-1,000,000	3.58%	4,610
		07-Sep-22	09-Nov-22	1,000,000	-1,000,000	4.09%	7,172
RBC 1 year Cashable GIC #14	DC Reserve Fund	22-Feb-22	20-Apr-22	1,000,000	-1,000,000	1.10%	1,748
		21-Apr-22	06-Jun-22	1,000,000	-1,000,000	1.92%	2,472
		07-Jun-22	21-Jul-22	1,000,000	-1,000,000	2.55%	3,144
		22-Jul-22	06-Sep-22	1,000,000	-1,000,000	3.58%	4,610
		07-Sep-22	09-Nov-22	1,000,000	-1,000,000	4.09%	7,172
RBC 1 year Cashable GIC #15	DC Reserve Fund	22-Feb-22	20-Apr-22	1,000,000	-1,000,000	1.10%	1,748
		21-Apr-22	06-Jun-22	1,000,000	-1,000,000	1.92%	2,472
		07-Jun-22	21-Jul-22	1,000,000	-1,000,000	2.55%	3,144
		22-Jul-22	06-Sep-22	1,000,000	-1,000,000	3.58%	4,610
		07-Sep-22	09-Nov-22	1,000,000	-1,000,000	4.09%	7,172
RBC 1 year Non Redeemable GIC	DC Reserve Fund	22-May-22	10-Nov-22	10,000,000	-10,000,000	2.40%	156,164
RBC 30 days Redeemable GIC	DC Reserve Fund	10-Nov-22	09-Dec-22	15,000,000	-15,000,000	4.59%	60,362
RBC 120 days Redeemable GIC*	**DC Reserve Fund**	**12-Dec-22**	**23-Apr-17**	**15,060,362**		**5.22%**	**34,461**
RBC 30 days Redeemable GIC	CCBF	10-Nov-22	09-Dec-22	8,000,000	-8,000,000	4.59%	32,193
RBC 30 days Redeemable GIC*	**CCBF**	**16-Dec-22**	**23-Apr-17**	**8,032,193**		**5.22%**	**18,379**
ONE Scotia HISA*	**General Fund**	**07-Feb-22**	**09-Sep-22**	**35,000,000**	**-30,000,000**	**0.715% - 4.775%**	**534,641**
RBC HISA*	**General Fund**	**12-Sep-22**		**40,000,000**		**3.85% - 4.85%**	**515,664**
RBC HISA*	**DC Reserve Fund**	**12-Sep-22**		**10,000,000**		**3.85% - 4.85%**	**128,894**
TOTAL SHORT TERM TREASURY INVESTMENTS				**78,092,555**			**1,594,787**
*** Active Investments as of December 31, 2022**							

ATTACHMENT 2

2022 INVESTMENT DETAILS							
INVESTMENTS	**FUND TYPE**	**INVESTMENT DATE**	**REDEMPTION/ MATURITY DATE**	**PURCHASE AMOUNT**	**DISPOSAL AMOUNT**	**INTEREST RATE / RETURN**	**INTEREST / INCOME**
MEDIUM TERM INVESTMENTS							
ONE Fund Government Bonds	General Fund	06-Jul-22		4,943,000			
Reinvested Income		30-Sep-22		21,354			21,354
Reinvested Income		31-Dec-22		25,663			25,663
				4,990,017		1.0%	**47,017**
ONE Fund Diversified Corporate Bonds	General Fund	06-Jul-22		5,080,300			
Reinvested Income		30-Sep-22		29,693			29,693
Reinvested Income		31-Dec-22		31,091			31,091
				5,141,084		1.2%	**60,784**
ONE Fund Canadian Equity	General Fund	30-Sep-22		3,432,600			
Reinvested Income		31-Dec-22		74,386			74,386
Reinvested Capital Gains		31-Dec-22		64,858			64,858
				3,571,844		4.1%	**139,244**
TOTAL MEDIUM TERM BONDS/EQUITY INVESTMENTS				**13,702,945**		**1.8%**	**247,045**
LONG TERM INVESTMENTS							
ONE Fund Diversified Corporate Bonds	General Fund	06-Jul-22		17,038,400			
Reinvested Income		30-Sep-22		99,587			99,587
Reinvested Income		31-Dec-22		104,274			104,274
				17,242,261		1.2%	**203,861**
ONE Fund Canadian Equity	General Fund	06-Jul-22		30,669,200			
Reinvested Income		31-Dec-22		664,615			664,615
Reinvested Capital Gains		31-Dec-22		579,496			579,496
				31,913,312		4.1%	**1,244,112**
TOTAL LONG TERM BONDS/EQUITY INVESTMENTS				**49,155,573**		**3.0%**	**1,447,973**

NOTE: PROPOSED CHANGES IN RED

CORPORATION OF THE TOWN OF AJAX
CORPORATE POLICIES AND PROCEDURES

SUBJECT: INVESTMENTS

COUNCIL ISSUED: 03/06/03	COUNCIL REVISED: 21 / 11 / 22	AUTHORED BY: Charmaine Chowdhry	REVISION #: 9	Page 1 of 5	POLICY #: 130

1. POLICY OBJECTIVE

1.1. This policy governs the investment of surplus cash, reserve and reserve funds and sinking funds of the Town of Ajax in accordance with the *Municipal Act 2001* (as amended) and Ontario Regulation 438/97 (as amended).

2. SCOPE

2.1. **Investment Goals/Objectives**

i) Preservation of Capital

The fundamental investment goal/objective is to ensure the safety and security of the investment principal. As the custodian of public funds, safeguarding invested principal is paramount. The Town will employ an investment strategy that seeks to minimize risk of capital losses by mitigating the impact of credit and interest risk where possible. This is mainly accomplished through the selection of instrument issuers, and ~~to a lesser extent, the~~ diversification of instrument types and varying maturity dates.

ii) Maintenance and Liquidity

A secondary objective is to maintain a reasonable degree of liquidity in order to meet the Town's obligations. Liquidity also provides the flexibility necessary to react to changing market and economic conditions as well as unanticipated cash needs.

iii) Competitive Rate of Return

The final objective is to maximize the rate of return on the investment portfolio, consistent with the objectives of security and liquidity of principal.

2.2 Eligible Investments

a) All investments must be in accordance with the *Municipal Act 2001* (as amended) and Ontario Regulation 438/97 (as amended).

b) Best efforts shall be made to obtain competitive quotes from all Schedule I banks for certificates of deposit or investment, high interest savings accounts (HISAs), or other similar investment instruments in order to obtain highest yield arrangements for principle protected investments.

c) This section details the eligible instrument issuers for the Town of Ajax and sets a maximum limit on the total principal that may be outstanding at any time with each issuer:

Instrument Issuer/Guarantor	Not To Exceed
1. Bonds, debentures, promissory notes or other evidence of indebtedness issued or guaranteed by the Government of Canada.	$15 million
2. Bonds, debentures, promissory notes or other evidence of indebtedness issued or guaranteed by a Province of Canada.	$10 million per Province
3. High interest savings account (HISA), certificates of deposits or investment guaranteed or endorsed by Schedule I banks.	Unlimited per bank
4. Deposit receipts, deposit notes, ~~certificates of deposit or investment,~~ promissory notes, acceptances or other similar investment instruments issued, guaranteed or endorsed by Schedule I banks.	$25 million per bank,
5. Deposit receipts, deposit notes, HISA, certificates of deposit or investment, acceptances or other similar investment instruments issued, guaranteed or endorsed by Schedule II banks.	$5 million per bank
6. Deposit receipts, deposit notes, HISA, certificates of deposit or investment, acceptances or other similar investment instruments issued, guaranteed or endorsed by Loan and Trust Companies licensed under the Loan and Trust Companies Act.	$5 million per Loan and Trust Company
7. Deposit receipts, deposit notes, HISA, certificates of deposit or investment, acceptances or other similar investment instruments issued, guaranteed or endorsed by a Credit Union or League to which applies the Credit Union or Caisse Populaires Act applies.	$5 million per Credit Union and Caisse Populaires

8. ONE – The Public Sector Groups of Funds Joint Investment Pool	$100 million per pool

The asset allocation for the Treasury, Short term, Medium Term and Long Term investment tranches will be maintained within the ranges allowed as follows:

Treasury	**Percentage Allocation**
Money Market deposit securities	**100%**
Maximum Maturity up to 12 months	

Short Term	**Minimum**	**Target**	**Maximum**
Cash & Equivalents	0%	2%	10%
Short term Bonds	90%	98%	100%
Total Portfolio		**100%**	

Medium Term	**Minimum**	**Target**	**Maximum**
Cash & Equivalents	0%	2%	10%
Short term Bonds	25%	35%	45%
Diversified Bonds	25%	36%	50%
Total Fixed Income		**73%**	
Equity (One Investment)	15%	25%	35%
Total Portfolio		**100%**	

Long Term One	**Minimum**	**Target**	**Maximum**

Cash & Equivalents	0%	2%	10%
Diversified Bonds	25%	35%	45%
Total Fixed Income	25%	**37%**	45%
Canadian Equity	35%	**63%**	75%
Total Portfolio	**100%**		

d) This section details the Town's investment in Elexicon and the funds held in various Town bank accounts.

Investment	Held by/Issued by
1. Bank Accounts	Schedule I Bank(s)
2. Promissory Notes	Elexicon Connections Inc. Elexicon Corporation
3. Common Shares	Elexicon Corporation

3. PROCEDURE

3.1 Approval Requirements

a) All investment transactions must be approved by the Manager of Budgets & Accounting Services, and in their absence, the Director of Finance/Treasurer.

3.2 Council Reporting

3.2.1 The Director of Finance/Treasurer shall provide an annual investment report to Council through the General Government Committee. The investment report shall contain as a minimum:

a) A statement about the performance of the portfolio of investments during the period covered by the Report;

b) a statement by the Director as to whether or not, in his or her opinion, all investments were in accordance with the investment policies and goals adopted by the Town;

c) the balance of the current outstanding investment portfolio;

d) a description of the estimated proportion of investments that are invested in the Town's own long-term and short-term securities and a description of the change, if any, in the estimated proportion since the previous report;

e) a record of the date of each transaction in or disposal of its own securities, including a statement of the purchase and sale price of each security;

f) such other information that Council may require, or that in the opinion of the Director, should be included.

3.2.2 If an investment is made by the municipality that is, in the opinion of the Director of Finance/Treasurer, not consistent with the investment policies and goals adopted by the municipality, the Director of Finance/Treasurer shall report the inconsistency to Council within 30 days after becoming aware of it.

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Lindsay Sinclair, Supervisor of Facility Capital Projects & Asset Management
Report #:	OES-2023-13
Subject:	**Contract Award – Fire Station #2 Renovation**
Ward:	1
Date of Meeting:	June 12, 2023
Reference:	RFT No. T23022 – Fire Station #2 Renovation RFS No. S23014 - Contract Administration - Fire Station #2 Renovation Capital Account No: 23090202

Recommendations:

1. **That Council award the contract for Fire Station #2 Renovation, to Anacond Contracting Inc. in the amount of $3,316,617.80 (inclusive of all taxes).**

2. **That Council award the contract for Contract Administration Fire Station #2 Renovation, to Aecom Canada Limited in the amount of $238,260.50 (inclusive of all taxes).**

3. **That Council approve the following funding, to be allocated to Capital Account No. 23090202:**

DC Funded Debenture	**$1,900,000.00**
Development Charges	**$(1,202,564.86)**
Development Reserve	**$36,707.11**
Building Maintenance Reserve	**$507,391.36**
Total	**$1,241,533.61**

4. **That Council authorize staff to prepare a bylaw to authorize the Regional Municipality of Durham to issue a debenture in the estimated principal amount of $1,900,000 as partial financing for the renovations of the Fire Station #2 required to accommodate a new fire crew.**

Background:

Fire Station #2 was constructed in 1976, it is approximately 14,500 square feet and consists of a two storey with finished basement, brick clad building. The station has not undergone any major renovation. The building currently houses one on-duty Emergency Response Crew and typically has between four to five people on-site. The station consists of a large apparatus room, a hose

tower, ready room, change rooms, dormitories, various office spaces, storage rooms, washrooms, workshops and mechanical rooms.

The 2021 Fire Master Plan has been developed to respond to the current and future needs of Ajax Fire and Emergency Services as a result of growth and intensification pressures. The Fire Master Plan has indicated the need for a second crew to be stationed at Fire Station #2. This will double the quantity of crew on-site daily and overnight. The building requires renovations in order to accommodate the increased crew. The renovations will address the needs associated with adding a second crew as well as incorporating design elements in order to meet the current and future anticipated needs of Ajax Fire and Emergency Services.

The detailed design phase began in 2022 and has gone through extensive stakeholder consultation to ensure it meets the current and future anticipated needs of Ajax Fire Service. The design includes expanding the sleeping dormitories to accommodate 10 all-gender crew members, as well as expanding the washroom and kitchen facilities, bunker gear storage, laundry facilities and office areas.

Throughout the detailed design phase additional building maintenance upgrades were identified and are required to be completed for building code purposes and due to the increased building occupancy. These upgrades include replacement of the rooftop units, various mechanical upgrades, electrical service upgrades, generator replacement and sanitary pump system replacement. In addition to completing required building maintenance upgrades, there was an opportunity to rough-in future electric apparatus truck EV charging stations in the apparatus bay. This will greatly reduce future costs for installing EV charging stations at Fire Station #2.

Discussion:

Construction Award

The Town undertook a Request for Pre-Qualification [RPQ No. PQ2302] for General Contractors ~ Fire Station No. 2 Renovation in January 2023 to cover Fire Station No. 2 Renovation requirements. This RPQ resulted in the appointment of 6 pre-qualified Bidders.

Request for Tender (RFT) documents were posted to the Towns' eBidding platform and the 6 pre-qualified bidders were invited to register for the opportunity. Of the invited bidders 6 registered for the opportunity with bids being received from 4 of these, prior to the closing on May 25, 2023. Listed below is a summary of the bids received:

NAME OF BIDDER	TOTAL TENDER AMOUNT
Anacond Contracting Inc.	$ 3,316,617.80
Pegah Construction Ltd.	$ 3,327,850.00
Area Construction Inc.	$ 3,597,182.11
J.J. McGuire General Contractors Inc.	$ 3,664,590.00

Contract Administration Award

The current Purchasing By-Law allows for purchases through negotiations, under certain conditions, more specifically, "where, at the discretion of the Department Head, in consultation with the Manager of Purchasing, it is deemed to be in the best interest of the municipality to negotiate with vendors."

It is in the best interest of the Town to single source the Contract Administration to Aecom Canada as they have completed the detailed design and are familiar with the project requirements.

Financial Implications:

23090202 - Fire Station 2 Renovations (FMP)

Approved Capital Budget		$2,600,000.00
Current Award		
Construction Contract Award (net of HST rebate)	$2,986,717.05	
Construction Contingency (20%)	$597,343.41	
CA Contract Award (net of HST rebate)	$214,560.96	
CA Contingency (20%)	$42,912.19	$3,841,533.61
Over Budget		($1,241,533.61)

A 20% contingency has been identified to ensure sufficient funding is available to address unforeseen issues that can be encountered during construction.

This over budget project requires long-term debenture debt financing as the Town's Development Charges reserve fund for Fire Services is currently insufficient to cover the total development charges required to fund this project. The maximum amount of debenture that is permitted to be issued on facility construction in accordance with the Debt Management Policy (124) is 50% of the construction costs. The debenture of $1.9M to be issued meets that target.

Debt payments will be required beyond the term for which Council was elected. As required by Ontario Regulation 403/02, the Director of Finance/Treasurer has updated the Town's Annual repayment Limit Calculation. The debt repayment limit has not been exceeded and therefore Ontario Municipal Board approval is not required.

Additional Funding

	Growth	Other Facility Improvements	**Total Cost**	Budget	**Additional funding**
Buidling Maintenance		$507,391.36	**$507,391.36**		**$507,391.36**
Development Charges (Debenture)	$1,900,000.00		**$1,900,000.00**		**$1,900,000.00**
Development Charges	$1,267,435.14		**$1,267,435.14**	$2,470,000	**-$1,202,564.86**
Development Reserve	$166,707.11		**$166,707.11**	$130,000	**$36,707.11**
Total Funding	**$3,334,142.26**	**$507,391.36**	**$3,841,533.61**	**$2,600,000**	**$1,241,533.61**

The following additional funding will be allocated to this project:

- $507,391.36 from the Building Maintenance Reserve to fund portions of the project not related to the building improvements required to accommodate the new fire crew;
- $36,707.11 from Development Reserve will also be required to fund the required 5% benefit to existing portion
- $1.9M development charges debenture is recommended as the Fire Services DC

reserve balance is currently insufficient to cover the total development charges required to fund this project. Future principal and interest debt payments will be drawn from future DC collections.

Contract commencement is July 4, 2023 and completion is expected by Feb 1, 2024.

Communication Issues:

The construction will commence in early Summer with completion by early 2024. There will be project signs posted at the site and the Town will have construction information available and updated regularly on our Construction Projects webpage and social media platforms.

Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan:

Pillar 1:	Connecting our Community
Priority 4:	Foster a safe and welcoming community
Pillar 2:	Growing our Community
Priority 3:	Initiate designs to modernize and redevelop facilities
Pillar 3:	Modernizing our Community
Priority 3	Equip our workforce for the future

Conclusion:

It is the recommendation of staff that Anacond Contracting Inc. be awarded the contract for the Fire Station #2 Renovation project, being the lowest bidder meeting the minimum specifications.

It is also the recommendation of staff that Aecom Canada be awarded the contract to complete contract administration services as a single source purchase.

Attachments:

ATT-1 Capital Detail Sheet

Prepared by:

Lindsay Sinclair - Supervisor of Facility Capital Projects & Asset Management

Submitted by:

Dave Meredith - Director of Operations & Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Operations & Environmental Services	**Initially budgeted in**	2023
Section	Building Maintenance		
Project Name	**Fire Station 2 Renovations (FMP)**		
Submitted By	Bernie Deveaux, Acting Manager of Building Maintenance		
Start Year	2023		
Project Number	23090202		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: The proposed scope of work includes major renovations at Fire Station #2 in accordance with the Fire Master Plan with the addition of a second crew at this facility. The detailed design was completed in 2022. The design included expanding sleeping dormitories to accommodate 10 all gender crew members, as well as expanding kitchen facilities, gear storage, laundry facilities and office areas.

Rationale: Fire Station #2 was built in 1976. This station was built at that time to meet the current needs for fire services in Ajax. The station has not undergone any major renovations since that time. The Fire Master Plan 2021 has been developed to respond to the current and future Fire Services needs as a result of growth related and intensification pressures that have been experienced in Ajax. The Fire Master Plan has indicated the need for a second crew at Station #2.

The renovations will address the needs associated with adding a second crew and enable services at the Fire Station #2 facility to respond to the needs of current and future Ajax residents.

Reference: Ajax Fire Master Plan (2021), Accessibility for Ontarians with Disabilities Act (AODA), Facility Condition Audits and Assessments, Security Assessment (2019). 2018 DC Background Study, Item 18F07

Schedule: Detailed design was completed in 2022. Construction will take place in 2023.

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Total Expenditures	**2,600,000**	**-**	**-**	**-**	**2,600,000**
Development Reserve	**130,000**	**-**	**-**	**-**	**130,000**
Development Charges - 2018	**2,470,000**	**-**	**-**	**-**	**2,470,000**
Total Funding	**2,600,000**	**-**	**-**	**-**	**2,600,000**

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Tan Nguyen, Landscape Architect, Operations and Environmental Services
Report #:	OES-2023-14
Subject:	Contract Award – Meadows North Neighbourhood Park Construction
Ward:	2
Date of Meeting:	June 12, 2023
Reference:	Capital Account 1029711.5850 – Meadows North Neighbourhood Park Construction RFT No. T23025 – Meadows North Neighbourhood Park Construction

Recommendation:

1. **That Council award the contract for the Meadows North Neighbourhood Park Construction project to Melfer Construction Inc. in the amount of $1,008,307.88 (inclusive of all taxes).**

2. **That Council approve the following funding to be allotted to Capital Account No. 1029711:**

Development Charges Reserve Fund	**$144,593.85**
Development Reserve	**$ 12,573.38**
Total	**$157,167.23**

Background:

The approved 2023 Capital Budget includes the provision for the construction of a neighbourhood park within the Meadows Subdivision in Northwest Ajax. The park is located on the north side of Williamson Drive West at the roundabout intersection at Bellinger Drive. The park has been designed as a significant recreational focal point for the local community. The scope of the project includes a junior/senior playground, gazebo shade structure, fenced leash-free area, a basketball half-court, paved walkways, lighting, landscaping, seeding, sodding, furnishings, seating, and a drainage system.

The park's components such as the playground and walkways have been designed in compliance with the Accessibility for Ontarians with Disabilities Act (AODA).

Pedestrian connections to the park have been incorporated into the design, creating links to the adjacent streets as well as to Rosemary Brown Public School located to the west of the park.

Discussion:

Request for Tender (RFT) documents were posted to the Towns' eBidding platform and 24 prospective bidders registered for the opportunity with bids being received from 10 of these, prior to the closing on May 30, 2023.

Upon review of the 10 bids received, 1 of the submissions was found to be non-compliant and therefore cannot be considered in the award. Listed below is a summary of the bids considered:

NAME OF BIDDER	TOTAL TENDER AMOUNT
Melfer Construction Inc.	$ 1,008,307.88
Forest Ridge Landscaping Inc.	$ 1,179,873.63
Royalcrest Paving & Contracting Ltd.	$ 1,274,927.86
Hawkins Contracting Services Limited	$ 1,327,023.53
Lomco Limited	$ 1,339,031.76
Loc-Pave Construction Limited	$ 1,369,391.47
Latitude 67 Ltd.	$ 1,435,284.71
CSL Group Ltd.	$ 1,568,668.61
M&S Architectural Concrete Ltd.	$ 1,763,289.13

The Capital Expenditure Control Policy allows for a contingency in excess of 10% when recommended by the Department Head. As specified in the Financial Implications section of this report, the recommendation is that Council approve a contingency amount of 15%.

Financial Implications:

Capital Account No. 1029711.5850 – Meadows North Neighbourhood Park Construction

Approved Capital Budget		$909,600.00
Previous Awards/Expenditures		
MJS Consultants Inc. (OD 127902)	$4,477.44	
Barry Bryan Associates Ltd. (OD 127951)	$4,172.16	
Mauro Group Inc. (PO 125692)	$6,003.84	
LAUD Studios Inc. (OD 127977)	$4,477.44	
LAUD Studios Inc. (OD 129789)	$3,422.01	$22,552.89
Available Budget		$887,047.11
Current Award		
Contract (net of HST rebate)	$908,012.47	
Contingency (15%)	$136,201.87	$1,044,214.34
Over Budget		($157,167.23)

A 15% contingency has been identified to ensure sufficient funding is available to address site specific issues that can be encountered during construction. Risk factors for this project include:

- Unusual soil or base conditions, site conditions different than those anticipated,
- Unanticipated utilities encountered during the construction,
- Additional environmental management required such as sediment controls,
- Contamination of soil, and/or,
- Poor weather conditions.

These risks can cause delays, necessitating additional material and labour associated with construction.

The cost increase can be attributed to the current inflation rate, the increased cost of labour, construction materials and increased fuel prices. Furthermore, on January 1, 2021, Phase One of Ontario's new On-Site and Excess Soil Management Regulation, O. Reg 406/19, took effect under the Province's Environmental Protection Act ("EPA"). The Regulation introduces new framework for the excavation, removal, and transport of "excess soils" between two or more sites that will affect overall projects costs. These costs include additional sampling and testing to be completed by Geotechnical Consulting.

Additional funding, not to exceed $169,614.34, will be allocated from the Development Charges Reserve Fund and the Development Reserve.

The Capital Detail Sheet is attached for information.

Communication Issues:

A colored site plan will be mailed-out to the residents and posted on social media. Information signage will be posted on the site during construction. A construction schedule will be posted on the Town's website upon contract awarded.

Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan (Action 26):

Pillar 1: Connecting our Community
1: Increase and amplify creative and innovative opportunities;
2: Encourage community pride;
3: Improve well-being and quality of life;
4: Foster a safe and welcoming community.

Pillar 2: Growing our Community
1: Embrace dynamic and sustainable growth;
2: Invest in the changing recreational needs of a growing community;

Pillar 3: Modernizing our Community (MC)
1: Lead the green transition.

Conclusion:

It is the recommendation of staff that Melfer Construction Inc. be awarded the contract for the Meadows North Neighbourhood Park Construction project, being the lowest bidder meeting

minimum specifications.

Attachments:

ATT-1: Park Concept Plan

ATT-2: Long Range Capital Forecast Detail Sheet

Prepared by:

Tan Nguyen – Landscape Designer, Operations and Environmental Services

Submitted by:

Dave Meredith – Director Operations and Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

Attachment 1: Park Concept Plan



Attachment 2: Long Range Capital Forecast Detail Sheet

TOWN OF AJAX
2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST
DETAIL SHEET

Project Name **Development - Parks & Recreation**
Project Number DC090400

Program Description

The Town currently maintains approximately 346 hectares of parkland, approximately 33,000 metres of recreational trails, 105 parks and a fleet of vehicles providing maintenance services within these parks. In addition, the Town utilizes approximately 429,000 sq.ft. of recreation facilities and 45,000 sq.ft. of operations facilities in the provision of parks and recreations services.

Over the 10 year forecast period (2018-2027) identified in the 2018 Development Charge Background Study, the Town will experience growth in population and employment which will require additional investments in Parks and Recreation Services. These capital needs are comprised of future parkland and recreation trail development, additional indoor recreation spaces, and additional vehicles related to parks and recreation services. Such services were identified in the recent Recreation and Parks Master Plan (RPMP).

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Expenditures					
1029711 Meadows North Neigh Park	874,600	-	-	-	874,600
23090401 Remmer Neighbourhood Park	-	56,900	625,400	-	682,300
24090401 Fieldgate Homes Parkette	-	-	75,000	500,000	575,000
24090402 Eagle Woods Parkette	-	-	400,000	-	400,000
24090403 Daste North Parkette	-	420,000	-	-	420,000
24090404 ACC North Field Community Park	-	60,000	3,133,300	-	3,193,300
25090401 Woodland Park - Harwood Avenue	-	-	-	215,000	215,000
25090402 Pickup Crew Cab - pending new staff	-	-	-	84,000	84,000
25090403 Sundial Downtown Park Phase 2	-	-	100,000	850,000	950,000
25090404 Front Runner Mower-pending new staff	-	-	-	40,000	40,000
25090405 Zero Turn Mower - pending new staff	-	-	-	40,000	40,000
28090401 A9 Taunton Parkette	-	-	-	226,000	226,000
28090402 A9 Duffins Parkette	-	-	-	410,000	410,000
29090401 ARC Phase III - RPMP	-	-	-	34,000,000	34,000,000
29090402 A9 East Village Parkette	-	-	-	410,000	410,000
29090403 Magnum Opus Community Park	-	-	-	3,850,000	3,850,000
29090404 A9 North Neighbourhood Park	-	-	-	1,185,000	1,185,000
31090401 Audley Recreation Centre - Skate Trail	-	-	-	1,280,000	1,280,000
Total Expenditures	874,600	536,900	4,333,700	43,090,000	48,835,200

Town of Ajax

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Rassle Solaiman, Capital Projects Coordinator
Report #:	OES-2023-18
Subject:	**Contract Award – Town Hall Parking Lot Improvements**
Ward:	3
Date of Meeting:	June 12, 2023
Reference:	RFT No. T23010 Capital Account No. 23010101.5850/5810 - Town Hall Servicing & Parking Lot Rehabilitation

Recommendation:

That Council award the contract for Town Hall Parking Lot Improvements, to C. Valley Paving Ltd. in the amount of $1,180,865.88 (inclusive of all taxes).

Background:

The parking lot at Town Hall consists of 3 sections which includes the main lot, staff lot and library service lot. An illustration of the parking lot sections is shown in Figure 1. In this report, when referencing the parking lot at Town Hall, it shall be interpreted to include all three sections.

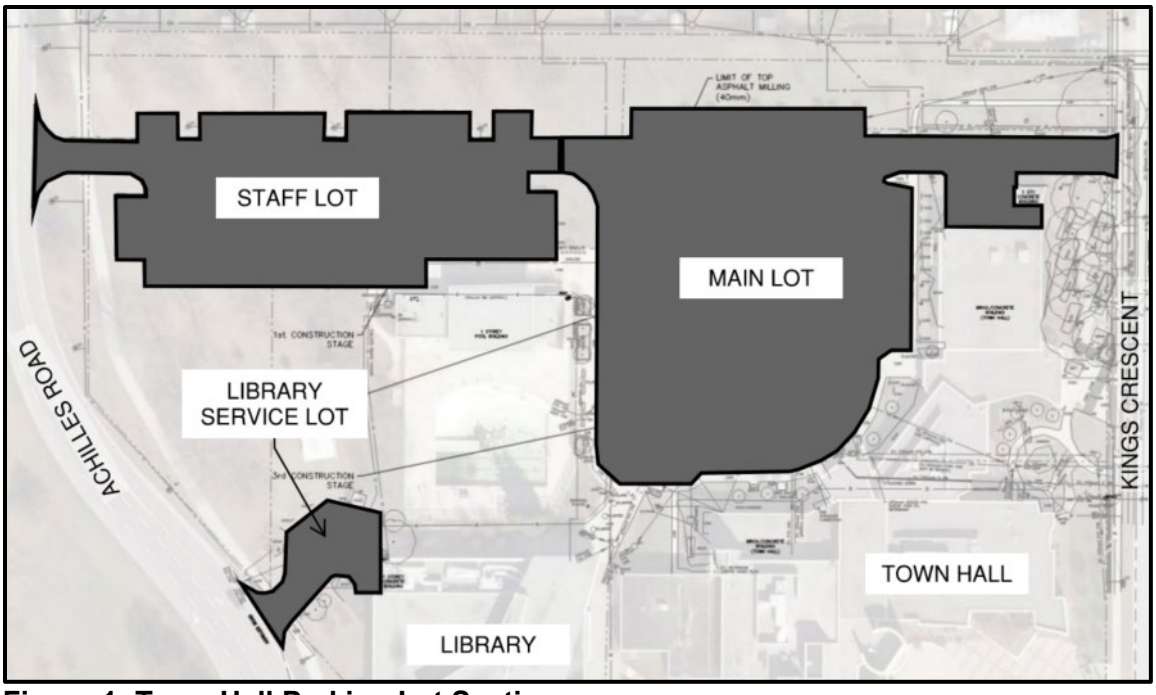


Figure 1: Town Hall Parking Lot Sections

Town Hall is the Town's main corporate building and is one of the busiest municipal facilities within the Town of Ajax. The parking lot at Town Hall has deteriorated due to age resulting in settlements, potholes, ponding, and uneven surfaces. Town Hall is classified as a high priority and service type facility where it is critical to keep the parking lot in a state of good repair.

In an effort to better evaluate the condition of municipal parking lots and determine an appropriate life cycle, staff conduct a condition assessment of all municipal parking lots annually. Municipal parking lot repairs are prioritized based on condition rating, priority and service type. The repairs also include concrete sidewalk and curb repairs which is a necessary component of the Town's municipal parking lot maintenance program, prolonging the life of the pavement structure. The 2022 Municipal Parking Lot Assessment identified the parking lot at Town Hall as a high priority asset for repair with a recommended maintenance of mill and overlay. Mill and overlay, includes removal and replacement of the top wear coat of asphalt.

In addition to the aging parking lot, the watermain at Town Hall was also found to be deteriorated. The cast iron watermain is assumed to be the original pipe installed when the site was developed approximately 60 years ago. Over the years, there have been several watermain breaks resulting in costly emergency repairs. The most recent watermain break occurred on December 31, 2021, near the main entrance. This emergency repair required closing a large area of the main parking lot, replacing a significant section of watermain, reinstating the parking lot and installing temporary asphalt paving.

As a result of the watermain break in December of 2021, Staff reviewed record drawings and past watermain repair history which revealed that the existing cast iron watermain should be replaced as it has reached the end of its lifecycle and is susceptible to further breaks. The watermain replacement work prompted the requirement for a detailed design.

The approved 2022 Capital Budget included project 1035211 – Town Hall Parking Lot Mill & Overlay where the scope of work was limited to surface improvements only and did not include watermain replacement. With the existing watermain reaching the end of its lifecycle, and the immediate need to replace this infrastructure prior to repaving the parking lot, Staff were directed to complete a detailed design to replace the watermain under Capital Project 1035211. Staff were to obtain a construction cost estimate for the additional watermain replacement work and reassess whether Capital Project 1035211 would require additional funding to include watermain replacement as a part of the construction work or if the project would need to be re-budgeted for construction in 2023.

In February 2022, The Town undertook a RFT process and awarded the detail design contract to CIMA Canada Inc. to replace the watermain at Town Hall. Through the design, it was determined that the construction project would need to be re-budgeted for 2023 as the construction estimate exceeded the approved budget for Capital Project 1035211.

The Town Hall parking lot project in the approved 2023 Capital Budget includes the following improvements (See Attachment 1):

- Replacement of the existing cast iron watermain with PVC;
- Plumbing and electrical upgrades in the Pool Building Meter Room;
- Sanitary and storm sewer cleaning and repairs;
- Improved connectivity and accessibility;
- Accessibility for Ontarians with Disabilities Act (AODA, 2005) compliant parking spaces;
- Concrete curb and sidewalk repairs including installation of new tactile walking surface indicators;
- New underground conduits for the installation of future security cameras;

- New underground conduits for the installation of future Electric Vehicle (EV) charging station(s) for the Town's EV fleet;
- Pavement substructure repairs;
- Full and partial depth asphalt removal;
- New asphalt paving;
- Installation of new traffic calming measures; and
- New pavement markings.

The Town Hall Improvements project will enhance overall user and customer experience, address accessibility and safety concerns and reduce the risk of underground watermain, storm and sanitary sewer repairs.

Construction Sequence

The anticipated construction sequence is shown in Table 1.

SEQUENCE	DESCRIPTION
1	Watermain replacement, storm and sanitary repairs
2	Top asphalt milling throughout the main driving aisles
3	Curb and sidewalk repairs may proceed outside of respective construction stage provided safe and accessible pedestrian access is maintained
4	Directional bore for underground conduit installation
5	Full depth asphalt removal (excludes main driving aisles)
6	Asphalt paving within respective construction stage

Table 1: Construction Sequence

Construction Staging

To ensure adequate parking is available throughout construction, the parking lot work will be completed in stages as shown in Table 2 and Figure 2.

STAGE	DESCRIPTION
1	Staff and library service lots (Area 'A' in Figure 2)
2	East half of main lot (Area 'B' in Figure 2)
3	West half of main lot (Area 'C' in Figure 2)

Table 2: Construction Staging

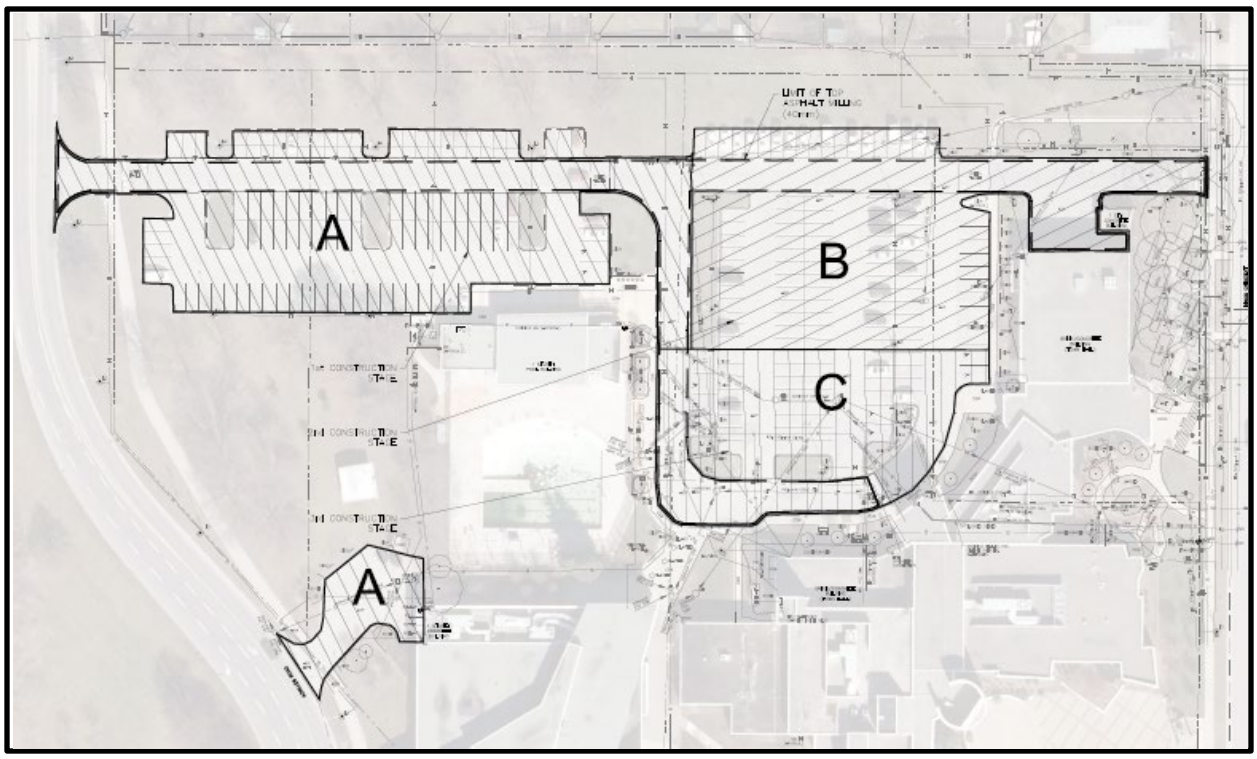


Figure 2: Construction Staging Plan

Project Schedule

To avoid conflicts with the Town's Summer Camp & Swim Run Program ending on September 1, 2023, the Town Hall Improvement project is scheduled to commence on September 4, 2023. The anticipated completion date is December 15, 2023. Due to the increased project scope and limited construction time within the 2023 construction season, it is anticipated that some of the work may need to be completed in the spring of 2024. The underground servicing and base asphalt work will be prioritized for 2023, with topcoat asphalt and final restoration work in 2024.

Discussion:

Request for Tender (RFT) documents were posted to the Towns' eBidding platform and 29 prospective bidders registered for the opportunity with bids being received from 5 of these, prior to the closing on May 24, 2023. Listed below is a summary of the bids received:

NAME OF BIDDER	TOTAL TENDER AMOUNT
C. Valley Paving Ltd.	$ 1,180,865.88
Wyndale Paving Co. Ltd.	$ 1,377,275.08
Broz Excavating Inc.	$ 1,620,140.17
Egnatia Paving	$ 1,629,104.73
Melrose Paving Co. Ltd.	$ 2,139,088.43

Financial Implications:

Capital Account No. 23010101.5810/5850 – Town Hall Services & Parking Lot Rehabilitation

Building Maintenance Fund		
Approved Capital Budget		$755,000.00
Contract (net of HST rebate)	$598,091.65	
Contingency (15%)	$ 89,713.75	$687,805.40
Available Budget		$67,194.60
General Infrastructure Maintenance Fund		
Approved Capital Budget		$547,000.00
Contract (net of HST rebate)	$465,314.64	
Contingency (15%)	$ 69,797.20	$535,111.84
Available Budget		$11,888.16

The Available Budget will be used to award the Contract Administration Contract for this project.

A 15% Contingency has been identified to ensure sufficient funding is available to address site specific issues that can be encountered during construction. Risk factors for this project are listed below. These risks may result in project delays and additional costs.

- Additional excavations due to poor soil conditions;
- Unforeseen utility and underground infrastructure conflicts;
- Additional watermain, storm and sanitary sewer repairs;
- Additional sidewalk and curb repairs;
- Further construction staging requirements and/or mobilizations; and
- Poor weather conditions.

The Capital Detail Sheet is attached for information.

Communication Issues:

A communication strategy has been developed to keep residents, business owners and Council up to date on the project. The plan includes:

- Mailing notices to residents and business owners in the immediate area;
- Providing information on the Town's website, social media and the local paper;
- Posting information signs at the construction site;
- Providing updates on the Town’s electronic newsletter; and
- Pamphlets made available for Library patrons as well as for visitors at Town Hall.

Relationship to the Strategic Plan:

This report aligns with the following section of the 2023-2026 Strategic Plan – Action 26:

Pillar 1: Connecting our Community

Priority 3: Improve well-being and quality of life

3.1: Support and promote active and accessible transportation

Priority 4: Foster a safe and welcoming community

4.3: Increase beautification efforts throughout the Town

Conclusion:

It is the recommendation of staff that C. Valley Paving Ltd. be awarded the contract for Town Hall Parking Lot Improvements, being the lowest bidder meeting minimum specifications.

Attachments:

ATT-1: Town Hall Parking Lot Proposed Conditions

ATT-2: Capital Detail Sheet LC033000 – Municipal Parking Lifecycle Maintenance Program

Prepared by:

Rassle Solaiman – Capital Projects Coordinator

Submitted by:

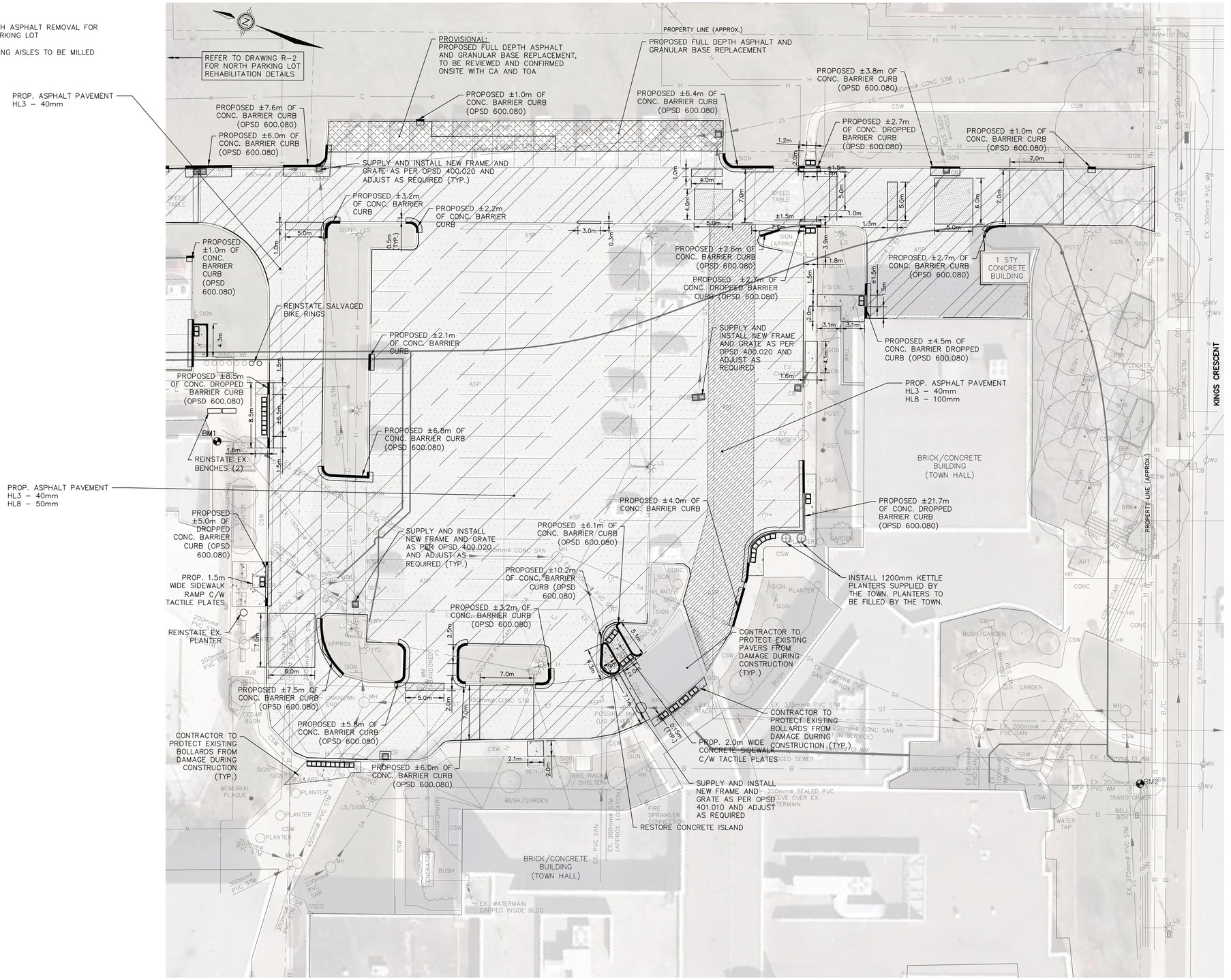
Dave Meredith – Director of Operations & Environmental Services

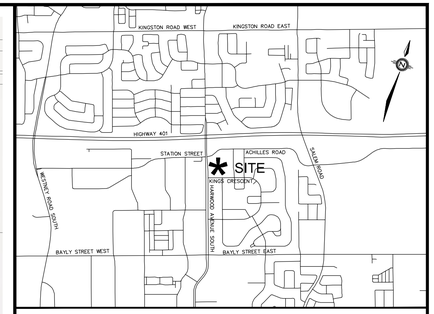
Approved by:

Shane Baker– Chief Administrative Officer

NOTE(S):

1) FULL DEPTH ASPHALT REMOVAL FOR ENTIRE PARKING LOT
2) MAIN DRIVING AISLES TO BE MILLED 40mm





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With the sole exception of the benchmark(s) specifically described for this project, no elevation indicated or assumed hereon is to be used as a reference elevation for any purpose.

All dimensions and information shall be checked and verified on the job and any discrepancies must be reported to the municipality before commencing the work. All measurements must be obtained from stated dimensions, drawings are not to be scaled.

TOWN OF AJAX BM330 **ELEVATION 91.552**
CLOVER RIDGE PLAZA, BRICK RETAIL SALES BUILDING AT THE NORTH-WEST CORNER OF HARWOOD AVENUE S. AND WESTNEY ROAD S. TABLET SET VERTICALLY IN EASTERLY BRICK WALL 0.85m SOUTH OF NORTH-EAST CORNER AND 0.33m ABOVE SIDEWALK.

BM1 **ELEVATION 105.621**
TOP OF NORTHEAST BOLT SECURING NORTH END OF HAND RAIL AT SOUTHEAST CORNER OF AJAX MEMORIAL POOL BUILDING.

BM2 **ELEVATION 103.574**
TOP OF SE CORNER OF CONCRETE TRANSFORMER PEDESTAL ON SOUTH SIDE OF #65 HARWOOD AVENUE.

BM3 **ELEVATION 105.943**
TOP OF BOLLARD AT NORTHEAST CORNER OF LIBRARY.

No.	REVISION	DATE	BY	APPROVED
5	ISSUED FOR PERMIT & TENDER	2023.04.11	RA	
4	ISSUED FOR FINAL REVIEW	2023.04.04	RA	
3	ISSUED FOR PRE-TENDER	2023.02.17	RA	
2	ISSUED FOR 60% SUBMISSION	–	–	
1	ISSUED FOR 30% SUBMISSION	2022.06.14	RA	

REVISIONS

THE CORPORATION OF THE TOWN OF AJAX

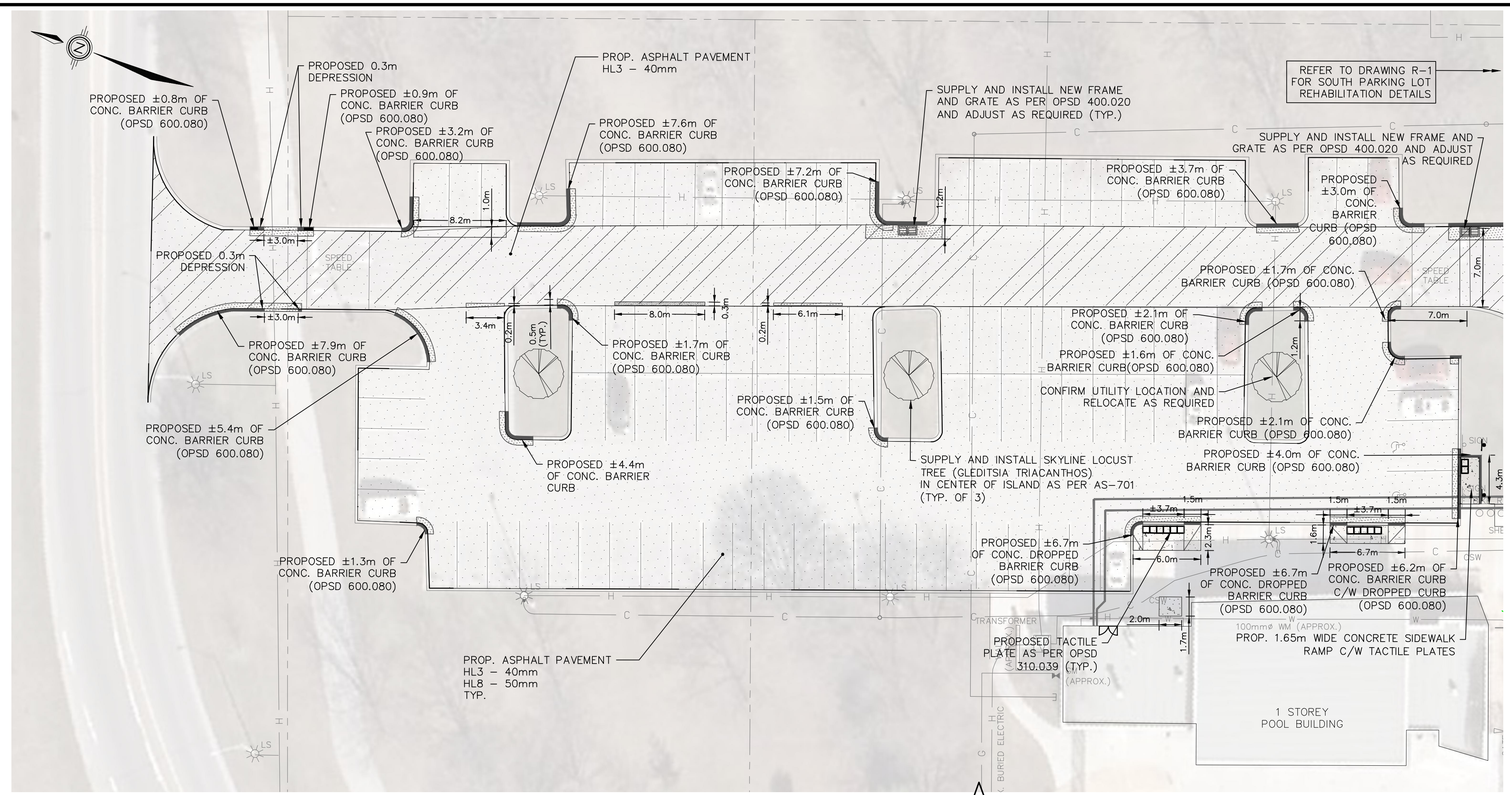
TOWN HALL PARKING LOT IMPROVEMENTS

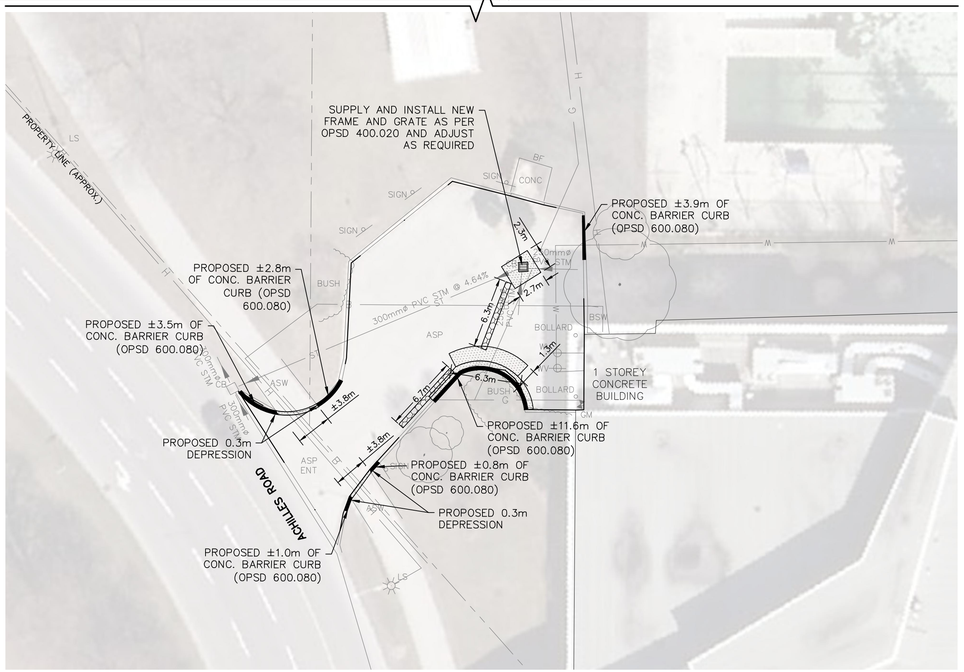
PARKING LOT REHABILITATION TOWN HALL/LIBRARY LOT PROPOSED CONDITIONS

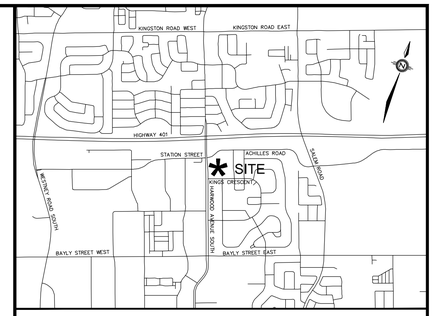
CIMA+

REGISTERED PROFESSIONAL ENGINEER R.J.J. ALBRIGHT Apr. 04, 2023 PROVINCE OF ONTARIO

SCALE: HORIZ.: 1:250 VERT.: N/A	PROJECT No.: C14-0497
DRAWN BY: M.C.	DRAWING No.: R-1
DESIGNED BY: C.W.S.	
CHECKED BY: R.A.	
DATE: AUGUST 2022	







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All dimensions and information shall be checked and verified on the job and any discrepancies must be reported to the municipality before commencing the work. All measurements must be obtained from stated dimensions, drawings are not to be scaled.

TOWN OF AJAX BM330 **ELEVATION 91.552**
CLOVER RIDGE PLAZA, BRICK RETAIL SALES BUILDING AT THE NORTH-WEST CORNER OF HARWOOD AVENUE S. AND WESTNEY ROAD S. TABLET SET VERTICALLY IN EASTERLY BRICK WALL 0.85m SOUTH OF NORTH-EAST CORNER AND 0.33m ABOVE SIDEWALK.

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BM3 **ELEVATION 105.943**
TOP OF BOLLARD AT NORTHEAST CORNER OF LIBRARY.

No.	REVISION	DATE	BY	APPROVED
5	ISSUED FOR PERMIT & TENDER	2023.04.11	RA	
4	ISSUED FOR FINAL REVIEW	2023.04.04	RA	
3	ISSUED FOR PRE-TENDER	2023.02.17	RA	
2	ISSUED FOR 60% SUBMISSION	–	–	
1	ISSUED FOR 30% SUBMISSION	2022.06.14	RA	

REVISIONS

THE CORPORATION OF THE TOWN OF AJAX

TOWN HALL PARKING LOT IMPROVEMENTS

PARKING LOT REHABILITATION POOL/LIBRARY SERVICE LOT PROPOSED CONDITIONS

CIMA+

REGISTERED PROFESSIONAL ENGINEER
R.J.J. ALBRIGHT
Apr. 04, 2023
PROVINCE OF ONTARIO

SCALE: HORIZ.: 1:250 VERT.: N/A	PROJECT No.: C14-0497
DRAWN BY: M.C.	DRAWING No.: R-2
DESIGNED BY: C.W.S.	
CHECKED BY: R.A.	
DATE: AUGUST 2022	

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Municipal Parking Lifecycle Maintenance Program**
Project Number LC033000

Program Description

The Municipal Parking Lifecyle Maintenance program provides for maintenance and rehabilitation of municipal parking lots at various locations throughout the Town of Ajax in order to maintain these facilities in a state of good repair.

The Town currently maintains 46 parking lots associated to Town facilities and 29 parking lots within the park areas and on the waterfront.

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Expenditures					
23010101 Town Hall Service & Parking Lot Rehab	**1,302,000**	**-**	**-**	**-**	**1,302,000**
23033001 MCC East & South Parking Lot Recon	**118,500**	**1,037,500**	**-**	**-**	**1,156,000**
23033002 Hermitage Upper Lot at Griffiths Resurf	**-**	**16,000**	**322,500**	**-**	**338,500**
24033001 Lakeside CC Parking Lot Reconstruction	**22,000**	**407,000**	**-**	**-**	**429,000**
24033003 Firehall #2 Parking Lot Reconstruction	**-**	**15,000**	**297,000**	**-**	**312,000**
25033001 ACC West Arena Resurfacing	**-**	**-**	**-**	**815,000**	**815,000**
25033002 Veterans Point Parking Lot Mill & Overlay	**-**	**-**	**74,000**	**-**	**74,000**
26033001 ACC North Parking Lot & Building Dwy	**-**	**-**	**40,000**	**795,000**	**835,000**
26033002 Fire HQ Parking Lot & Driveway M&O	**-**	**-**	**-**	**832,000**	**832,000**
26033003 Firehall 1 (Westney) Front/Rear Driveway	**-**	**-**	**-**	**85,700**	**85,700**
27033001 Operations Main Parking Lot & Yard M&O	**-**	**-**	**-**	**2,254,500**	**2,254,500**
27033002 Firehall 1 Main Parking Lot Resurfacing	**-**	**-**	**-**	**177,500**	**177,500**
28033001 Sportplex Handicap Parking Lot M&O	**-**	**-**	**-**	**35,000**	**35,000**
28033002 ARC Ctr/W Lots N/S/W Dwy M&O	**-**	**-**	**-**	**1,228,500**	**1,228,500**
29033001 Millers Creek Parking Lot Resurfacing	**-**	**-**	**-**	**170,000**	**170,000**
29033002 Kinsmen Heritage Main Parking Lot (Resurf)	**-**	**-**	**-**	**79,300**	**79,300**
30033001 Rotary Park Main Parking Lot N/S Dwy	**-**	**-**	**-**	**453,000**	**453,000**
Total Expenditures	**1,442,500**	**1,475,500**	**733,500**	**6,925,500**	**10,577,000**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Municipal Parking Lifecycle Maintenance Program**

Project Number LC033000

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Financing					
Building Maintenance Reserve	**895,500**	**1,459,500**	**337,000**	**6,267,500**	**8,959,500**
General Infrastructure Maintenance Reserve	**547,000**	**16,000**	**396,500**	**658,000**	**1,617,500**
Total Financing	**1,442,500**	**1,475,500**	**733,500**	**6,925,500**	**10,577,000**

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Ranil Fernando, Manager, Infrastructure and Asset Management
Report #:	OES-2023-19
Subject:	**Contract Award – Rossland Road widening from Westney Road to Lake Ridge Road Detail Design**
Ward(s):	1,2
Date of Meeting:	June 12, 2023
Reference:	Capital Account Number 1029011.4108 – Rossland Road Salem Road to Lake Ridge – Design Capital Account Number 1028611.4108 – Rossland Road Westney Road to Salem Road – Design Schedule 'C' Class Environmental Assessment for Rossland Road from Westney Road to Lake Ridge Road – June 2022

Recommendation:

That Council award the contract for detailed design of Rossland Road from Westney Road to Lake Ridge Road to R.V. Anderson Associates Limited in the amount of $1,638,296.60 (inclusive of all taxes).

Background:

Population growth in north Ajax and network improvements east and west of the Town has resulted in higher traffic volumes and traffic congestion. These pressures and potential growth east of Salem Road on the Rossland Road corridor has caused the need to evaluate opportunities for network improvements to accommodate the traffic demand. Additionally, the proposed road improvements will improve the pedestrian/bicycle network and transit route along Rossland Road.

In June 2022, a Schedule 'C' Class Environmental Assessment (EA) and preliminary design for improvements to Rossland Road was completed from Westney Road to Lake Ridge Road in the Town of Ajax.

The EA was completed to identify transportation problems and opportunities as they relate to traffic service, capacity for future growth, infrastructure needs, safety and operations and subsequently recommend and evaluate opportunities for improvements to the study area. The EA reassessed the needs, justification and alternative solutions established in the Ajax Integrated Transportation Master Plan (ITMP). The EA also reassessed the recommendations of the Town of Ajax's 2018 Development Charges Background Study to widen Rossland Road to four lanes.

Rossland Road is an east-west arterial road in western Durham Region that connects the City of Pickering, Town of Ajax and Town of Whitby. Rossland Road is classified as a Type 'B' arterial road with a posted speed limit of 60 km/h. From Westney Road to Salem Road, Rossland Road is a 2-lane urban roadway and from Salem Road to Lake Ridge Road it is a 2 lane rural roadway. The total length of roadway for the project is approximately 4.0 km. The limits of construction is outlined in Figure 1.



Figure 1.

The detailed design for the proposed work will include the following:

- The reconstruction of Rossland Road from Westney Road to Lake Ridge Road
- Four general purpose lanes - two in each direction
- Centre turning lane
- Accessibility for Ontarians with Disabilities (AODA) compliant intersections
- Cross rides at intersection to accommodate both pedestrians and cyclists
- Culvert replacement at Lynde Creek crossing
- Improvements to bridge over Carruthers Creek east of Salem Road
- Improved storm water management
- Land acquisition
- Utility relocation
- Illumination along the corridor, and
- Opportunities for streetscaping

The proposed cross section of Rossland Road from Westney Road to Lake Ridge Road as outlined in the Schedule 'C' Class EA is as follows:

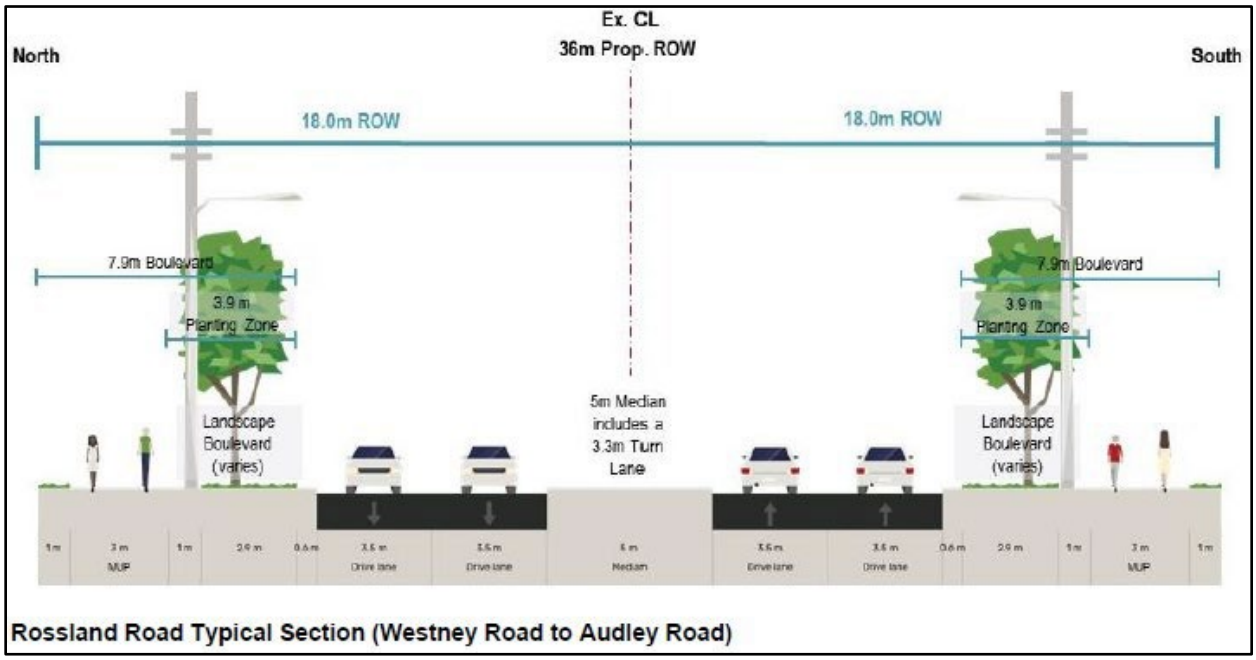


Figure 2.

Rossland Road from Westney Road to Audley Road (Figure 2.) includes an urban cross section with the following elements:

- Two 3.5m lanes in each direction
- Centre median/ turning lane
- 3.0m multi-use path (MUP) on the north and south sides, and
- Landscaped boulevards

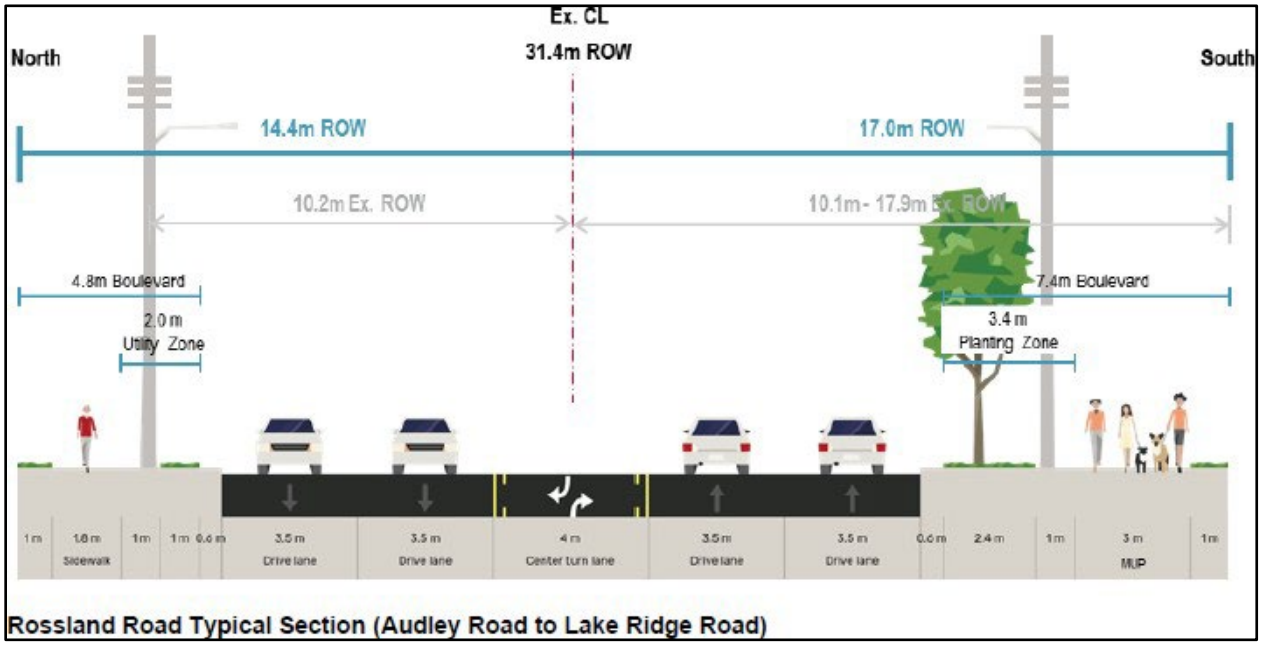


Figure 3.

Rossland Road from Audley Road to Lake Ridge Road (Figure 3.) includes an urban cross section with the following elements:

- Two 3.5m lanes in each direction
- Centre turning lane
- 3.0m MUP on the south side
- 1.8m sidewalk on the north side, and
- Landscaped boulevards

Puckrin Bridge Improvements

As part of the Amazon Development at Rossland Road and Salem Road, the widening of Rossland Road to the ultimate cross section including the incorporation of a Multi-Use Pathway (MUP) as outlined in the Schedule 'C' Class EA were required to accommodate the vehicle and pedestrian traffic demands.

Within the limits of the road widening, there is a rigid frame bridge over Carruthers Creek (Puckrin Bridge), which currently carries two lanes of traffic in each direction. The additional traffic generated by Amazon Development, resulted in the need for an additional left turn lane for the new entrance to the Amazon complex at the southeast corner of Salem Road and Rossland Road. The inclusion of the additional left turn lane, not outlined in the Schedule 'C' class EA, requires existing bridge to be widened. The new ultimate cross-section will include two 3.0m wide MUP's at the north and south sides of the bridge.

The bridge widening design will include a structural assessment of Puckrin Bridge in accordance with the Canadian Highway Bridge Design Code to confirm that the truck traffic applied loadings will not exceed the structural capacity of the bridge. The assessment will include recommendations to improve the structural capacity of the bridge, if required.

The design will include a complete life cycle cost analysis to evaluate two alternatives to determine the most cost-effective and appropriate solution for the ultimate cross section including continuous MUP's on both sides of Puckrin Bridge. The following alternatives will be evaluated:

1. Widen the bridge to accommodate 2 lanes of traffic in each direction, a centre left turn lane and a MUP on the north and south side.

2. Widen the bridge to accommodate 2 lanes of traffic in each direction, a centre left turn lane, one MUP on the south side through the bridge section and a separate prefabricated pedestrian bridge adjacent to the existing structure on the north side.

The two alternatives will be evaluated as part of the life cycle cost analysis using the following criteria:

- Construction cost
- Constructability of the structure
- Traffic Staging and Construction duration
- Permitting and Regulatory Approvals
- Durability and maintenance cost
- Aesthetics

Schedule of Events

Task	Phase 4 – Salem to Lake Ridge	Phase 5 – Salem to Westney
Anticipated Contract Award: Detail Design	Week of June 19, 2023	Week of June 19, 2023
Project Commencement:	June 26, 2023	June 26, 2023
Land Acquisition	January 2024	January 2025
Contract Award: Utility Relocation	January 2025	January 2026
Final Design Drawings & Specifications	April 2025	April 2025
Tender Package	April 2025	April 2027

Discussion:

The Town undertook a Request for Pre-Qualification [RPQ No. PQ2301] for Pre-Qualification Consulting Firms ~ Rossland Road Phase 4 & 5 Detailed Design in January 2023 to cover detailed design requirements. This RPQ resulted in the appointment of 3 pre-qualified Bidders.

Request for Proposal (RFP) documents were posted to the Towns' eBidding platform, and the 3 pre-qualified bidders were invited to register for the opportunity. Of the invited bidders 3 registered for the opportunity with bids being received from 2 of these, prior to the closing on April 5, 2023. Listed below is a summary of the Proposals received:

NAME OF PROPONENTS
Parsons Inc.
R.V. Anderson Associates Limited

The following is the Proposal Evaluation Criteria used for this RFP:

MANDATORY SUBMISSION REQUIRMENTS (firms not meeting the mandatory requirements may be deemed non-responsive & subject to rejection)		
Insurance	Pass/Fail	
WSIB	Pass/Fail	
Health & Safety Plan/Policy	Pass/Fail	
EVALUATION CRITERIA	**WEIGHTED POINTS**	**TOTAL AVAILABLE POINTS**
QUALIFICATIONS & EXPERIENCE		
Demonstrated Experience of the Company	5	10
Demonstrated Experience of Key Personnel	5	
QUALITY OF PROPOSAL SUBMISSION		
Responsiveness/Completeness of Submission	10	20

Demonstrated Willingness to Comply with Terms of the Bid Document	10	
APPROACH & METHODOLOGY		
Demonstrated Understanding of the Requirements	10	40
Quality & Completeness of Approach/Work Plan/Methodology	10	
Project Management Structure	10	
Ability to Meet Time Estimates/Deadlines	10	
PRICING		
Cost Effectiveness of the Proposal		30
TOTAL POINTS		100
INTERVIEW (if applicable)		50
GRAND TOTAL		150

An Evaluation Committee, made up of Infrastructure and Asset Management staff, reviewed all the Proposals received. Based on the evaluation criteria, specified in the RFP document, R.V. Anderson Associates Limited was the highest scoring Proponent and met all the needs of the Town.

Financial Implications:

Approved Capital Account No. 1029011 – Rossland Road Salem Road to Lake Ridge Road - Design

2022 Approved Capital Budget		$ 789,700.00
Contract (net of GST rebate)	$ 702,616.42	
Contingency (10%)	$70,261.64	$772,878.06
Available Budget		$16,821.94

Approved Capital Account No. 1028611 – Rossland Road Westney Road to Salem Road - Design

2022 Approved Capital Budget		$ 770,900.00
Contract (net of GST rebate)	$ 776,720.47	
Contingency (10%)	$69,946.08	$769,406.93
Available Budget		$1,493.07

Unbudgeted Capital Account No. – Puckrin Bridge Improvements – Design and Construction

Recoveries from Developer		84,248.50
Design Contract (net of GST rebate)	$ 73,259.57	
Contingency (15%)	$10,988.94	$84,248.50
Under Budget		$0.00

A 10% and 15% contingencies has been allocated to this award to ensure sufficient funding is available to address site specific issues that can be encountered during the design process. Risk factors for this project will include:

- Concerns that arise from local residents or landowners
- Site conditions different than those anticipated
- Additional work requested by stakeholder
- Additional land requirements
- Additional coordination work with various stake holders including utility companies, and conservation authorities, Region of Durham and indigenous groups

These risks may result in revised design work or additional meetings to accommodate the requirements.

Through the Constuction and Development Charge Reimbursement Agreement as it relates to the Amazon Development, the Town will be reimbursed the design cost of the Puckrin Bridge improvements.

Communication Issues:

Extensive public consultation was held throughout the Class Environmental Assessment which was completed in June 2022. Previous comments from stakeholders will be incorporated into the design for the widening of Rossland Road from Westney Road to Lake Ridge Road.

The Town and its consulting team will be meeting with property owners and other stakeholders. As part of the engagement process, two Public Information Centre (PIC) will also be held to offer stakeholders an opportunity to comment and provide input on the design.

Relationship to the Strategic Plan:

This report aligns with the following section of the 2023-2026 Strategic Plan – Action 26:

Pillar 2: Growing Our Community

Priority 1: Embrace dynamic and sustainable growth

1.5: Improve road transportation network

Conclusion:

It is the recommendation of staff that R.V. Anderson Associates Limited be awarded the contract for Rossland Road Widening – Detailed Design, being the highest scoring Proponent.

Attachments:

ATT-1: Capital Detail Sheet 1029011.4108 – Rossland Road Salem Road to Lake Ridge Road – Design

Prepared by:

Ranil Fernando – Manager of Infrastructure and Asset Management

Submitted by:

Dave Meredith – Director of Operations and Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

TOWN OF AJAX

2022 CAPITAL BUDGET / 2023-2031 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Operations & Environmental Services	**Initially budgeted in**	2021
Section	Infrastructure Engineering		
Project Name	**Rossland Wide. Westney-Salem**		
Submitted By	Ranil Fernando, Manager of Infrastructure & Asset Management		
Start Year	2022		
Project Number	1028611		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: The project includes widening and urbanization of Rossland Road from Westney Road to Salem Road including street lighting, multi-use trail on the north and south side, intersection improvements, drainage improvements, and new LED street lights. The improvements to the Regional intersections will be completed by the Region of Durham.

Rationale: Population growth has resulted in higher traffic volumes prompting the need for road improvements to accommodate the traffic demand. The growth areas contributing to higher traffic volumes include the A9 Development, Medallion Development at Audley Road and Rossland Road and the industrial development at Rossland Road and Salem Road. An Environmental Assessment to facilitate the widening and reconstruction of Rossland Road from Westney Road to Lake Ridge Road to a 4-lane urban standard was completed in 2022. The proposed road improvements will result in improved pedestrian and bicycle network and an improved transit route to accommodate the population growth.

Reference: 2018 DC Background Study, Items 18-T06 and 18-T07; 2019 Integrated Transportation Master Plan; and 2020 Rossland Road Improvements EA; 2018-2022 Strategic Plan; Investing in Our Community, Goal 4: Modernizing existing municipal infrastructure and other assets.

Schedule: Detailed Design: Approved in 2022, Land Acquisition: 2025, Utility Relocation: 2026, Construction: 2028

EXPENDITURES / FUNDING

	2022	2023	2024	2025-2031	Total
Total Expenditures	**770,900**	**577,800**	**-**	**10,216,200**	**11,564,900**
Development Reserve	**171,100**	**128,300**	**-**	**2,268,000**	**2,567,400**
Development Charges - 2018	**599,800**	**449,500**	**-**	**7,948,200**	**8,997,500**
Total Funding	**770,900**	**577,800**	**-**	**10,216,200**	**11,564,900**

TOWN OF AJAX

2022 CAPITAL BUDGET / 2023-2031 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Operations & Environmental Services	**Initially budgeted in**	2021
Section	Infrastructure Engineering		
Project Name	**Rossland Wide Salem/LakeRidge**		
Submitted By	Ranil Fernando, Manager of Infrastructure & Asset Management		
Start Year	2022		
Project Number	1029011		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: The project includes widening and urbanization of Rossland Road from Salem Road to Lake Ridge Road including street lighting, multi-use trail on the north and a sidewalk on the south side, intersection improvements, drainage improvements, and new LED street lights. The improvements to the Regional intersections will be completed by the Region of Durham.

Rationale: Population growth has resulted in higher traffic volumes prompting the need for road improvements to accommodate the traffic demand. The growth areas contributing to higher traffic volumes include the A9 Development, Medallion Development at Audley Road and Rossland Road and the industrial development at Rossland Road and Salem Road. An Environmental Assessment to facilitate the widening and reconstruction of Rossland Road from Westney Road to Lake Ridge Road to a 4-lane urban standard was completed in 2022. The proposed road improvements will result in improved pedestrian and bicycle network and an improved transit route to accommodate the population growth.

Reference: 2018 DC Background Study, Items 18-T06 and 18-T07; 2019 Integrated Transportation Master Plan; and 2020 Rossland Road Improvements EA; 2018-2022 Strategic Plan; Investing in Our Community, Goal 4: Modernizing existing municipal infrastructure and other assets.

Schedule: Detailed Design: Approved in 2022, Land Acquisition: 2024, Utility Relocation: 2025, Construction: 2026

EXPENDITURES / FUNDING

	2022	2023	2024	2025-2031	Total
Total Expenditures	**789,700**	**4,387,100**	**227,800**	**10,581,700**	**15,986,300**
Development Reserve	**175,300**	**973,900**	**50,600**	**2,349,100**	**3,548,900**
Development Charges - 2018	**614,400**	**3,413,200**	**177,200**	**8,232,600**	**12,437,400**
Total Funding	**789,700**	**4,387,100**	**227,800**	**10,581,700**	**15,986,300**

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Dhaval Pandya, P.Eng., PTOE Manager of Transportation Planning
Report#	PDS-2023-24
Subject:	**Update to Traffic By-law 45-2020, Community Safety Zones**
Ward(s):	All
Date of Meeting:	June 12, 2023
Reference:	GGC Report - June 10, 2019 – Review of Community Safety Zones GGC Report - February 18, 2020 – Community Safety Zones and Automated Speed Enforcement Council Motion - April 17, 2023

Recommendations:

1) **That Council approve the proposed amendment to the Traffic By-law 45-2020 to incorporate the changes to Schedule 22 of the By-law as identified in Attachment #2;**

2) **That a By-law to amend Traffic By-law 45-2020 be brought forward for consideration of Council;**

3) **That staff be directed to install necessary Community Safety Zone signage including new "Burst" signs in the newly established zones; and**

4) **That Report # PDS-2023-24 be forwarded to the Durham Region Police Service, Durham District School Board, Durham Catholic District School Board and Durham Student Transportation Service.**

1. Background:

At the June 10, 2019 General Government Committee meeting, Town Staff presented a report titled "Review of Community Safety Zones", which proposed the establishment of additional Community Safety Zones (CSZ) in the Town based on a set of criteria (warrant). Council referred the matter back to staff and staff were directed that this matter be brought back to a future meeting along with a report regarding Automated Speed Enforcement.

At the February 18, 2020 General Government Committee meeting, Town Staff presented a report titled "Community Safety Zones and Automated Speed Enforcement", which proposed the process and/or warrant criteria to establish Community Safety Zones in the Town of Ajax and implementation of 12 (twelve) additional Community Safety Zones in the Town. The Council

approved the recommended additional Community Safety Zones and the process and/or warrant criteria to establish the future Community Safety Zones in the Town.

At the April 17, 2023 Council Meeting, a motion (**Attachment #1**) was passed regarding the expansion of Community Safety Zones to all school zones in the Town of Ajax.

The motion stated;

> *WHEREAS Section 214.1 of the Highway Traffic Act empowers municipalities to establish Community Safety Zones (CSZ) by by-law;*
>
> *AND WHEREAS Council approved a process to establish CSZs on February 24, 2020;*
>
> *AND WHEREAS the process directs that CSZs should only be implemented in locations where public safety is of special concern, with a rating system was established to assess potential CSZs on the basis of nine risk criteria, or at the discretion of Town staff or Council;*
>
> *AND WHEREAS the number of schools fronting a road segment is one of the criteria used to assess potential CSZs;*
>
> *AND WHEREAS other criteria used to assess potential CSZs include areas fronting or in the vicinity of community parks and playground, community centres, hospitals, seniors residents, and generally locations where public safety is of special concern;*
>
> *AND WHEREAS Ajax currently has 14 CSZs;*
>
> *AND WHEREAS of the 37 schools in Ajax, a large number are not in designated CSZs;*
>
> *AND WHEREAS the Town can improve overall community safety by implementing CSZs in all school zones.*
>
> *NOW THEREFORE BE IT RESOLVED THAT:*
>
> 1. *Council directs Transportation staff undertake the work necessary to implement CSZs in all school zones by the beginning of the 2023-2024 school year, including:*
>
>   a. *Bringing forward any necessary by-law amendments required to implement Council's direction; and*
>
>   b. *Identifying signage needs to Operations staff to facilitate the installation of all signage in accordance with the requirements of the Highway Traffic Act.*
>
> 2. *Funding be allocated to this unbudgeted capital project from the capital contingency reserve; and*
>
> 3. *A CSZ be established to accompany any future schools constructed in the Town of Ajax.*

There are currently 37 elementary/secondary schools and 14 Community Safety Zones within the Town of Ajax. Out of these 14 Community Safety Zones, 11 zones are adjacent to elementary schools. The rest of the zones are in close proximity of schools or parks and

playgrounds. In addition, Bayly Street East, along the frontage of Ajax High School, has been designated as a Community Safety Zone by the Region of Durham.

The purpose of this report is to provide an update to Council on the expansion of Community Safety Zones to all school zones within the Town of Ajax.

2. Discussion:

Municipalities can designate areas as Community Safety Zones based on Highway Traffic Act 214.1 - Bill 26, Highway Traffic Amendment Act (Community Safety Zones), 1998. Community Safety Zones must be a special situation recognizable to the driver (by regulatory signs) that warrants an increased awareness of community activity adjacent to the road right-of-way; thus, the need for an increased awareness of traffic safety. Overuse of the designation could become counter-productive to the goal of increased pedestrian and traffic safety. As with other roadway regulations, the effect of the Community Safety Zone designation on driver behaviour and traffic safety will likely be effective based on the level of enforcement provided. Furthermore, a designated Community Safety Zone does not change any current traffic by-laws. Community Safety Zones should only be implemented on roads in the vicinity of community-based facilities such as schools, community centres, parks, hospitals, retirement areas, or on roadway sections with continual high collision rates. Also, taking into consideration pedestrian safety, reduced driver sightline visibility, and safety concerns raised from the public.

In a Community Safety Zone the fines for offences within the Highway Traffic Act (i.e. speeding, careless driving, etc.) may be doubled at the discretion of the police officer. Parking fines cannot be increased within a Community Safety Zone.

Review of Proposed Community Safety Zones

Per Council's direction, staff reviewed all elementary and secondary school locations within the Town and a total of 24 new roadway segments have been identified as proposed Community Safety Zones along the frontages of elementary and secondary schools. Each school area was identified as an area of special public safety concern in the vicinity of elementary and secondary schools. **Table 1** provides a summary of all existing and proposed Community Safety Zones in the Town.

Table 1: Community Safety Zones (Existing and Proposed)

Ward	Street	Between	Status
1	Delaney Drive	Elizabeth Street and Ravenscroft Road	Existing
1	Ritchie Avenue	Kingston Road West and Westney Road South	Existing
1	Magill Drive	Westney Road North and Old Harwood Avenue	Existing
1	Kerrison Drive West	Harwood Avenue North and Old Harwood Avenue	Existing
2	Seggar Avenue	Williamson Drive West and Rossland Road West	Existing
2	Thackery Drive	Salem Road and Williamson Drive East	Existing
2	Williamson Drive East	Salem Road and Thackery Drive	Existing
2	Williamson Drive East	Salem Road and Audley Road	Existing
2	Formosa Avenue	Lloydminster Avenue and Audley Road North	Existing
2	Turnerbury Avenue	Formosa Avenue and Ainley Road	Existing
3	Burcher Road	Bayly Street East and Clements Road East	Existing
3	Finley Avenue	Banner Crescent and Burden Crescent	Existing
3	Parkes Drive	Milner Crescent and Finley Avenue	Existing
3	Ashbury Boulevard	Shoal Point Road and Audley Road South	Existing

Ward	Street	Between	Status
1	Church Street North	Delaney Drive and Kingston Road West	Proposed
1	Church Street South	Kingston Road West and Mill Street	Proposed
1	Harkins Drive	Rossland Road West and Delaney Drive	Proposed
1	Coughlen Street	Pearce Drive and Westney Road North	Proposed
1	Bennett Avenue	Rossland Road West and Sullivan Drive	Proposed
1	Sullivan Drive	Bennett Avenue and Noake Crescent / Locker Drive	Proposed
1	Old Harwood Avenue / Fishlock Street	Parkins Drive and Twigg Drive / Fletcher Avenue	Proposed
1	Fletcher Avenue	Hibbard Drive and Kerrison Drive West	Proposed
1	Brennan Road	Ravenscroft Road and Delaney Drive	Proposed
1	Coles Avenue	Magill Drive and Chapman Drive	Proposed
1	Lincoln Street	Church Street South and Mill Street	Proposed
2	Harwood Avenue North	Woodcock Avenue and Rossland Road	Proposed
2	Telford Street	Stevensgate Drive and Westney Road North	Proposed
2	Williamson Drive West	Ravenscroft Road and Hazeldine Drive / Tozer Crescent	Proposed
3	Harwood Avenue South	Dreyer Drive and Cumberland Lane / McRae Road	Proposed
3	Windsor Avenue / Ontario Street	Brock Street and Harwood Avenue South	Proposed
3	Mandrake Street	Heron Street / Gilmour Drive and Angus Drive (East leg)	Proposed
3	Miles Drive	Wicks Drive and Chambers Drive	Proposed
3	Pittmann Crescent	40 Pittmann Crescent and 90 Pittmann Crescent	Proposed
3	Clover Ridge Drive West	Pittmann Crescent (South leg) and Harwood Avenue South	Proposed
3	Lambard Crescent	Dreyer Drive East and Dreyer Drive East	Proposed
3	Pickering Beach Road	Hickman Road and Foord Road / Rollo Drive	Proposed
3	Falby Court	All	Proposed
3	Fairall Street	Westney Road South and McMaster Avenue	Proposed

Community Safety Zone Implementation

The implementation of the proposed new Community Safety Zones requires two steps. First, the appropriate signs need to be installed and second, the new segments need to be added to the existing Community Safety Zone schedule in the Town's Traffic By-Law 45-2020.

In accordance with Ontario Traffic Manual (OTM) guidelines, Community Safety Zone signs (**Figure 1**) with the appropriate BEGIN and END tabs are required to define the extent of the segment, and where required, an intermediate sign(s) should be placed on longer segments**.** The estimated number of signs required to implement the Community Safety Zones is 155. New "Burst" signs (**Figure 2**) would be installed temporarily on the Community Safety Zone signs to alert motorists of the new safety initiative. These signs will be erected for a period of a minimum 30 days and a maximum of 60 days at the entry point of new Community Safety Zone locations.

Upon Council's approval of this report, and understanding the timing of the upcoming school season, staff recommend executing a contract thru a single source award to allow time for utility locates, the ordering of signs and the planning for a contracted service to install the required signage. It is understood that this initiative is a priority but recognize that not all sign

installations may be complete by the beginning of the 2023-2024 school season. Staff will exercise their best efforts to complete this project as quickly as possible.

The proposed update to Schedule 22 of the Town's Traffic By-law 45-2020 is provided as **Attachment #2**.

Figure 1: Community Safety Zone Sign

Community Safety Zone Sign (Rc-9)



Begins Tab (Rb-84t)



Ends Tab (Rb-85t)



Figure 2: NEW Sunburst Sign

NEW "Burst" Sign



3. Financial Implications:

The costs associated with the implementation of the required Community Safety Zone and New "Burst" signage, posts, and other hardware, as required, is estimated to be in the order of $115,000 inclusive of HST. The funding for this unbudgeted capital project will be allocated from the capital contingency reserve.

4. Communication Issues:

There are no communication issues related to the recommendations in this report.

5. Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan – Action26:

Pillar:	Connecting our Community
Priority:	4. Foster a safe and welcoming Community 4.2 Continue to implement traffic calming initiatives
Supporting Action:	Community Safety Zones Review and Implementation

6. Conclusion:

Community Safety Zones already exist in the Town of Ajax and are used by other municipalities in the GTA as a way of identifying areas of special safety concern. As directed by Council, staff have completed a review of all elementary and secondary school zones in the Town. The review has identified twenty-four locations where it is recommended to establish Community Safety Zones in support of the council motion to expand Community Safety Zones to all school zones in the Town of Ajax. As noted above, staff recommend that these Community Safety Zones be established, and that staff be authorized to initiate the process to execute a contract and retain a vendor to have the signs installed as quickly as possible.

Attachments:

ATT-1:	Council Motion - April 17, 2023
ATT-2:	Draft amendment to Traffic By-law 45-2020 - Schedule 22, Community Safety Zones

Prepared by:

Dhaval Pandya, P.Eng., PTOE – Manager of Transportation Planning

Submitted by:

Geoff Romanowski, CPT, MCIP, RPP –Director of Planning & Development Services

Approved by:

Shane Baker – Chief Administrative Officer

parking needs, and violence;

AND WHEREAS in rural tourist destinations , locals have found themselves prices out of the housing market because landlords find it more profitable to list as an STR;

AND WHEREAS other provincial governments are stepping into the monitoring and enforcement of short term rentals, including Quebec, British Columbia, Nova Scotia, and Newfoundland which require STRs to register, or attain a business licence or permit in order to list with popular short term rental companies like Airbnb, and Vrbo;

AND WHEREAS STR hosts are also required to register for the Goods and Services Tax (GST) and Harmonized Sales Tax (HST) on what they earn;

AND WHEREAS requiring licencing for Ontario's STR market is a logical next step;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council requests that the Province of Ontario establish a short term rental licencing and enforcement system; and

2. This motion be circulated to the Honourable Steve Clark, Minister of Municipal Affairs and Housing, AJAX MPP Patrice Barnes, lower-tier municipalities in Durham Region, the Association of Municipalities of Ontario, and Ontario Big City Mayors.

CARRIED

10.6 **Expanding Community Safety Zones**

Mayor Collier and Regional Council Crawford introduced the motion and reviewed its contents. Mayor Collier asked if community safety zones are restricted to school zones. Dhaval Pandya, Manager of Transportation Planning, responded to the question from Mayor Collier.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS Section 214.1 of the Highway Traffic Act empowers municipalities to establish Community Safety Zones (CSZ) by by-law;

AND WHEREAS Council approved a process to establish CSZs on February 24, 2020;

AND WHEREAS the process directs that CSZs should only be implemented in locations where public safety is of special concern, with a rating system was established to assess potential CSZs on the basis of nine risk criteria, or at the discretion of Town staff or Council;

AND WHEREAS the number of schools fronting a road segment is one of the criteria used to assess potential CSZs;

AND WHEREAS other criteria used to assess potential CSZs include areas fronting or in the vicinity of community parks and playground, community centres, hospitals, seniors residents, and generally locations where public safety is of special concern;

AND WHEREAS Ajax currently has 14 CSZs;

AND WHEREAS of the 37 schools in Ajax, a large number are not in designated CSZs;

AND WHEREAS the Town can improve overall community safety by implementing CSZs in all school zones.

NOW THEREFORE BE IT RESOLVED THAT:

1. Council directs Transportation staff undertake the work necessary to implement CSZs in all school zones by the beginning of the 2023-2024 school year, including:

    a. Bringing forward any necessary by-law amendments required to implement Council's direction; and
    b. Identifying signage needs to Operations staff to facilitate the installation of all signage in accordance with the requirements of the Highway Traffic Act.

2. Funding be allocated to this unbudgeted capital project from the capital contingency reserve; and

DRAFT

3. A CSZ be established to accompany any future schools constructed in the Town of Ajax.

CARRIED

11. By-laws

Moved by: N. Henry
Seconded by: R. Tyler Morin

That By-law numbers 11-2023 to 19-2023 be read a first, second and third time and passed.
CARRIED

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a community Ward 1 meeting on April 25, 2023, Eid ul Fitr Holiday on April 22, 2023, and a community Ward 2 meeting May 9, 2023.

14. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 20-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on April 17, 2023, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the April 17, 2023 meeting of the Council of the Town of Ajax be adjourned (9:58 p.m.)
CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 45-2020

A By-law to amend By-law 45-2020, being a By-law to regulate vehicular traffic on highways, private and municipal property, and to prohibit the injuring or fouling of highways and bridges, and the obstruction of ditches and culvert to regulate traffic on Highways in the Town of Ajax.

WHEREAS the Council of The Corporation of the Town of Ajax may pass By-laws pursuant to the Municipal Act, 2001, S.O. 2001 and the Highway Traffic Act, R.S.O. 1990 and amendments thereto:

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax Traffic By-law, 45-2020, as amended, be further amended by deleting Schedule 22 – Community Safety Zones and replacing it with Appendix 1 of this By-law.

READ a first and second time this Nineteenth day of June 2023.

READ a third time and passed this Nineteenth day of June 2023.

_____
Mayor

_____
D-Clerk

APPENDIX 1

SCHEDULE 22 – Community Safety Zone

HIGHWAY	BETWEEN	TIME OF DAY	AMENDING BY-LAW NUMBER
Ashbury Boulevard	Shoal Point Road and Audley Road South	Anytime	
Bennett Avenue	Rossland Road West and Sullivan Drive	Anytime	
Brennan Road	Ravenscroft Road and Delaney Drive	Anytime	
Burcher Road	Bayly Street East and Clements Road East	Anytime	
Church Street North	Delaney Drive and Kingston Road West	Anytime	
Church Street South	Kingston Road West and Mill Street	Anytime	
Clover Ridge Drive West	Pittmann Crescent (south leg) and Harwood Avenue South	Anytime	
Coles Avenue	Magill Drive and Chapman Drive	Anytime	
Coughlen Street	Pearce Drive and Westney Road North	Anytime	
Delaney Drive	Elizabeth Street and Ravenscroft Road	Anytime	
Fairall Street	Westney Road South and McMaster Avenue	Anytime	
Falby Court	All	Anytime	
Finley Avenue	Banner Crescent and Burden Crescent	Anytime	
Fletcher Avenue	Hibbard Drive and Kerrison Drive West	Anytime	
Formosa Avenue	Lloydminster Avenue and Audley Road North	Anytime	
Harkins Drive	Rossland Road West and Delaney Drive	Anytime	

HIGHWAY	BETWEEN	TIME OF DAY	AMENDING BY-LAW NUMBER
Harwood Avenue North	Woodcock Avenue and Rossland Road	Anytime	
Harwood Avenue South	Dreyer Drive and Cumberland Lane / McRae Road	Anytime	
Kerrison Drive West	Harwood Avenue North and Old Harwood Avenue	Anytime	
Lambard Crescent	Dreyer Drive East and Dreyer Drive East	Anytime	
Lincoln Street	Church Street South and Mill Street	Anytime	
Magill Drive	Westney Road North and Old Harwood Avenue	Anytime	
Mandrake Street	Heron Street/Gilmour Drive and Angus Drive (East leg)	Anytime	
Miles Drive	Wicks Drive and Chambers Drive	Anytime	
Old Harwood Avenue / Fishlock Street	Parkins Drive and Twigg Drive / Fletcher Avenue	Anytime	
Parkes Drive	Milner Crescent and Finley Avenue	Anytime	
Pickering Beach Road	Hickman Road and Foord Road / Rollo Drive	Anytime	
Pittmann Crescent	40 Pittmann Crescent and 90 Pittmann Crescent	Anytime	
Ritchie Avenue	Kingston Road West and Westney Road South	Anytime	
Seggar Avenue	Williamson Drive West and Rossland Road West	Anytime	
Sullivan Drive	Bennett Avenue and Noake Crescent / Locker Drive	Anytime	
Telford Street	Stevensgate Drive and Westney Road North	Anytime	
Thackery Drive	Salem Road and Williamson Drive East	Anytime	

HIGHWAY	BETWEEN	TIME OF DAY	AMENDING BY-LAW NUMBER
Turnerbury Avenue	Formosa Avenue and Ainley Road	Anytime	
Williamson Drive East	Salem Road and Thackery Drive	Anytime	
Williamson Drive East	Salem Road and Audley Road North	Anytime	
Williamson Drive West	Ravenscroft Road and Hazeldine Drive/Tozer Crescent	Anytime	
Windsor Avenue / Ontario Street	Brock Street and Harwood Avenue South	Anytime	

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Dhaval Pandya, P.Eng., PTOE Manager of Transportation Planning
Report#	PDS-2023-25
Subject:	**Update to Traffic By-Law 45-2020, No Stopping**
Ward(s):	Wards 1 and 2
Date of Meeting:	June 12, 2023
Reference:	N/A

Recommendations:

1. **That Council approve the proposed update to Traffic By-law 45-2020, as identified in Attachment 1, to incorporate the following changes to Schedule 1 of the By-law:**

    - **No Stopping (Anytime) on the east side of Church Street between Sherwood Road East and 150m north of the property line of Pickering High School;**
    - **No Stopping (Anytime) on the west side of Church Street between Sherwood Road West and 150m north of the property line of Pickering High School;**
    - **No Stopping (Anytime) on the east side of Coles Avenue between Coe Drive and north driveway of Applecroft Public School;**
    - **No Stopping (Anytime) on the east side of Coles Avenue between south driveway of Applecroft Public School and Cornwall Drive;**
    - **No Stopping (Anytime) on the north and south sides of Delaney Drive between East Driveway of Eagle Ridge Public School and Hibbins Avenue/Strickland Drive;**
    - **No Stopping (Anytime) on the east side of Thackery Drive between Williamson Drive East and Schofield Gate;**
    - **No Stopping (Anytime) on the south side of Williamson Drive East between Salem Road North and east property line of 135 Williamson Drive East; and**
    - **No Stopping (Anytime) on the north side of Williamson Drive East between Salem Road North and Sargeant Avenue.**

2. **That Council approve the proposed update to Traffic By-law 45-2020 to incorporate the following changes to Schedule 2 of the By-law:**

    - **No Stopping (September to June, Monday through Friday, 8:00am to 4:00pm) on the west side of Coles Avenue between Coe Drive and Cornwall Drive; and**

    - **No Stopping (September to June, Monday through Friday, 8:00am to 4:00pm) on the west side of Thackery Drive between Williamson Drive East and Schofield Gate.**

3. **That a By-law to amend Traffic By-law 45-2020 be brought forward for consideration of Council.**

4. **That Report # PDS-2023-25 be forwarded to the Durham Region Police Service, Durham District School Board, Durham Catholic District School Board and Durham Student Transportation Service.**

1. Background:

Planning and Development staff have received a number of concerns from area residents, members of Council and school board staff related to pedestrian safety, illegal on-street parking activities, and traffic operation issues during the school arrival and dismissal times in the vicinity of Applecroft Public School, St Jude Catholic School, Da Vinci Public School, St Joshephine Bakhita Catholic School, Eagle Ridge Public School, Lincoln Alexander Public School, and Pickering High School.

Residents and school board staff requested appropriate countermeasures along the frontages of above noted schools to address their concerns related to the school student drop-off and pick-up activities and traffic operations in the area. The use of municipal streets as defacto “Kiss and Ride” areas is creating an unsafe road environment for all road users due to reduced visibility, blocked private driveways and single travel lane situations associated with illegal on-street parking activities along the frontages of the schools.

Many elementary schools in the Town are experiencing similar safety and traffic operation issues along their frontages due to illegal on-street parking activities.

1.1 Applecroft Public School and St Jude Catholic School

Applecroft Public School located at 55 Coles Avenue, is a part of the Durham District School Board with approximately 380 students in Kindergarten through Grade 8. St Jude Catholic School located at 68 Coles Avenue, is a part of the Durham Catholic District School Board with approximately 280 students in Kindergarten through Grade 8.

Currently, both schools are served by adult school crossing guards located at the nearest four mid-block or major intersection locations . Both schools offer an on-site “Kiss and Ride” facility for parents to drop-off/pick-up students on site.

1.2 Da Vinci Public School

Da Vinci Public School, located at 61 Williamson Drive East, is a part of the Durham District School Board with approximately 865 students in Kindergarten through Grade 8. The Town has provided adult school crossing guards at the nearest four major intersection locations to assist students to/from school, however the school crossing at the intersection of Williamson Drive

East and Thackery Drive is vacant due to staffing shortage of adult school crossing guards. Da Vinci PS has an on-site “Kiss and Ride” facility for parents to drop-off/pick-up students on site.

1.3 St Josephine Bakhita Catholic School

St Josephine Bakhita Catholic School, located at 51 Williamson Drive East, is a part of the Durham Catholic District School Board with approximately 435 students in Kindergarten through Grade 8. There are four existing school crossings to assist students to/from school, however the school crossing at the intersection of Williamson Drive East and Thackery Drive is vacant due to staffing shortage of adult school crossing guards. St Josephine Bakhita Catholic School has an on-site “Kiss and Ride” facility, along the frontage of Thackery Drive, for parents to drop-off/pick-up students on site.

1.4 Eagle Ridge Public School

Eagle Ridge Public School located at 425 Delaney Drive, is a part of the Durham District School Board with approximately 667 students in Kindergarten through Grade 8. The Town has provided two school crossing guards at the intersections of Delaney Drive/Hibbins Avenue and Delaney Drive/Roberson Drive. Eagle Ridge Public School has an on-site “Kiss and Ride” for parents to drop-off/pick-up students on site.

1.5 Lincoln Alexander Public School and Pickering High School

Lincoln Alexander Public School is located at 95 Church Street North and has a student enrollment of approximately 500 students in Kindergarten through Grade 8. Pickering High School is located at 180 Church Street North and has a student enrollment of over 2000 students in Grade 9 through Grade 12. Both schools are part of the Durham District School Board.

There are two existing school crossings in close proximity of Lincoln Alexander Public School to assist students to/from school, however the school crossing at the intersection of Kingston Road and Church Street is vacant due to staffing shortage of adult school crossing guards. Lincoln Alexander Public School and Pickering High School have an on-site “Kiss and Ride” facility for parents to drop-off/pick-up students on site.

1.6 Church Street

Church Street is classified as a Type B Arterial Road in Schedule C-1 of the Town of Ajax Official Plan. In the vicinity of Pickering High School and Lincoln Alexander Public School, Church Street has a 25m-27m (varies) right-of-way, a 11m pavement width and sidewalks on both sides of the road. Within the school zone, Church Street has a posted speed limit of 40 km/h.

There is an existing mid-block Intersection Pedestrian Signal (IPS) at the trail connection located between the driveways of Lincoln Alexander Public School and Pickering High School. There is existing signed No Parking (anytime) restrictions on both sides of Church Street North between Sherwood Road East and Delaney Drive.

1.7 Coles Avenue

Per Schedule C-1 of the Town’s Official Plan, Coles Avenue is classified as a Collector Road. It has a 22m right-of-way, a 10m pavement width with sidewalks on both sides of the road. Coles Avenue has a posted speed limit of 40km/h within the school zone.

There is an existing No Stopping restriction (anytime) signage on the east side of Coles Avenue between the north driveway of Applecroft Public School and Coe Drive, and between the south driveway of Applecroft Public School and 32m north of Cornwall Drive. Similarly, there is an existing No Stopping restriction (Monday to Friday, 8:00am-4:00pm) signage on the west side of Coles Avenue between Coe Drive and 32m north of Cornwall Drive.

1.8 Williamson Drive East

Williamson Drive East is classified as a Type C Arterial Road in the Town of Ajax Official Plan, Schedule C-1. It has a 26m right-of-way, a 12m pavement width with sidewalks and on-road bike lanes on both sides of the road. The section of Williamson Drive East between Salem Road and Thackery Drive has a posted speed limit of 40km/h within the elementary school zone.

Currently, there are existing No Stopping restrictions (anytime) on the north and south sides of Williamson Drive East between Thackery Drive and Salem Road. East of Salem Road, there is an existing signed No Parking restriction (anytime) on the north side of Williamson Drive East between Salem Road and Sargeant Avenue, and an existing No Parking restriction on the south side of Williamson Drive East between Salem Road and 74m east (east property line of 135 Williamson Drive East).

1.9 Thackery Drive

Per Schedule C-1 of the Town's Official Plan, Thackery Drive is classified as a Collector Road. It has a 21.5m right-of-way, a 11.5m pavement width with sidewalks on both sides of the road. Thackery Drive has a posted speed limit of 40km/h within the school zone.

There is an existing signed No Parking restriction (anytime) on the east side of Thackery Drive between Schofield Gate and Williamson Drive East. Similarly, there is an existing No Parking restriction (anytime) on the west side of Thackery Drive between the southern property limit of 61 Thackery Lane and Williamson Drive East.

1.10 Delaney Drive

Delaney Drive is classified as a Type C Arterial Road in the Town of Ajax Official Plan, Schedule C-1. It has a 22m right-of-way, a 10m pavement width with sidewalks on both sides of the road. It has a posted speed limit of 40km/h within the school zone.

There is an existing signed No Stopping restriction (anytime) on the north and south sides of Delaney Drive between Hester Avenue and the East Driveway of Eagle Ridge Public School.

2. Discussion:

In response to the area residents' and school board staff's pedestrian safety, illegal on-street parking, and traffic operational concerns, staff completed traffic operational and school signage reviews in the vicinity of Applecroft Public School, St Jude Catholic School, Da Vinci Public School, St Joshephine Bakhita Catholic School, Eagle Ridge Public School, Lincoln Alexander Public School, and Pickering High School. As part of the traffic operation review site visits were conducted to observe the on-street parking and student pick-up/drop-off activities along Coles Avenue, Williamson Drive East, Thackery Drive, Delaney Drive, and Church Street. The most recent speed and traffic volume data of the above noted streets was also considered in the review. A summary of traffic data is provided in **Table 1**. Average Speed is the average of the individual speeds of all vehicles in the study area. The 85th percentile speed is the speed at which 85% of the daily traffic is travelling at or below and is considered the general operating speed of the roadway.

Table 1: Summary of Traffic Data

Roadway	Traffic Volume (vpd)	Speed (km/h)		
		Posted Speed	Average Speed	85th Percentile Speed
Church Street	10,017	40	48	54
Coles Avenue	1827	40	40	48
Williamson Drive East	1599	40	43	53
Thackery Drive	1691	50	42	50
Delaney Drive	2056	40	42	50

As there are formal “Kiss and Ride” facilities at all school sites, parents are able to drop off/pick-up students within the school property as long as they do not interfere with the school bus operations. However, a significant number of parents/caregivers drive their children to/from school. Many are doing so within the adjacent residential neighbourhood to avoid congestion at the school sites. This has created a situation where vehicles are being parked/stopped too close to intersections restricting visibility and blocking private and school driveways. Vehicles are also stopping on both sides of the roadway, leaving only a single travel lane. Residents in the area are concerned for pedestrian safety as well as their ability to safely navigate the roadway or access their own driveways.

Although there are existing No Parking restrictions along the frontages of the above noted schools, during the site visits on-street parking activities on both sides of Church Street, Coles Avenue, Delaney Drive, Thackery Drive, and Williamson Drive East were observed. This parking behaviour in close proximity to a school significantly restricts visibility of pedestrians, particularly elementary students. Vehicles parked or stopped too close to an intersection also restrict visibility for turning vehicles. Students that live within 1.6 km of the school are expected to walk to/from school and bussing is provided for students that live beyond 1.6 km. However, many parents choose to drive their children to/from school.

This congestion in close proximity of the schools creates an unsafe situation immediately adjacent to the schools where there is a high concentration of elementary school aged children. Therefore, in order to address the residents’ and school board staff’s safety concerns, staff are proposing No Stopping restrictions adjacent to the schools. A No Stopping restriction along the frontage of the school does not allow parents/caregivers to drop-off/pick-up students in the restricted area. **Table 2** provides a summary of the proposed No Stopping restrictions.

As traffic congestion occurs during school peak periods, the No Stopping restriction during school hours is recommended on the west sides of Coles Avenue and Thackery Drive. The restriction is proposed during the school hours as it is recognized that area residents may have visitors that wish to park on the street outside of these times.

The general parking by-laws (e.g., No Parking within 15m of the intersection, within 1.25m of a driveway, within 3m of the fire hydrant, etc.) remain applicable and are enforceable without signage.

By-law and Legislative Services staff are aware of the proposed restrictions. The No Stopping restriction and the associated signage will improve Enforcement staff’s ability to provide enforcement.

Table 2: Proposed No Stopping Restrictions

Roadway	Between	Proposed No Stopping Restrictions
Church Street	• East side: between Sherwood Road East and 150m north of the property line of Pickering High School • West side: between Sherwood Road West and 150m north of the property line of Pickering High School • Refer to **Attachment 2**	• Anytime
Coles Avenue	• East side: between Coe Drive and north driveway of Applecroft Public School • East side: between south driveway of Applecroft Public School and Cornwall Drive • Refer to **Attachment 3**	• Anytime
Coles Avenue	• West side: between Coe Drive and Cornwall Drive • Refer to **Attachment 3**	• September to June, Monday through Friday, 8:00am to 4:00pm
Williamson Drive East	• North side: between Salem Road and Sargeant Avenue • South side: between Salem Road and east property line of 135 Williamson Drive East • Refer to **Attachment 4**	• Anytime
Thackery Drive	• East side: between Williamson Drive East and Schofield Gate • Refer to **Attachment 5**	• Anytime
Thackery Drive	• West side: between Williamson Drive East and Schofield Gate • Refer to **Attachment 5**	• September to June, Monday through Friday, 8:00am to 4:00pm
Delaney Drive	• North and South sides: between east driveway of Eagle Ridge Public School and Hibbins Avenue/Strickland Drive • Refer to **Attachment 6**	• Anytime

Planning and Development staff are aware that many elementary schools in the Town are encountering similar traffic safety and operational issues along their frontages due to illegal on-street parking activities. Staff will continue to monitor the school frontages and recommend improvements, as required, on a case-by-case basis.

3. Financial Implications:

The cost of No Stopping signage, posts, and other hardware, as required, is estimated to be $4,550 and will be managed in the Operations and Environmental Services operating budget.

4. Communication Issues:

There are no communication issues related to the recommendations in this report.

5. Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan – Action26:

Pillar:	Connecting our Community
Priority:	4. Foster a safe and welcoming community 4.2 Continue to implement traffic calming initiatives
Supporting Action:	School Signage Review and Pilot

6. Conclusion:

To avoid congestion and safety issues associated with illegal on-street parking activities along school frontages and adjacent roads and to support overall safety of all road users, staff recommend No Stopping restrictions in the vicinity of Applecroft Public School, St Jude Catholic School, Da Vinci Public School, St Josephine Bakhita Catholic School, Eagle Ridge Public School, Lincoln Alexander Public School, and Pickering High School.

Attachments:

Attachment 1:	Draft Amendment to Traffic By-law 45-2020, Schedules 1 and 2
Attachment 2:	Church Street Proposed Restrictions
Attachment 3:	Coles Avenue Proposed Restrictions
Attachment 4:	Williamson Drive East Proposed Restrictions
Attachment 5:	Thackery Drive Proposed Restrictions
Attachment 6:	Delaney Drive Proposed Restrictions

Prepared by:

Dhaval Pandya, P.Eng., PTOE – Manager of Transportation Planning

Submitted by:

Geoff Romanowski, CPT, MCIP, RPP – Director of Planning & Development Services

Approved by:

Shane Baker – Chief Administrative Officer

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2023

A By-law to amend By-law 45-2020, being a By-law to regulate vehicular traffic on highways, private and municipal property, and to prohibit the injuring or fouling of highways and bridges, and the obstruction of ditches and culver to regulate traffic on Highways in the Town of Ajax.

WHEREAS the Council of The Corporation of the Town of Ajax may pass By-laws pursuant to the Municipal Act, 2001, S.O. 2001 and the Highway Traffic Act, R.S.O. 1990 and amendments thereto:

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That By-law 45-2020, as amended, be further amended by replacing maps numbered 10, 20, 21, 24, 28, and 31 with the maps forming Appendix 1 of this By-law.
2. That By-law 45-2020, as amended, be further amended by adding the streets and limits listed in Schedule 2, as attached to this By-law in Appendix 2.
3. That By-law 45-2020, as amended, be further amended by deleting the streets and limits in Schedule 3, as attached to this By-law in Appendix 3.

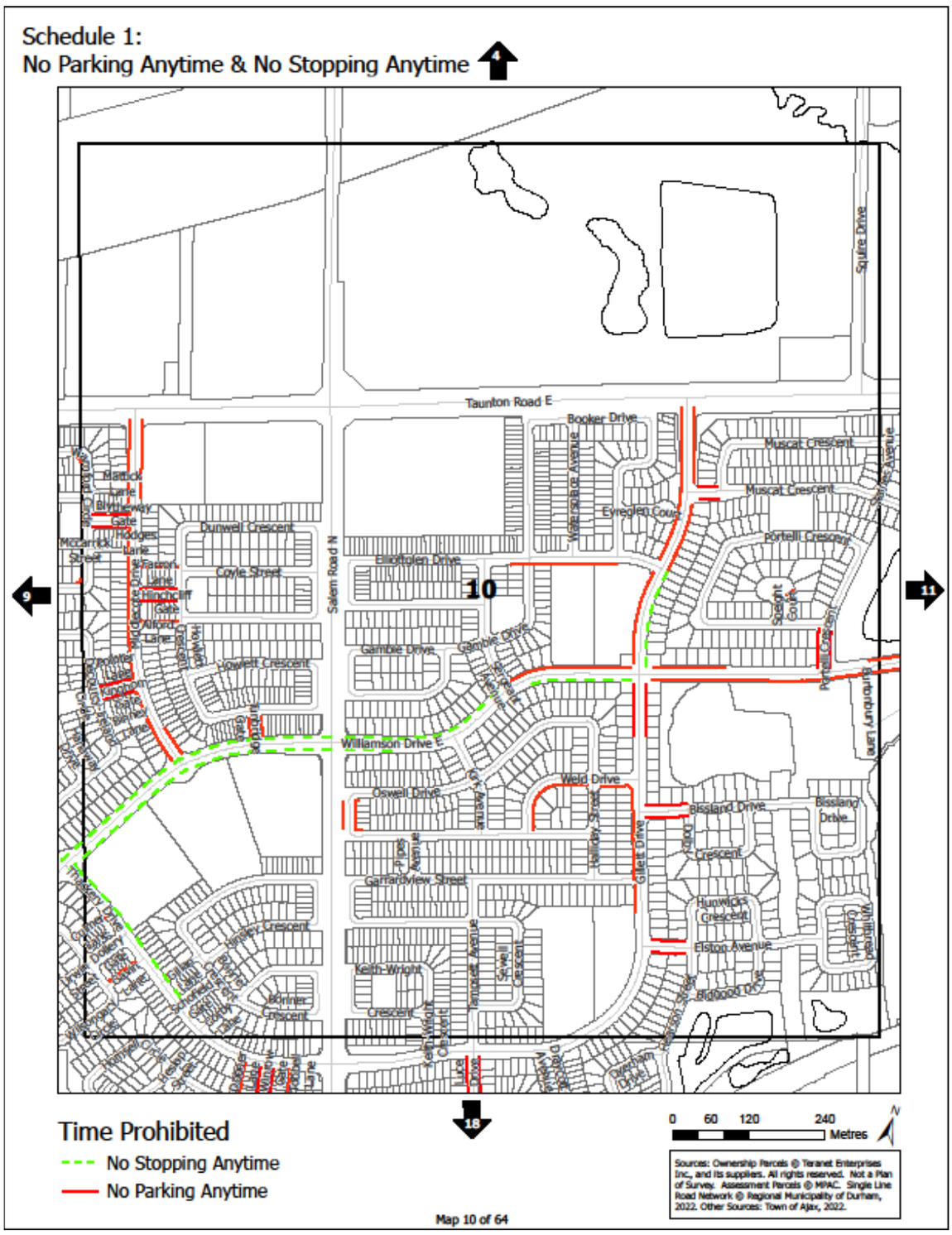
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READ a third time and passed this Nineteenth Day of June 2023.

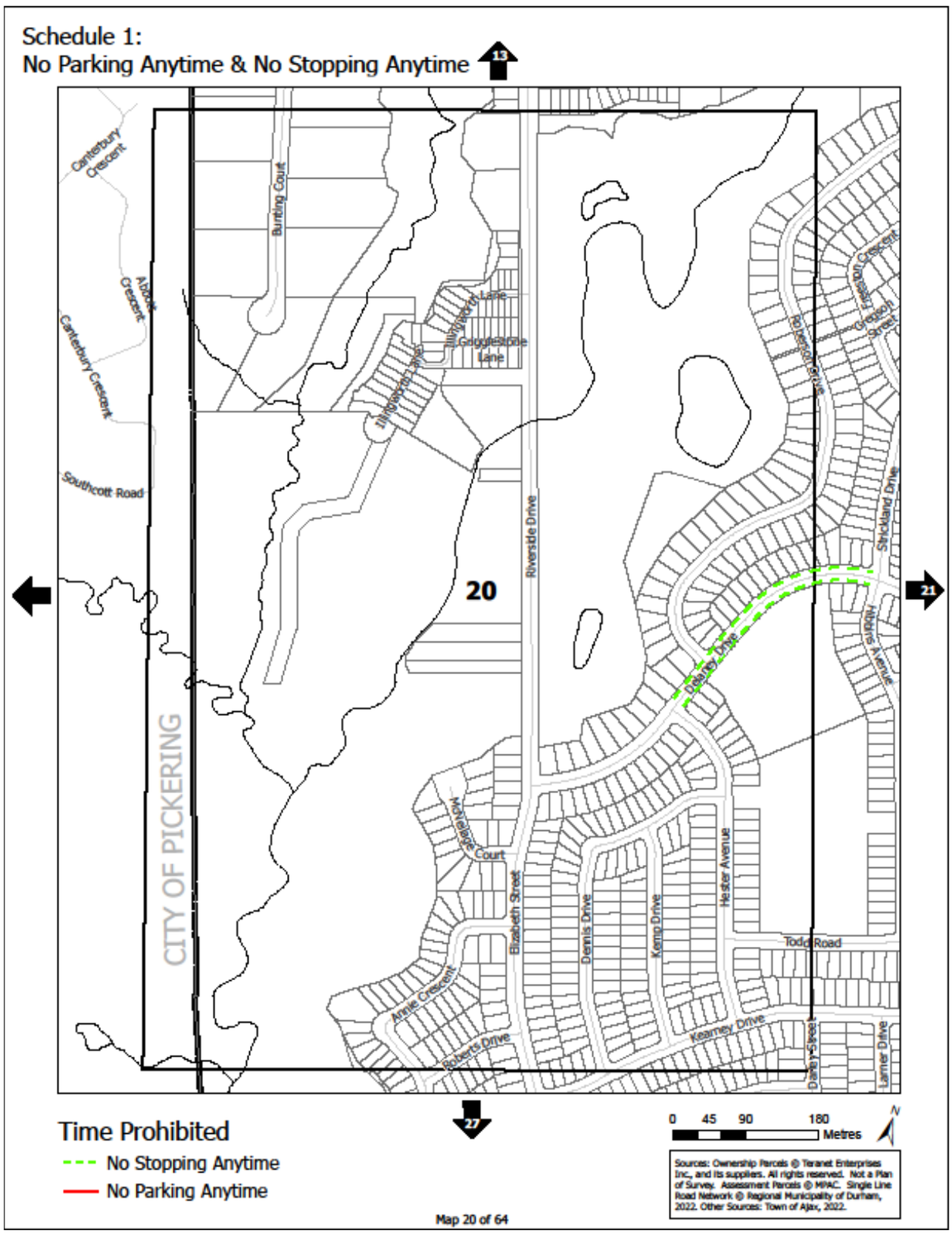
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Mayor

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D-Clerk

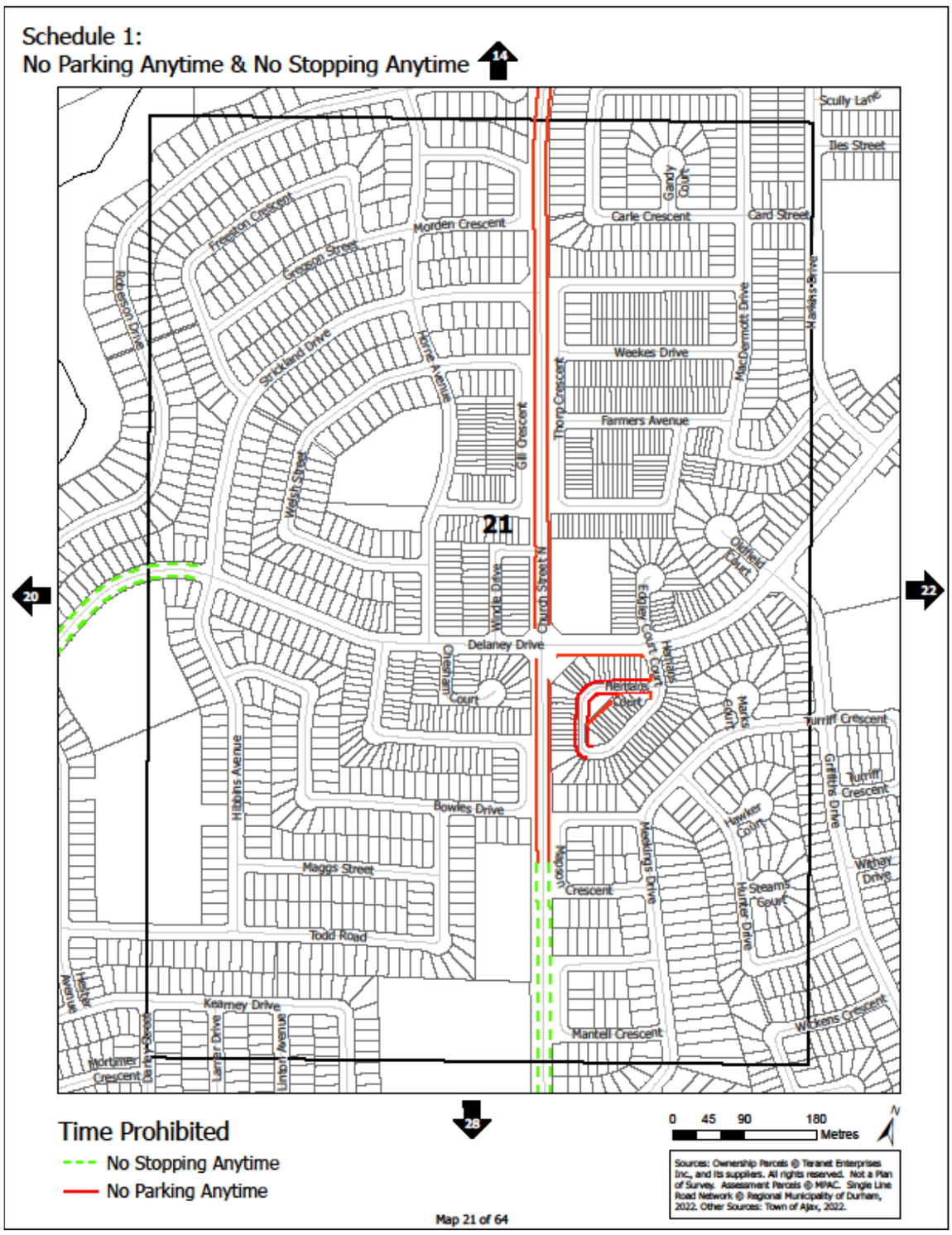
APPENDIX 1


Schedule 1:
No Parking Anytime & No Stopping Anytime
Taunton Road E
Salem Road N
Squire Drive
Booker Drive
Muscat Crescent
Eyreglen Court
Portelli Crescent
Elliotglen Drive
Gamble Drive
Williamson Drive
Weld Drive
Oswell Drive
Bissland Drive
Garrardview Street
Keith-Wright Crescent
Elston Avenue
Dunwell Crescent
Coyle Street
Lowell Crescent
Hinchcliff Gate
Alford Lane
Mallick Lane
Hodges Lane
Farrow Lane
Kingborn Lane
Miccarrick Street
Gillett Drive
Halliday Street
Huxwicks Crescent
Bidgood Drive
Whitehead Crescent
Sturbury Lane
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No Stopping Anytime
No Parking Anytime
0 60 120 240
Metres
Map 10 of 64

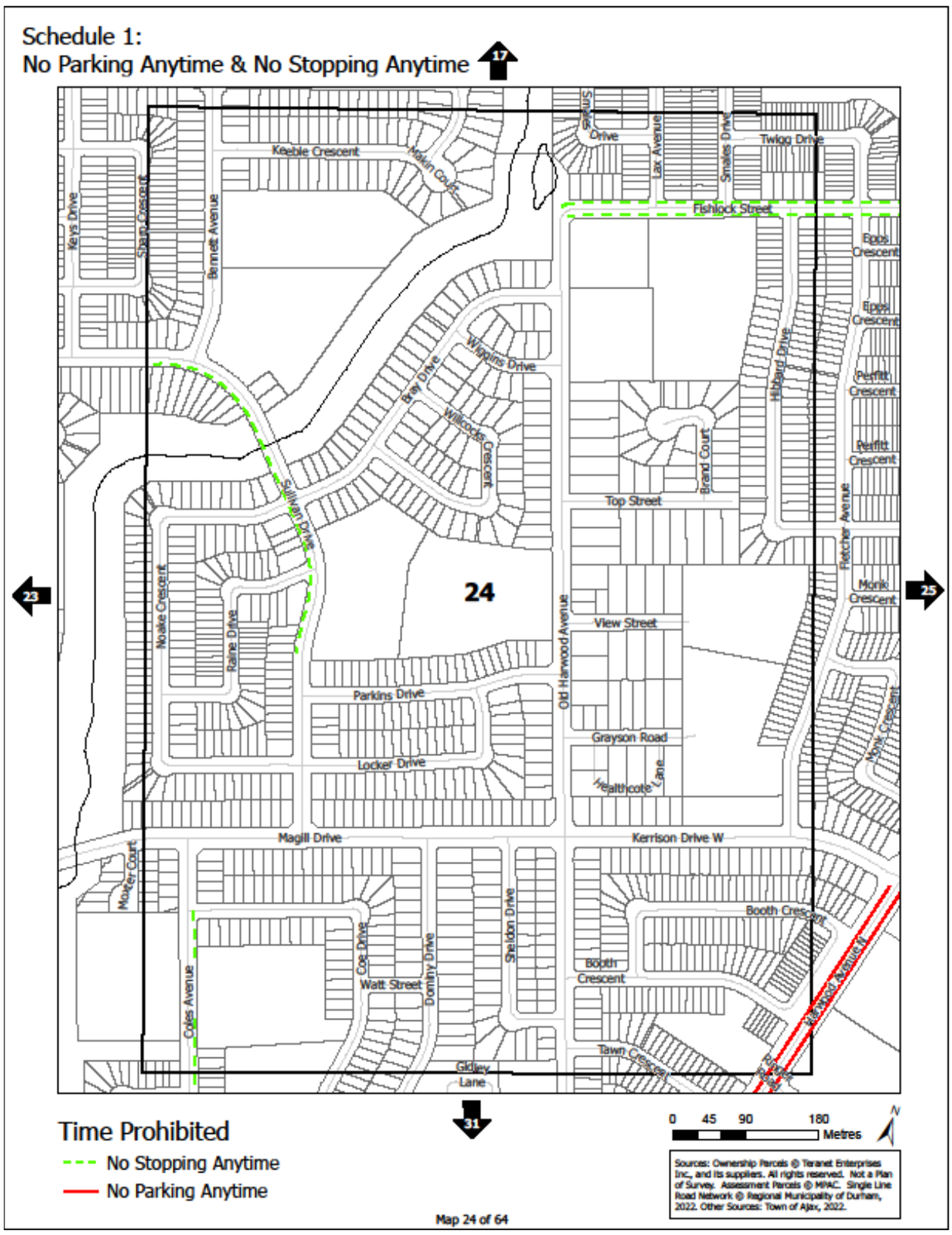
APPENDIX 1 Continued



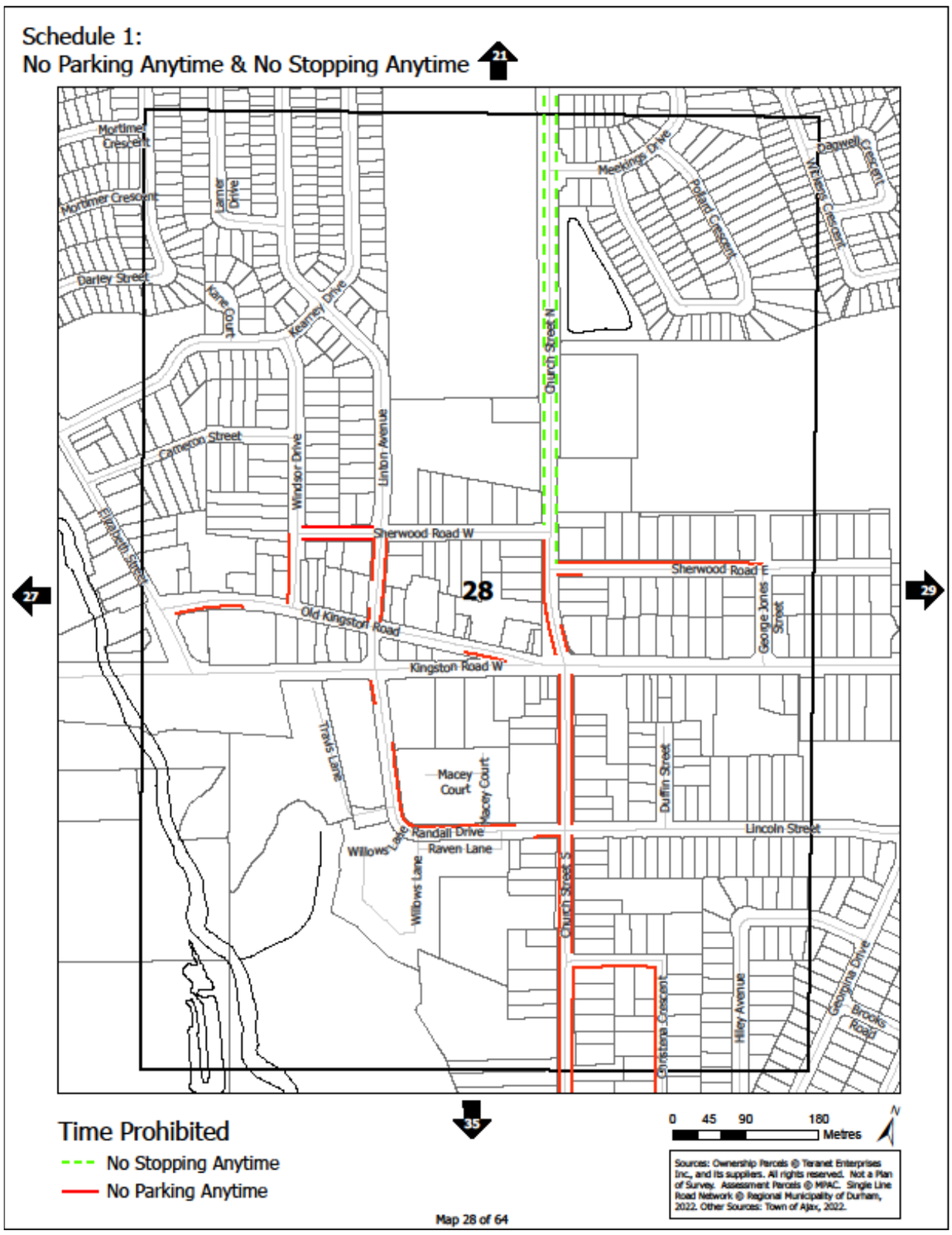
APPENDIX 1 Continued



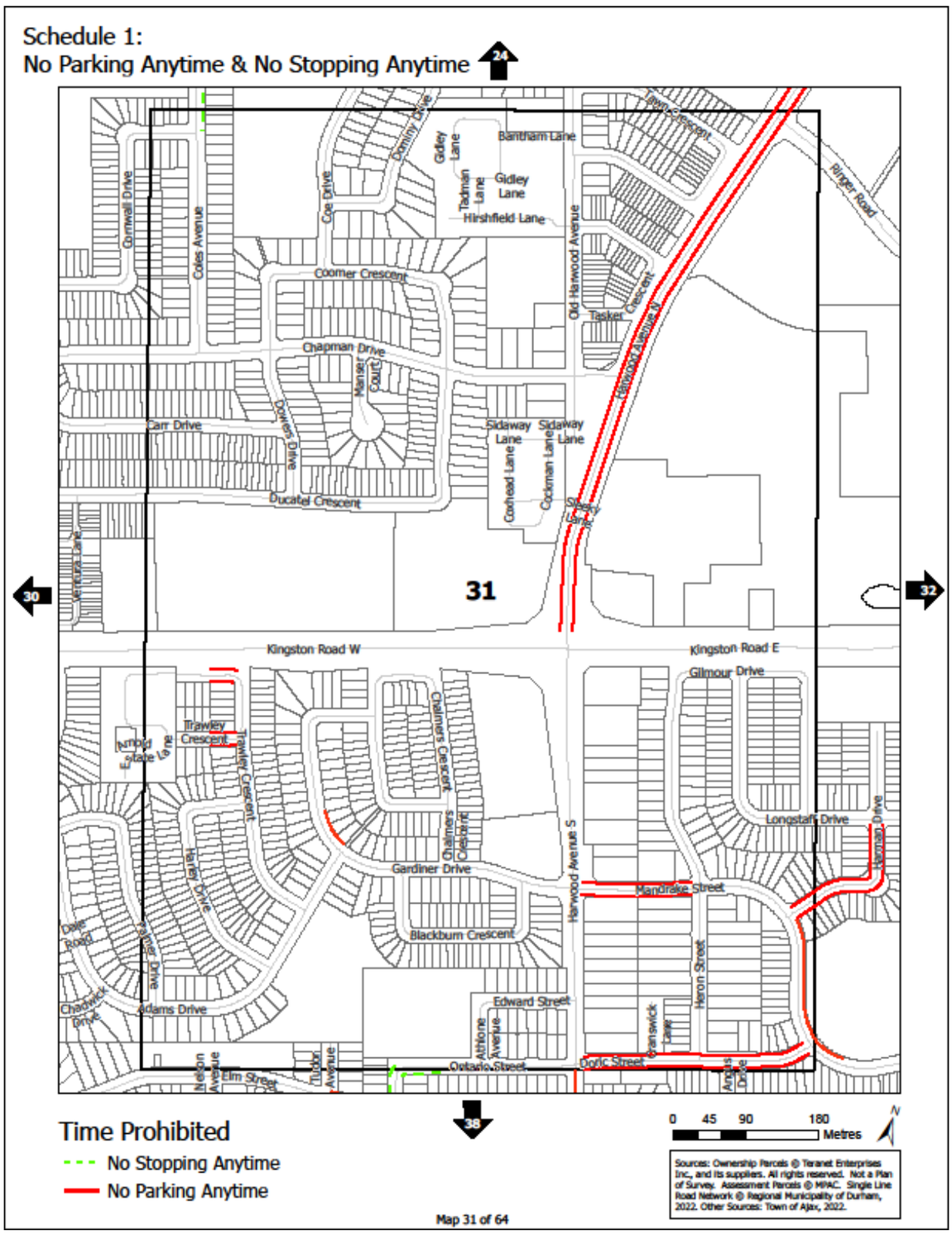
APPENDIX 1 Continued



APPENDIX 1 Continued



APPENDIX 1 Continued



APPENDIX 2

SCHEDULE 2

Schedule 2 – No Stopping Specified Day, Time

HIGHWAY	SIDE	LIMITS	PROHIBITED TIMES OR DAYS	AMENDING BY-LAW NUMBER
Coles Avenue	West	From Coe Drive to Cornwall Drive	Sept – June Monday - Friday 8:00am to 4:00pm	
Thackery Drive	West	Williamson Drive East and Schofield Gate	Sept – June Monday - Friday 8:00am to 4:00pm	

APPENDIX 3

SCHEDULE 3

Schedule 3 – No Parking Specified Day, Time

HIGHWAY	SIDE	LIMITS	PROHIBITED TIMES OR DAYS	AMENDING BY-LAW NUMBER
Coles Avenue	Both	From Coe Drive to 45m north of Cornwall Drive	8:00am to 5:00pm Monday – Friday Holidays Excluded	



LEGEND:

Proposed No Stopping Restrictions (Anytime)

Church Street Proposed Restrictions	**Town of Ajax Planning & Development Services**	Town of Ajax By the Lake

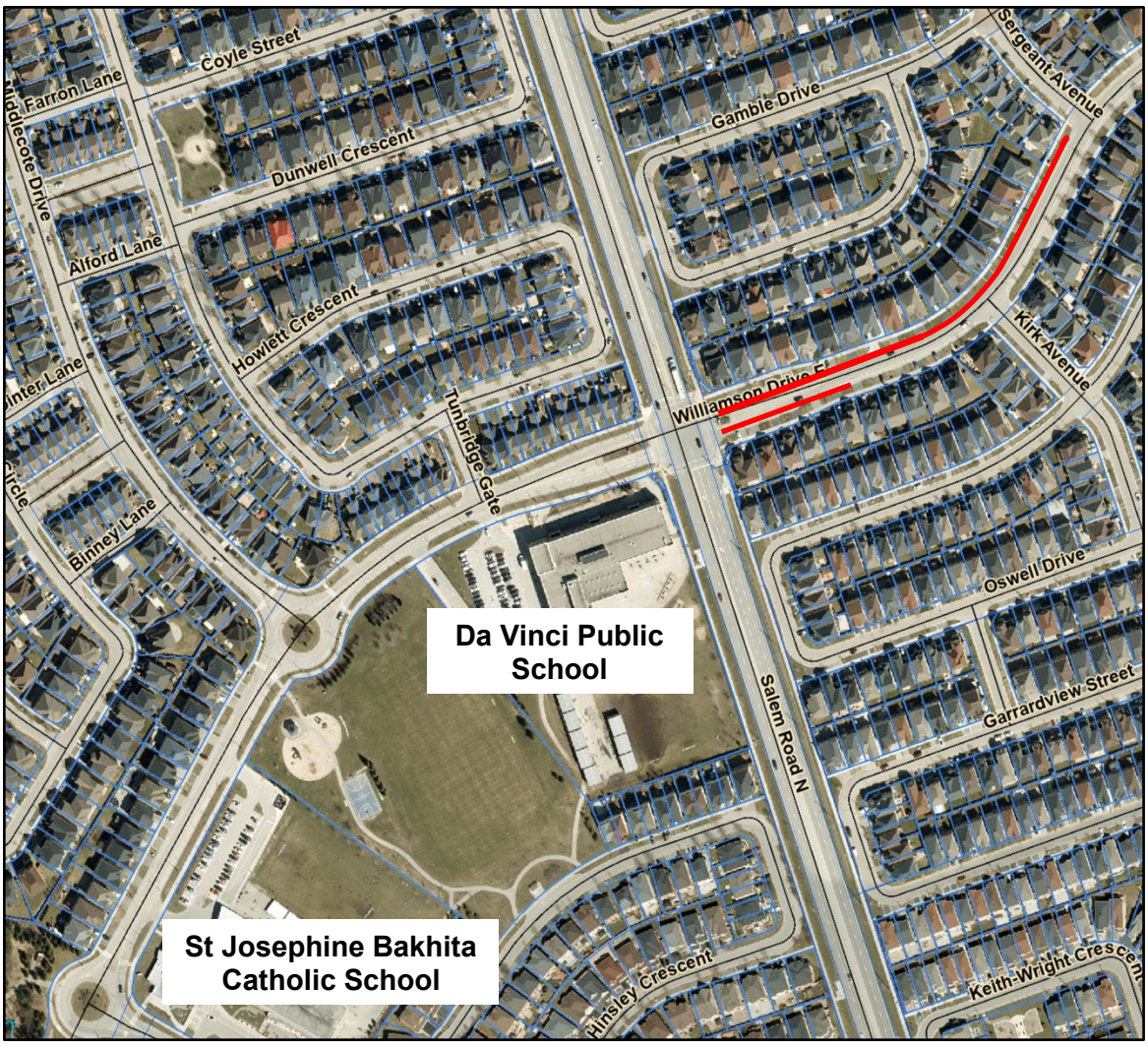


LEGEND:

Proposed No Stopping Restrictions (Anytime)

Proposed No Stopping Restrictions (Time Specific)

Coles Avenue Proposed Restrictions	**Town of Ajax Planning & Development Services**	Town of Ajax By the Lake



LEGEND:

Proposed No Stopping Restrictions (Anytime)

Williamson Drive East Proposed Restrictions	**Town of Ajax Planning & Development Services**	Town of Ajax By the Lake



LEGEND:

- Proposed No Stopping Restrictions (Anytime)
- Proposed No Stopping Restrictions (Time Specific)

Thackery Drive Proposed Restrictions	**Town of Ajax Planning & Development Services**	Town of Ajax By the Lake



LEGEND:

Proposed No Stopping Restrictions (Anytime)

Delaney Drive Proposed Restrictions	**Town of Ajax Planning & Development Services**	Town of Ajax By the Lake

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Jason McWilliam, Manager of Legislative Services/Deputy Clerk
Report #:	LIS-2023-09
Subject:	**Unbudgeted Technology Expenses – Council Chambers**
Ward(s):	N/A
Date of Meeting:	June 12, 2023
Reference:	1019811.5830 / 1201.5830

Recommendation:

That the report titled “Unbudgeted Technology Expenses – Council Chambers” be received for information.

Background:

In 2021, a capital budget project for $335,000.00 was approved to upgrade technology installed in the Council Chambers to replace equipment which was original to the Chamber. The equipment being replaced was installed in approximately 2005 and was end of life, no longer supported by the Town’s audio/video service provider and experienced regular failures impacting the reliability of the Chamber to support Council Meetings and other activities occurring regularly in the space.

Project design activities were completed prior to the Covid-19 pandemic and contemplated a range of upgrades including equipment for live-streaming, automated camera tracking, and electronic voting. However, the original project scope and design provided for occasional remote meeting participation which, in the post-COVID world, would not have provided an acceptable standard for seamless hybrid meetings. Tenders from qualified bidders came in approximately $50,000.00 overbudget and the overbudget amount was funded from the Capital Contingency Reserve. Significant delays were encountered due to supply chain issues arising from the pandemic and the availability of all required hardware did not occur until January 2023, with installation commencing shortly thereafter.

Between the completion of detailed design and installation activities, expectations about how Council and Committee meetings are conducted have evolved with both members of Council and the community becoming accustomed to participating in meetings remotely. As a result, additional hardware and software requirements were identified to facilitate fully hybrid meetings, improve the transparency of meeting activities to the community, whether in attendance in Council Chambers or viewing the meeting remotely, and to deliver a more polished product to Rogers and the Town’s YouTube channel for public consumption. In addition, there was a desire to mirror the meeting technology experience provided at the Region of Durham as much as possible for the benefit of members who sit on both Councils.

Discussion:

To date, approximately $385,000.00 has been spent on the Council Chamber retrofit to remove all legacy equipment and install and configure new high-efficiency lighting, speakers, cameras, microphones, projector, projector screen, televisions in the public gallery and monitors. This work has also included the replacement of all associated cabling to improve the reliability of the newly installed elements.

As noted, hybrid participation is now a core requirement for local government and the user experience for participants should be similar whether they are participating in person, or via remote means. Staff explored several alternatives; however, the solutions were all deemed suboptimal due to incompatibility with the hardware installed in the Council Chamber or presented a confusing user interface for remote participants. In late 2022, staff became aware of a software solution deployed by the Region of Durham which met the Town's requirements and simplified the experience and learning curve required of members of Council and the public who participate in meetings at both bodies. Staff have deployed this additional capability at a cost of approximately $63,000.

The software solution has integrated seamlessly with the hardware which has been installed in the Chamber, but since commencing use of the complete system in April 2023, several limitations have been identified which results in additional workload for staff, impairs the final product delivered to the community, and limits the utility of the Council Chambers to support training activities and public events which occur from time to time.

To resolve these deficiencies, several additional hardware elements have been proposed, including:

- Three additional pan-tilt-zoom (PTZ) cameras to provide additional views of Council members and staff to remote participants and members of the public in attendance in Council Chambers and viewing online;
- Eleven additional combined microphone/delegate units to enable automatic camera control to identify staff who may be responding to questions posed by members of Council and enable use of the hybrid meeting capabilities by advisory committees; and,
- Two wireless handheld and body pack microphones to support training activities, wedding ceremonies and other events occurring from time to time in the Chamber.

The installation of this additional equipment will ensure that the Council Chamber is a fully hybrid meeting space, offering unique capabilities that simplify the participant experience and allow the space to support a variety of public and internal events in addition to Council and Committee Meetings.

Financial Implications:

The procurement and installation of the additional hardware identified in this report will bring the total project cost to approximately $508,000.00. Of the total project cost, $335,000.00 has been offset by grant funding from Infrastructure Canada, and a further $50,000.00 covered by the Capital Contingency Reserve, resulting in unbudgeted expenditures of approximately $123,000.00 to be funded by the Safe Restart Grant and Covid Recovery funding.

Communication Issues:

Following the full installation and configuration of the additional hardware identified in this report, Legislative Services staff will work with others within the organization to deliver training to facilitate use of the space and its unique capabilities for a variety of internal and public events.

Relationship to the Strategic Plan:

This report supports the pillar of “Modernizing our Community” and the priorities of “Rethinking the way we communicate” and “Readying our organization for the future” as identified in the Strategic Plan, by enabling new and innovative ways to support public participation in the democratic process.

Conclusion:

The installation of additional technology supporting hybrid meeting participation directly responds to evolving expectations and improves the overall meeting experience for members of Council and the Ajax community. These capabilities continue to establish Ajax as a leader in the municipal sector and support Council’s ongoing commitment to accountability and transparency.

Attachments: N/A

Prepared by:

Jason McWilliam – Manager of Legislative Services/Deputy Clerk

Submitted by:

Nicole Cooper – Director of Legislative and Information Services/Clerk

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Steven McReelis, Manager, Building Approvals & Chief Building Official
Report #:	PDS-2023-22
Subject:	2022 Development Application Approval Process Review
Ward(s):	All
Date of Meeting:	June 12, 2023
Reference:	None

Recommendations:

1. **That Council approve the findings in the attached Development Application Fees Review Study; and**
2. **That staff be authorized to prepare and forward the amending user fee by-laws for the respective Sections to Council for consideration at a future meeting.**

1. Background:

On April 8, 2022, Watson & Associates Economists Ltd. was awarded the contract to undertake a review of the Town's cost model and fee structures for the Planning, Building Approvals, Engineering, and Economic Development Sections. The purpose of the review was to carry out a fee for service analysis associated with the review, administration, approval, and enforcement services provided by the Town with respect to development applications under the Planning Act, the Building Code Act, and the Municipal Act.

The Building Code Statute Law Amendment Act, 2002; requires municipalities to establish fees under the Act, in that: "The total amount of the fees authorized under clause 7(1)(c) must not exceed the anticipated reasonable cost of the principal authority to administer and enforce this Act in its area of jurisdiction." Thus, a review of the Town's building permit fees is reviewed every four years, the last occurring in 2018, which established set fees for the following four years.

The process at arriving at the proposed fee schedules entailed a detailed examination of the development application review function, from staff's initial contact with the proposal, through to application submission, file creation and assignment, file circulation, technical review and commentary, contact with the public through open houses and statutory public meetings where applicable, as well as the preparation of technical comments, reports, agreements, related correspondence and all other applicable plan review functions including review of subsequent iterations of proposals stemming from previous comments, approvals, inspections, etc. This review was undertaken for all development application types in each of the Building Approval, Development Engineering, Planning, and Economic Development Sections. Taken together, the result of the exercise arrived at a summation of time spent, by staff position, on each

application type. The associated costs, including salaries and benefits were calculated to ascertain actual processing costs.

Indirect costs were also factored including overhead and the proportion of the overall overhead costs. Again, the overall intent was to arrive at the actual costs of municipal plan review to arrive at a cost recovery approach to a municipal plan review fee structure.

The process was initiated in June of 2022. Staff met with the consultants regularly through this process, to inform the proposed schedule of fees. Staff also hosted a briefing with stakeholder groups on February 9, 2023.

In determining the recommended fees, a fee comparison was also undertaken with selected comparator municipalities. The comparison was to ensure market competitiveness of the fee recommendations.

The study also recommends that the Town continue its current practice of contributions to the Building Permit Reserve Fund to maintain a target balance in the reserve of 2.45 times the annual direct costs. The annual contribution to the reserve has been incorporated into the recommended fees. The fund ensures for the maintenance of a sustainable base complement of Building Approval staff, and to protect for times of potential future economic downturns.

A copy of the Development Application Fee Review Technical Study, prepared by Watson and Associates Economists Ltd. has been attached for your reference.

2. Discussion:

Based on the study and staff's examination of the Town's current fees, a comprehensive set of changes to the Town's current fee structure is being recommended to align the fees to approach cost recovery where appropriate and desirable.

To produce better cost-recovery performance and greater operational stability, Watson and Associates Economists Ltd., presented the following fee recommendations for each of the Sections.

2.1. Planning Application Fees

The annual cost to the Town of processing planning applications has been estimated at approximately $2.79 million, 49% ($1.37 million) of the costs are currently recovered through application fees.

The study captured the Town's recent changes to the planning application review process outlined in Report # PDS-2022-26. These changes, which were in response to Bill 109 (More Homes for Everyone Act), redistributed staff efforts into various stages of the planning application process. These stages include a mandatory two-phase pre-consultation process, optional early application review, optional Town-run open houses, processing of an application, and clearing of conditions. The study also took into account the Council approved changes to the Delegation of Authority By-law that provides staff with the approval authority for temporary use by-laws and the removal of holding provisions. The updated processes caused existing costing categories to be replaced by new categories. The planning application fees structure changes are outlined in Table 3-4 of the study in Attachment 1.

Proposed changes to the existing fee structure and new fees recommended by the study will increase the average annual cost recovery from 49% to 68%, resulting in an additional

$527,000 in revenue. The recommended planning application fees are provided in Table 3-3 of the study in Attachment 1.

2.2. Development Engineering Application Fees

The annual cost to the Town of processing development engineering services has been estimated at approximately $322,585. Application fees are currently recovering about 106% ($342,260) of the average costs of service.

The recommendation of the study is to reduce the fees of development engineering applications that are over-recovering. Other changes include:

- Charging fees based on the percentage of the value of infrastructure instead of the value of securities for Engineering Review and inspection of Agreements.
- Charging fees based on the percentage of the value of urban design element as opposed to value of securities for Landscape Architectural and Urban Design Review.
- Introduce a new fee for Erosion and Sediment Control Permits to differentiate between minor and major projects.
- Charging Benchmarks fees on a per lot basis instead of per 200 lots.

By implementing the proposed fees, the annual revenues will be reduced by approximately $19,900, and would bring the annual processing costs and annual revenue into alignment, on average. The recommended Engineering Development fees are provided in Table 4-3 of the study in Attachment 1.

2.3. Economic Development Fees

The annual cost to the Town of processing economic development services has been estimated at approximately $116,983, 7% ($8,528) of the costs are currently recovered through application fees.

In addition to increasing all economic development services fees, an additional fee is being proposed for the sale and other disposition of land.

The fees proposed by the study will result in additional annual revenue of approximately $15,900 and increase the average annual cost recovery level from 7% to 21%. The recommended Economic Development fees are provided in Table 5-3 of the study.

2.4. Building Approval Application Fees

The average annual cost to the Town in processing building permit applications has been estimated at approximately $3.52 million which includes the annual contribution to the Building Permit Reserve Fund of $537,053. At forecasted volumes of annual building permit activity, the current building permit application fees would recover about 122% ($4.30 million) of the annual costs of service.

The study recommends decreasing the fees of building permit applications that are over-recovering in an effort to reduce the overall building permit revenues to full cost recovery levels. All other building permit fees will be maintained. The study also recommends an annual indexing of building permit application fees, based on an index such as the Consumer Price Index or an index established through the tracking the escalation of labour costs.

Implementation of the proposed fees would reduce the annual revenues by $780,000 and align the annual revenues to total building permit application processing costs, on average. The

recommended building permit application fees are provided in Table 6-3 of the study in Attachment 1.

2.5. Staff Capacity Utilization

The study also considered staff capacity utilization in the development application processing activities of all contributing Town sections. The analysis found that under historic volumes of development applications and current staffing levels, the Building Approval section appears to be short 0.4 full time equivalent (F.T.E.) positions. However, when forecasted application volumes are factored in, the Building Approval section will require an additional 4.8 F.T.E.s to process future volumes of building permits. It is important to note that the recommended Building Approval application fees account for the additional staff.

3. Financial Implications:

The recommended fee changes in the report suggest additional annual revenue over the forecast period of approximately $527,000 for the Planning Section, and $15,900 for the Economic Development Section, when compared to the current fee structure. The forecast period used in the study was 2023-2028 for residential development, and 2023-2033 for non-residential development. The fee recommendations for the Building Approval, and Development Engineering Sections will result in a reduction in annual revenues of $780,000 and $19,900 respectively over the forecast period. The recommended fees for the Building Approval Section will bring its total annual costs into alignment with annual revenues.

The fee recommendations impact specifically to the 2023 Operating Budget will see an increase in revenue of $235,300 for the Planning Section, and $3,800 for the Economic Development Section. While the Building Approval Section and Development Engineering will realize a 2023 Operating Budget decrease in revenue of $301,700 and $23,000 respectively. It is important to note that the Building Approval Section operations are funded almost entirely from building permit application revenue and not the tax base.

Section 2 of this report speaks to the alignment of cost recovery for Building Approvals and Development Engineering application fees, and to an increase in cost recovery for Planning and Economic Development application fees. In addition to the revised rates of cost recovery, the recommended fees in the study are also based on the average historical application volumes from 2017-2021. These two factors (revised cost recovery and average historical application volumes) have resulted in the anticipated above noted difference for the 2023 Operating Budget.

4. Communication Issues:

A stakeholder meeting was held on February 9, 2023, where people attending had the opportunity to make representations with respect to the proposed fee changes. In attendance at the public meeting were representatives and members from Building Industry and Land Development Association (BILD) and Durham Region Home Builders Association (DRHBA). No comments or concerns were raised, and no other representations were received.

An updated fee schedule was distributed to the stakeholders via e-mail on May 12, 2023. Again, no comments or concerns were received in response to the e-mail.

5. Relationship to the Strategic Plan:

This report aligns with the following section of the 2022-2026 Strategic Plan - Action26:

Pillar 3: Modernizing our Community

Priority: Demonstrate sound financial management.

6. Conclusion:

The Town of Ajax has completed a comprehensive Development Application Fee Review Study that entailed a detailed examination of the level of effort expended in the review of development applications across all affected business units in an effort to approach cost recovery. Also included within this review were the application processes of the Economic Development section.

This process and the recommended fees are intended to improve cost recovery in a manner consistent with the approach taken in other GTA municipalities. However, full cost recovery has not been recommended across all fee categories as there is a recognition that requesting full fees may exceed certain applicants' ability to pay.

Overall, the methodology being recommended is to approach full cost recovery wherever possible, while recognizing that for some application types (i.e., a resident or a small business), full cost recovery has not been proposed in recognition of the individual's ability to pay.

Attachments:

ATT-1: Development Application Fees Review Study (May 25, 2023) – prepared by Watson & Associates Economists Ltd.

Prepared by:

Steven McReelis – Manager, Building Approvals & Chief Building Official

Submitted by:

Geoff Romanowski – Director, Planning & Development Services

Approved by:

Shane Baker – Chief Administrative Officer



Development Application Fees Review Study

Town of Ajax

May 25, 2023

Watson & Associates Economists Ltd.
905-272-3600
info@watsonecon.ca

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Chapter 1
Introduction

1. Introduction

1.1 Background

Municipalities have periodically undertaken updates to their development application fees in order to address changes in development cycles, application characteristics, and cost recovery levels with the intent of continuing to improve fee structures so that they more accurately reflect processing efforts. The Town of Ajax (Town) retained Watson & Associates Economists Ltd. (Watson) to undertake a comprehensive fee review for the Town's Planning, Building Approvals, Development Engineering, and Economic Development sections, and to make recommendations to provide for reasonable full cost recovery.

This technical report summarizes the legislative context for the fees review, provides a detailed description of the methodology utilized to assess the full costs of service, and presents the financial implications of moving towards full cost recovery and the associated fee schedules.

1.2 Legislative Context for Development Application Fees Review

The context for the scope of this development application fees review is framed by the statutory authority available to the Town to recover the costs of service. The statutory authorities that must be considered are the *Planning Act* which governs the imposition of fees for recovery of the anticipated costs of processing planning applications, section 7 of the Ontario *Building Code Act* which governs building permit fees, and Part XII (s. 391) of the *Municipal Act* which governs fees and charges more generally (i.e., development engineering works and economic development fees). The following summarizes the provisions of these statutes as they pertain to fees.

1.2.1 Planning Act, 1990

Section 69 of the *Planning Act* allows municipalities to impose fees through by-law for the purposes of processing planning applications. In determining the associated fees, the Act requires that:

> "The council of a municipality, by by-law, and a planning board, by resolution, may establish a tariff of fees for the processing of applications made in respect of planning matters, which tariff shall be designed to meet only the anticipated cost to the municipality or to a committee of adjustment or land division committee constituted by the council of the municipality or to the planning board in respect of the processing of each type of application provided for in the tariff."

Section 69 establishes many cost recovery requirements that municipalities must consider when undertaking a full cost recovery fee design study. The Act specifies that municipalities may impose fees through by-law and that the anticipated costs of such fees must be cost justified by application type as defined in the tariff of fees (e.g. subdivision, zoning by-law amendment, etc.). Given the cost justification requirements by application type, this would suggest that cross-subsidization of planning fee revenues across application types is not permissible. For instance, if site plan application fees were set at levels below full cost recovery for policy purposes, this discount could not be funded by subdivision application fees set at levels higher than full cost recovery. Our interpretation of section 69 is that any fee discount must be funded from other general revenue sources such as property taxes. In comparison to the cost justification requirements of the *Building Code Act*, where the justification point is set at the aggregate level of the Act, the requirements of the *Planning Act* are more stringent in this regard.

The legislation further indicates that the fees may be designed to recover the "anticipated cost" of processing each type of application, reflecting the estimated costs of processing activities for an application type. This reference to anticipated costs represents a further costing requirement for a municipality. It is noted that the statutory requirement is not the actual processing costs related to any one specific application. As such, actual time docketing of staff processing effort against application categories or specific applications does not appear to be a requirement of the Act for compliance purposes. As such, our methodology, which is based on staff estimates of application processing effort, meets the requirements of the Act and is in our opinion a reasonable approach in determining anticipated costs.

The Act does not specifically define the scope of eligible processing activities and there are no explicit restrictions to direct costs as previously witnessed in other statutes. Moreover, amendments to the fee provisions of the *Municipal Act* and the *Building Code Act* have provided for broader recognition of indirect costs. Acknowledging that staff

effort from multiple departments is involved in processing planning applications, it is our opinion that such fees may include direct costs, capital-related costs, support function costs directly related to the service provided, and general corporate overhead costs apportioned to the service provided.

The payment of *Planning Act* fees can be made under protest with appeal to the Ontario Land Tribunal (OLT), previously known as the Ontario Municipal Board, if the applicant believes the fees were inappropriately charged or are unreasonable. The OLT will hear such an appeal and determine if the appeal should be dismissed or direct the municipality to refund payment in such amount as determined. These provisions confirm that fees imposed under the *Planning Act* are always susceptible to appeal. Unlike other fees and charges (e.g. development charges) there is no legislated appeal period related to the timing of by-law passage, mandatory review period, or public process requirements.

1.2.2 Building Code Act, 1992

Section 7 of the *Building Code Act* provides municipalities with general powers to impose fees through passage of a by-law. The Act provides that:

> "The council of a municipality may pass by-laws
>
> (c) requiring the payment of fees and prescribing the amounts of the fees,
>
> (i) on application for and on issuance of permits,
>
> (ii) for maintenance inspections,
>
> (iii) for providing documentation, records or other information under section 15.10.4, and
>
> (iv) for providing information under subsection 15.10.6 (2)
>
> (c.1) requiring the payment of interest and other penalties, including payment of collection costs, when fees are unpaid or are paid after the due date;
>
> (d) Providing for refunds of fees under such circumstances as are prescribed."

The *Building Code Statute Law Amendment Act* imposed additional requirements on municipalities in establishing fees under the Act, in that:

> "The total amount of the fees authorized under clause (1)(c) must not exceed the anticipated reasonable cost of the principal authority to administer and enforce this Act in its area of jurisdiction."

In addition, the amendments also require municipalities to:

- Reduce fees to reflect the portion of service performed by a Registered Code Agency;
- Prepare and make available to the public annual reports with respect to the fees imposed under the Act and associated costs; and
- Undertake a public process, including notice and public meeting requirements, when a change in the fee is proposed.

O. Reg. 305/03 (which has since been replaced by O. Reg. 332/12) was the associated regulation arising from the *Building Code Statute Law Amendment Act, 2002*. O. Reg. 332/12 provides further details on the contents of the annual report and the public process requirements for the imposition or change in fees. With respect to the annual report, it must contain the total amount of fees collected, the direct and indirect costs of delivering the services related to administration and enforcement of the Act, and the amount of any reserve fund established for the purposes of administration and enforcement of the Act. The regulation also requires that notice of the preparation of the annual report be given to any person or organization that has requested such notice.

Relating to the public process requirements for the imposition or change in fees, the regulations require municipalities to hold at least one public meeting and that at least 21-days notice be provided, including notice via regular mail to parties that requested such notice within five years preceding the public meeting. Moreover, the regulations require that such notice include, or be made available upon request to the public, an estimate of the costs of administering and enforcing the Act, the amount of the fee or change in existing fee and the rationale for imposing or changing the fee.

The Act specifically requires that fees "must not exceed the anticipated reasonable costs" of providing the service and establishes the cost justification test at the global

Building Code Act level. With the Act requiring municipalities to report annual direct and indirect costs related to fees, this would suggest that *Building Code Act* fees can include general corporate overhead indirect costs related to the provision of service. Moreover, the recognition of anticipated costs also suggests that municipalities could include costs related to future compliance requirements or fee stabilization reserve fund contributions. As a result, *Building Code Act* fees modelled in this exercise include direct costs, capital-related costs, indirect support function costs directly consumed by the service provided, and corporate management costs related to the service provided, as well as provisions for future anticipated costs.

1.2.3 Municipal Act, 2001

Part XII of the Municipal Act provides municipalities and local boards with broad powers to impose fees and charges via passage of a by-law. These powers, as presented in s. 391 (1), include imposing fees or charges by a municipality:

> "(a) for services or activities provided or done by or on behalf of it;
>
> (b) for costs payable by it for services or activities provided or done by or on behalf of any other municipality or any local board; and
>
> (c) for the use of its property including property under its control."

This section of the Act also allows municipalities to charge for capital costs related to services that benefit existing persons. The eligible services for inclusion under this subsection of the Act have been expanded by the *Municipal Statute Law Amendment Act*. Moreover, the amendments to the Act have also embraced the broader recognition for cost inclusion within municipal fees and charges with recognition under s. 391 (3) that "the costs included in a fee or charge may include costs incurred by the municipality or local board related to administration, enforcement and the establishment, acquisition and replacement of capital assets."

Fees and charges included in this review, permissible under the authority of the *Municipal Act*, would include development engineering works and economic development fees not specifically provided for under the *Planning Act*.

In contrast to cost justification requirements under other legislation, the *Municipal Act* does not impose explicit requirements for cost justification when establishing fees for

municipal services. In setting fees and charges for these services, however, municipalities should have regard for legal precedents and the reasonableness of fees and charges. The statute does not provide for appeal of fees and charges to the OLT; however, fees and charges may be appealed to the courts if municipalities are acting outside their statutory authority. Furthermore, no public process or mandatory term for fees and charges by-laws is required under the Act. There is, however, a requirement that municipal procedural by-laws provide for transparency with respect to the imposition of fees and charges.

Chapter 2
Activity-Based Costing

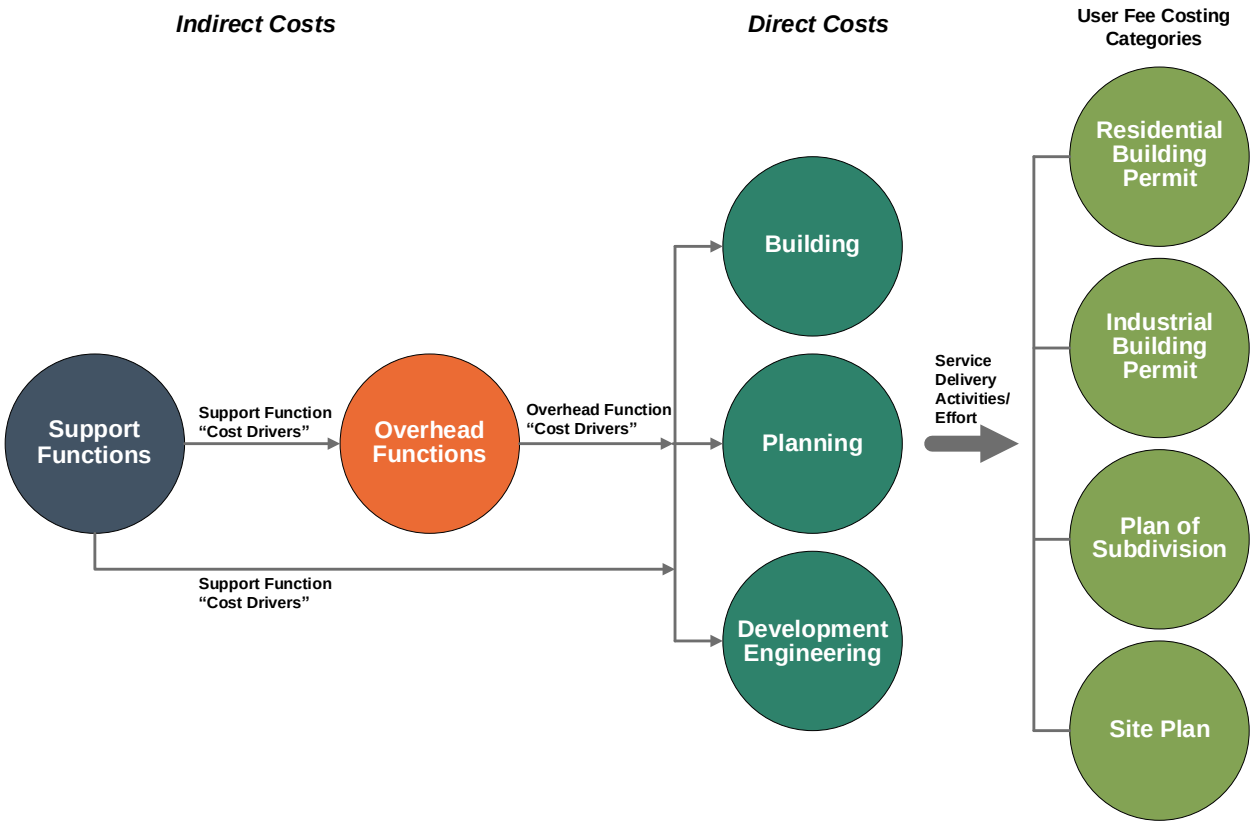
2. Activity-Based Costing

2.1 Methodology

An activity-based costing (A.B.C.) methodology, as it pertains to municipal governments, assigns an organization's resource costs through activities to the services provided to the public. One of the service channels provided by municipalities is the development review process. Conventional municipal accounting structures are typically not well suited to the costing challenges associated with development processing activities, as these accounting structures are business unit focused and thereby inadequate for fully costing services with involvement from multiple business units. An A.B.C. approach better identifies the costs associated with the processing activities for specific application types and thus is an ideal method for determining full cost recovery development application fees.

As illustrated in Figure 2-1, an A.B.C. methodology attributes processing effort and associated costs from all participating municipal business units to the appropriate development application service categories. The resource costs attributed to processing activities and application categories include direct operating costs, indirect support costs, and capital costs. Indirect support function and corporate overhead costs are allocated to direct business units according to operational cost drivers (e.g., information technology costs allocated based on the relative share of departmental personal computers supported). Once support costs have been allocated amongst direct business units, the accumulated costs (i.e., indirect, direct, and capital costs) are then distributed across the various development application service categories and other non-development services offered by the Town, based on the business unit's direct involvement in development review process activities. The assessment of each business unit's direct involvement in development review process activities is accomplished by tracking the relative shares of staff processing effort across each development application category's sequence of process steps. The results of employing this costing methodology provide municipalities with a better recognition of the costs incurred in delivering development review processes, as it acknowledges not only the direct costs of resources deployed but also the operating and capital support required by those resources to provide services.

Figure 2-1
Activity-Based Costing Conceptual Cost Flow Diagram



The following sections of this chapter review each component of the A.B.C. methodology as it pertains to the Town's development application fees review.

2.2 Application Category Definition

A critical component of the full cost user fees review is the selection of costing categories. This is an important first step as the process design, effort estimation, and subsequent costing is based on these categorization decisions. It is also important from a compliance standpoint where, as noted previously, the *Planning Act* requires user fees to be cost justified by application type consistent with the categorization contained within the Town's tariff of fees. Moreover, it is equally important in costing building permit, development engineering, and economic development fees to better understand the cost/revenue relationships of different permit/application types beyond the statutory cost justification for fees established broadly (e.g., under the authority of the *Building Code Act*).

Fee categorization discussions occurred at the outset of the assignment, during initial working sessions with Town staff. The costing categories included in the A.B.C. model and later used to rationalize changes to the Town's fee structure is summarized below.

Planning Applications

- Official Plan Amendment (Simple)
- Official Plan Amendment (Complex)
- Regional OPA Review
- Zoning By-law Amendment (Simple)
- Zoning By-law Amendment (Complex)
- Joint Official Plan & Zoning By-law Amendments (Simple)
- Joint Official Plan & Zoning By-law Amendments (Complex)
- Removal of Holding Symbol
- Temporary Use By-law
- Temporary Use By-law Extension
- Zoning Compliance Review
- Draft Plan of Subdivision (Residential)
- Draft Plan of Subdivision (Non-Residential)
- Draft Plan of Subdivision Amendment (Not Draft Approved)
- Draft Plan of Subdivision Amendment (Major)
- Draft Plan of Subdivision Amendment (Minor)
- Request to Extend Draft Approval
- Final Approval, Subdivision/ Condominium Clearance
- Draft Plan of Condominium
- Development Block
- Lift Part-Lot Control
- Site Plan Complex/ Site Plan Amendment (Major)
- Site Plan Simple (Conversion/ Model Home/ Sales Trailer)
- Site Plan Amendment (Minor A)
- Site Plan Amendment (Minor B)
- Site Plan Amendment (Minor C)
- Site Plan Amendment (Minor D)
- Site Plan (Telecommunication Facility)
- Minor Variance
- Minor Variance (Special Hearing)
- Land Division Admin (Processing)
- Land Division Admin (Development Agreement)
- Property Info Request (Zoning, Building, Heritage, & By-law)
- Property Info Request (Legal Inquiry)
- Property Info Request (Release of Agreements)
- Sign By-law - Variance
- Tree Cutting Permit
- Tree Cutting Permit (Appeal to General Government Committee (G.G.C.))
- Street Addressing

- Street Naming Request
- OLT Appeals (Non-Committee of Adjustment (C.o.A.))
- Pre-Consultation
- Optional Review - Minor
- Optional Review - Comprehensive
- Heritage Permit
- Temporary Patio Permit

Development Engineering Applications

- Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading)
- Pre-servicing Agreement
- Erosion and Sediment Control Permit (Major)
- Erosion and Sediment Control Permit (Minor)
- Lot Grading Review (Infill Lots)
- Engineering Review & Inspection of Site Plan Agreement
- Landscape Architectural and Urban Design Review
- Request for Traffic Data and Turning Movement Counts
- Benchmarks

Economic Development Services

- Real Estate - Acquisition of Land
- Real Estate - Real Property Agreements (Easements)
- Real Estate - Real Property Agreements (Licence Agreements)
- Real Estate - Sale and Other Disposition of Land
- Business Official Opening
- Filming in Ajax
- Permission to Enter

Building Permits

- Group A/D/E (Shell)
- Group A (Finished)
- Group B (Finished)
- Group D (Finished)
- Group E (Finished)
- Group F (Shell)
- Group F (Finished)
- Group F (Parking, Unserviced Storage, & Farm)
- Residential Housing
- Residential Multi-Storey (<5 Storeys)
- Residential Multi-Storey (≥5 Storeys)
- Group A/B Alteration
- Group D Alteration
- Group E Alteration
- Group F Alteration
- Residential Accessory Apartment
- Residential Retrofit Accessory Apartment
- Residential Alterations (incl. finishing basement)
- Residential Minor (Garden Shed, Gazebo, Garage, Deck)
- Foundation & Unfinished Basement
- Below Grade Entrance
- Portables, Tents, Temporary Structures, & Electromagnetic Lock
- Retaining Wall
- Residential Service Connections & Backflow Prevention
- Site Servicing Permit
- Solar Panels
- Non-Residential (Other) (Balcony Guard Replacement/ Repair & Parking Structure Repair)
- Air Supported Structures
- Demolition
- Change of Use
- Signs

2.3 Application Processing Effort Cost Allocation

To capture each participating Town staff member's relative level of effort in processing development applications, process map templates were prepared for each of the above-referenced costing categories. These process map templates outline the process steps undertaken for an application in each development application costing category identified previously. The finalized process templates were circulated to Town staff and initial effort estimates were provided through workshops with Watson and internal business unit discussions.

The effort estimates received were applied against average annual application volumes to assess the average annual processing time per position spent on each development application category. Annual processing effort per staff position was measured against available processing capacity to determine overall service levels. The results of the initial capacity analysis were reviewed with Town staff. Effort estimates were subsequently refined to better reflect current staff utilization levels. These refinements provided for the recognition of efforts within the development application review processes ancillary to direct processing tasks, i.e., application oversight activities by departmental senior management and administration and enforcement activities under the authority of the *Building Code Act*. Multiple rounds of review of the staff effort estimates and capacity analysis were conducted with Town staff to ensure the reasonableness of the capacity utilization results. It is noted that the effort estimates captured through this exercise are reflective of the Town's current processing activities and current application characteristics.

2.3.1 Changes to Planning Application Processes in Response to Bill 109

On April 14, 2022, the Province gave Royal Assent to Bill 109 (*More Homes for Everyone Act*), which introduced changes to the *Planning Act* that come into force on January 1, 2023. These changes require municipalities to refund some or all of planning fees collected for select applications (zoning by-law amendment and site plan control) where a decision has not been reached within legislated timelines.

This review captured the processes employed by the Town in reviewing planning applications prior to Bill 109. Through discussions with Town staff, changes to the processing of affected applications in response to Bill 109 have been made. These changes are based on the existing processes and distribute the effort into distinct stages. These include mandatory pre-consultation phases, optional Town-run open houses, and the processing of an application, in addition to changes to clearing of conditions and the removal of holding provisions. These changes to the processing of applications lead to the reallocation of effort and generally result in minimal or no additional effort being required. Ultimately, the updated processes result in the creation of new costing categories that replace the existing categories, as detailed in Table 2-1.

Table 2-1
New Planning Costing Categories in Response to Bill 109

Existing Costing Category	New Costing Category
Official Plan Amendment (Simple)	OPA Simple - Pre-Consultation Phase 1
	OPA Simple - Pre-Consultation Phase 2
	OPA Simple - Town-led Open House (only if requested by applicant)
	OPA Simple - Application Processing
Official Plan Amendment (Complex)	OPA Complex - Pre-Consultation Phase 1
	OPA Complex - Pre-Consultation Phase 2
	OPA Complex - Town-led Open House (only if requested by applicant)
	OPA Complex - Application Processing
Zoning By-law Amendment (Simple)	ZBA Simple - Pre-Consultation Phase 1
	ZBA Simple - Pre-Consultation Phase 2
	ZBA Simple - Town-led Open House (only if requested by applicant)
	ZBA Simple - Application Processing
Zoning By-law Amendment (Complex)	ZBA Complex - Pre-Consultation Phase 1
	ZBA Complex - Pre-Consultation Phase 2
	ZBA Complex - Town-led Open House (only if requested by applicant)
	ZBA Complex - Application Processing
Joint Official Plan & Zoning By-law Amendments (Simple)	Joint OPA & ZBA Simple - Pre-Con Stage 1
	Joint OPA & ZBA Simple - Pre-Con Stage 2
	Joint OPA & ZBA Simple - Town-led Open House (only if requested by applicant)
	Joint OPA & ZBA Simple - Application Processing
Joint Official Plan & Zoning By-law Amendments (Complex)	Joint OPA & ZBA Complex - Pre-Con Stage 1
	Joint OPA & ZBA Complex - Pre-Con Stage 2
	Joint OPA & ZBA Complex - Town-led Open House (only if requested by applicant)
	Joint OPA & ZBA Complex - Application Processing
Removal of Holding Symbol	Removal of Holding Symbol
Temporary Use By-law	Temporary Use By-law
Temporary Use By-law Extension	Temporary Use By-law Extension
Site Plan Complex/ Site Plan Amendment (Major)	Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Phase 1
	Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Phase 2
	Site Plan Complex/ Site Plan Amendment (Major) - Application Processing
	Site Plan Complex/ Site Plan Amendment (Major) - Clearing of Conditions
Site Plan Simple (Conversion/ Model Home/ Sales Trailer)	Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Application Processing
	Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Clearing of Conditions[1]

[1] Also applies to Site Plan Amendment (Minor D)

2.3.2 Staff Capacity Utilization at Historical Volumes of Development Applications

The development application review process considered within this assessment involves, to varying degrees, staff from multiple departments across the organization. Initially, the development application processing effort estimates were evaluated against the Town's current business processes, 2018 to 2021 average application volumes and characteristics (2017 to 2021 for planning applications), and staffing levels currently in place across Town departments. Tables A-1, A-2, A-3, and A-4 provide the average annual volume of planning applications, development engineering applications, economic development services, and building permits by costing category, respectively.

Table 2-2 summarizes the number of full-time equivalent (F.T.E.) positions attributable to development application processes. In total, development application processing activities considered within the scope of this review consume approximately 32.2 F.T.E. positions annually across the organization. The majority of the staff effort is from:

- Planning: Approximately 10.2 F.T.E. positions within the department are utilized in the processing of planning applications.
- Building Approvals: Approximately 11.6 F.T.E. positions within the department are utilized in the processing of development applications, with the following break-down:
    - Building Activities: Approximately 11.4 F.T.E.s; and
    - Planning Activities: Approximately 0.2 F.T.E.s.
- Development Engineering: Approximately 3.5 F.T.E. positions within the department are utilized in the processing of development applications, with the following break-down:
    - Planning Activities: Approximately 1.5 F.T.E.s;
    - Development Engineering Activities: Approximately 1.7 F.T.E.s; and
    - Building Activities: Approximately 0.3 F.T.E.s.
- Transportation Planning: Approximately 1.1 F.T.E. positions within the department are utilized in the processing of planning applications.
- Fire Prevention: Approximately 1.3 F.T.E. positions within the department are utilized in the processing of development applications, with the following break-down:
    - Building Activities: Approximately 1.1 F.T.E.s; and
    - Planning Activities: Approximately 0.2 F.T.E.s.

- Economic Development: Approximately 0.4 F.T.E. positions within the department are utilized in the processing of economic development services.

Based on the historical volume of development applications and current staffing levels, the Town appears to be understaffed in the Building Approvals department. The department is approximately 0.4 F.T.E.s short of the resourcing required to process current (historical) annual volumes of building permit activity.

Table 2-2
Development Application F.T.E. Utilization by Department – at Historical Activity Volumes

Department	FTEs	Annual FTEs Utilized						
		Planning Application Activities	Development Engineering Activities	Economic Development Activities	Building Activities	Other Activities	Total	Difference
Planning & Development Services - Administration	2.00	0.02	-	0.02	0.33	1.64	**2.00**	**-**
Planning	20.00	10.20	0.00	0.01	0.04	9.75	**20.00**	**-**
Development Engineering	8.00	1.54	1.69	0.00	0.32	4.46	**8.00**	**-**
Transportation Planning	8.00	1.11	0.00	0.00	-	6.89	**8.00**	**-**
Building Approvals	12.00	0.17	-	0.02	11.44	0.78	**12.41**	**0.41**
Economic Development	4.00	0.02	-	0.38	-	3.60	**4.00**	**-**
Fire Prevention	7.00	0.19	-	0.01	1.14	5.66	**7.00**	**-**
Budgets & Accounting Services	8.00	0.10	0.07	0.00	-	7.84	**8.00**	**-**
Legislative Services	2.00	0.11	-	0.00	-	1.89	**2.00**	**-**
Technology and Innovation	1.00	0.02	0.00	0.00	-	0.98	**1.00**	**-**
By-law - Administration	7.00	0.05	-	0.01	-	6.95	**7.00**	**-**
General Operations - Infrastructure	3.00	0.13	-	-	-	2.87	**3.00**	**-**
General Operations - Building Maintenance	2.00	-	-	0.02	-	1.98	**2.00**	**-**
General Operations - Environmental Services	2.00	0.00	-	0.02	-	1.97	**2.00**	**-**
CAO's Office	1.00	0.00	-	-	-	1.00	**1.00**	**-**
Total	**87.00**	**13.66**	**1.75**	**0.49**	**13.27**	**58.24**	**87.41**	**0.41**

2.3.3 Building Permit Activity Projections

Building permit volumes and the staff effort required to process and administer those permit volumes are the main driving forces behind processing costs and consequently building permit fees. As such, consideration of the anticipated volume of building permit activity is required to identify how resources will be consumed across different permit categories and, therefore, where costs are generated. This analysis is especially important in the Town's case because of anticipated increases in new construction permits for select categories. Table 2-3 below provides a comparison of historical (2018-2021) and forecasted volumes of annual building permit activity for new construction permits. A description of how the forecast was developed is provided below the table.

Table 2-3
Historical and Forecasted Annual Building Permit Activity

Costing Category	Avg. Annual Permit Volume (2018-2021)	Avg. Annual Permit Volume (Forecast)
Group A (Finished)	0.8	0.9
Group B (Finished)	2.0	2.5
Group D (Finished)	1.0	1.1
Group E (Finished)	0.0	0.0
Group F (Finished)	13.0	49.3
Residential Housing	265.8	206.4
Residential Multi-Storey (≥5 Storeys)	0.5	2.1

The forecast of annual building permit volumes for select new construction costing categories was derived from the growth forecast developed as part of the Town's ongoing Development Charges Background Study. The annualized growth in residential units forecasted for the 2023-2028 period was compared to historical growth in residential units observed during the 2016-2021 period, by unit type. For non-residential development, the annualized employment growth forecasted for the 2023-2033 period was compared to historical employment growth observed during the 2016-2023 period, by employment category. The resultant ratios were applied to the average annual permit volumes observed during the 2018-2021 period to estimate the average annual permit volumes for the forecast period. It is estimated that the ratio of average annual permit volumes for the forecast period, relative to the historical period, will be as follows:

- Group A (Finished): 1.25 times the annual average observed over the 2018-2021 period;
- Group B (Finished): 1.25 times the annual average observed over the 2018-2021 period;
- Group D (Finished): 1.11 times the annual average observed over the 2018-2021 period;
- Group F (Finished): 3.79 times the annual average observed over the 2018-2021 period;
- Residential Housing: 0.78 times the annual average observed over the 2018-2021 period; and
- Residential Multi-Storey (≥5 Storeys): 4.27 times the annual average observed over the 2018-2021 period.

For all other costing categories, it has been assumed that annual building permit volumes over the forecast period will be consistent with volumes observed during the historical period (i.e., 2018 to 2021).

2.3.4 Staff Capacity Utilization at Forecast Volumes of Development Applications

Table 2-4 summarizes the staff capacity utilization and number of F.T.E. positions attributable to development application processes when adjusting for the forecasted increases in building permit volumes. The results of the capacity utilization forecast suggest that, relative to the current staff complement, the Town would need to increase staffing by approximately 4.8 F.T.E.s to address current staffing shortfalls and to accommodate future volumes of building permits.

Table 2-4
Development Application F.T.E. Utilization by Department – Forecast Volumes

Department	FTEs	Annual FTEs Utilized						
		Planning Application Activities	Development Engineering Activities	Economic Development Activities	Building Activities	Other Activities	Total	Difference
Planning & Development Services - Administration	2.00	0.02	-	0.02	0.34	1.64	**2.02**	**0.02**
Planning	20.00	10.20	0.00	0.01	0.06	9.75	**20.01**	**0.01**
Development Engineering	8.00	1.54	1.69	0.00	0.30	4.47	**8.00**	**-**
Transportation Planning	8.00	1.11	0.00	0.00	-	6.89	**8.00**	**-**
Building Approvals	12.00	0.17	-	0.02	14.69	0.78	**15.67**	**3.67**
Economic Development	4.00	0.02	-	0.38	-	3.60	**4.00**	**-**
Fire Prevention	7.00	0.19	-	0.01	2.22	5.66	**8.08**	**1.08**
Budgets & Accounting Services	8.00	0.10	0.07	0.00	-	7.84	**8.00**	**-**
Legislative Services	2.00	0.11	-	0.00	-	1.89	**2.00**	**-**
Technology and Innovation	1.00	0.02	0.00	0.00	-	0.98	**1.00**	**-**
By-law - Administration	7.00	0.05	-	0.01	-	6.95	**7.00**	**-**
General Operations - Infrastructure	3.00	0.13	-	-	-	2.87	**3.00**	**-**
General Operations - Building Maintenance	2.00	-	-	0.02	-	1.98	**2.00**	**-**
General Operations - Environmental Services	2.00	0.00	-	0.02	-	1.97	**2.00**	**-**
CAO's Office	1.00	0.00	-	-	-	1.00	**1.00**	**-**
Total	**87.00**	**13.66**	**1.75**	**0.49**	**17.62**	**58.26**	**91.78**	**4.78**

Based on the analysis presented in Table 2-4, the following observations are noted for select departments:

- Building Approvals: Staffing would need to be increased by approximately 3.7 F.T.E.s relative to current staffing levels to accommodate future volumes of building permits; and
- Fire Prevention: An additional 1.1 F.T.E.s would be required to meet increased demands on staff resulting from the expected increase in building permit activity.

2.4 Direct Costs

The following Town business units are directly involved in processing the development applications included in the review:

- Planning & Development Services - Administration
- Planning
- Development Engineering
- Transportation Planning
- Building Approvals
- Economic Development
- Fire Prevention
- Budgets & Accounting Services
- Legislative Services
- Technology and Innovation
- By-law - Administration
- General Operations - Infrastructure
- General Operations - Building Maintenance
- General Operations - Environmental Services
- CAO's Office

Based on the results of the resource capacity analysis summarized above, the proportionate share of each individual's direct costs was allocated to the respective development application categories. The Town's 2022 Operating Budget was used to generate the direct cost allocations within the model, including cost components such as:

- Labour costs (e.g., salary, wages, and benefits);
- Employee related costs (e.g., education, training, mileage, conferences, associations, subscriptions, etc.);
- Office supplies;
- Utilities;
- Vehicle & Equipment Maintenance.

2.5 Indirect Costs

An A.B.C. review includes not only the direct cost of providing service activities but also the indirect support costs that allow direct service business units to perform these functions. The method of allocation employed in this analysis is referred to as a step costing approach. Under this approach, support function and general corporate overhead functions are classified separate from direct service delivery departments. These indirect cost functions are then allocated to direct service delivery departments based on a set of cost drivers, which subsequently flow to the costing categories according to staff effort estimates.

Cost drivers are units of service that best represent the consumption patterns of indirect support and corporate overhead services by direct service delivery departments or business units. As such, the relative share of a cost driver (unit of service consumed) for a direct department determines the relative share of support/corporate overhead costs attributed to that direct service department. An example of a cost driver commonly used to allocate information technology support costs would be a department or business unit's share of supported personal computers. Cost drivers are used for allocation purposes acknowledging that these business units do not typically participate directly in the delivery of services, but that their efforts facilitate services being provided by the Town's direct business units.

Table 2-5 summarizes the support and corporate overhead functions included in the calculations and the cost drivers assigned to each function for cost allocation purposes. The indirect support and corporate overhead cost drivers used in the fees model reflect generally accepted practices within the municipal sector.

Table 2-5
Indirect Support and Corporate Overhead Functions and Cost Drivers

Cost Centre	Cost Driver
Human Resources	F.T.E.s
Technology and Innovation	Personal computers and laptops
Finance	Budget
Legislative Services	Budget
Mayor's Office & Council	Council Agenda Items
Payroll	Headcount
Insurance	Budget
Copy Room	Budget
Town Hall Maintenance	Space occupied at Town Hall
Fire Facility & Vehicle Maintenance	n/a (assigned to the Fire Department)
Building Approvals Vehicle Maintenance	n/a (assigned to the Building Approvals Department)

2.6 Capital Costs

Estimated annual lifecycle costs of assets commonly utilized to provide direct business unit services have been included in the full cost assessment. The annual lifecycle costs were estimated based on the replacement cost of the assets and the annual reinvestment rates suggested in the Canadian Infrastructure Report Card[1]. These lifecycle costs are then allocated across all development application categories based on the capacity utilization of direct business units.

Capital costs for the following departments/divisions were calculated:

- Town Hall space utilized by the Planning and Development Services division:
    - An annual lifecycle amount was assessed based on the portion of total gross floor area utilized by the division at a replacement value of $500 per square foot and annual reinvestment rate of 2.1%;
- Fire Headquarters space utilized by the Fire Prevention department:
    - An annual lifecycle amount was assessed based on the portion of total gross floor area utilized by the department at a replacement value of $685 per square foot and annual reinvestment rate of 2.1%; and

[1] Informing the Future: The Canadian Infrastructure Report Card, 2016 (https://www.pppcouncil.ca/web/pdf/infra_report_card_2016.pdf)

- Vehicles utilized by the Building Approvals, Development Engineering, and Fire Prevention departments:
    - An annual lifecycle amount was assessed based on the quantity of vehicles utilized by each department at a replacement value of $40,000 per vehicle amortized over a seven-year useful life.

The total annual lifecycle amount, as detailed above, was then distributed to each costing category based on staff resource capacity utilization.

Chapter 3
Cost Recovery Analysis and Fee Recommendations – Planning Applications

3. Cost Recovery Analysis and Fee Recommendations – Planning Applications

3.1 Planning Application Costing Results

As noted in the introduction, the *Planning Act* requires fees to be cost justified at the application type level. Application costs reflect the organizational direct, indirect, and capital costs based on 2022 budget estimates. Table 3-1 summarizes the average annual processing costs compared with average annual revenues derived from the Town's current fee structure and historical application volumes over the 2017 to 2021 period. The annual cost to the Town of processing planning applications—based on the new processes that have been implemented in response to Bill 109 (see Section 2.3.1)—has been estimated at $2.79 million. Direct service costs represent 67% ($1.87 million) of the total, with indirect and capital costs accounting for the remaining 33% ($0.92 million) of costs. The Town's current planning application fees are, in aggregate, recovering approximately 49% of average annual costs of service ($1.37 million).

Table 3-1
Planning Applications: Annual Costs of Processing and Cost Recovery Levels at Current Fees

Cost Component	
Direct Costs (SW&B)[A]	$1,637,102
Direct Costs (non-SW&B)[A]	$ 229,464
Total Direct Costs	**$1,866,566**
Indirect Costs	$ 889,828
Capital - Annual Lifecycle Costs	$ 31,754
Grand Total Costs	**$2,788,148**
Average Annual Revenue (at current fees)	**$1,369,928**
Cost Recovery Level (total costs)	49%

[A] "SW&B" means Salaries, Wages, and Benefits

Table 3-2 details the cost recovery level for each costing category. While there are some planning application types that are recovering more than the average costs of processing, the majority of application types are recovering less than 100% of full costs.

Table 3-2
Current Planning Application Cost Recovery Levels by Application Type

Application Type	Average Annual Revenue[2]	Average Annual Costs	Cost Recovery %
OPA Simple - Pre-Consultation Phase 1	$ 2,800	$ 3,296	85%
OPA Simple - Pre-Consultation Phase 2	$ 7,500	$ 12,246	61%
OPA Simple - Town-led Open House (only if requested by applicant)	$ -	$ 0	
OPA Simple - Application Processing	$ 19,766	$ 39,769	50%
OPA Complex - Pre-Consultation Phase 1	$ 4,900	$ 12,941	38%
OPA Complex - Pre-Consultation Phase 2	$ 13,125	$ 54,721	24%
OPA Complex - Town-led Open House (only if requested by applicant)	$ -	$ 0	
OPA Complex - Application Processing	$ 79,937	$ 182,966	44%
Regional OPA Review	$ 0	$ 0	
ZBA Simple - Pre-Consultation Phase 1	$ 6,300	$ 18,237	35%
ZBA Simple - Pre-Consultation Phase 2	$ 16,875	$ 28,170	60%
ZBA Simple - Town-led Open House (only if requested by applicant)	$ -	$ 0	
ZBA Simple - Application Processing	$ 27,434	$ 74,164	37%
ZBA Complex - Pre-Consultation Phase 1	$ 7,700	$ 27,531	28%
ZBA Complex - Pre-Consultation Phase 2	$ 20,625	$ 40,812	51%
ZBA Complex - Town-led Open House (only if requested by applicant)	$ -	$ 0	
ZBA Complex - Application Processing	$ 72,698	$ 96,642	75%
Joint OPA & ZBA Simple - Pre-Con Stage 1	$ -	$ -	
Joint OPA & ZBA Simple - Pre-Con Stage 2	$ -	$ -	
Joint OPA & ZBA Simple - Town-led Open House (only if requested by applicant)	$ -	$ -	
Joint OPA & ZBA Simple - Application Processing	$ -	$ -	
Joint OPA & ZBA Complex - Pre-Con Stage 1	$ -	$ -	
Joint OPA & ZBA Complex - Pre-Con Stage 2	$ -	$ -	
Joint OPA & ZBA Complex - Town-led Open House (only if requested by applicant)	$ -	$ -	
Joint OPA & ZBA Complex - Application Processing	$ -	$ -	
Removal of Holding Symbol	$ 8,625	$ 14,904	58%
Temporary Use By-law	$ -	$ 0	
Temporary Use By-law Extension	$ -	$ 0	
Zoning Compliance Review	$ 0	$ 0	
Draft Plan of Subdivision (Residential)	$ 49,242	$ 72,412	68%
Draft Plan of Subdivision (Non-Residential)	$ 4,514	$ 17,484	26%
Draft Plan of Subdivision Amendment (Not Draft Approved)	$ 0	$ 0	
Draft Plan of Subdivision Amendment (Major)	$ 0	$ 0	
Draft Plan of Subdivision Amendment (Minor)	$ 466	$ 2,360	20%
Request to Extend Draft Approval	$ 1,381	$ 4,733	29%
Final Approval, Subdivision/ Condominium Clearance	$ 7,680	$ 11,960	64%
Draft Plan of Condominium	$ 15,356	$ 37,704	41%
Development Block	$ 0	$ 0	
Lift Part-Lot Control	$ 25,460	$ 22,251	114%

Table 3-2 (continued)
Current Planning Application Cost Recovery Levels by Application Type

Application Type	Average Annual Revenue[2]	Average Annual Costs	Cost Recovery %
Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Application Processing	$ 17,988	$ 52,000	21%
Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Clearing of Conditions[1]	$ 11,400	$ 35,317	7%
Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Phase 1	$ 30,800	$ 135,492	23%
Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Phase 2	$ 82,500	$ 254,907	32%
Site Plan Complex/ Site Plan Amendment (Major) - Application Processing	$ 601,031	$ 564,741	106%
Site Plan Complex/ Site Plan Amendment (Major) - Clearing of Conditions	$ 74,800	$ 179,364	42%
Site Plan Amendment (Minor A)	$ 1,199	$ 26,173	5%
Site Plan Amendment (Minor B)	$ 5,368	$ 70,803	8%
Site Plan Amendment (Minor C)	$ 10,896	$ 77,120	14%
Site Plan Amendment (Minor D)	$ 8,997	$ 54,533	16%
Site Plan (Telecommunication Facility)	$ 4,797	$ 9,669	50%
Minor Variance	$ 45,838	$ 166,637	28%
Minor Variance (Special Hearing)	$ 0	$ 0	
Land Division Admin (Processing)	$ 20,778	$ 84,874	24%
Land Division Admin (Development Agreement)	$ 0	$ 0	
Property Info Request (Zoning, Building, Heritage, & By-law)	$ 11,616	$ 98,842	12%
Property Info Request (Legal Inquiry)	$ 1,996	$ 8,302	24%
Property Info Request (Release of Agreements)	$ 4,264	$ 16,099	26%
Sign By-law - Variance	$ 3,811	$ 2,930	130%
Tree Cutting Permit	$ 6,063	$ 30,540	20%
Tree Cutting Permit (Appeal to GGC)	$ 0	$ 0	
Street Addressing	$ 5,762	$ 5,006	115%
Street Naming Request	$ 380	$ 1,494	25%
OLT Appeals (Non-CoA)	$ 1,100	$ 6,420	17%
Pre-Consultation	$ 26,163	$ 108,249	24%
Optional Review - Minor	$ 0	$ 0	
Optional Review - Comprehensive	$ 0	$ 0	
Heritage Permit	$ -	$ 0	
Temporary Patio Permit	$ -	$ 23,334	0%
Total	**$ 1,369,928**	**$ 2,788,148**	**49%**

[1] Also applies to Site Plan Amendment (Minor D)

[2] Average annual revenue is calculated based on historical volumes and current rates

3.2 Recommended Fees

Fee structure recommendations were developed with regard to the cost/revenue impacts presented in Table 3-2. The fee structure recommendations are based on the A.B.C. model and historical average application characteristics underlying planning

applications. The complete recommended fee schedule is provided in Table 3-3. Proposed changes to the structure of existing fees and proposed new fees are summarized in Table 3-4. Appendix B contains a comparison of the Town's current planning application fees with selected comparator municipalities. This comparison was used in determining the market competitiveness of planning application fee recommendations.

Implementing the proposed fees would provide the Town with approximately $527,000 of additional revenue, which would increase the average annual cost recovery level for Planning applications from approximately 49% to 68%.

Table 3-3
Recommended Planning Application Fees

Costing Category	Current Fee	Full Cost Fee	Recommended Fee
OPA Simple - Pre-Consultation Phase 1	$ 2,800	$ 10,533	$ 3,296
OPA Simple - Pre-Consultation Phase 2	$ 7,500	$ 20,846	$ 12,246
OPA Simple - Town-led Open House (only if requested by	$ -	$ 10,024	$ 2,374
OPA Simple - Application Processing	$ 19,766	$ 39,769	$ 36,772
OPA Complex - Pre-Consultation Phase 1	$ 2,800	$ 10,533	$ 3,296
OPA Complex - Pre-Consultation Phase 2	$ 7,500	$ 20,846	$ 12,246
OPA Complex - Town-led Open House (only if requested by	$ -	$ 10,024	$ 2,374
OPA Complex - Application Processing	$ 45,678	$ 104,552	$ 96,674
Regional OPA Review	$ 6,555	$ 36,787	$ 18,390
ZBA Simple - Pre-Consultation Phase 1	$ 2,800	$ 10,533	$ 3,296
ZBA Simple - Pre-Consultation Phase 2	$ 7,500	$ 20,846	$ 12,246
ZBA Simple - Town-led Open House (only if requested by	$ -	$ 10,024	$ 2,374
ZBA Simple - Application Processing	$ 12,193	$ 32,962	$ 30,478
ZBA Complex - Pre-Consultation Phase 1	$ 2,800	$ 10,533	$ 3,296
ZBA Complex - Pre-Consultation Phase 2	$ 7,500	$ 20,846	$ 12,246
ZBA Complex - Town-led Open House (only if requested by	$ -	$ 10,024	$ 2,374
ZBA Complex - Application Processing	$ 26,436	$ 35,143	$ 32,495
Joint OPA & ZBA Simple - Pre-Con Stage 1		$ 10,533	$ 3,296
Joint OPA & ZBA Simple - Pre-Con Stage 2		$ 20,846	$ 12,246
Joint OPA & ZBA Simple - Town-led Open House (only if		$ 10,024	$ 2,374
Joint OPA & ZBA Simple - Application Processing		$ 59,571	$ 55,082
Joint OPA & ZBA Complex - Pre-Con Stage 1		$ 10,533	$ 3,296
Joint OPA & ZBA Complex - Pre-Con Stage 2		$ 20,846	$ 12,246
Joint OPA & ZBA Complex - Town-led Open House (only if		$ 10,024	$ 2,374
Joint OPA & ZBA Complex - Application Processing		$ 114,418	$ 103,657
Removal of Holding Symbol	$ 6,900	$ 11,923	$ 8,942
Temporary Use By-law	$ 12,193	$ 40,613	$ 30,478
Temporary Use By-law Extension	$ 2,766	$ 5,468	$ 5,468
Zoning Compliance Review	$ 1,400	$1,824 (ZBA, Site Plan, Site Plan Amendments Major & Minor D) $912 (Minor Site Plan, Site Plan Amendments Minor A, B, & C)	$1,824 (ZBA, Site Plan, Site Plan Amendments Major & Minor D) $912 (Minor Site Plan, Site Plan Amendments Minor A, B, & C)
Draft Plan of Subdivision (Residential)	$18,638.10 (Base) + $437.20 per unit (1-200) $218.70 per unit (201+)	$27,408 (Base) + $642.92 per unit (≤200) $321.61 per unit (201+)	$27,408 (Base) + $642.92 per unit (≤200) $321.61 per unit (201+)
Draft Plan of Subdivision (Non-Residential)	$ 18,057	$ 69,936	$ 69,936
Draft Plan of Subdivision Amendment (Not Draft Approved)	$ 9,087	$ 4,096	$ 4,096

Table 3-3 (continued)
Recommended Planning Application Fees

Costing Category	Current Fee	Full Cost Fee	Recommended Fee
Draft Plan of Subdivision Amendment (Major)	$ 9,316	Similar effort to a new Draft Plan of Sub. Set to 100% cost recovery and charge on similar basis to a new Draft Plan of Subdivision.	$21,059 (Base) + $493.99 per unit (≤200) $247.11 per unit (201+)
Draft Plan of Subdivision Amendment (Minor)	$ 1,866	$ 9,440	$ 5,664
Request to Extend Draft Approval	$ 1,381	$ 4,733	$ 4,733
Final Approval, Subdivision/ Condominium Clearance	$2,792.90 (Sub) $2,281.10 (Condo)	$4,349 (Sub) $3,433 (Condo)	$3,800 (Sub) $3,000 (Condo)
Draft Plan of Condominium	$ 12,285	$ 30,163	$ 19,606
Development Block	$ 18,638	$ 34,486	$ 27,589
Lift Part-Lot Control	$2,766.20 (Base) + $291.30 per unit (Maximum of $6,365)	$4,874 (Base) + $34.42 per unit (Maximum of $5,563)	$4,874 (Base) + $34.42 per unit (Maximum of $5,563)
Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Clearing of Conditions[1]	$ 2,400	$ 7,435	$ 6,875
Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Application Processing	$4,077.30 (Conversion) $3,496.40 (Model Homes/ Sales Trailers)	$ 10,947	$ 10,122
Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Phase 1	$ 2,800	$ 10,533	$ 3,296
Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Phase 2	$ 7,500	$ 20,846	$ 12,246
Site Plan Complex/ Site Plan Amendment (Major) - Clearing of Conditions	$ 6,800	$ 16,306	$ 16,306
Site Plan Complex/ Site Plan Amendment (Major) - Application Processing	$9,263.10 (Base) + $874.20 per unit (≤25) $677 per unit (26-100) $330.60 per unit (101-200) $176 per unit (>200) $96 per 100 m² GFA (Non-Res)	$4,675 (Base) + $441 per unit (≤25) $342 per unit (26-100) $167 per unit (101-200) $89 per unit (>200) $48 per 100 m² GFA (Non-Res)	$4,675 (Base) + $441 per unit (≤25) $342 per unit (26-100) $167 per unit (101-200) $89 per unit (>200) $48 per 100 m² GFA (Non-Res)
Site Plan Amendment (Minor A)	$ 533	$ 11,632	$ 750
Site Plan Amendment (Minor B)	$ 1,130	$ 14,906	$ 1,500
Site Plan Amendment (Minor C)	$ 2,564	$ 18,146	$ 2,600
Site Plan Amendment (Minor D)	$ 8,997	$ 54,533	$ 10,907
Site Plan (Telecommunication Facility)	$ 9,594	$ 19,338	$ 19,338

Table 3-3 (continued)
Recommended Planning Application Fees

Costing Category	Current Fee	Full Cost Fee	Recommended Fee
Minor Variance	$692.90 (Accessory building) $852.80 (Single, Semi, Duplex, Triplex, Town - 1 Variance) $1,066 (Single, Semi, Duplex, Triplex, Town - 2+ Variances) $1,812.20 (Condo, Apartment, or Mixed-Use - 1 Variance) $2,131.90 (Condo, Apartment, or Mixed-Use - 2-5 Variances) $319.80 (Condo, Apartment, or Mixed-Use - 6+ Variances, per) $2,131.90 (Non-Residential - 1 Variance) $4,050.60 (Non-Residential - 2-5 Variances) $319.80 (Non-Residential - 6+ Variances, per) $2,712.90 (Enlargement, Expansion, or Conversion of legal non-conforming)	$2,519 (Accessory building) $3,100 (Single, Semi, Duplex, Triplex, Town - 1 Variance) $3,875 (Single, Semi, Duplex, Triplex, Town - 2+ Variances) $6,588 (Condo, Apartment, or Mixed-Use - 1 Variance) $7,750 (Condo, Apartment, or Mixed-Use - 2-5 Variances) $1,163 (Condo, Apartment, or Mixed-Use - 6+ Variances, per) $7,750 (Non-Residential - 1 Variance) $4,400 (Non-Residential - 2-5 Variances) $1,163 (Non-Residential - 6+ Variances, per) $4,400 (Enlargement, Expansion, or Conversion of legal non-conforming)	$800 (Accessory building) $1,550 (Single, Semi, Duplex, Triplex, Town - 1 Variance) $1,938 (Single, Semi, Duplex, Triplex, Town - 2+ Variances) $3,294 (Condo, Apartment, or Mixed-Use - 1 Variance) $3,875 (Condo, Apartment, or Mixed-Use - 2-5 Variances) $581 (Condo, Apartment, or Mixed-Use - 6+ Variances, per) $3,875 (Non-Residential - 1 Variance) $4,400 (Non-Residential - 2-5 Variances) $581 (Non-Residential - 6+ Variances, per) $4,400 (Enlargement, Expansion, or Conversion of legal non-conforming)
Minor Variance (Special Hearing)	$ 4,381	$ 12,740	$ 8,865
Land Division Admin (Processing)	$ 2,681	$ 10,951	$ 3,285
Land Division Admin (Development Agreement)	$ 213	$ 7,936	$ 2,778
Property Info Request (Zoning, Building, Heritage, & By-law)	$128 (Zoning) $58.80 (All Others)	$1,089 (Zoning) $500 (All Others)	$327 (Zoning) $150 (All Others)
Property Info Request (Legal Inquiry)	$ 117	$ 488	$ 244
Property Info Request (Release of Agreements)	$ 267	$ 1,006	$ 503
Sign By-law - Variance	$ 1,386	$ 1,066	$ 1,066
Tree Cutting Permit	$ 933	$ 4,698	$ 1,410
Tree Cutting Permit (Appeal to GGC)	$ 784	$ 7,025	$ 4,215
Street Addressing	$445 (Base) + $56 per address	$342 (Base) + $19 per address	$342 (Base) + $19 per address
Street Naming Request	$ 169	$ 664	$ 664
OLT Appeals (Non-CoA)	$ 1,100	$ 6,420	$ 1,100

Table 3-3 (continued)
Recommended Planning Application Fees

Costing Category	Current Fee	Full Cost Fee	Recommended Fee
Pre-Consultation	$650 (Minor Variance, Land Division) $2,800 (Phase 1: All excluding Site Plan Amendments Minor A & B, Telecommunication Facility) $650 (Phase 2: Minor Site Plan, Site Plan Amendments Minor A, B, & C, Telecommunication Facility) $5,000 (Phase 2: All Others)	$ 9,413	$650 (Minor Variance, Land Division) $650 (Phase 1: Simple Site Plan, Site Plan Amendments Minor C & D) $3,296 (Phase 1: All others excluding Site Plan Amendments Minor A & B, Telecommunication Facility) $650 (Phase 2: Simple Site Plan, Site Plan Amendments Minor A, B, & C, Telecommunication Facility) $5,000 (Phase 2: Draft Plan of Subdivision/ Condominium, Site Plan Amendment Minor D) $12,246 (Phase 2: All Others)
Optional Review - Minor	$ 2,800	$ 4,852	$ 3,296
Optional Review - Comprehensive	$ 7,500	$ 16,174	$ 12,246
Heritage Permit	$ -	$ 2,804	$ -
Temporary Patio Permit	$ -	$ 1,333	$ -

Table 3-4
Additions/Changes to Planning Application Fee Structure

Application Type(s)	Description of Change
Official Plan Amendment (Simple & Complex) Zoning By-law Amendment (Simple & Complex)	Fee structure updated to reflect new processes being implemented by the Town – i.e., a two-stage pre-consultation, an optional Town-run Open House, and application processing.
Joint Official Plan & Zoning By-law Amendments (Simple & Complex)	New fees introduced for Official Plan Amendment & Zoning By-law Amendment applications being submitted concurrently.
Zoning Compliance Review	Differentiated fees by type of compliance review.
Site Plan Simple (Conversion/ Model Home/ Sales Trailer)	Fee structure updated to reflect new processes being implemented by the Town – i.e., application processing and clearing of conditions, and the harmonization of fees for all simple Site Plan applications. Clearing of conditions fee also applies to Site Plan Amendment (Minor D).
Site Plan Complex/ Site Plan Amendment (Major)	Fee structure updated to reflect new processes being implemented by the Town – i.e., a two-stage pre-consultation, an optional Town-run Open House, application processing, and clearing of conditions.

Chapter 4
Cost Recovery Analysis and Fee Recommendations – Development Engineering

4. Cost Recovery Analysis and Fee Recommendations – Development Engineering

4.1 Development Engineering Application Costing Results

Development Engineering application costs reflect the organizational direct, indirect, and capital costs based on 2022 budget estimates. Table 4-1 summarizes the average annual costs to process development engineering applications at historical application volumes as identified by Town staff. The annual cost to the Town of processing development engineering applications has been estimated at approximately $322,600. Direct service costs represent 60% ($194,600) of the total, with indirect and capital costs accounting for the remaining 40% ($128,000) of costs. The Town's current development engineering application fees are, in aggregate, recovering approximately 106% of average annual costs of service ($342,300).

Table 4-1
Current Development Engineering Application Cost Recovery Levels

Cost Component	
Direct Costs (SW&B)[A]	$ 179,536
Direct Costs (non-SW&B)[A]	$ 15,033
Total Direct Costs	**$ 194,570**
Indirect Costs	$ 119,676
Capital - Annual Lifecycle Costs	$ 8,339
Grand Total Costs	**$ 322,585**
Average Annual Revenue (at current fees)	**$ 342,260**
Cost Recovery Level (total costs)	106%

[A] "SW&B" means Salaries, Wages, and Benefits

Table 4-2 details the annual cost of service by costing category. While there are some application types that are recovering less than the average costs of processing, the application types with the largest share of revenues are recovering more than 100% of full costs.

Table 4-2
Development Engineering Applications: Annual Costs of Processing

Application Type	Average Annual Revenue[1]	Average Annual Costs	Cost Recovery %
Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading)	$ 108,078	$ 84,144	128%
Pre-servicing Agreement	$ 1,535	$ 1,544	99%
Erosion and Sediment Control Permit (Major)	$ 5,801	$ 22,732	26%
Erosion and Sediment Control Permit (Minor)	$ -	$ 0	
Lot Grading Review (Infill Lots)	$ 8,358	$ 8,491	98%
Engineering Review & Inspection of Site Plan Agreement	$ 218,488	$ 205,674	106%
Landscape Architectural and Urban Design Review	$ 0	$ 0	
Request for Traffic Data and Turning Movement Counts	$ 0	$ 0	
Benchmarks	$ 0	$ 0	
Total	**$ 342,260**	**$ 322,585**	**106%**

[1] Average annual revenue is calculated based on historical volumes and current rates

4.2 Recommended Fees

Fee structure recommendations were developed in light of the full cost of service, as summarized in Table 4-2. The fee structure recommendations presented below are based on the A.B.C. model and historical average application characteristic underlying development engineering applications. The complete recommended fee schedule is provided in Table 4-3. Proposed changes to the structure of existing fees and proposed new fees are summarized in Table 4-4. Appendix B contains a comparison of the Town's current development engineering application fees with selected comparator municipalities. This comparison was used in determining the market competitiveness of development engineering application fee recommendations.

Implementing the proposed fees would reduce annual revenues by approximately $19,900, which would align annual revenues and the annual costs of processing applications, on average.

Table 4-3
Recommended Development Engineering Application Fees

Costing Category	Current Fee	Full Cost Fee	Recommended Fee
Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading)	% of Value of Securities 7.8% ($13k to <$500k) 6.4% ($500k to $1m) 5.6% (>$1m) $1,045 (<$13k)	% of Value of Infrastructure 6.1% ($13k to <$500k) 5.0% ($500k to $1m) 4.4% (>$1m) $814 per Lot (<$13k)	% of Value of Infrastructure 6.1% ($13k to <$500k) 5.0% ($500k to $1m) 4.4% (>$1m) $814 per Lot (<$13k)
Pre-servicing Agreement	$ 1,919	$ 1,930	$ 1,930
Erosion and Sediment Control Permit (Major)	$607.70 + $117.40 per ha	$1,962 + $879 per ha	$1,962 + $879 per ha
Erosion and Sediment Control Permit (Minor)	$ -	$ 1,903	$ 1,903
Lot Grading Review (Infill Lots)	$1,044.70 (Securities <$13k)	$ 1,061	$ 1,061
Engineering Review & Inspection of Site Plan Agreement	% of Value of Securities 6.7% ($13k to <$500k) 6.0% ($500k+) $1,045 (<$13k)	% of Value of Infrastructure 6.3% ($13k to <$500k) 5.6% (>$500k) $984 (<$13k)	% of Value of Infrastructure 6.3% ($13k to <$500k) 5.6% (>$500k) $984 (<$13k)
Landscape Architectural and Urban Design Review	$1,001.60 (Value of Securities <$13k) 6.4% Value of Securities (≥$13k)	% of Value of Urban Design Elements 2.1% (≥$13k) $330 (<$13k)	% of Value of Urban Design Elements 2.1% (≥$13k) $330 (<$13k)
Request for Traffic Data and Turning Movement Counts	$ 56	$ 233	$ 233
Benchmarks	$766 per 200 lots	$15.47 per Lot	$15.47 per Lot

Table 4-4
Additions/Changes to Development Engineering Application Fee Structure

Application Type(s)	Description of Change
Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading) Engineering Review & Inspection of Site Plan Agreement	Change from charging based on the percentage of the value of securities to the percentage of the value of infrastructure.
Landscape Architectural and Urban Design Review	Change from charging based on the percentage of the value of securities to the percentage of the value of urban design elements.
Erosion and Sediment Control Permit (Minor)	New fee introduced to differentiate minor and major sediment control permits.
Benchmarks	Change from charging per 200 lots to per lot.

Chapter 5
Cost Recovery Analysis and Fee Recommendations – Economic Development Services

5. Cost Recovery Analysis and Fee Recommendations – Economic Development Services

5.1 Economic Development Services Costing Results

Economic development services costs reflect the organizational direct, indirect, and capital costs based on 2022 budget estimates. Table 5-1 summarizes the average annual costs to process economic development services at historical application volumes as identified by Town staff. The annual cost to the Town of processing economic development services has been estimated at approximately $117,000. Direct service costs represent 87% ($101,700) of the total, with indirect and capital costs accounting for the remaining 13% ($15,300) of costs. The Town's current economic development services fees are, in aggregate, recovering approximately 7% of average annual costs of service ($8,500).

Table 5-1
Current Economic Development Services Cost Recovery Levels

Cost Component	
Direct Costs (SW&B)[A]	$ 91,224
Direct Costs (non-SW&B)[A]	$ 10,445
Total Direct Costs	**$101,668**
Indirect Costs	$ 14,177
Capital - Annual Lifecycle Costs	$ 1,138
Grand Total Costs	**$116,983**
Average Annual Revenue (at current fees)	**$ 8,528**
Cost Recovery Level (total costs)	7%

[A] "SW&B" means Salaries, Wages, and Benefits

Table 5-2 details the annual cost of service by costing category. There are some types of economic development services where fees are not currently imposed, and all fees collected are recovering less than 100% of full costs.

Table 5-2
Economic Development Services: Annual Costs of Processing

Application Type	Average Annual Revenue[1]	Average Annual Costs	Cost Recovery %
Real Estate - Acquisition of Land	$ -	$ 6,051	0%
Real Estate - Real Property Agreements (Easements)	$ 2,665	$ 37,514	7%
Real Estate - Real Property Agreements (Licence Agreements)	$ 2,665	$ 21,217	13%
Real Estate - Sale and Other Disposition of Land	$ -	$ 3,127	0%
Business Official Opening	$ -	$ 19,598	0%
Filming in Ajax	$ 2,399	$ 25,254	9%
Permission to Enter	$ 800	$ 4,222	19%
Total	**$ 8,528**	**$ 116,983**	**7%**

[1] Average annual revenue is calculated based on historical volumes and current rates

5.2 Recommended Fees

Fee structure recommendations were developed with regard to the cost/revenue impacts presented in Table 5-2. The fee structure recommendations are based on the A.B.C. model and historical average application characteristics underlying planning applications. The complete recommended fee schedule is provided in Table 5-3. Proposed changes to the structure of existing fees and proposed new fees are summarized in Table 5-4. Appendix B contains a comparison of the Town's current economic development service fees with selected comparator municipalities. This comparison was used in determining the market competitiveness of economic development service fee recommendations.

Implementing the proposed fees would provide the Town with approximately $15,900 of additional revenue, which would increase the average annual cost recovery level for economic development services from 7% to 21%.

Table 5-3
Recommended Economic Development Services Fees

Costing Category	Current Fee	Full Cost Fee	Recommended Fee
Real Estate - Acquisition of Land	$ -	$ 4,034	$ -
Real Estate - Real Property Agreements (Easements)	$ 533	$ 7,503	$ 1,700
Real Estate - Real Property Agreements (Licence Agreements)	$ 533	$ 4,243	$ 1,700
Real Estate - Sale and Other Disposition of Land	$ -	$ 3,127	$ 1,700
Business Official Opening	$ -	$ 933	$ -
Filming in Ajax	$ 267	$ 2,806	$ 500
Permission to Enter	$ 160	$ 844	$ 250

Table 5-4
Additions/Changes to Economic Development Services Fee Structure

Application Type(s)	Description of Change
Real Estate - Sale and Other Disposition of Land	New fee introduced.

Chapter 6
Cost Recovery Analysis and Fee Recommendations – Building Permits

6. Cost Recovery Analysis and Fee Recommendations – Building Permits

6.1 Building Code Act Reserve Fund Design

Building Code Act municipal financial reporting regulations recognize the legitimacy of creating a municipal reserve fund(s) to manage Building Code responsibilities. While the Act does not prescribe a specific methodology for determining an appropriate reserve fund target, municipalities have developed building permit reserve fund policies to provide service stabilization. The Town currently has a Building Permit Reserve Fund with an estimated 2022 opening balance of approximately $2.93 million.

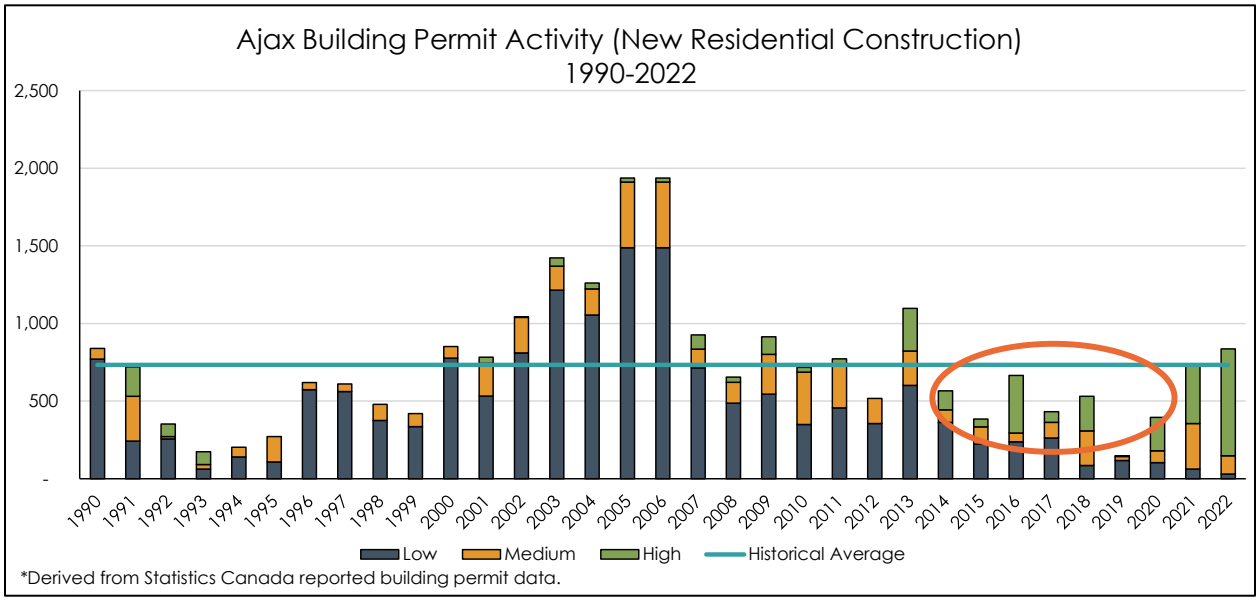
Reserve funds should be developed to reduce the staffing and budgetary challenges associated with cyclical economic downturns and the requirement for ongoing legislative turnaround time compliance. Without such a reserve fund, reduced permit volumes during a downturn could result in severe budgetary pressures and the loss of certified Town building staff, which would be difficult to replace during the subsequent recovery when mandatory permit processing turnaround times apply. A reserve fund stabilization policy would provide the Town with the ability to retain qualified staff during a future economic downturn while minimizing the impact on the general tax levy.

It is common practice for municipalities to set a target reserve fund balance that is some multiple of annual direct costs. To develop a target multiple of building permit costs that the building permit reserve fund should reach, the Town's residential building permit activity over a 33-year period (1990 to 2022) was examined. Figure 6-1 presents this historical residential building permit activity and identifies a recent 7-year time horizon where annual permit volume was lower than the prevailing 33-year annual average.

In comparing this downturn in building permit activity to the 33-year average annual permit volume, approximately 2.75 years of cumulative permit volumes were lost. To ensure that sufficient reserves are established for these purposes, the Town could accumulate a reserve balance equivalent to 2.75 years of direct building permit processing costs. Based on discussion with Town staff, it was determined that the Town's existing policy of targeting 2.45 times annual direct costs should be maintained.

Based on the modelled annual direct building permit processing costs of approximately $2.29 million (as detailed in Section 6.2), the building permit reserve fund target should be approximately $5.61 million. In order to achieve this reserve fund target over 5 years, the Town would need to incorporate annual reserve fund contributions of approximately $537,000 into the full cost definition and the resultant fee structure.

Figure 6-1
Historical Residential Building Permit Activity



6.2 Building Permit Costing Results

Building Permit costs reflect the organizational direct, indirect, and capital costs based on 2022 budget estimates. Table 6-1 summarizes the average annual processing costs associated with building permit activities at forecasted volumes (as identified in Section 2.3.3), compared to the average annual revenues that would be expected at current building permit fees. The average annual cost to the Town of processing building permits has been estimated at $2.98 million, for a total of $3.52 million when including the annual contribution towards the Building Permit Reserve Fund. Direct service costs represent 65% ($2.29 million) of the total, with indirect costs, capital costs, and the reserve fund contribution accounting for the remaining 35% ($1.23 million) of costs. At the forecast volumes of annual building permit activity, the Town's current building permit fees would, in aggregate, be recovering approximately 122% of annual costs of service ($4.30 million).

Table 6-1
Building Permits: Annual Costs of Processing and Recovery Levels at Current Fees

Cost Component	
Direct Costs (SW&B)[A]	$ 2,175,888
Direct Costs (non-SW&B)[A]	$ 115,456
Total Direct Costs	**$ 2,291,344**
Indirect Costs	$ 574,971
Capital - Annual Lifecycle Costs	$ 113,077
Building Permit RF Annual Contribution	$ 537,053
Grand Total Costs	**$ 3,516,445**
Average Annual Revenue (at current fees)	**$ 4,300,961**
Cost Recovery Level (total costs)	122%

[A] "SW&B" means Salaries, Wages, and Benefits

Table 6-2 details the levels of cost recovery—regarding total direct, indirect, and capital costs—for each costing category. The following observations regarding cost recovery levels for different costing categories are provided:

- Non-residential Group A (Finished) and Group B (Finished) permits recover approximately 105% and 134% of total annual costs of processing, respectively.
- Non-residential Group F Shell, Finished, Parking/Unserviced Storage/Farm, and Alteration permits each recover well over total annual costs of processing.
- Residential Housing permits (Single Family, Semi-detached, Row, and Townhouse dwelling units) recover approximately 108% of total annual costs of processing.
- Residential Multi-Storey Apartment permits greater than four storeys recover well over total annual costs of processing.
- Site Servicing permits recover well over total annual costs of processing.
- Revenues generated from all other permit types, in aggregate, provide approximately 28% recovery of total annual costs of processing.

Table 6-2
Current Building Permit Cost Recovery Levels by Costing Category

Application Type	Average Annual Revenue[1]	Average Annual Costs[2]	Cost Recovery %
Group A/D/E (Shell)		$ 0	
Group A (Finished)	$ 12,024	$ 11,452	105%
Group B (Finished)	$ 249,172	$ 185,986	134%
Group D (Finished)	$ 2,647	$ 7,304	36%
Group E (Finished)		$ 0	
Group F (Shell)	$ 67,281	$ 17,769	379%
Group F (Finished)	$ 2,213,167	$ 1,123,527	197%
Group F (Parking, Unserviced Storage, & Farm)	$ 16,437	$ 3,411	482%
Residential Housing	$ 552,897	$ 509,707	108%
Residential Multi-Storey (<5 Storeys)		$ 0	
Residential Multi-Storey (≥5 Storeys)	$ 618,458	$ 96,773	639%
Group A/B Alteration	$ 29,751	$ 50,144	59%
Group D Alteration	$ 26,724	$ 41,568	64%
Group E Alteration	$ 33,434	$ 56,521	59%
Group F Alteration	$ 74,559	$ 22,290	334%
Residential Accessory Apartment	$ 60,228	$ 173,053	35%
Residential Retrofit Accessory Apartment	$ 3,149	$ 33,024	10%
Residential Alterations (incl. finishing basement)	$ 56,824	$ 248,504	23%
Residential Minor (Garden Shed, Gazebo, Garage, Deck)	$ 22,780	$ 216,382	11%
Foundation & Unfinished Basement		$ 0	
Below Grade Entrance	$ 20,925	$ 63,924	33%
Portables, Tents, Temporary Structures, & Electromagnetic Lock	$ 3,975	$ 21,935	18%
Retaining Wall	$ 41	$ 5,476	1%
Residential Service Connections & Backflow Prevention	$ 3,082	$ 9,315	33%
Site Servicing Permit	$ 215,119	$ 16,222	1326%
Solar Panels	$ 871	$ 9,226	9%
Non-Residential (Other) (Balcony Guard Replacement/ Repair & Parking Structure Repair)	$ 2,979	$ 8,692	34%
Air Supported Structures		$ 0	
Demolition	$ 812	$ 8,152	10%
Change of Use	$ 0	$ 0	
Signs	$ 13,625	$ 39,036	35%
Total	**$ 4,300,961**	**$ 2,979,392**	**144%**

[1] Average annual revenue is calculated based on forecasted volumes and current rates

[2] Average annual costs do not include recommended annual contributions to the Building Permit Reserve Fund

6.3 Recommended Fees

Fee structure recommendations were developed with regard to the cost revenue impacts presented in Table 6-2. The fee structures presented below are based on the A.B.C. model and historical average application characteristic underlying building permits. The complete recommended fee schedule is provided in Table 6-3. The recommended fees were designed to reduce overall building permit fee revenues to full cost recovery levels. This was achieved by decreasing the over-recovering permit fees

while maintaining all other fees. Appendix B contains a comparison of the Town's current building permit fees with selected comparator municipalities.

Implementing the proposed fees would reduce annual revenues by approximately $0.78 million, which would align annual revenues and total annual costs, on average.

Furthermore, it is recommended that the Town begin indexing building permit fees annually, beginning in 2024, based on an index such as the Consumer Price Index. It is noted that the Town could establish its own index to track the escalation of labour costs (HR Cost Index) and use that for indexation of building permit fees instead. As shown in Table 6-1, salaries, wages and benefits of staff directly involved in building permit processing activities represent approximately 73% of total costs of service (excluding annual contribution to the building permit reserve fund). The HR Cost Index would be a more accurate measure of the inflationary pressures affecting this significant cost component.

Table 6-3
Recommended Building Permit Fees

Costing Category	Charging Parameter	Current Fee	Full Cost Fee	Recommended Fee
Group A/D/E (Shell)	per m²	$ 10.00	$ 5.20 per m²	$ 8.23
Group A (Finished)	per m²	$ 17.00	$ 16.19 per m²	$ 16.49
Group B (Finished)	per m²	$ 18.00	$ 13.44 per m²	$ 14.98
Group D (Finished)	per m²	$ 14.00	$ 38.63 per m²	$ 14.00
Group E (Finished)	per m²	$ 13.00	$ 16,429 per permit	$ 13.00
Group F (Shell)	per m²	$ 7.00	$ 1.85 per m²	$ 5.67
Group F (Finished)	per m²	$ 9.00	$ 4.57 per m²	$ 7.53
Group F (Parking, Unserviced Storage, & Farm)	per m²	$5 (Unserviced Storage) $4 (Parking & Farm)	$ 0.83 per m²	$4.4 (Unserviced Storage) $3.5 (Parking & Farm)
Residential Housing	per m²	$ 13.50	$ 12.45 per m²	$ 12.98
Residential Multi-Storey (<5 Storeys)	per m²	$ 13.50	$ 26,861 per permit	$ 10.41
Residential Multi-Storey (≥5 Storeys)	per m²	$ 13.50	$ 2.11 per m²	$ 7.84
Group A/B Alteration	per m²	$8 (Group A) $6.3 (Group B)	$ 13.48 per m²	$8 (Group A) $6.3 (Group B)
Group D Alteration	per m²	$ 7.10	$ 11.04 per m²	$ 7.10
Group E Alteration	per m²	$ 5.14	$ 8.69 per m²	$ 5.14
Group F Alteration	per m²	$ 4.74	$ 1.42 per m²	$ 4.16
Residential Accessory Apartment	per m²	$ 8.81	$ 2,156 per permit	$ 8.81
Residential Retrofit Accessory Apartment	Flat	$ 134	$ 1,405 per permit	$ 134
Residential Alterations (incl. finishing basement)	per m²	$ 6.52	$ 2,166 per permit	$ 6.52
Residential Minor (Garden Shed, Gazebo, Garage, Deck)	Flat	$ 134	$ 1,273 per permit	$ 134
Foundation & Unfinished Basement	per m²	$ 4.00	$ 578 per permit	$ 4.00
Below Grade Entrance	Flat	$ 300	$ 916 per permit	$ 300
Portables, Tents, Temporary Structures, & Electromagnetic Lock	Flat	$300 (Portable, Tent, Temp.) $200 each (Electromagnetic) $500 (Temp. Sales Struct.)	$ 1,655 per permit	$300 (Portable, Tent, Temp.) $200 each (Electromagnetic) $500 (Temp. Sales Struct.)

Table 6-3 (continued)
Recommended Building Permit Fees

Costing Category	Charging Parameter	Current Fee	Full Cost Fee	Recommended Fee
Retaining Wall	per linear m	$ 11.00	$ 1,460 per permit	$ 11.00
Residential Service Connections & Backflow Prevention	per lot	$ 134	$ 405 per permit	$ 134
Site Servicing Permit	% of CV	2.50%	$ 1,664 per permit	1.61%
Solar Panels	Flat	$134 (Indiv. Dwelling) $434 (All Other)	$ 1,419 per permit	$134 (Indiv. Dwelling) $434 (All Other)
Non-Residential (Other) (Balcony Guard Replacement/ Repair & Parking Structure Repair)	per Unit of Measure	$1.5 per linear m (Balcony Guard) $1 per m² (Parking)	$ 891 per permit	$1.5 per linear m (Balcony Guard) $1 per m² (Parking)
Air Supported Structures	per m²	$ 4.00	$ 2,118 per permit	$ 4.00
Demolition	per m²	$ 0.23	$ 932 per permit	$ 0.23
Change of Use	Flat	$ 300	$ 1,396 per permit	$ 300
Signs	per Sign	$ 250	$ 716 per permit	$ 250

Chapter 7
Conclusions

7. Conclusions

Summarized in this technical report is the legislative context for the development application fees review, the methodology and approach undertaken, A.B.C. full cost of service results, fee structure recommendations, and associated impacts on the Town's financial position. In developing the recommended fee structure, careful consideration was given to affordability, market competitiveness, and to the recent trends pertaining to development application fees, including recent comments of the OLT.

Fee recommendations, as investigated through this review, are representative of the true costs of service based on current processing efforts of Town staff. The immediate full implementation of these recommendations would be compliant with all applicable legislation as well as industry best practices related to the regular review of fees to ensure alignment with costs of service.

The intent of the fees review is to provide the Town with a recommended fee structure for Council's consideration to appropriately recover the service costs from benefiting applicants. The Town will ultimately determine the level of cost recovery and implementation strategy that is suitable for its objectives.

Appendix A –
Historical Volumes

Table A-1
Planning Application Historical Volumes

Costing Category	Historical Average Annual Volume
OPA Simple - Pre-Consultation Stage 1	1.00
OPA Simple - Pre-Consultation Stage 2	1.00
OPA Simple - Open House	0.00
OPA Simple - Application Processing	1.00
OPA Complex - Pre-Consultation Stage 1	1.75
OPA Complex - Pre-Consultation Stage 2	1.75
OPA Complex - Open House	0.00
OPA Complex - Application Processing	1.75
Regional OPA Review	0.00
ZBA Simple - Pre-Consultation Stage 1	2.25
ZBA Simple - Pre-Consultation Stage 2	2.25
ZBA Simple - Open House	0.00
ZBA Simple - Application Processing	2.25
ZBA Complex - Pre-Consultation Stage 1	2.75
ZBA Complex - Pre-Consultation Stage 2	2.75
ZBA Complex - Open House	0.00
ZBA Complex - Application Processing	2.75
Joint OPA & ZBA Simple - Pre-Con Stage 1	-
Joint OPA & ZBA Simple - Pre-Con Stage 2	-
Joint OPA & ZBA Simple - Open House	-
Joint OPA & ZBA Simple - Application Processing	-
Joint OPA & ZBA Complex - Pre-Con Stage 1	-
Joint OPA & ZBA Complex - Pre-Con Stage 2	-
Joint OPA & ZBA Complex - Open House	-
Joint OPA & ZBA Complex - Application Processing	-
Removal of Holding Symbol	1.25
Temporary Use By-law	0.00
Temporary Use By-law Extension	0.00
Zoning Compliance Review	0.00
Draft Plan of Subdivision (Residential)	1.00
Draft Plan of Subdivision (Non-Residential)	0.25
Draft Plan of Subdivision Amendment (Not Draft Approved)	0.00
Draft Plan of Subdivision Amendment (Major)	0.00
Draft Plan of Subdivision Amendment (Minor)	0.25
Request to Extend Draft Approval	1.00
Final Approval, Subdivision/ Condominium Clearance	2.75
Draft Plan of Condominium	1.25
Development Block	0.00

Table A-1 (continued)
Planning Application Historical Volumes

Costing Category	Historical Average Annual Volume
Lift Part-Lot Control	4.00
Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Clearing of Conditions	4.75
Site Plan Simple (Conversion/ Model Home/ Sales Trailer) - Application Processing	4.75
Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Stage 1	11.00
Site Plan Complex/ Site Plan Amendment (Major) - Pre-Consultation Stage 2	11.00
Site Plan Complex/ Site Plan Amendment (Major) - Clearing of Conditions	11.00
Site Plan Complex/ Site Plan Amendment (Major) - Application Processing	11.00
Site Plan Amendment (Minor A)	2.25
Site Plan Amendment (Minor B)	4.75
Site Plan Amendment (Minor C)	4.25
Site Plan Amendment (Minor D)	1.00
Site Plan (Telecommunication Facility)	0.50
Minor Variance	43.00
Minor Variance (Special Hearing)	0.00
Land Division Admin (Processing)	7.75
Land Division Admin (Development Agreement)	0.00
Property Info Request (Zoning, Building, Heritage, & By-law)	90.75
Property Info Request (Legal Inquiry)	17.00
Property Info Request (Release of Agreements)	16.00
Sign By-law - Variance	2.75
Tree Cutting Permit	6.50
Tree Cutting Permit (Appeal to GGC)	0.00
Street Addressing	11.50
Street Naming Request	2.25
OLT Appeals (Non-CoA)	1.00
Pre-Consultation	11.50
Optional Review - Minor	0.00
Optional Review - Comprehensive	0.00
Heritage Permit	0.00
Temporary Patio Permit	17.50

Table A-2
Development Engineering Application Historical Volumes

Costing Category	Historical Average Annual Volume
Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading)	1.60
Pre-servicing Agreement	0.80
Erosion and Sediment Control Permit (Major)	8.00
Erosion and Sediment Control Permit (Minor)	0.00
Lot Grading Review (Infill Lots)	8.00
Engineering Review & Inspection of Site Plan Agreement	8.00
Landscape Architectural and Urban Design Review	0.00
Request for Traffic Data and Turning Movement Counts	0.00
Benchmarks	0.00

Table A-3
Economic Development Services Historical Volumes

Costing Category	Historical Average Annual Volume
Real Estate - Acquisition of Land	1.50
Real Estate - Real Property Agreements (Easements)	5.00
Real Estate - Real Property Agreements (Licence Agreements)	5.00
Real Estate - Sale and Other Disposition of Land	1.00
Business Official Opening	21.00
Filming in Ajax	9.00
Permission to Enter	5.00

Table A-4
Building Permit Historical Volumes

Costing Category	Historical Average Annual Volume
Group A/D/E (Shell)	0.00
Group A (Finished)	0.75
Group B (Finished)	2.00
Group D (Finished)	1.00
Group E (Finished)	0.00
Group F (Shell)	1.00
Group F (Finished)	13.00
Group F (Parking, Unserviced Storage, & Farm)	0.25
Residential Housing	265.75
Residential Multi-Storey (<5 Storeys)	0.00
Residential Multi-Storey (≥5 Storeys)	0.50
Group A/B Alteration	17.25
Group D Alteration	19.25
Group E Alteration	28.75
Group F Alteration	7.50
Residential Accessory Apartment	80.25
Residential Retrofit Accessory Apartment	23.50
Residential Alterations (incl. finishing basement)	114.75
Residential Minor (Garden Shed, Gazebo, Garage, Deck)	170.00
Foundation & Unfinished Basement	0.00
Below Grade Entrance	69.75
Portables, Tents, Temporary Structures, & Electromagnetic Lock	13.25
Retaining Wall	3.75
Residential Service Connections & Backflow Prevention	23.00
Site Servicing Permit	9.75
Solar Panels	6.50
Non-Residential (Other) (Balcony Guard Replacement/ Repair & Parking Structure Repair)	9.75
Air Supported Structures	0.00
Demolition	8.75
Change of Use	0.00
Signs	54.50

Appendix B –
Market Comparison

Market Survey – Planning Application Fees

Costing Category	Current		Whitby			Pickering			Oshawa			Clarington		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Planning														
Official Plan Amendment (Simple)	Flat	$ 19,766	$24,835.79	Flat		$23,000.00	Flat	Minor	$25,000.00	Flat		$16,900.00	Flat	Minor
Official Plan Amendment (Complex)	Flat	$ 45,678	$37,546.20	Flat		$48,000.00	Flat	Major	$25,000.00	Flat		$24,760.00	Flat	Major
Regional OPA Review	Flat	$ 6,555				$13,800.00	Flat		$ 3,266.00	Flat		$ 3,040.00	Flat	
Zoning By-law Amendment (Simple)	Flat	$ 12,193	$14,855.11	Flat		$12,650.00	Flat	Minor	$10,444.00	Flat	Minor	$ 8,490.00	Flat	Minor
Zoning By-law Amendment (Complex)	Flat	$ 26,436	$27,588.70	Flat		$17,700.00	Base + per Unit/ha	+ $450/unit (Res, ≤25 units) + $910/ha (Non-Res)	$20,000.00	Flat	Major	$12,730.00	Flat	Major
Joint Official Plan & Zoning By-law Amendments (Simple)	Flat	$ 31,958	$39,737.26	Flat								$23,265.00	Flat	Minor
Joint Official Plan & Zoning By-law Amendments (Complex)	Flat	$ 72,114	$50,258.81	Flat								$31,125.00	Flat	Major
Removal of Holding Symbol	Flat	$ 6,900	$ 7,545.66	Flat		$ 3,450.00	Flat		$41,500.00	Flat		$ 2,940.00	Flat	
Zoning Compliance Review	Flat	$ 1,400												
Subdivision (Residential)	Base + per Unit	$18,638.10 (Base) + $437.20 per unit (1-200) $218.70 per unit (201+)	$41,472.45	Base + per Unit	+ $829/lot	$34,650.00	Base + per Unit	+ $560/unit (≤25) + $450/unit (26-100) + $355/unit (101-200) + $225/unit (200+)	$35,000.00	Base + per Unit	+ $450/unit (≤200) + $200/unit (201+)	$18,020.00	Base + per Unit	+ $300/unit & + $500/block
Subdivision (Non-Residential)	Base + per Unit	$ 18,057	$41,472.45	Flat								$ 7,460.00	Flat	
Subdivision Amendment (Not Draft Approved)	Flat	$ 9,087										$ 7,890.00	Flat	
Subdivision Amendment (Major)	Flat	$ 9,316	$ 7,131.75	Base + per Unit	+ $476/lot	$11,560.00	Base + per Unit	+ $560/unit (≤25) + $450/unit (26-100) + $355/unit (101-200) + $225/unit (200+)	$ 5,225.00	Flat		$ 9,960.00	Base + per Unit	+ $300/unit & + $500/block
Subdivision Amendment (Minor)	Flat	$ 1,866	$ 7,131.75	Base + per Unit	+ $309/lot				$ 5,225.00	Flat				
Request to Extend Draft Approval	Flat	$ 1,381												
Final Approval, Subdivision/ Condo Clearance	Flat	$2,792.90 (Sub) $2,281.10 (Condo)	$ 3,661.00	Flat		$ 1,300.00	Flat		$ 2,743.00	Flat		$ 2,870.00	Flat	
Condominium	Flat	$ 12,285	$ 9,904.52	Flat		$16,720.00	Flat		$15,000.00	Flat	Common Element	$ 8,210.00	Flat	
Development Block	Flat	$ 18,638												
Lift Part-Lot Control	Base + per Unit	$2,766.20 (Base) + $291.30 per unit (Maximum of $6,365)	$ 1,491.25	per Lot					$ 1,961.00	Flat		$ 1,130.00	Base + per Unit	+ $60/unit
Site Plan (Complex)	Base + per sq.m.	$9,263.10 (Base) + $874.20 per unit (≤25) $677 per unit (26-100) $330.60 per unit (101-200) $176 per unit (>200) $96 per 100 m² GFA (Non-Res)	$10,698.16	Base + per sq.m.	+ $5.24/sq.m. (Comm./Ind.)	$ 9,975.00	Base + per sq.m.	+ $3.32/sq.m. (Non-Res)	$ 5,500.00	Base + per sq.m.	+ $0.42/sq.m. (Non-Res)	$ 5,640.00	Base + per sq.m.	+ $1.50/sq.m. (Non-Res)

Costing Category	Current		Milton			Oakville			Richmond Hill		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Planning											
Official Plan Amendment (Simple)	Flat	$ 19,766							$33,296.00	Flat	
Official Plan Amendment (Complex)	Flat	$ 45,678	$47,036.00	Flat		$27,830.00	Flat		$56,104.00	Flat	
Regional OPA Review	Flat	$ 6,555	$30,998.00	Flat							
Zoning By-law Amendment (Simple)	Flat	$ 12,193							$ 8,656.00	Flat	Minor
Zoning By-law Amendment (Complex)	Flat	$ 26,436	$24,361.00	Base + per Unit	+ $577/unit (≤25) + $344/unit (26-100) + $208/unit (101+)	$27,830.00	Base + per Unit/sq.m.	Residential + $124/unit (≤25) + $99/unit (26-100) + $74/unit (101-200) + $50/unit (201+) Non-Residential + $0.64/sq.m.	$14,426.00	Flat	Major
Joint Official Plan & Zoning By-law Amendments (Simple)	Flat	$ 31,958									
Joint Official Plan & Zoning By-law Amendments (Complex)	Flat	$ 72,114				25%	% Discount				
Removal of Holding Symbol	Flat	$ 6,900	$ 4,049.00	Flat		$ 5,634.00	Flat		$ 2,326.00	Flat	
Zoning Compliance Review	Flat	$ 1,400									
Subdivision (Residential)	Base + per Unit	$18,638.10 (Base) + $437.20 per unit (1-200) $218.70 per unit (201+)	$53,760.00	Base + per Unit	+ $436/unit (≤25) + $259/unit (26-100) + $121/unit (101+)	$22,055.00	Base + per Unit	+ $684/unit (≤25) + $544/unit (26-100) + $411/unit (101-200) + $272/unit (201+)	$ 2,506.00	Base + per Unit	+ $612/unit
Subdivision (Non-Residential)	Base + per Unit	$ 18,057							$ 2,506.00	Base + per ha	+ $7,824/ha
Subdivision Amendment (Not Draft Approved)	Flat	$ 9,087									
Subdivision Amendment (Major)	Flat	$ 9,316							$ 1,691.00	Flat	
Subdivision Amendment (Minor)	Flat	$ 1,866				$ 5,316.00	Flat				
Request to Extend Draft Approval	Flat	$ 1,381				$ 8,673.00	Flat				
Final Approval, Subdivision/ Condo Clearance	Flat	$2,792.90 (Sub) $2,281.10 (Condo)				$ 8,673.00	Flat				
Condominium	Flat	$ 12,285	$53,760.00	Base + per Unit	Vacant Land Condo + $436/unit (≤25) + $259/unit (26-100) + $121/unit (101+)	$19,163.00	Base + per Unit	+ $989/unit	$ 6,243.00	Base + per Block/unit	+ $23,591/block + $1,860/unit (single/semi dwellings)
Development Block	Flat	$ 18,638									
Lift Part-Lot Control	Base + per Unit	$2,766.20 (Base) + $291.30 per unit (Maximum of $6,365)				$ 4,536.00	Base + per Lot	+ $232/Lot	$ 2,591.00	Flat	
Site Plan (Complex)	Base + per sq.m.	$9,263.10 (Base) + $874.20 per unit (≤25) $677 per unit (26-100) $330.60 per unit (101-200) $176 per unit (>200) $96 per 100 m² GFA (Non-Res)	$13,767.00	Base + per ha	+ $22,713/ha (Non-Res)	$12,556.00	Base + per sq.m.	+ $6.74/sq.m. (Non-Res) Agreement a separate fee	$ 2,807.00	Base + per ha	+ $1,137/ha (Non-Res)

Costing Category	Current		Whitby			Pickering			Oshawa			Clarington		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Planning														
Site Plan (Simple, Conversion/ Model Home/ Sales Trailer/ Pickering Beach)	Flat	$9,263.10 (Base) + $874.20 per unit (≤25) $677 per unit (26-100) $330.60 per unit (101-200) $176 per unit (>200) $96 per 100 m² GFA (Non-Res)	$ 832.27	Flat	Sales Trailer/ Model Home							$ 2,270.00	Flat	Sales Trailer/ Model Home
Site Plan Amendment (Major)	Flat	Full Site Plan Fee				$ 9,215.00	Flat		$ 4,000.00	Flat		$ 2,040.00	Base + per sq.m.	+ $1.50/sq.m. (Non-Res)
Site Plan Amendment (Minor A)	Flat	$ 533				$ 2,300.00	Flat		$ 4,000.00	Flat		$ 730.00	Flat	Minor
Site Plan Amendment (Minor B)	Flat	$ 1,130				$ 2,300.00	Flat		$ 4,000.00	Flat		$ 730.00	Flat	Minor
Site Plan Amendment (Minor C)	Flat	$ 2,564				$ 2,300.00	Flat		$ 4,000.00	Flat		$ 730.00	Flat	Minor
Site Plan Amendment (Minor D)	Flat	$ 8,997				$ 2,300.00	Flat		$ 4,000.00	Flat		$ 730.00	Flat	Minor
Telecommunication Facility	Flat	$ 9,594				$ 8,910.00	Flat		$ 6,528.00	Flat		$ 9,010.00	Flat	
Minor Variance	Flat	$692.90 (Accessory building) $852.80 (Single, Semi, Duplex, Triplex, Town - 1 Variance) $1,066 (Single, Semi, Duplex, Triplex, Town - 2+ Variances) $1,812.20 (Condo, Apartment, or Mixed-Use - 1 Variance) $2,131.90 (Condo, Apartment, or Mixed-Use - 2-5 Variances) $319.80 (Condo, Apartment, or Mixed-Use - 6+ Variances, per) $2,131.90 (Non-Residential - 1 Variance) $4,050.60 (Non-Residential - 2-5 Variances) $319.80 (Non-Residential - 6+ Variances, per) $2,712.90 (Enlargement, Expansion, or Conversion of legal non-conforming)	$ 974.66	Flat	Residential	$ 920.00	Flat	Residential Minor	$ 782.00	Flat	Single/Semi Detached, Duplex, or Townhouse (per lot)	$ 840.00	Flat	Residential Minor
Minor Variance (Special Hearing)	Flat	$ 4,381				$ 4,025.00	Flat		$ 1,564.00	Flat				
Land Division Admin (Processing)	Flat	$ 2,681							$ 787.00	Flat		$ 730.00	Flat	
Land Division Admin (Development Agreement)	Flat	$ 213										$ 680.00	Flat	
Property Info Request (Zoning, Building, Heritage, & By-law)	Flat	$128 (Zoning) $58.80 (All Others)										$ 190.00	Flat	
Property Info Request (Legal Inquiry)	Flat	$ 117										$ 190.00	Flat	
Property Info Request (Release of Agreements)	Flat	$ 267										$ 190.00	Flat	
Sign By-law - Variance	Flat	$ 1,386	$ 2,428.39	Flat					$ 724.00	Flat	Residential	$ 790.00	Flat	
Tree Cutting Permit	Flat	$ 933												
Tree Cutting Permit (Appeal to GGC)	Flat	$ 784												
Street Addressing	Base + per Address	$445 (Base) + $56 per address				$ 1,020.00	Flat							
Street Naming Request	Flat	$ 169				$ 1,020.00	Flat					$ 1,360.00	Base + per Address	+ $50/address
OLT Appeals (CoA)	Flat	$ 400												
OLT Appeals (All Other)	Flat	$ 1,100												

Costing Category	Current		Milton			Oakville			Richmond Hill		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Planning											
Site Plan (Simple, Conversion/ Model Home/ Sales Trailer/ Pickering Beach)	Flat	$9,263.10 (Base) + $874.20 per unit (≤25) $677 per unit (26-100) $330.60 per unit (101-200) $176 per unit (>200) $96 per 100 m² GFA (Non-Res)							$ 1,621.00	Flat	Single Detached Dwelling
Site Plan Amendment (Major)	Flat	Full Site Plan Fee							$ 2,807.00	Base + per ha	+ $1,137/ha (Non-Res)
Site Plan Amendment (Minor A)	Flat	$ 533									
Site Plan Amendment (Minor B)	Flat	$ 1,130									
Site Plan Amendment (Minor C)	Flat	$ 2,564									
Site Plan Amendment (Minor D)	Flat	$ 8,997									
Telecommunication Facility	Flat	$ 9,594	$ 5,125.00	Flat	Not Town Property						
Minor Variance	Flat	$692.90 (Accessory building) $852.80 (Single, Semi, Duplex, Triplex, Town - 1 Variance) $1,066 (Single, Semi, Duplex, Triplex, Town - 2+ Variances) $1,812.20 (Condo, Apartment, or Mixed-Use - 1 Variance) $2,131.90 (Condo, Apartment, or Mixed-Use - 2-5 Variances) $319.80 (Condo, Apartment, or Mixed-Use - 6+ Variances, per) $2,131.90 (Non-Residential - 1 Variance) $4,050.60 (Non-Residential - 2-5 Variances) $319.80 (Non-Residential - 6+ Variances, per) $2,712.90 (Enlargement, Expansion, or Conversion of legal non-conforming)	$ 2,799.00	Flat	Residential	$ 3,809.00	Flat		$ 4,418.00	Flat	
Minor Variance (Special Hearing)	Flat	$ 4,381									
Land Division Admin (Processing)	Flat	$ 2,681				$ 8,914.00	Base + per Lot	+ $4,457/Lot	$ 5,951.00	Flat	
Land Division Admin (Development Agreement)	Flat	$ 213									
Property Info Request (Zoning, Building, Heritage, & By-law)	Flat	$128 (Zoning) $58.80 (All Others)	$ 1,484.00								
Property Info Request (Legal Inquiry)	Flat	$ 117									
Property Info Request (Release of Agreements)	Flat	$ 267									
Sign By-law - Variance	Flat	$ 1,386	$ 4,291.00	Flat					$ 2,095.00	Flat	
Tree Cutting Permit	Flat	$ 933							$ 163.00	Flat	
Tree Cutting Permit (Appeal to GGC)	Flat	$ 784									
Street Addressing	Base + per Address	$445 (Base) + $56 per address	$ 1,410.00	Flat					$ 571.00	Flat	
Street Naming Request	Flat	$ 169							$ 1,809.00	Flat	
OLT Appeals (CoA)	Flat	$ 400									
OLT Appeals (All Other)	Flat	$ 1,100									

Costing Category	Current		Whitby			Pickering			Oshawa			Clarington		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Planning														
Pre-Consultation	Flat	$650 (Minor Variance, Land Division) $2,800 (Phase 1: All excluding Site Plan Amendments Minor A & B, Telecommunication Facility) $650 (Phase 2: Minor Site Plan, Site Plan Amendments Minor A, B, & C, Telecommunication Facility) $5,000 (Phase 2: All Others)	$ 607.10	Flat		$ 350.00	Flat		$ 1,750.00	Flat		$ 6,000.00	Flat	Two-stage
Commissioning Planning Applications	Flat	$ 27												
Heritage Permit	Flat	$ -												
Temporary Patio Permit	Flat	$ -												

Costing Category	Current		Milton			Oakville			Richmond Hill		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Planning											
Pre-Consultation	Flat	$650 (Minor Variance, Land Division) $2,800 (Phase 1: All excluding Site Plan Amendments Minor A & B, Telecommunication Facility) $650 (Phase 2: Minor Site Plan, Site Plan Amendments Minor A, B, & C, Telecommunication Facility) $5,000 (Phase 2: All Others)	$ 371.00	Flat		$ 311.00	Flat				
Commissioning Planning Applications	Flat	$ 27									
Heritage Permit	Flat	$ -									
Temporary Patio Permit	Flat	$ -									

Market Survey – Development Engineering Application Fees

Costing Category	Current		Whitby			Pickering			Oshawa			Clarington		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Development Engineering														
Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading)	% of Value of Securities	% of Value of Securities 7.8% ($13k to <$500k) 6.4% ($500k to $1m) 5.6% (>$1m) $1,045 (<$13k)	7.86%	% Cost of Services	7.86% (≤$200k) 6.95% ($200k-$500k) 5.89% ($500k-$1m) 4.99% ($1m-$2m) 4.38% ($2m-$3m) 3.93% ($3m+)	1.25%	% Costs of Municipal Works	+ Inspection 8% (<$250k) 6% ($250k-$500k) 4.5% (500k-$1.5m) 3.75% ($1.5m-$5m) 3.5% ($5m+)						
Pre-servicing Agreement	Flat	$ 1,919												
Erosion and Sediment Control Permit (Major)	Flat	$607.70 + $117.40 per ha												
Erosion and Sediment Control Permit (Minor)		$ -												
Lot Grading Review (Infill Lots)	Flat	$1,044.70 (Securities <$13k)	$ 4,617.00	Flat		$ 775.00	Flat							
Engineering Review & Inspection of Site Plan Agreement	% of Value of Securities	% of Value of Securities 6.7% ($13k to <$500k) 6.0% ($500k+) $1,045 (<$13k)	12.38%	% Cost of Services	12.38% (≤$200k) 10.95% ($200k-$500k) 9.28% (500k-$1m) 7.86% ($1m-$2m) 6.90% ($2m-$3m) 6.19% ($3m+)		% Costs of Civil Works	Review & Inspection (>3k sq.m.) 16% (<$250k) 12% ($250k-$500k) 9% (500k-$1.5m) 7.5% ($1.5m-$5m) 7% ($5m+)						
Landscape Architectural and Urban Design Review	% of Value of Securities	$1,001.60 (Value of Securities <$13k) 6.4% Value of Securities (≥$13k)										0.50%	% of Landscape cost	
Peer Reviews & Engineering Review/ Inspection of Street Lights in Subdivision	Flat	Actual Costs of Third Party Review												
Request for Traffic Data and Turning Movement Counts	Flat	$ 56	$ 57.91	per Location										
Benchmarks	per 200 Lots	$766 per 200 lots	$ 17.52	per Unit	Residential Unit									

Costing Category	Current		Milton			Oakville			Richmond Hill		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Development Engineering											
Engineering Review & Inspection of Agreements (Subdivision, Development, and Lot Grading)	% of Value of Securities	% of Value of Securities 7.8% ($13k to <$500k) 6.4% ($500k to $1m) 5.6% (>$1m) $1,045 (<$13k)	13.00%	% of Construction Value	13% (<$250k) 9% ($250k-$500k) 8% (500k-$1.5m) 7% ($1.5m-$5m) 5% ($5m+)	6%	% of Construction Value		6%	% of Construction Value	
Pre-servicing Agreement	Flat	$ 1,919				$ 3,478.00	Base + per Unit/sq.m.	+ $32/unit (Res.) $0.32/sq.m. (Non-Res.)			
Erosion and Sediment Control Permit (Major)	Flat	$607.70 + $117.40 per ha									
Erosion and Sediment Control Permit (Minor)		$ -									
Lot Grading Review (Infill Lots)	Flat	$1,044.70 (Securities <$13k)				$ 1,131.00	Flat	w/ existing (or established) grading plan			
Engineering Review & Inspection of Site Plan Agreement	% of Value of Securities	% of Value of Securities 6.7% ($13k to <$500k) 6.0% ($500k+) $1,045 (<$13k)	13%	% of Construction Value	13% (<$250k) 9% ($250k-$500k) 8% (500k-$1.5m) 7% ($1.5m-$5m) 5% ($5m+)	6%	% of Construction Value		6%	% of Construction Value	
Landscape Architectural and Urban Design Review	% of Value of Securities	$1,001.60 (Value of Securities <$13k) 6.4% Value of Securities (≥$13k)									
Peer Reviews & Engineering Review/ Inspection of Street Lights in Subdivision	Flat	Actual Costs of Third Party Review									
Request for Traffic Data and Turning Movement Counts	Flat	$ 56							$ 98.00	per count	Intersection Turning Counts, Signal Timing Plans, or Collission Data $48/count for Daily Traffic Volumes
Benchmarks	per 200 Lots	$766 per 200 lots									

Market Survey – Economic Development Services Fees

Costing Category	Current		Whitby			Pickering			Oshawa			Clarington		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Economic Development														
Real Estate - Acquisition of Land	Flat	$ -												
Real Estate - Real Property Agreements (Easements)	Flat	$ 533	$ 550.00	per 250m of Street	Municipal Consent Approval Fee				$ 787.00	Flat	Planning Application for Land Division Fee			Register agreement in Land Registry Office ($250) & Legal costs ($180/hr)
Real Estate - Real Property Agreements (Licence Agreements)	Flat	$ 533	$ 250.00	Flat	$250 License Agreement $360 Encroachment Application (not incl. legal), plus annual encroachment fees	$ 1,000.00	Flat	Encroachment (legal)	$ 360.00	Flat	"Absolute" Land Titles, plus annual fee			
Real Estate - Sale and Other Disposition of Land	Flat	$ -												
Business Official Opening	Flat	$ -												
Filming in Ajax	Flat	$ 267	$ 500.00	Flat		$ 350.00	Flat	$500 if incl. road closure	$ 250.00	Flat	per Day			
Permission to Enter	Flat	$ 160	$ 250.00	Flat		$ 255.00	Flat							

Costing Category	Current		Milton			Oakville			Richmond Hill		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Economic Development											
Real Estate - Acquisition of Land	Flat	$ -									
Real Estate - Real Property Agreements (Easements)	Flat	$ 533	$ 5,922.00	Flat	Consent to Sever Type 2 (easement where no new lot is created)				$ 606.00	Flat	Legal
Real Estate - Real Property Agreements (Licence Agreements)	Flat	$ 533	$ 1,727.00	Flat	Encroachment Processing Fee	$ 1,720.00	Flat	+ $669 for agreement	$ 971.00	Flat	Encroachment (legal)
Real Estate - Sale and Other Disposition of Land	Flat	$ -									
Business Official Opening	Flat	$ -									
Filming in Ajax	Flat	$ 267	$ 377.00	Flat		$ 1,580.00	per Day	Commercial, extra for road closures	$ 369.79	Flat	+ $562.28 (Commercial film in park or open space), extra for road closure
Permission to Enter	Flat	$ 160									

Market Survey – Building Permit Fees

Costing Category	Current		Whitby			Pickering			Oshawa			Clarington		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Building														
Group A/D/E (Shell)	per m^2	$ 10.0							$ 13.47	per m^2	Group E	$ 14.62	per m^2	Group E
Group A (Finished)	per m^2	$ 17.0	$ 33.12	per m^2		$ 23.25	per m^2		$ 24.98	per m^2		$ 27.27	per m^2	
Group B (Finished)	per m^2	$ 18.0	$ 35.22	per m^2		$ 26.50	per m^2		$ 26.92	per m^2		$ 29.76	per m^2	
Group D (Finished)	per m^2	$ 14.0	$ 23.19	per m^2		$ 18.10	per m^2	Multi-storey buildings	$ 18.53	per m^2		$ 22.57	per m^2	
Group E (Finished)	per m^2	$ 13.0	$ 25.39	per m^2		$ 18.10	per m^2	Multi-storey buildings	$ 16.96	per m^2		$ 19.34	per m^2	
Group F (Shell)	per m^2	$ 7.0	$ 13.42	per m^2			per m^2					$ 11.42	per m^2	
Group F (Finished)	per m^2	$ 9.0	$ 15.90	per m^2		$ 11.00	per m^2		$ 14.23	per m^2	11.6k m2 or less	$ 15.87	per m^2	
Group F (Parking, Unserviced Storage, & Farm)	per m^2	$5 (Unserviced Storage) $4 (Parking & Farm)	$ 9.28	per m^2	Parking	$ 11.00	per m^2	Farm & Unserviced	$ 6.73	per m^2	Parking	$ 6.94	per m^2	Parking
Residential Housing	per m^2	$ 13.5	$ 20.43	per m^2		$ 14.70	per m^2		$ 14.66	per m^2		$ 14.89	per m^2	
Residential Multi-Storey (<5 Storeys)	per m^2	$ 13.5	$ 20.43	per m^2		$ 14.70	per m^2		$ 14.33	per m^2		$ 15.87	per m^2	
Residential Multi-Storey (≥5 Storeys)	per m^2	$ 13.5	$ 20.43	per m^2		$ 14.70	per m^2	1-20 storeys	$ 14.33	per m^2		$ 15.87	per m^2	
Group A/B Alteration	per m^2	$8 (Group A) $6.3 (Group B)	$ 12.24	per m^2		$ 5.50	per m^2		$ 12.48	per m^2	Group A	$ 5.19	per m^2	
Group D Alteration	per m^2	$ 7.1	$ 12.24	per m^2		$ 5.50	per m^2		$ 8.49	per m^2		$ 5.19	per m^2	
Group E Alteration	per m^2	$ 5.1	$ 12.24	per m^2		$ 5.50	per m^2		$ 8.49	per m^2		$ 4.60	per m^2	
Group F Alteration	per m^2	$ 4.7	$ 10.63	per m^2		$ 5.50	per m^2		$ 7.10	per m^2	11.6k m2 or less	$ 4.60	per m^2	
Residential Accessory Apartment	per m^2	$ 8.8	$ 9.72	per m^2										
Residential Retrofit Acessory Apartment	Flat	$ 134	$ 9.72	per m^2		$ 5.50	per m^2		$ 7.34	per m^2		$ 4.60	per m^2	
Residential Alterations (incl. finishing basement)	per m^2	$ 6.5				$ 5.50	per m^2		$ 7.34	per m^2				
Residential Minor (Garden Shed, Gazebo, Garage, Deck)	Flat	$ 134	$ 9.72	per m^2		$ 140.00	Flat		$ 4.56	per m^2	Accessory Structure			
Foundation & Unfinished Basement	per m^2	$ 4.0												
Below Grade Entrance	Flat	$ 300												
Portables, Tents, Temporary Structures, & Electromagnetic Lock	Flat	$300 (Portable, Tent, Temp.) $200 each (Electromagnetic) $500 (Temp. Sales Struct.)	$ 220.00	Flat	Tent	$ 383.00	Flat	Portable, Temp, Tent	$ 264.00	Flat	Tent (60-225 m2)	$ 138.74	Flat	Tent
Retaining Wall	per linear m	$ 11.0	$ 220.00	Flat					$ 14.84	per linear m		$ 11.43	per linear m	
Residential Service Connections & Backflow Prevention	per lot	$ 134	$ 220.00	per Item	Backflow Preventor									
Site Servicing Permit	% of CV	$ 0												
Solar Panels	Flat	$134 (Indiv. Dwelling) $434 (All Other)	$ 149.00	Flat		$ 262.00	Flat		$ 150.00	Flat	per 10 (for house)	$ 139.00	Flat	Single Dwelling
Non-Residential (Other) (Balcony Guard Replacement/ Repair & Parking Structure Repair)	per Unit	$1.5 per linear m (Balcony Guard) $1 per m2 (Parking)	$ 220.00	Flat	Balcony Guard				$ 24.00	Flat	per Balcony	$ 3.63	per linear m	
Air Supported Structures	per m^2	$ 4.0	$ 12.24	per m^2					$ 7.80	per m^2		$ 11.92	per m^2	
Demolition	per m^2	$ 0.2	$ 0.19	per m^2	Non-Res.	$ 0.29	per m^2	per 100 m2	$ 0.30	per m^2	per 100 m2	$ 0.29	per m^2	Non-Single Detached Dwellings
Change of Use	Flat	$ 300	$ 220.00	Flat		$ 299.00	Flat		$ 299.00	Flat	No construction	$ 1.14	per m^2	per 100m2
Signs	per Sign	$ 250.0	$ 220.00	per Sign		$ 540.00	per Sign		$ 303.00	per Sign				

Costing Category	Current		Milton			Oakville			Richmond Hill		
	Charging Parameter	Fee	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes	Fee	Charging Parameter	Notes
Building											
Group A/D/E (Shell)	per m^2	$ 10.0	$ 15.09	per m^2	Group E	$ 9.60	per m^2	Retail	$ 14.11	per m^2	Group E
Group A (Finished)	per m^2	$ 17.0	$ 25.28	per m^2		$ 37.10	per m^2	Restaurant	$ 35.65	per m^2	
Group B (Finished)	per m^2	$ 18.0	$ 27.92	per m^2					$ 27.30	per m^2	
Group D (Finished)	per m^2	$ 14.0	$ 20.62	per m^2		$ 24.70	per m^2	Office Building	$ 22.94	per m^2	
Group E (Finished)	per m^2	$ 13.0	$ 18.61	per m^2		$ 26.95	per m^2	Retail	$ 17.94	per m^2	
Group F (Shell)	per m^2	$ 7.0	$ 12.55	per m^2	Under 10k m2	$ 13.10	per m^2	Under 5k m2	$ 9.75	per m^2	
Group F (Finished)	per m^2	$ 9.0	$ 13.53	per m^2	Under 10k m2	$ 19.20	per m^2	Under 5k m2	$ 16.42	per m^2	
Group F (Parking, Unserviced Storage, & Farm)	per m^2	$5 (Unserviced Storage) $4 (Parking & Farm)	$ 6.82	per m^2	Parking	$ 7.15	per m^2	Parking	$ 5.92	per m^2	Parking
Residential Housing	per m^2	$ 13.5	$ 16.67	per m^2		$ 17.80	per m^2		$ 16.75	per m^2	
Residential Multi-Storey (<5 Storeys)	per m^2	$ 13.5	$ 16.67	per m^2		$ 23.25	per m^2		$ 21.97	per m^2	
Residential Multi-Storey (≥5 Storeys)	per m^2	$ 13.5	$ 16.67	per m^2		$ 23.25	per m^2		$ 21.97	per m^2	
Group A/B Alteration	per m^2	$8 (Group A) $6.3 (Group B)	$ 6.05	per m^2					$ 5.44	per m^2	non-Restaurant
Group D Alteration	per m^2	$ 7.1	$ 6.05	per m^2		$ 6.10	per m^2		$ 5.44	per m^2	
Group E Alteration	per m^2	$ 5.1	$ 6.05	per m^2					$ 4.15	per m^2	
Group F Alteration	per m^2	$ 4.7	$ 6.05	per m^2		$ 6.10	per m^2		$ 4.15	per m^2	
Residential Accessory Apartment	per m^2	$ 8.8	$ 8.85	per m^2		$ 12.00	per m^2				
Residential Retrofit Acessory Apartment	Flat	$ 134									
Residential Alterations (incl. finishing basement)	per m^2	$ 6.5	$ 6.05	per m^2		$ 4.90	per m^2		$ 3.77	per m^2	up to 50m2
Residential Minor (Garden Shed, Gazebo, Garage, Deck)	Flat	$ 134	$ 8.72	per m^2	Over 27.9 m2	$ 5.90	per m^2		$ 285.27	Flat	
Foundation & Unfinished Basement	per m^2	$ 4.0									
Below Grade Entrance	Flat	$ 300									
Portables, Tents, Temporary Structures, & Electromagnetic Lock	Flat	$300 (Portable, Tent, Temp.) $200 each (Electromagnetic) $500 (Temp. Sales Struct.)	$ 244.08	Flat	Tent	$ 423.30	Flat	Tent	$ 368.51	Flat	Tent
Retaining Wall	per linear m	$ 11.0							$ 10.72	per linear m	
Residential Service Connections & Backflow Prevention	per lot	$ 134	$ 244.08	Flat	New system	$ 306.00	per Item	Backflow Preventor			
Site Servicing Permit	% of CV	$ 0	$ 3.46	per linear m							
Solar Panels	Flat	$134 (Indiv. Dwelling) $434 (All Other)				$ 300.00	Flat	per Panel	$ 225.82	Flat	Residential
Non-Residential (Other) (Balcony Guard Replacement/ Repair & Parking Structure Repair)	per Unit	$1.5 per linear m (Balcony Guard) $1 per m2 (Parking)							$ 2.05	per linear m	
Air Supported Structures	per m^2	$ 4.0							$ 6.14	per m^2	
Demolition	per m^2	$ 0.2	$ 244.08	Flat		$ 438.00	Flat		$ 416.06	Flat	Non-Single Detached Dwellings
Change of Use	Flat	$ 300	$ 244.08	Flat		$ 714.00	Flat	Includes up to 4 hours			
Signs	per Sign	$ 250.0	1.60%	% of prescribed value							

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Armi De Francia
Report #:	PDS-2023-23
Subject:	More ways to get around: E-scooters and E-bikes
Ward(s):	All
Date of Meeting:	June 12, 2023
Reference:	Council Motion dated June 20, 2022 2019 Integrated Transportation Master Plan Action26 – Ajax Council's 2022-2026 Strategic Plan 2023 Transportation Demand Management Plan

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Recommendations:

1. **That the report entitled "More ways to get around: E-scooters and E-bikes" be received for information;**

2. **That the Electric Kick Scooter and Pedal Assist E-Bike By-law, as provided in Attachment 1 to this report, be endorsed and forwarded to the June 19, 2023 Council meeting;**

3. **That staff proceed with issuing a Request for Proposal (RFP) to implement a Shared E-scooter and E-bike Pilot Program and associated agreement(s) and that the delegated authority be granted to staff to execute these agreement(s);**

4. **That staff proceed with a partnership with Toronto Metropolitan University to monitor the implementation of the pilot project;**

5. **That staff proceed with partnerships with the Canadian National Institute for the Blind and other interested disability advocacy groups to implement a campaign encouraging safe behaviours among e-scooter and e-bike users that considers pedestrians with disabilities;**

6. **That Council approve a budget of $51,025.00 from the Capital Contingency Fund for the first year of the pilot program (education campaign, evaluation) with an estimate of $41,000.00 to be recovered through fees to the shared e-scooter and e-bike companies and $10,025.00 to be funded through Capital Contingency Reserve; and**

7. **That a copy of this report be circulated to the Region of Durham, Durham Regional Police Services, Durham Region Transit, and all local Municipalities in Durham Region.**

1.0 Background:

On June 20, 2022, Council passed a motion regarding the use of electric kick scooters. The motion stated:

WHEREAS an electric kick-scooter (e-scooter) is a vehicle that has two wheels (one at the front and one at the back), a platform to stand on, a handlebar for steering, an electric motor that does not exceed 500 watts, and a maximum speed of 24 km/h on a level surface;

AND WHEREAS on January 1, 2020 the Ministry of Transportation of Ontario (MTO) introduced a new 5-year pilot to permit e-scooters on Ontario's roads. Under the pilot, Municipalities that want to allow e-scooters to operate on their roads must pass by-laws to permit their use and set out specific requirements based on what is best for their communities;

AND WHEREAS under the Highway Traffic Act, e-scooters cannot be operated on Town of Ajax sidewalks and must comply to the same rules as bicycles on Town roads, and are not permitted on Town trails and walkways, pursuant to Parks By-law, 23-2022;

AND WHEREAS on April 27, 2022 the Regional Municipality of Durham approved the new Electric Kick Scooter By-law that outlines conditions for use, including allowing e-scooters as a means of transportation for residents ages 16 years and older within bike lanes or paved shoulders on Regional roads;

AND WHEREAS the fragmented approach to regulating and enforcing the use of e-scooters across jurisdictional boundaries has the potential to cause unnecessary confusion and conflict;

NOW THEREFORE BE IT RESOLVED THAT:

1. Transportation staff be directed to report to Council or the appropriate standing committee in 2023, with input from necessary departments, on the feasibility and community benefits of aligning Town by-laws with the Region of Durham's Electric Kick Scooter By-law, and pursuing a partnership with a provider to offer a shared e-scooter pilot program in Ajax; and

2. Communications staff be directed to amplify public education messaging released by the Region regarding the new Electric Kick Scooter By-law.

In addition to looking into electric kick scooters, staff also included pedal assist e-bikes as part of this project given that they are another frequently used micromobility mode of transportation that other municipalities have accommodated for.

A joint pilot project for e-scooters and e-bikes is supported by the following, Council approved background documents:

- The 2019 Integrated Transportation Master Plan has a vision of enhancing "the sustainable and multi-modal transportation system for the Town of Ajax by planning, designing, constructing and maintaining a community and transportation network that supports pedestrian, cyclists, transit and vehicular traffic. The Town's transportation system will be accessible to all users and all modes of transportation." It includes a principle of supporting mobility for all modes of transportation to create an accessible and efficient multi-modal transportation network.
- Action 26 (2022-2026) Strategic Plan includes an action to pursue an e-scooter and e-bike pilot in 2024.

- The 2023 Transportation Demand Management Plan Update has a vision of providing mobility choices that meet the needs and abilities of residents and visitors through a shift to sustainable transportation. Action B6 calls the Town to review the feasibility of implementing a shared micromobility pilot project and recommends a budget of $50,000 in 2024 and 2025 for public engagement and communication, additional signage (where appropriate), delineating e-mobility parking areas, evaluation and monitoring. It assumes capital and operating costs of pilot project are covered by vendors."

The project *More ways to get around: E-Scooters and E-Bikes* reviews the feasibility of permitting electric kick scooters and pedal assist e-bikes with consideration to both privately owned devices and shared vehicles. Specifically, the project scope includes:

- recommendations on where to permit electric kick scooters and pedal assist e-bikes (privately owned devices, and shared devices) with a draft By-law for Council approval (See **ATT-1** Draft By-law E-scooters and E-bikes);
- research and analysis on existing regulations and learnings from other municipalities;
- advantages and disadvantages of participating in a shared e-scooter program; and
- a high-level framework for a shared e-scooter and e-bike program.

2.0 Discussion:

Electric kick scooters and pedal assist e-bikes are emerging across the world, offering convenient transportation options, notably for people without access to a car and who do not live near transit stops or stations. They are also useful for people who may not have the physical capacity to use conventional bikes and scooters.

Municipalities are working on new regulations and programs to adapt to these new technologies. This project provides recommendations on where the Town of Ajax should permit electric kick scooters and pedal assist e-bikes and provides a framework and considerations for starting a shared e-scooter and e-bike program in Ajax.

2.1 What is an E-scooter and E-bike?

Electric kick scooters (e-scooters) are devices with two wheels and a handlebar powered by a rechargeable battery. Currently, the province allows for e-scooters with a weight up to 45kg, a wheel diameter of 17 inches, a maximum output of 500 watts, and a maximum speed of 24km/h. They must not have pedals, a seat, or a basket.

Pedal assist e-bikes (e-bikes) are vehicles resembling conventional bicycles or adult-sized tricycles that involve pedaling with electric assistance. They have a fork and frame and do not resemble a motor scooter or motorcycle.

This project does not include:

- e-bicycles or e-tricycles powered by a throttle whereby a user does not need to pedal.
- electric assist or throttle bicycles that resemble a conventional bicycle but do not have pedals.
- cargo e-bikes which have a platform or box to carry larger items rather than a basket.
- anything that resembles a motorcycle.

Shared e-scooters and e-bikes are different from privately owned e-scooters and e-bikes.

Shared e-scooters and e-bikes are rented from a service provided for a fee per minute or per distance travelled. Such vehicles must be picked up, are typically unlocked using an app, and must be returned to designated areas.

Privately owned e-scooters and e-bikes are vehicles that people purchase for their own use. People who purchase their own e-scooter and e-bike are responsible for charging, maintaining, repairing, and storing them.

2.2 Advantages and Disadvantages

E-scooters are a newer technology that has been shown to improve multi-modality and gaps within transit networks. There are people who may prefer using e-scooters instead of e-bikes because they take up less storage space and are easier to use regardless of balance skills.

There is growing research on the health and environmental benefits of e-bikes given that they overcome the barrier of distance and there are more possibilities for adaptations for people with disabilities. Research has shown that e-bikes are more likely to replace vehicular trips because people use them to travel longer distances and over hills.

Shared e-scooters and e-bikes have different advantages and disadvantages than privately owned e-scooters and e-bikes. **Table 1** distinguishes between the advantages and disadvantages for shared vehicles versus privately owned vehicles.

Table 1: Privately Owned versus Shared E-scooters and E-bikes

	Shared	**Privately Owned**
Definition	E-bikes and e-scooters that are rented for a fee per minute or per distance travelled, picked up and returned in designated areas.	E-bikes and e-scooters that people purchase for their own use.
Advantages	Companies can provide: • Maximum speed settings; • Battery charging, maintenance, and repairs (thereby reducing the risk of fire); • Designated parking (though not guaranteed to be used); and • Programming that only allows vehicles to operate in designated operating areas.	• Users are more likely to park them in appropriate areas and not block pedestrian connections. • Convenience: door-to-door connections, more control over where they can be stored (i.e. personal garages or sheds, indoors, existing bike parking areas, etc.).
Disadvantages	• Companies may not follow parameters. • People may still throw them away or park them in ways that block pedestrian connections or streets.	• People can purchase lower quality batteries which could be a fire hazard. • People need to contact the manufacturer for repairs and maintenance. • Local bike shops likely may not have the training or resources to maintain or repair e-bikes and e-scooters, especially if the vehicle is from a manufacturer that they do not sell.

	Shared	**Privately Owned**
		• Need education on charging battery. • The Town cannot control the operating speeds.

The decision to participate in a shared e-scooter and e-bike program must consider the advantages versus the disadvantages for both residents and the municipality. **Table 2** outlines these considerations.

Table 2: Advantages and Disadvantages of a Shared E-scooter and E-bike Program

	For residents	**For municipalities**
Advantages	• More transportation options that can be appropriate for people with mobility limitations. • Last mile option (trips to/from transit stops/stations), potential to use an e-scooter or e-bike to get home from the GO station if people miss the last DRT bus	• Contributes to meeting goals for a multi-modal transportation system and greenhouse gas reductions. • Possibility to boost tourism and increase exposure to local businesses. • Control over speed. • Possible to have the company provide enforcement and education. • Possible employment opportunities for Ajax residents at the shared e-scooter and e-bike companies.
Disadvantages	• Potential obstruction of pedestrian paths. • Risk of collision with pedestrians, notably pedestrians with disabilities if not trained properly (though the risks are not very different from conventional bikes). • Littering (people may pick up and dispose of the e-vehicles in unauthorized areas). • Noise from educational messages.	• Increased conflicts with pedestrians and increased risk of collision (though the risks are not very different from conventional bikes). • Insurance products are not available for e-scooters and are not a requirement for e-bikes. • Increased demand for maintenance of on-road and off-road bike facilities. • Not feasible to enforce on trails given jurisdictional powers and resources to enforce speeds.

2.3 Provincial and Regional Permissions for E-scooters and E-bikes

The Town's ability to permit e-scooters and e-bikes depends on provincial and regional regulations.

Currently, e-scooters are permitted on Regional Roads within Durham. E-bikes can be operated on Town roads and designated lanes in addition to Regional roads.

2.3.1 Ontario E-scooter Pilot (January 1, 2020- January 1, 2025)

In 2020, the provincial government initiated a 5-year pilot project for e-scooters that outlined the definition and requirements for helmet use, minimum age of riders, and restrictions on weight and size. The provincial pilot ends on January 1, 2025. O. Reg. 389/19 of the Highway Traffic Act states that the regulation on the provincial e-scooter pilot is to be revoked on November 27, 2024, the fifth anniversary of the day it was filed.

The pilot project allows municipalities to decide where and how e-scooters may be used. Municipalities that participate are responsible for deciding where e-scooters may be operated and parked. Further, municipalities are also responsible for deciding permitting or licensing processes for shared e-scooter companies, insurance requirements, opportunities for public feedback on e-scooter use, and other considerations.

The results will inform the province's decision on whether to permanently permit e-scooters in Ontario and regulations on how users operate e-scooters.

In contrast, Ontario has regulations permitting e-bikes. The Highway Traffic Act includes e-bikes as a type of "power-assisted bicycle". Municipalities can create by-laws that permit or prohibit e-bikes on municipal roads, sidewalks, bike paths, bike trails, or bike lanes.

2.3.2 Durham Region

The Region of Durham created a new Electric Kick Scooter By-law which came into force on April 29, 2022. The By-law permits e-scooters on Regional Roads. For enforcement, the new By-law gives authority to police officers, any person appointed for the purpose by a By-law of the Region, all employees whose duties include the enforcement of the By-law, and any authorized person or employee of a local municipality within Durham.

In developing this By-law, the Region consulted all local municipalities, including the Town of Ajax.

The Durham Region Electric Kick Scooter By-law will be repealed on the earlier of:

- The revocation of the provincial e-scooter pilot, or
- November 27, 2024.

Should the Town of Ajax choose to participate in the provincial e-scooter pilot, it must consider the deadlines of both the Province and the Region.

2.4 E-scooter and E-bike Permissions in Other Municipalities

Municipalities across the world tend to be more open to accepting e-bikes than e-scooters for multiple reasons:

- the absence of insurance products for e-scooters;

- the availability of research and case studies proving that e-bikes reduce car trips[1] and improve physical and cognitive[2] health;
- concerns that e-scooters are not used to replace vehicular trips. Cases in other municipalities, such as Montreal, indicate that e-scooters are used more for trips to/from transit; and
- greater familiarity with e-bikes due to similarities to conventional bicycles and many existing resources, standards, and regulations on conventional bicycles.

Given that e-scooters are a newer technology, decisions on where to permit e-scooters differ across municipalities globally.

Locations that permit e-bikes but prohibit shared and privately owned e-scooters altogether (except on private property where there is permission) include Toronto, Montreal, and Paris, France.

There are also municipalities that permit the use of shared e-scooters in designated areas but prohibit the use of privately owned e-scooters (except with permission on private property), such as London, UK and Copenhagen, Denmark.

Canadian municipalities that permit privately owned and shared e-scooters on bike facilities include Ottawa, Oshawa, Brampton, Mississauga, and Waterloo.

The City of Pickering permits e-scooters on municipal roadways. While e-scooters are not permitted on trails, e-bikes are permitted on trails.

Currently, the City of Pickering and the City of Oshawa are conducting enforcement on a complaint basis.

2.5 Insurance and Liability Concerns

The main concerns related to insurance and liability are compensation in the event of a collision, and property damage.

An e-bike or e-scooter would face the same risk management recommendations as traditional non-motorized vehicles in the event of a claim.

In the event of a collision, it is challenging for the courts to find recovery for injured parties. If the occupier is the municipality, a higher standard of care is expected.

In addition to property owners, the definition of an occupier within the Occupiers' Liability Act includes "a person who has responsibility for and control over the condition of premises or the activities there carried on, or control over persons allowed to enter the premises" (Section 1 b). Section 10.2 of the Occupier's Liability Act states that the act "…does not apply to the Crown or to any municipal corporation, where the Crown or the municipal corporation is an occupier of a public highway or a public road."

[1] Jenkins, Michael & Lustosa, Lucio & Chia, Victoria & Wildish, Sarah & Tan, Maria & Hoornweg, Daniel & Lloyd, Meghann & Dogra, Shilpa, 2022. "**What do we know about pedal assist E-bikes? A scoping review to inform future directions**," Transport Policy, Elsevier, vol. 128(C), pages 25-37.
[2] Leyland, L. A., Spencer, B., Beale, N., Jones, T., & van Reekum, C. M. (2019). The effect of cycling on cognitive function and well-being in older adults. *PloS one*, *14*(2), e0211779. https://doi.org/10.1371/journal.pone.0211779 https://www.ncbi.nlm.nih.gov/pmc/articles/PMC6388745/

The Durham Municipal Insurance Pool (DMIP) found that recent court decisions tend to impose greater liability on occupiers of municipal property.

Insurance can be purchased for e-bikes. However, since insurance is not a requirement for e-bikes, there is the possibility of further exposure to litigation under the Comprehensive General Liability if an incident were to occur.

Given the higher value of e-bikes, they face property damage risks such as theft, vandalism, and other malicious acts.

At the time of this report, no insurance products are available for e-scooters.

Further, below are recommendations to staff from the DMIP:

- plan to monitor travel patterns, parking behaviours, collisions, and injuries over the first few months of permitting e-scooters and e-bikes;
- ensure that the revised by-law will allow staff the time for enforcement on trails and Town streets, with fines set out for anyone in contravention;
- provide residents with a forum to report any concerns, especially if the Town intends to promote the ride sharing vendors;
- if ride sharing vendors are being accessed, ensure the risk is contractually transferred to them through the insurance and indemnity clauses in the agreement;
- signage is particularly important. It will be key to amend the current signage on the Town trails and multi-use paths to advise users that there is a potential that e-scooters and e-bikes could be on the trails and multi-use paths;
- train staff that are undertaking inspections on trails and multi-use paths to be aware of the additional exposure and note any deficiencies or any hazardous areas that may not have been previously addressed. For example, does bollard placement need to be reconsidered?
- in addition to training staff if the Town's By-law is amended, DMIP would recommend that training be offered to the residents of Ajax through the various means of communicating; and
- like all cycling routes, ensure that the policies and procedures, inspections, maintenance, repairs, winter maintenance are all well documented and updated.

Many of the risks can be addressed through providing etiquette and education as well as requiring shared companies to identify their risk mitigation measures during the Request for Proposals process. Providing frequent enforcement on more than a complaint basis in Ajax would be challenging to provide as there would not be sufficient staffing. Further, enforcement beyond a complaint basis is not feasible given the jurisdictional ability of the Town's By-law Services and that it is impossible to pull over and ticket someone operating an e-bike or e-scooter on a trail or multi-use path.

It is worth reiterating that the risks associated with privately owned e-scooters and e-bikes are more challenging to mitigate given the speed at which new vehicles emerge. Additionally, the Town has no control over adjustments people make to their own vehicles.

Nonetheless, the Town can take a variety of measures to mitigate risk as outlined in **Table 3**.

Table 3: Risks and Feasible Mitigation Strategies

	Mitigation Strategies	
Risks	**Shared**	**Privately Owned**
Obstructions from improper parking	• Require companies to program devices so that the users are charged if the devices are not parked properly. • Work with companies to develop a process for retrieving abandoned vehicles within a required response time. • Consider requesting companies to provide locks and permit shared e-scooters and e-bikes to be parked at existing bike parking facilities.	• People who have their own e-scooter or e-bike are not likely to park them in ways that block pedestrian paths or that create litter.
Speeding	• Require companies to program the devices to not exceed a speed (decided by the municipality) in designated areas with high pedestrian volumes where cycling is permitted. • Require companies to program the devices to operate at a speed within the provincial e-scooter pilot requirements.	• Not feasible to program or enforce the speed on trails. Trail etiquette education initiatives.
Use in unauthorized areas (i.e. sidewalks)	• Require companies to program the devices so that they cannot enter unauthorized areas. • Request that companies provide staff to monitor usage in unauthorized areas and inform users.	• Provide enforcement on a complaint basis.
Maintenance of devices and charging	• Require companies to monitor the vehicles and charge them and maintain them when needed. • Work with the companies to identify requirements for maintaining charging stations (i.e. snow clearance, debris).	• Encourage users to contact the manufacturing company for device maintenance and charging guidelines.
Companies not following the rules	• Limit the number of permitted shared e-scooter companies to 1 or 2. If more companies are permitted, there is a higher risk that one of them will not follow the rules and more challenging to coordinate.	• Municipalities cannot restrict e-scooters and e-bikes sold in stores that do not meet the provincial requirements. Further, municipalities cannot restrict the decisions of manufacturers.
Infrastructure Maintenance	• Review existing maintenance and asset management procedures and identify required resources.	

2.6.0 E-scooter and E-bike Pilot Program in Ajax

There are many complexities and nuances associated with e-scooters and e-bikes that must be considered when deciding where to permit them and how to implement a shared e-scooter and e-bike program.

To expand mobility options and accommodate e-scooters and e-bikes, the Town must decide where e-scooters and e-bikes can be operated based on criteria that consider public safety, goals outlined in existing plans, staff capacity and resources, and consistency with other municipalities. This decision must then be supported by a new standalone by-law for e-scooters and e-bikes.

The next step is to outline requirements for companies on facilities where these vehicles can be operated, end-of-trip management, enforcement, privacy, as well as insurance and liability.

2.6.1 Evaluation, Options, and Decision Criteria

There were differences in preferences and perspectives among both staff and residents on whether to permit e-scooters and e-bikes on trails and multi-use paths. Staff considered the option of permitting e-scooters and e-bikes on Town roads only and prohibiting them on trails. It would be challenging to permit e-scooters and e-bikes on multi-use paths and not trails given that the distinction between multi-use paths versus trails is not always intuitive.

Therefore, the two options considered are the following:

Option 1: Permit privately owned and shared e-scooters and e-bikes on Town roads only.

Option 2: Permit privately owned and shared e-scooters and e-bikes on Town roads, designated bicycle lanes, cycle tracks, as well as multi-use paths and paved off-road bike facilities with a minimum width of 2 metres.

Table 4 details the priorities identified by staff and residents. Note that the priorities identified by residents are based on the top concerns from the survey results.

Table 4: Decision Making Criteria

Priority	Staff	Residents (top concerns)
People, including people with disabilities have mobility options if they cannot drive a car or do not have someone to drive them	X	
Reduction in traffic congestion	X	
Reduction in pollution and greenhouse gases		X
Respect among different mode users	X	X
Safety: Minimize risk of conflict between pedestrians and people using e-scooters and e-bikes	X	
Safety: separation between people using e-bikes and e-scooters vs people driving cars		X
Unobstructed paths for pedestrians	X	X
Enforcement		X
Feasible to implement based on capacity and authority	X	
Consistency with other municipalities	X	X
Reduction in speeds of e-bikes and e-scooters		X

Further details on how each option meets these priorities can be found in **ATT-2** E-scooters & E-bikes Decision Making Criteria.

The top priorities by residents were based on the Town's survey conducted from March 24 to April 21, 2023, receiving 211 responses. Further details on the survey results can be found in **ATT-3** Survey results by Ward and Disability and **ATT-4** – Comments from Survey Results.

Minimizing the risk of conflict between e-scooter and e-bike users with pedestrians was only explicitly stated by a few survey respondents. However, there were many comments in the survey, in person, and via e-mail about the risk of collision and speeding. These concerns can be addressed through separation between pedestrians and people using e-scooters and e-bikes where feasible, rather than prohibiting e-scooters and e-bikes altogether. Separation mitigates these safety concerns without removing an alternative transportation mode.

Other considerations when deciding where to permit e-scooters and e-bikes are as follows:

- municipalities that prohibited e-scooters on trails (or in general) typically do not prohibit e-bikes. These municipalities include Toronto, Montreal, and Pickering.
- operating speeds of e-bikes tend to be comparable to conventional bikes: While e-bikes have the potential to legally operate at 32km/h, studies have shown that people typically use e-bikes at speeds only marginally higher than conventional bikes.[3]
- it is possible for people to use conventional bikes at speeds of 32km/h without electric assistance.
- e-scooters and e-bikes are newer technologies that have improved their safety features over time. They are continuing to evolve.
- education is required regardless of whether or not e-scooters and e-bikes are permitted on trails.
- collaboration with organizations serving people with disabilities is highly beneficial regardless of the selected option.
- respect among different road users and feasibility to implement are still challenging regardless of the selected option.
- complete consistency with all local municipalities within Durham is not feasible given that there are already different decisions. Option 1 is consistent with the City of Pickering for e-scooters but not e-bikes while Option 2 is consistent with the City of Oshawa. Both options are consistent with the Region of Durham.

The main advantage of Option 1 is reducing the liability imposed on the Town in the event of a collision. For this option to meet the criteria of reducing the risk of harm between pedestrians and people using e-bikes and e-scooters, more enforcement would be required. It is feasible for shared e-scooter and e-bike companies to have their staff speak to e-scooter and e-bike users in areas where e-scooters and e-bikes are prohibited.

The main advantage of Option 2 is that more people would be motivated to use alternative transportation options. Option 2 addresses the concern of separation between people using e-bikes and e-scooters versus people driving cars: one of the top priorities identified by survey respondents. As a result, more people can contribute to reducing traffic and greenhouse gas emissions while improving health outcomes. This contributes to the Town meeting its vision outlined in the 2023 TDM Update and the 2019 Integrated Transportation Master Plan.

[3] Stuckless Consulting (2023). *Cycling, Energized! A report on the state of e-bikes in Canada*. Available at https://view.flodesk.com/pages/63f6be443e1e4ad28342ce0e

2.6.2 Recommended Option and Pilot Framework

In the context of a two-tier municipality, decisions made at the Regional level affect results at the Town-level. Given that the distinction between Regional Roads and Town Roads may not be intuitive, it would be challenging and unrealistic to expect residents to operate e-scooters on Regional Roads but not Town Roads.

The provincial e-scooter pilot requires that e-scooters must not be operated on sidewalks. In Ontario, e-bikes cannot be used on municipal roads, sidewalks, bike paths, bike trails, or bike lanes where e-bikes are prohibited. To minimize confusion, staff recommend prohibiting the use of e-scooters and e-bikes on all sidewalks, including sidewalks where there is a sign authorizing the use of bikes.

As such, staff recommend proceeding with Option 2: Permit privately owned and shared e-scooters and e-bikes on Town roads, designated bicycle lanes, cycle tracks, as well as multi-use paths and paved off-road bike facilities with a minimum width of 2 metres. While there are concerns with the volumes of trail users (as indicated in **ATT-5** Committee Presentations Results Summary), Option 2 increases the likelihood that people would use sustainable transportation modes. Given that the risks are comparable to those associated with conventional bicycles and that there is not sufficient data on the risk of collision, the severity of these risks do not justify prohibiting a sustainable mode of transportation on the active transportation network. It is important for residents to understand that the major trail system is not designated solely for pedestrians and that it is part of the overall active transportation network.

a) Standalone By-law

Staff recommend a new standalone by-law for e-scooters and e-bikes that reflects Option 2: Permit privately owned and shared e-scooters and e-bikes on Town roads and paved off-road bike facilities with a minimum width of 2.0 metres.

The Draft By-law for Council Approval can be found in **ATT 1** – Draft Electric Kick Scooter and Pedal Assist E-bike By-law. The short title, recommended by By-law staff, specifies electric kick scooters and pedal assist e-bikes to avoid confusion with throttle powered e-bikes. This draft incorporates requirements from the Ontario E-scooter Pilot as well as sections within the Regional Electric Kick Scooter By-law. Further, it provides definitions distinguishing between cycle tracks, multi-use pathways, and off-road trails. It also specifies facilities that are to be enforced by Durham Regional Police Services versus facilities that are to be enforced by Town of Ajax By-law staff. The Draft By-law has been reviewed by the Town's Solicitor and their input has been considered in the preparation of the By-law.

In adherence to the Durham Regional Electric Kick Scooter By-law, the Draft Electric Kick scooter and Pedal Assist E-bike By-law shall be repealed on the earlier of the revocation of the provincial e-scooter pilot (currently January 1, 2025) or November 27, 2024.

b) Preliminary Framework for a Shared E-scooter and E-bike Pilot Program

The preliminary framework consists of the following:

- **Where shared e-scooters and e-bikes will be permitted:** Town roads, designated bicycle lanes, cycle tracks, as well as multi-use paths and paved off-road bike facilities with a minimum width of 2.0 metres. This will be implemented through the Electric Kick Scooter and Pedal Assist E-bike By-law.

- **End-of-trip Management:** E-scooter companies shall provide mats and bike racks to mark shared e-scooter and e-bike parking areas. Below are the proposed parking locations for shared e-scooters and e-bikes:
    - Town Hall
    - Ajax GO Station
    - Pat Bayly Square
    - Ajax Downs Race Track/Casino Ajax
    - Ajax Convention Centre
    - Rotary Park
    - Veteran's Point Gardens
    - Carruthers Marsh Pavilion
    - Pickering Village
    - Ajax Community Centre
    - Audley Community Centre/Ajax Sportsplex
    - McLean Community Centre
    - St. Francis Centre
    - Village Community Centre
- **Enforcement:** The Electric Kick Scooter and Pedal Assist E-bike By-law shall be enforced on a complaint basis by Durham Regional Police Services (for infractions on roads and sidewalks) and Town of Ajax By-law staff (for infractions on multi-use paths, trails, and cycle tracks). Town of Ajax By-law staff shall provide education on trail etiquette and on the Electric Kick Scooter and Pedal Assist E-bike By-law.
- **Duration:** October 1, 2023 (anticipated) to November 27, 2024
- **Who is Impacted:** People with disabilities are a key group of concern affected by the use of e-scooters and e-bikes on the trails and multi-use paths. For this reason, people with disabilities shall be engaged throughout the project.

This framework will be further refined in the Request for Proposal for Shared E-scooter and E-bike Companies.

Further, staff have engaged and will continue to engage with various stakeholders during the pilot identified in **Table 5**.

Table 5: Summary of Stakeholders—Who is involved

Town of Ajax Staff	**Other jurisdictions**
• Accessibility Coordinator • By-Law Services • Communications • Economic Development • Fire and Emergency Services • Infrastructure and Asset Management • Planning • Public and Strategic Affairs • Roads Operations and Maintenance • Recreation, Culture, and Community Development • Sustainability	Advisory Role • Durham Public Health • Metrolinx • Durham Region Transit • Lakeridge Health Ajax Pickering Hospital • Accessibility Committee • Durham Region Cycling Coalition • Durham Municipal Insurance Pool Supporting Role • Durham Region Planning and Economic Development • Canadian National Institute for the Blind and other interested organizations serving people with disabilities • Toronto Metropolitan University

The Town needs to undertake a Request for Proposal process in order to implement a shared e-scooter and e-bike pilot program. **Table 6** outlines the requirements and responsibilities for the company and the municipality that will be outlined in the Request for Proposal.

Table 6: Requirements for Companies Interested in Operating a Shared E-scooter and E-bike Program in Ajax

Considerations	Requirements
Parking	• Trip parking management: The company shall identify the person responsible for supervision of operations for the e-scooter share company and provide 24/7 contact information. This person, known as the attendant, shall also be responsible for coordinating the removal of improperly parked e-scooters within a timeframe that will be confirmed in the bid process. • Designated parking areas shall be delineated using mats and bike racks provided by the company. The apps shall also include maps illustrating the designated parking locations. • The company shall also provide locks for the vehicles which can be used to park at any existing bicycle parking facility. • The municipality shall work with the companies to identify the designated parking locations. • The municipality shall maintain the parking location in the summer and the winter. Operation dates will be informed by maintenance procedures.
Safe operation: Designated areas, speeds	• The company shall identify how or if they can confirm that a person 16 or 17 years old has a helmet with them.
Maintenance and device charging	• The company shall provide details on the frequency for inspection/maintenance of devices and specify that inspection and maintenance is to occur off-site. The permit will state the timeframe for retention of the inspection reports and that the inspection report(s) be surrendered to the municipality, if requested. The company shall submit an example inspection report with the permit application response.
Education	The company shall identify: • Training for first time riders on the operation of the e-Scooter prior to allowing the rider to activate the app. • In-person engagement activities. • Procedures for communicating with the public about the company's terms of service and the restrictions placed upon the rider. The municipality shall identify how they will communicate with private e-scooter users the restrictions placed upon the e-scooter rider.
Privacy	The company shall identify what information will be collected, how it will be used, and how it will be protected.
Price to Operate and amount paid to municipality vs company	The company shall identify how much of the fee charged to users. The municipality shall identify how much of the fee charged shall go to the municipality.

Considerations	Requirements
Enforcement	The company shall identify how they will enforce the use of shared e-scooters and e-bikes in designated areas where high pedestrian volumes are anticipated. The municipality can provide insight on high-traffic areas and events.
Accessibility features	The company shall provide vehicles that have: • Audible warning that is consistent with other local municipalities within Durham. • Identification numbers in large font and contrasting colours. • Clear messages warning users not to use the shared e-scooter or e-bike on the sidewalk.
Data sharing/evaluation	• The municipality, company, and academic institutional partner shall determine what data from company will be shared with the municipality and academic institutional partners. • The municipality must describe how documentation received from the e-scooter share company will be evaluated by the municipality.
Liability and insurance	The agreement shall specify that the risk is contractually transferred to the companies through the insurance and indemnity clauses in the agreement.
Hire local residents (optional)	The agreement can include a clause requiring that a proportion of new hires must reside in Ajax.

Below is a high-level timeline for the shared e-scooter and e-bike pilot program:

- **July 2023:** Open Bid for shared e-scooter and e-bike companies.
- **Summer 2023:** Finalize agreement with companies, develop materials for education campaign.
- **Fall 2023:** Launch shared e-scooter and e-bike program, implement education campaign (community ambassadors).
- **December 2023:** Pause for the winter to collect and analyze data using the results from Toronto Metropolitan University, Focus Groups, shared companies, and recorded complaints at the Town.
- **March/April 2024:** Spring re-open of services and re-launch education campaign.
- **September to October 2024:** Analyze results from project using the results from Toronto Metropolitan University, Focus Groups, shared companies, and recorded complaints at the Town.
- **November 2024:** Update the By-law and report to Council on the pilot project learnings.

3.0 Financial Implications:

Estimated costs for the Pilot Program are outlined in **Table 7**. The Shared E-scooter and E-bike Pilot Program will be funded from the Capital Contingency Reserve.

Table 7: Year 1 Expenses for a Shared E-scooter and E-bike Pilot Program (excluding staff costs)

Expense	Estimated Cost
Education Campaign (partnership with organizations serving people with disabilities as described in the Communications issues section)	$ 10,025.00
Evaluation (partnership with Toronto Metropolitan University to measure equity and inclusivity as done in the City of Brampton)	$ 23,000.00

Expense	Estimated Cost
Signage (recommended by Durham Municipal Insurance Pool)	$ 18,000.00
Total	**$ 51,025.00**

After reviewing bids for similar work in other Town projects, the costs to the Town are anticipated to be slightly higher than estimated in the Transportation Demand Management Plan. The 2023 Transportation Demand Management Plan recommends an estimated budget of $50,000 each year from 2024 to 2025 for public engagement and communication, additional signage (where appropriate), delineating e-mobility parking areas, evaluation and monitoring. It assumes capital and operating costs of the pilot project are covered by vendors.

The education campaign involves collaboration with organizations serving people with disabilities to better serve the public interest. It includes the creation of a video campaign as well as community ambassadors on the trails. Given that many residents engaged were unaware that e-scooters and e-bikes were not permitted on trails, social media communications and printed materials are not sufficient for educating residents. Therefore, it is necessary to provide in-person engagement from community members with disabilities who may be affected by unsafe behaviours by people using e-scooters and e-bikes.

Toronto Metropolitan University is collecting and analyzing data on the types of trips by e-scooter and e-bike as well as demographics of users in the City of Brampton. Such data will contribute towards the following goals in the 2023 Transportation Demand Management Plan:

- Goal 1: Improve Mobility Choice: provide opportunities and access to alternative modes of travel, including transit, active transportation, ridesharing, and micromobility to minimize dependency on single-occupant automobile use. It is important to ensure that the Town is providing an equitable and efficient transportation system that supports the travel demands of residents to and from key destinations.
- Goal 2: Build a Culture of Sustainable Transportation: Change travel behaviour and create an environment that celebrates and recognizes active transportation, transit, and ridesharing as accessible, feasible, safe options. Collecting data on the trip purpose can show that the culture of sustainable transportation is more holistic than the 9-5 commute.
- Goal 4: Improve transportation equity: Expand mobility choice where car-centric design of the past has created barriers for disproportionately impacted communities to access essential services, programs, and opportunities.

Additional data on the number of trips per location and potentially parking infractions will be collected from the e-scooter and e-bike companies while the Town will also collect and analyze data on complaints.

The evaluation costs will also be used to pay for focus group participants to assess the impacts on people with disabilities. These focus groups will be conducted by Town staff.

Signage advising users that there is a potential for e-scooters and e-bikes to be used on the trail and multi-use paths in addition to evaluation were recommended by the Durham Municipal Insurance pool. The signage installation and program evaluation components of the program are not mandatory requirements. Based on the lack of provincial/regional regulated requirements and the examples of other municipal e-scooter pilot projects, signage may not be implemented during the pilot project. Implementing such signage would require more time for the design, bid process, and installation and therefore would not be feasible within the timeframe of the provincial pilot.

It is possible for a number of these costs to be recovered by fees charged to shared e-scooter companies. **Table 8** outlines the fees charged to e-scooter companies in the City of Ottawa and the City of Brampton:

Table 8: Fees Charged to Companies

Fee	Amount
Annual administrative fee	$5,000.00
Vehicle fee per e-scooter or per e-bike per year	$45
Program improvement fee per e-scooter or per e-bike per year	$5.00
Amount given to municipality per trip for all e-scooters and e-bikes	$0.05

For example, if the Town were to proceed with 500 vehicles (250 from two companies) and have 10,000 trips per month over a year, the anticipated annual revenue would be $41,000. These revenues can be used towards the pilot program's first year of expenses.

The above figures are estimates and the terms in the Town of Ajax partnership may vary. The final figures will be confirmed in Fall 2023.

Further, a shared e-scooter and e-bike program may require additional staffing resources, including for By-law and Operations. The financial implications associated with the shared micromobility program agreement will be specified as part of the future Council report.

4.0 Communication Issues:

This report strongly recommends collaborating with organizations serving people with disabilities in implementing education campaigns that consider the safety of people with disabilities.

Municipalities implementing shared e-scooter programs have faced criticism for lack of engagement among people with disabilities.[4,5] Many organizations serving people with disabilities have advocated to numerous municipalities for the prohibition of both privately owned and shared e-scooters.[6,7] Given the complexities and risk of harm, it is vital to engage people with disabilities throughout major stages of any pilot e-scooter or e-bike project.

[4] AODA Act Alliance (2022). "Brampton Accessibility Advisory Committee Gets Seriously Troubling Presentation on Electric Scooters by Brampton City Staff". Accessibility for Ontarians with Disabilities Act. Available at https://www.aoda.ca/brampton-accessibility-advisory-committee-gets-seriously-troubling-presentation-on-electric-scooters-by-brampton-city-staff/

[5] Forestell, K. "People with sight loss overlooked during Ottawa e-scooter pilot". Canadian National Institute for the Blind. Available at https://www.cnib.ca/en/news/people-sight-loss-overlooked-during-ottawa-e-scooter-pilot?region=on

[6] (2020) Letters from Stakeholders - from the Senior Project Manager, Strategic Policy and Innovation, Transportation Services. *City of Toronto*. Available at https://www.toronto.ca/legdocs/mmis/2021/di/bgrd/backgroundfile-164399.pdf

[7] Accessibility for Ontarians with Disabilities Act Alliance (2023). "Hamilton, Ottawa and Brampton Endanger Safety and Accessibility for Vulnerable People with Disabilities, Seniors and Others with Electric Scooters, While Paris France Votes Against Them". *Accessibility for Ontarians with Disabilities Act Alliance*. Available at https://www.aodaalliance.org/whats-new/hamilton-ottawa-and-brampton-endanger-safety-and-accessibility-for-vulnerable-people-with-disabilities-seniors-and-others-with-electric-scooters-while-paris-france-votes-against-them/

Based on years of experience with micromobility projects in the United States, which has a longer history with e-scooters than Canada, the Better Bike Share Partnership outlines nine best practices for building in equity from the start. These practices include doing engagement early and often as well as building partnerships with community-based organizations.[8]

Learning from previous municipalities in Canada and the United States, staff have surveyed people with disabilities, engage the Accessibility Committee, and included a representative from the Canadian National Institute for the Blind as a speaker at the E-scooters and E-bikes Symposium and Demonstration.

The education campaign would include:

- development of videos (videographer, speakers, interpreters for people who are deaf);
- community ambassadors with disabilities to host pop-up events and presentations;
- focus group participants for evaluation; and
- development of graphics adapted for the Town of Ajax.

This engagement helps the Town complete actions in other plans including the following:

- 2023 Transportation Demand Management Plan Update Action B2.1: Implement Ajax-led video campaigns partnering with community leaders and other partners promoting the benefits of sustainable transportation and building capacity among residents, with potential support from the Region.
- Action 26, Pillar 1: Connecting our Community, Priority 3: Improve well-being and quality of life, 3.1 Support and promote active and accessible transportation, supporting action: #GetAjaxMoving Diversity Campaign

The costs are summarized in the Financial Implications section.

5.0 Relationship to the Strategic Plan:

This report aligns with the following section of the Strategy Plan:

Pillar:	Connecting our Community
Priority:	3. Improve well-being and quality of life 3.1: Support and promote active and accessible transportation
Supporting Action:	E-Scooters and E-Bike Pilot

6.0 Conclusion:

This project focused on providing recommendations on where to permit e-scooters and e-bikes (privately owned devices, and shared devices) with a draft By-law for Committee endorsement (See **ATT 1** - Draft By-law E-scooters and E-bikes).

Permitting the use of e-scooters and e-bikes enables more transportation options for residents. This contributes to the Town's vision of creating a sustainable and multi-modal transportation system (ITMP 2019) and providing mobility choice that meets the needs and abilities of residents and visitors through a shift to sustainable transportation (TDM Update 2023).

[8] Herbert, K (2023). "How To Build In Equity From the Start". *Better Bike Share Partnership*. Available at https://betterbikeshare.org/2023/04/07/how-to-build-in-equity-from-the-start/

Staff recommend permitting e-scooters and e-bikes on Town roads as well as designated bicycle lanes, multi-use paths, cycle tracks, and paved trails within a major trail system[9] that have a minimum width of 2.0 metres.

Ongoing engagement with people with disabilities is necessary through all major phases of the pilot project.

Staff will provide further details on a shared e-scooter and e-bike partnership in Fall 2023.

Attachments:

ATT-1: Draft By-law E-scooters and E-bikes

ATT-2: E-scooters & E-bikes Decision Making Criteria

ATT-3: Survey results by Ward and Disability

ATT-4: Comments from Survey Results

ATT-5 Committee Presentations Results Summary

Prepared by:

Armi De Francia, MCIP, RPP – Active Transportation Coordinator

Submitted by:

Geoff Romanowski, MCIP, RPP, CPT – Director of Planning & Development Services

Approved by:

Shane Baker – Chief Administrative Officer

[9] The major trail systems in Ajax are the Waterfront Trail, Carruthers Creek Trail, Millers Creek Trail, Duffins Creek Trail, and the Greenbelt Trail. The recommendations focus on paved trails with a minimum width of 2 metres and therefore would not include unpaved trails within the Duffins Creek Trail. The recommendations do not include foot paths or trails that are less than 2 metres wide.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-XXXX

A by-law to regulate the operation and use of electric kick scooters and pedal assist e-bikes in the Town of Ajax.

WHEREAS Ontario Regulation 389/19 prohibits a person from operating an electric kick-scooter on a highway, sidewalk, trail, path, walkway, public park or exhibition ground that is under the jurisdiction of a municipality, unless such operation is permitted by and in accordance with the regulation and a municipal by-law;

And Whereas the Municipal Act, 2001, Highway Traffic Act and Ontario Regulation 389/19 allow municipalities to regulate the use of electric kick scooters;

And Whereas the Town of Ajax desires to allow the operation of electric kick-scooter or pedal assist e-bikes on municipal roadways;

And Whereas the Town of Ajax desires to allow the operation of electric kick-scooter or pedal assist e-bikes and pedal assist e-bikes on bike facilities on property owned or maintained by the Town of Ajax;

And Whereas the Town of Ajax desires to restrict the use of electric kick-scooter or pedal assist e-bikes on certain municipal property.

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. SHORT TITLE

1.1 This By-law may be cited as the “Electric Kick scooter and Pedal Assist E-bike By-law”.

2. DEFINITIONS

2.1 “authorized sign” means any sign placed upon a highway or on municipal property under the authority of this by-law

2.2 “cargo” means goods carried on an electric kick-scooter or pedal assist e-bike by putting them on a platform, basket or container for carrying parcels or goods. Purses, backpacks or bags that are safely and securely attached to the operator are not considered cargo.

2.3 “Chief of Police” means the Chief of Police of the Durham Regional Police Service or an authorized representative;

2.4 “cycle track” means a bikeway that is physically separated from the roadway by a curb. Cycle tracks often travel parallel to the sidewalk or in the boulevard. They are designated exclusively for use by people riding bikes though other types of rolling, such as rollerskating, skateboarding, or scooting, may be permitted. They may be at the same level as the sidewalk, or at an intermediate level between the roadway and sidewalk. Cycle tracks may be placed in the boulevard adjacent to or setback from the curb.

2.5 “electric kick-scooter” means a vehicle that has,

(a) two wheels placed along the same longitudinal axis, one placed at the front of the kick-scooter and one at the rear,
(b) a platform for standing between the two wheels,
(c) a steering handlebar that acts directly on the steerable wheel,
(d) an electric motor not exceeding 500 watts that provides a maximum speed of 24 kilometres per hour, and
(e) a maximum weight of 45 kilograms (kg) and wheels with a diameter of more than 430 millimetres.

2.6 “electric kick-scooter or pedal assist e-bike parking facilities” include ring and post racks, ring racks, charging stations, corrals that support electric kick-scooter or pedal assist e-bikes in an upright position or enable the frame to be secured, or an area designated by pavement marking or official or authorized sign for parking of electric kick-scooter or pedal assist e-bikes, and which facilities are predominantly located within the right-of-way or within a municipal parking lot and may be located in select designated and delineated on-street parking spaces or sidewalks, but do not include light standards, utility poles, sign posts, fences, street furniture, or similar infrastructure within the right-of-way;

2.7 “furniture zone” means the portion of a boulevard that buffers pedestrians from the adjacent highway or roadway and where elements such as trees, streetlights, hydrants, parking meters, or street furniture are typically located;

2.8 “highway” includes a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct, or trestle, any part of which is intended for, or used by, the general public for the passage of vehicles and includes the area between the lateral property lines thereof;

2.9 “Highway Traffic Act” means the Highway Traffic Act, R.S.O. 1990, c. H.8, as amended;

2.10 “motor vehicle” includes an automobile, a motorcycle, a motor assisted bicycle unless otherwise indicated in the Highway Traffic Act, and any other vehicle propelled or driven otherwise than by muscular power, but does not include a street

car or other motor vehicle running only upon rails, a power-assisted bicycle, a motorized snow vehicle, a traction engine, a farm tractor, a self-propelled implement of husbandry or a road-building machine;

2.11 “multi-use pathway” means a path located on the boulevard that is physically separated from motor vehicle traffic, designated for use by cyclists, pedestrians and people using other vehicles driven by muscular power

2.12 “off-road trail” means a path separated from roads typically through a natural area or corridor that accommodates pedestrians and cyclists. The surface type can range from natural surface to asphalt depending on the location.

2.13 “official sign” means a sign on the highway approved by the Ministry of Transportation of Ontario;

2.14 “pedal assist e-bike” means a pedal-driven bicycle of conventional exposed fork-and-frame bicycle design and appearance that does not resemble a motor scooter or motorcycle and that,

(a) has two or three wheels,
(b) is fitted at all times with pedals that are always operable to propel the bicycle,
(c) is capable at all times of being propelled on level ground solely by using muscular power to operate the pedals,
(d) has steering handlebars,
(e) has wheels that have a width of not less than 35 millimetres and a diameter of not less than 350 millimetres,
(f) has one or more electric motors that, singly or in combination, have a continuous rated output power not exceeding 500 watts and that is incapable of providing propulsion assistance when the bicycle attains a speed of 32 kilometres per hour or more, and
(g) weighs not more than 55 kilograms,

2.15 “pedestrian” means,

(a) a person on foot;
(b) a person in a wheelchair; or
(c) a child in a carriage, stroller or play vehicle;

2.16 “reserved bicycle lane” means those parts of the highway set aside by the Region or the Town of Ajax for the use of cyclists and designated by an official or authorized sign or by pavement markings

2.17 “roadway” means that part of the highway that is improved, designed or ordinarily used for vehicular traffic, but does not include the shoulder, and, where a highway includes two or more separate roadways, the term “roadway” refers to any one roadway separately and not to all of the roadways collectively;

2.18 “shared services” means electric kick-scooter or pedal assist e-bikes that are made available by a third- party for use by the public, for a fee.

2.19 “shoulder” means that part of the highway immediately adjacent to the roadway and having a surface which has been improved for the use of vehicles with asphalt, concrete or gravel;

2.20 “sidewalk” means those parts of a highway set aside by the Region or the Town of Ajax for the use of pedestrians;

2.21 “vehicle” includes a motor vehicle, trailer, traction engine, farm tractor, roadbuilding machine, bicycle and any vehicle drawn, propelled or driven by any kind of power, including muscular power, but does not include a motorized snow vehicle.

3. APPLICATION AND INTERPRETATION

3.1 This By-law applies to all highways, sidewalks, trails, paths, walkways, parks, multi-use pathways or any other property under the jurisdiction of the Town of Ajax.

3.2 This By-law is subject to the provisions of the Highway Traffic Act.

4. PROHIBITION

4.1 No person shall operate, or cause to be operated, or use an electric kick-scooter or pedal assist e-bike on a highway, sidewalk, trail, path, walkway, park, multi-use pathway or any other property under the jurisdiction of the Town of Ajax unless:
(a) permitted by and in accordance with the provisions of the Highway Traffic Act and Ontario Regulation 389/19, as amended;
(b) permitted by and in accordance with any applicable traffic by-laws; and
(c) permitted by and in accordance with the provisions of this By-law.

4.2 No person shall operate, or cause to be operated, or use an electric kick-scooter or pedal assist e-bike on a highway with a legal speed limit greater than 60 kilometres per hour, unless within a reserved bicycle lane.

4.3 No person shall operate, or cause to be operated, or use an electric kick-scooter or pedal assist e-bike on any sidewalk, including on sidewalks where bicycles are permitted by an official or authorized sign.

4.4 No person shall operate, or cause to be operated, or use an electric kick- scooter or pedal assist e-bike in areas where cycling, skateboarding or rollerblading are prohibited.

5. GENERAL REGULATIONS

5.1 Planning and Development Services and Operations and Environmental Services are authorized to erect, place and maintain such official and authorized signs as are required to give effect to the provisions of this By-law.

5.2 No person under the age of 16 years shall operate an electric kick-scooter or pedal assist e-bike.

5.3 No person under the age of 18 years old shall fail to wear a helmet that complies with the Highway Traffic Act when operating an electric kick-scooter or pedal assist e-bike.

5.4 No person operating an electric kick-scooter or pedal assist e-bike shall carry any other person thereon.

5.5 No person operating an electric kick-scooter or pedal assist e-bike shall tow another person, vehicle or device.

5.6 No person operating an electric kick-scooter shall attach themselves to another electric kick-scooter vehicle or device for the purpose of being drawn or towed.

5.7 No person operating an electric kick-scooter shall operate it in any position other than while standing at all times.

5.8 No cargo may be carried on an electric kick-scooter.

5.9 No person shall park, stop or leave an electric kick-scooter or pedal assist e-bike or permit an electric kick-scooter or pedal assist e-bike to remain parked or stopped on a highway, roadway, sidewalk or trail, path, walkway, park, or multi-use pathway, except where electric kick- scooter parking facilities are provided.

5.10 No person shall park or stop an electric kick-scooter or pedal assist e-bike or permit an electric kick- scooter to remain parked or stopped within a furniture zone, unless authorized by the Town of Ajax.

5.11 No person shall park or stop an electric kick-scooter or pedal assist e-bike or permit an electric kick- scooter or pedal assist e-bike to remain parked or stopped on a highway, roadway, sidewalk or trail, path, walkway, park, exhibition ground or multi-

use pathway in such a manner that obstructs the flow of pedestrian, vehicular or cyclist traffic.

5.12 The operator of an electric kick scooter or pedal assist e-bike may park at an existing bicycle parking facility, including bicycle parking within a furniture zone.

5.13 The operator of an electric kick scooter may use an electric scooter on multi-use paths, paved off-road trails with a minimum width of 2 metres, cycle tracks, designated bicycle lanes, and Town roads with a legal speed limit less than or equal to 60 kilometres per hour.

5.14 The operator of a pedal assist e-bike may use a pedal assist e-bike on multi-use paths, paved off-road trails with a minimum width of 2 metres, cycle tracks, designated bicycle lanes, and Town roads with a legal speed limit less than or equal to 60 kilometres per hour.

6. SAFE OPERATION

6.1 The operator of an electric kick-scooter or pedal assist e-bike shall keep a safe distance of at least one metre from pedestrians and other users of the roadway, shoulder, sidewalk, trail, path, walkway, park, or multi-use pathway at all times and shall give way to a pedestrian or bicycle by slowing or stopping where there is insufficient space for the pedestrian or bicycle and the electric kick-scooter or pedal assist e-bike to pass.

6.2 An electric kick-scooter or pedal assist e-bike shall not be operated on a trail, or in a park, exhibition ground or multi-use pathway trail at a speed that is markedly greater than the speed of the pedestrians who are proximate to the electric kick-scooter.

6.3 Where reserved bicycle lanes are provided on a highway, an electric kick- scooter shall only be operated in the reserved bicycle lane.

6.4 Where no reserved bicycle lanes exist on a highway where electric kick-scooter or pedal assist e-bike are permitted to operate, the operator of an electric kick-scooter or pedal assist e-bike shall ride as close as practicable to the right-hand curb or edge of the roadway or on the paved shoulder.

6.5 No person shall operate an electric kick-scooter or pedal assist e-bike within a crosswalk or pedestrian crossover, as those terms are defined in the Highway Traffic Act.

6.6 Every electric kick-scooter and pedal assist e-bike shall be equipped with a bell or horn which shall be kept in good working order and sounded to notify cyclists, pedestrians or others of its approach.

6.7 When operated at any time from one-half hour before sunset to one-half hour after sunrise and at any other time when, due to insufficient light or unfavourable atmospheric conditions, persons and vehicles are not clearly discernible at a distance of 150 metres or less, every electric kick-scooter or pedal assist e-bike shall carry a lighted lamp displaying a white or amber light at the front and a lighted lamp displaying a red light at the rear. The lamps may be attached to the electric kick-scooter or pedal assist e-bike or may be carried or worn by the operator on his or her person.

7. ENFORCEMENT

7.1 The provisions of this by-law may be enforced by:
(a) a police officer pursuant to subsection 42(1)(h) of the Police Services Act, R.S.O. 1990, c. P.15 for all roads and sidewalks within Ajax;
(b) any person appointed for the purpose by a by-law of the Town of Ajax for all paths and trails and/or;
(c) all employees of the Town of Ajax whose duties include the enforcement of this by-law; and/or

8. OFFENCES AND FINES

8.1 Every person who contravenes any provision of this bylaw is guilty of an offence and upon conviction is liable to a fine as provided for by the Provincial Offences Act, R.S.O. 1990, Chapter P.33, as amended.

9. SHARED SERVICES

9.1 Where shared services are allowed to operate in a municipality, the following rules shall apply to the operation or use of the shared services electric kick- scooters:
(a) No person shall park, stop or leave an electric kick-scooter or pedal assist e-bike or permit an electric kick-scooter or pedal assist e-bike to remain parked or stopped on a highway, roadway sidewalk, or trail, path, walkway, park or multi-use pathway, except where electric kick-scooter or pedal assist e-bike parking facilities are provided.
(b) No person shall park or stop an electric kick-scooter or pedal assist e-bike or permit an electric kick-scooter or pedal assist e-bike to remain parked or stopped within a furniture zone, unless authorized by the Town of Ajax.

(c) No person shall park or stop an electric kick-scooter or pedal assist e-bike or permit an electric kick-scooter or pedal assist e-bike to remain parked or stopped on a highway, roadway sidewalk, or trail, path, walkway, park, exhibition ground or multi-use pathway in such a manner that obstructs the flow of pedestrian, vehicular or cyclist traffic.

(d) The operator of an electric kick scooter or pedal assist e-bike rented from a shared company may park at an existing bicycle parking facility, including bicycle parking facilities within a furniture zone.

10. EFFECTIVE DATE

10.1 This By-law shall come into force on _____ and shall be repealed on the earlier of:

(a) the revocation of Ontario Regulation 389/19: Pilot Project – Electric Kick- Scooters and

(b) November 27, 2024.

This By-law Read and Passed on _____.

E-scooters and E-bikes Decision Making Criteria

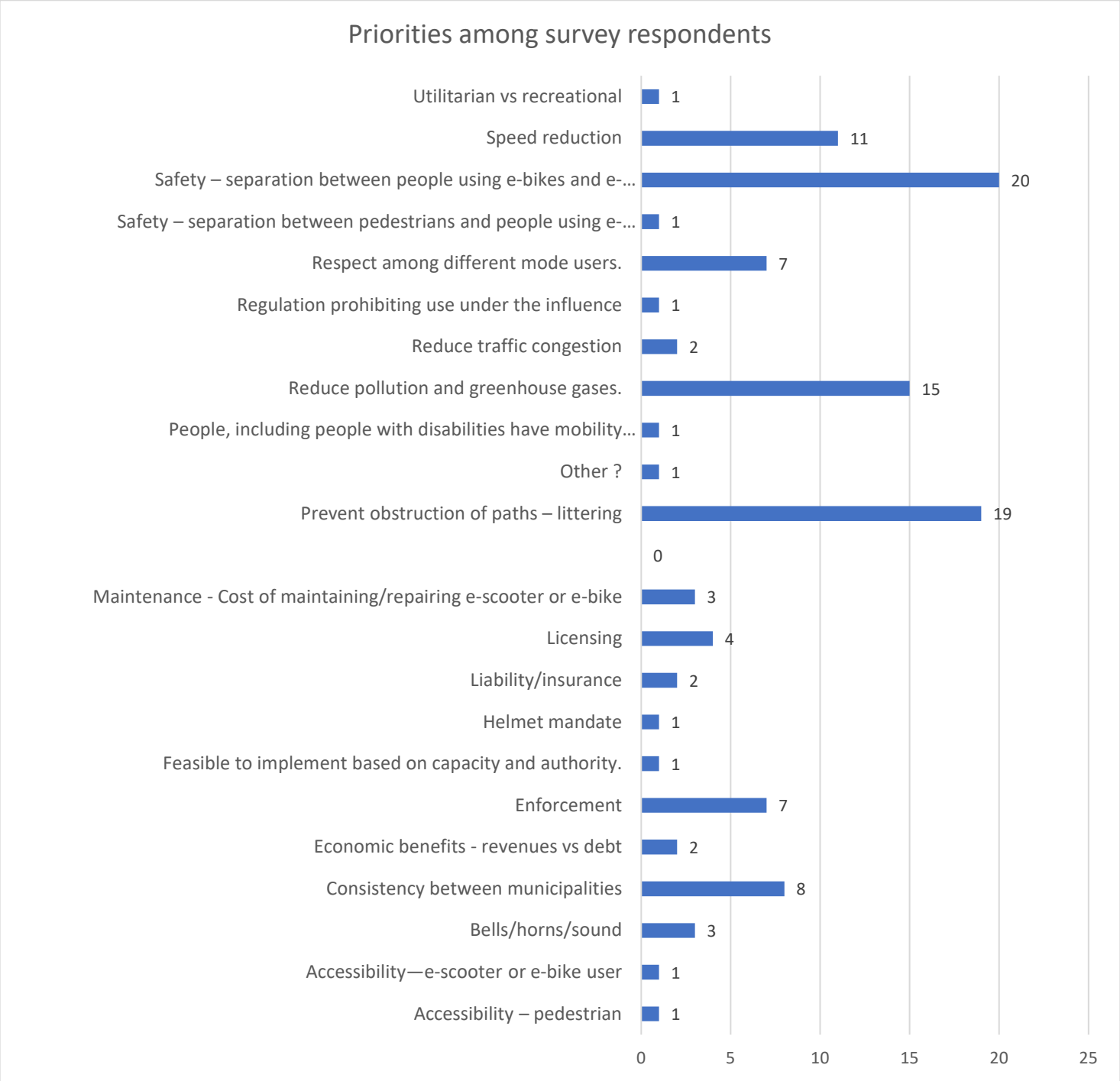
Where should the Town of Ajax permit the use of e-scooters and e-bikes?

	How does the option benefit the criteria?	
Criteria	**Option 1: Permit e-scooters and e-bikes on Town Roads only.**	**Option 2: Permit e-scooters and e-bikes on Town roads and Town roads and paved off-road bike facilities with a width of 2 metres.**
People, including people with disabilities have mobility options, even if they cannot drive a car or do not have someone to drive them.	Meets criteria: Still enables options but only for people who are comfortable riding on the road.	Meets criteria: More people can benefit because many people feel safer when they are separated from cars.
Reduce traffic congestion.	Meets criteria: Still possible but only if people are comfortable riding on the road.	Meets criteria: More people can contribute to reducing traffic because many people feel safer when they are separated from cars.
Reduce pollution and greenhouse gases.	Meets criteria: Still possible but only if people are comfortable riding on the road.	Meets criteria: More people can contribute to reducing pollution and greenhouse gases because many people feel safer when they are separated from cars.
Respect among different mode users.	Challenging to meet criteria: Need education among drivers in addition to e-scooter and e-bike users. There is still the risk that people will use e-scooters and e-bikes even if they are prohibited.	Challenging to meet criteria: Need education among e-scooter users and e-bike users and drivers. Further, it may be worth considering informing pedestrians that the major trails are part of the overall active transportation network for utilitarian and recreational uses, not just recreational uses.
Safety: Minimize risk of conflict with pedestrians and people using e-scooters and e-bikes.	Meets criterion, however, people may still use e-scooters and e-bikes, especially on sidewalks. This option is only effective for minimizing conflict between pedestrians and people using e-bikes and e-scooters if there is sufficient capacity for enforcement. The main benefit of this option is that it reduces liability on the municipality if a collision were to	To meet this criterion entirely involves creating separate paths between pedestrians and people using e-scooters, e-bikes, conventional bikes, and other types of rolling. There are trails with physical constraints to providing this separation. However, this option enables staff to redirect e-scooter and e-bike users to an off-road option instead of using sidewalks.

	How does the option benefit the criteria?	
Criteria	**Option 1: Permit e-scooters and e-bikes on Town Roads only.**	**Option 2: Permit e-scooters and e-bikes on Town roads and Town roads and paved off-road bike facilities with a width of 2 metres.**
	occur between an e-bike user and an e-scooter user.	
Unobstructed paths for pedestrians.	Meets criterion though may still be challenging with shared e-scooters and e-bikes: Shared e-scooters and e-bikes can be programmed so that users are charged more for improper parking. Companies can also take measures to retrieve abandoned scooters. People who own an e-bike or e-scooter are not likely to abandon them.	Possible to meet this criterion though may still be challenging with shared e-scooters and e-bikes: Shared e-scooters and e-bikes can be programmed so that users are charged more for improper parking. Companies can also take measures to retrieve abandoned scooters. People who own an e-bike or e-scooter are not likely to abandon them.
Feasible to implement based on capacity and authority.	Challenging to implement: Need more enforcement and education at the Town level. Additional transportation staff may also be required to oversee the implementation of a micromobility pilot. A shared e-scooter company can provide education and enforcement.	Challenging to implement: Need more enforcement, education, and review of maintenance practices. Additional transportation staff may also be required to oversee the implementation of a micromobility pilot. A shared e-scooter company can provide education and enforcement.
Consistency with other municipalities	Not feasible to be consistent with all local municipalities within Durham given that there are already different decisions. This option is consistent with Pickering and the Region of Durham.	Not feasible to be consistent with all local municipalities within Durham given that there are already different decisions. This option is consistent with the City of Oshawa and the Region of Durham.

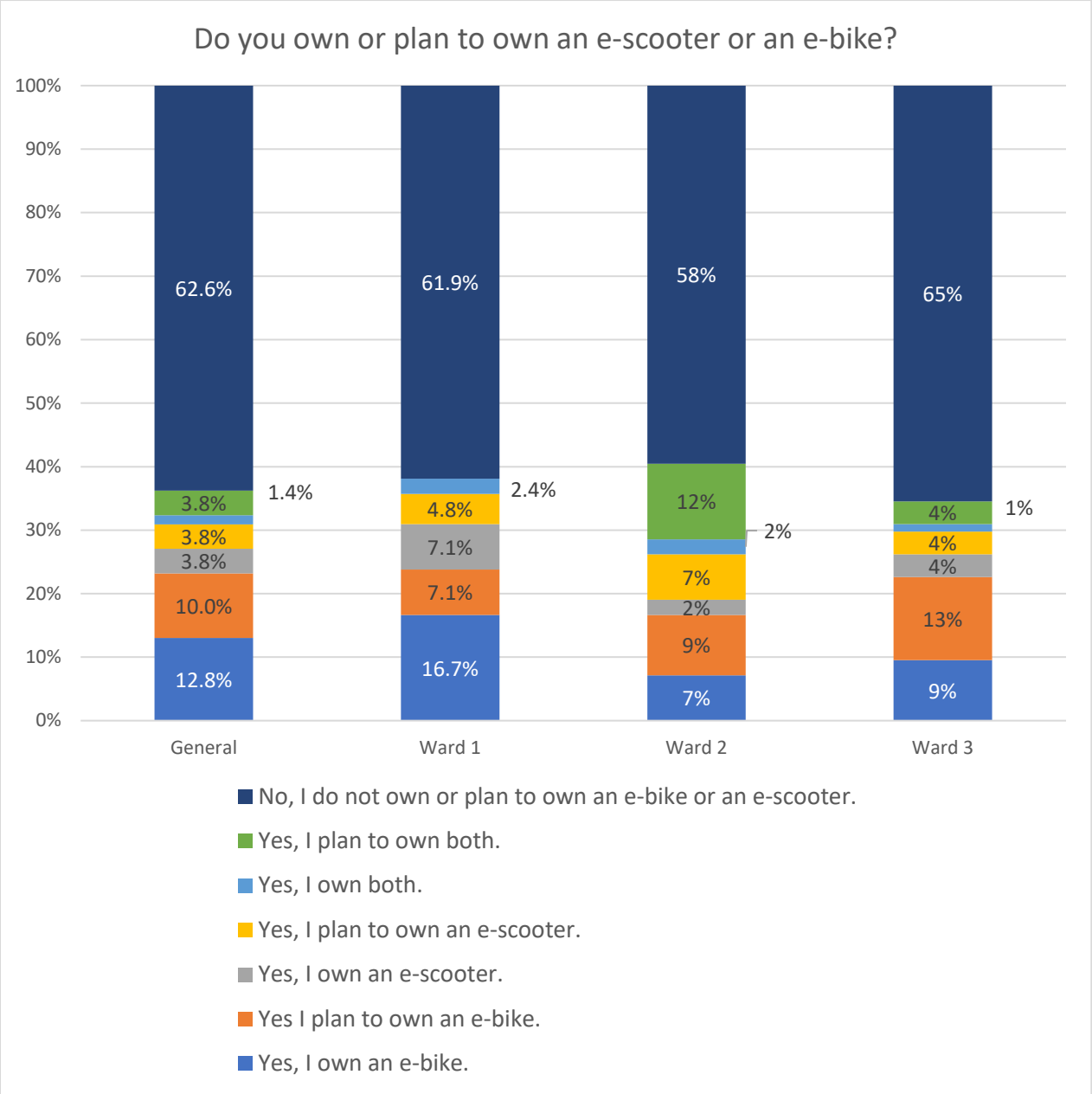
Survey Results by Ward and Disability

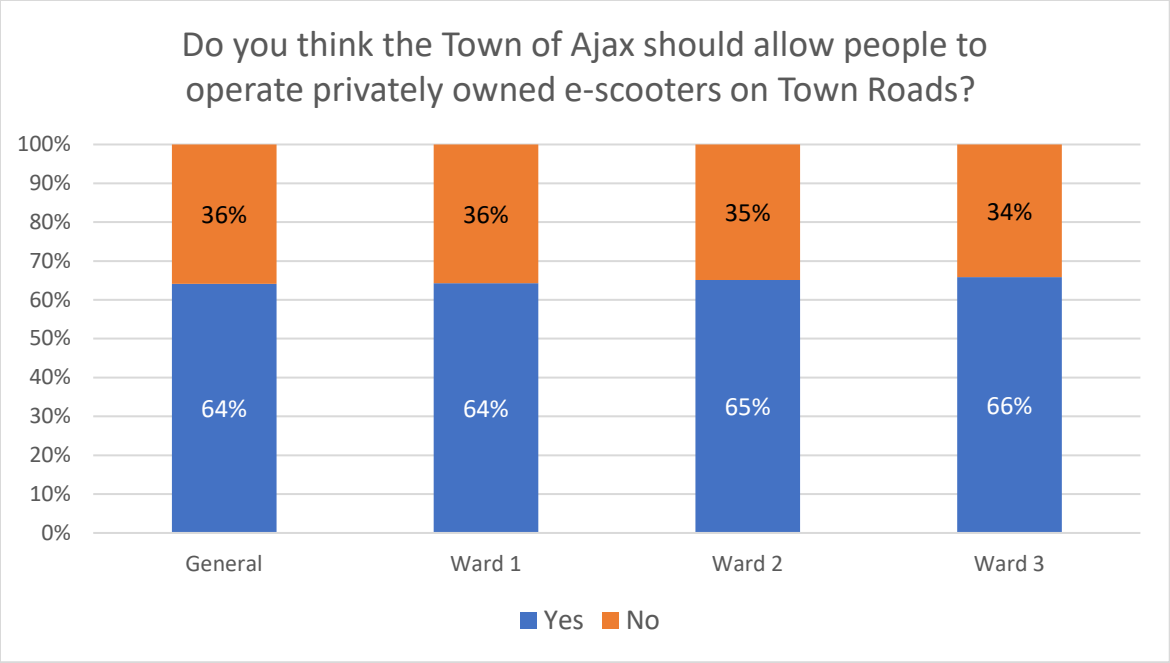
Public Opinion on E-scooters and E-bikes—Priorities

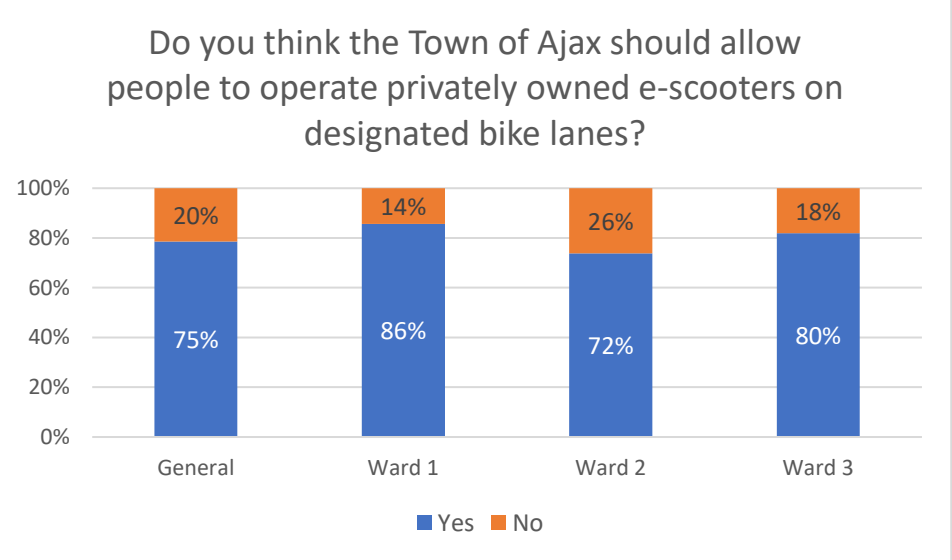


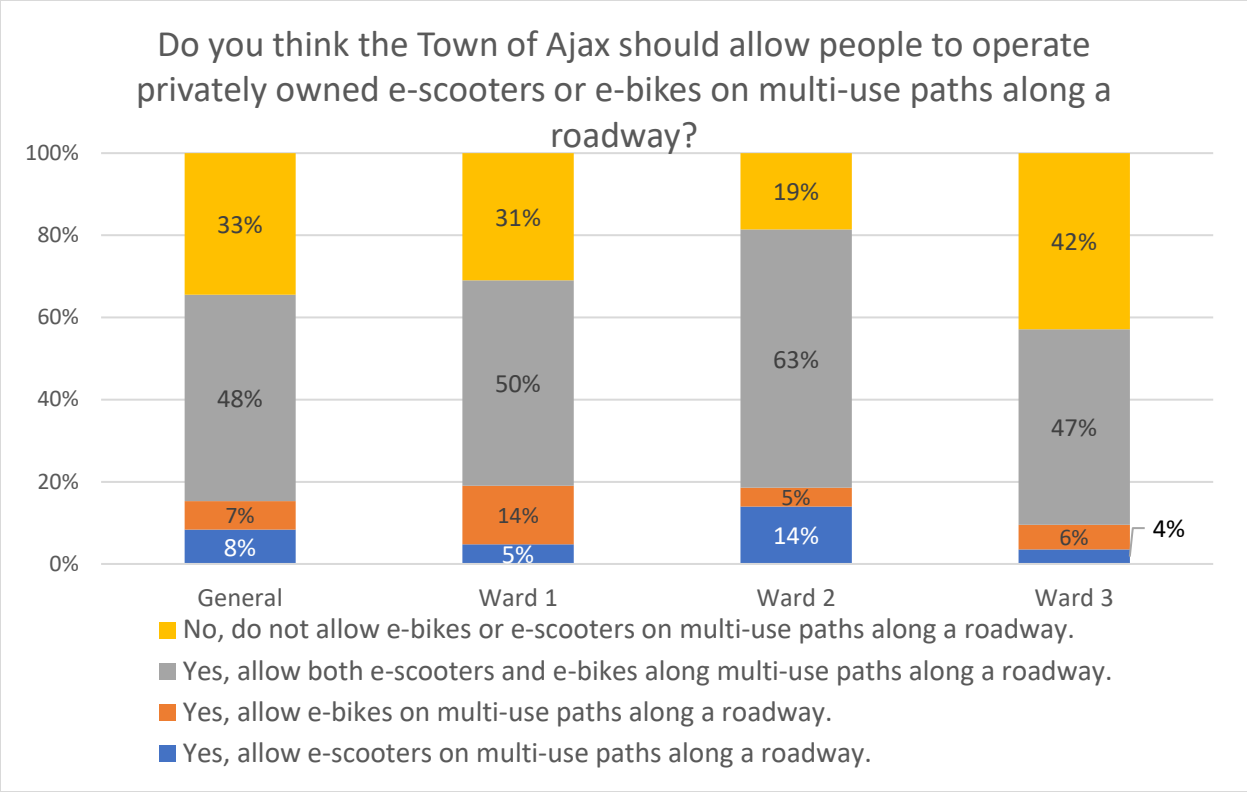
Public Opinion on E-scooters and E-bikes by Ward

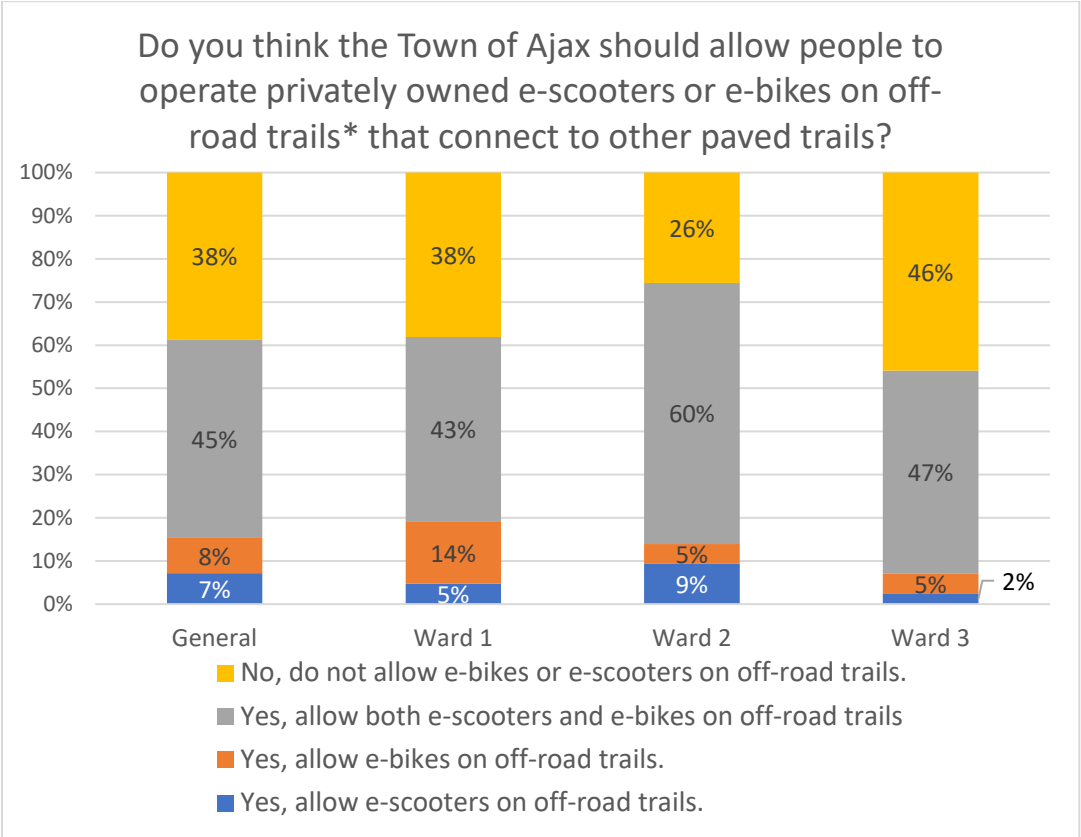
Privately Owned E-scooters and E-bikes



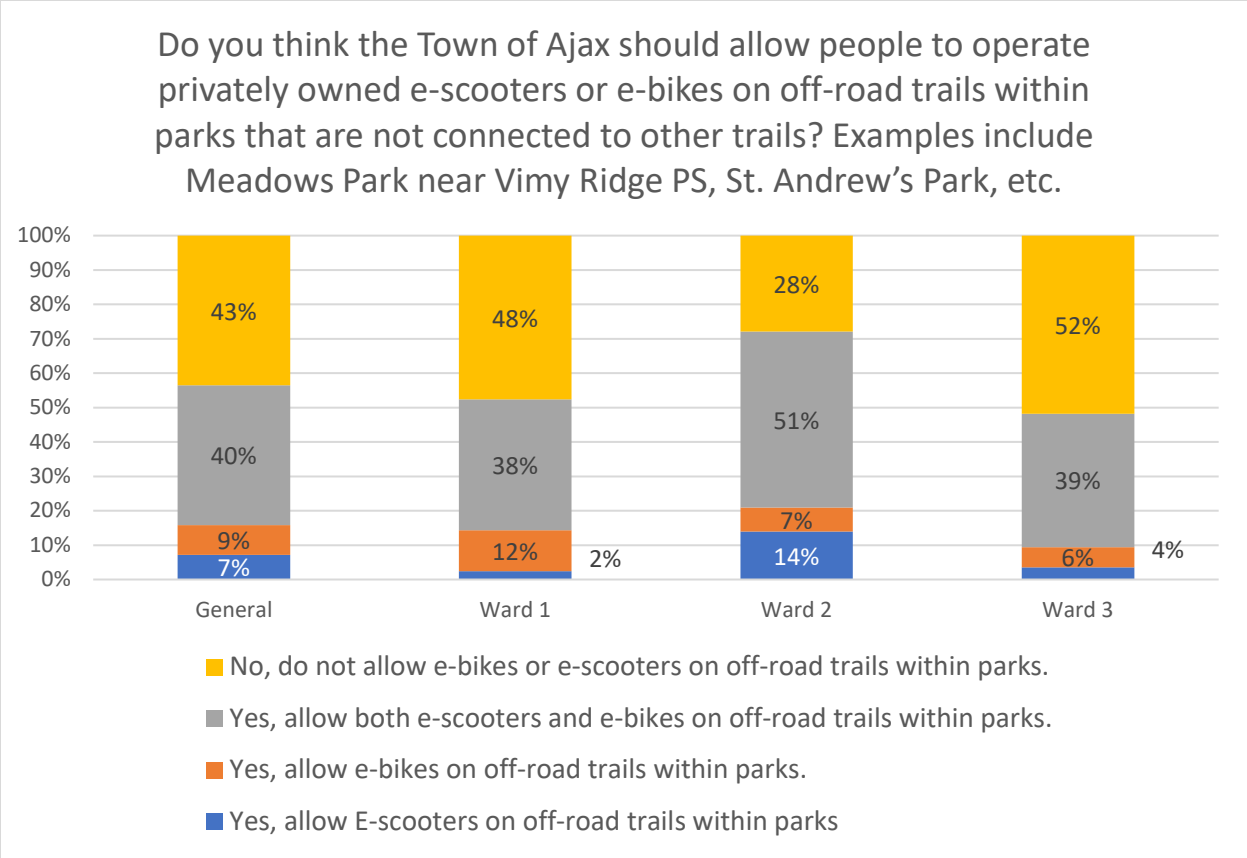

Do you think the Town of Ajax should allow people to operate privately owned e-scooters on Town Roads?
100%
90%
80%
70%
60%
50%
40%
30%
20%
10%
0%
36%
36%
35%
34%
64%
64%
65%
66%
General
Ward 1
Ward 2
Ward 3
Yes
No


Do you think the Town of Ajax should allow people to operate privately owned e-scooters on designated bike lanes?
100%
80%
60%
40%
20%
0%
20%
14%
26%
18%
75%
86%
72%
80%
General
Ward 1
Ward 2
Ward 3
Yes
No

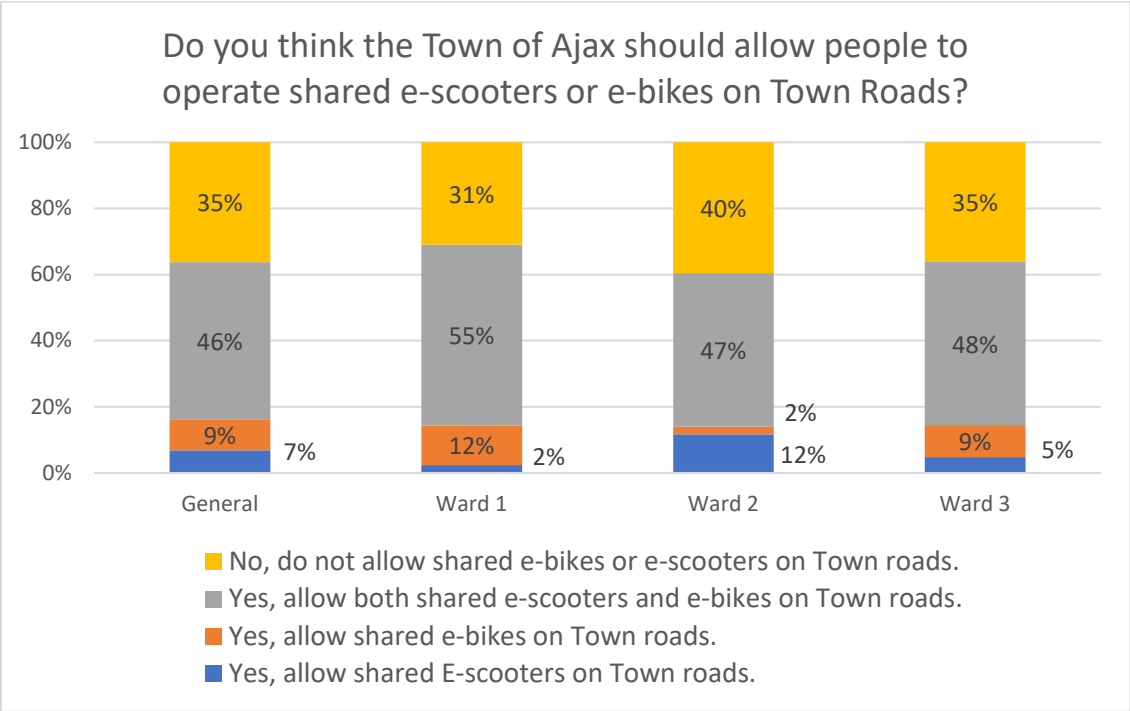


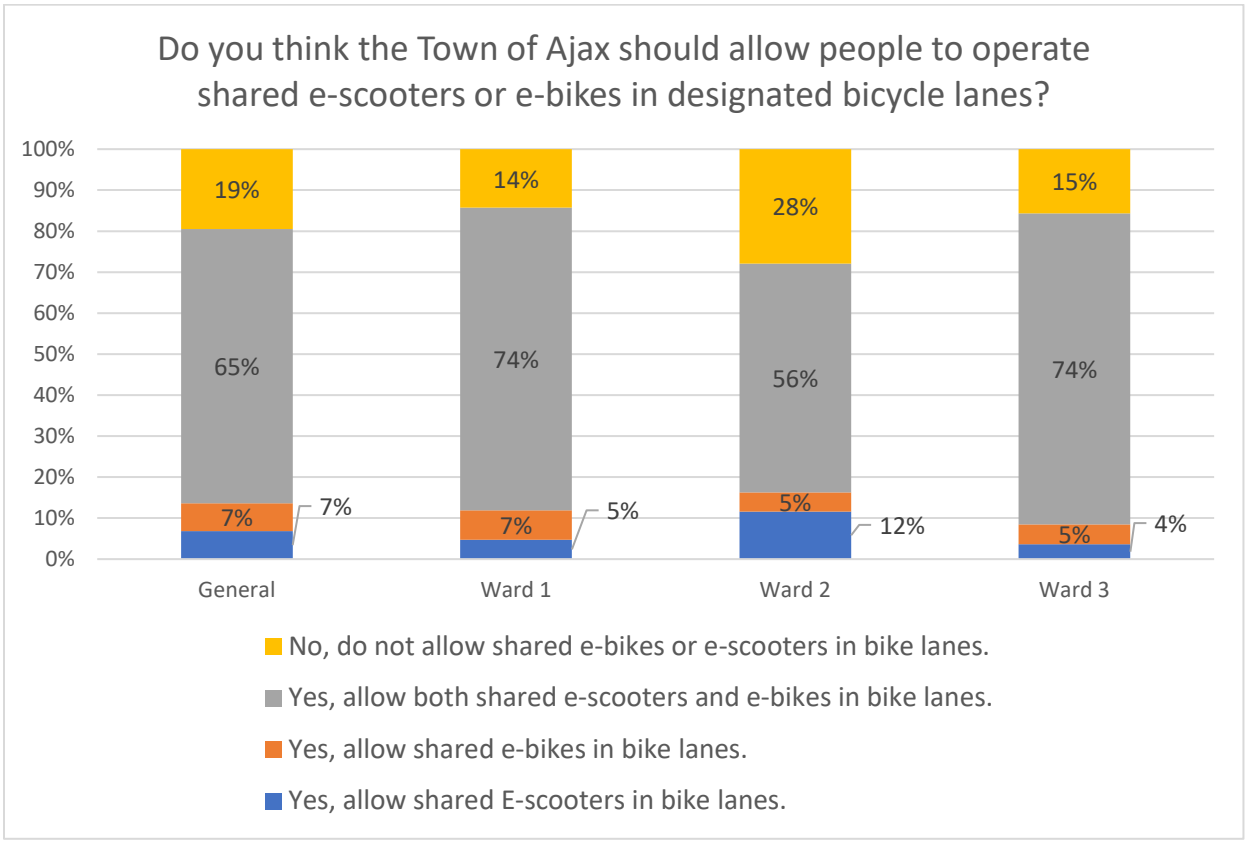


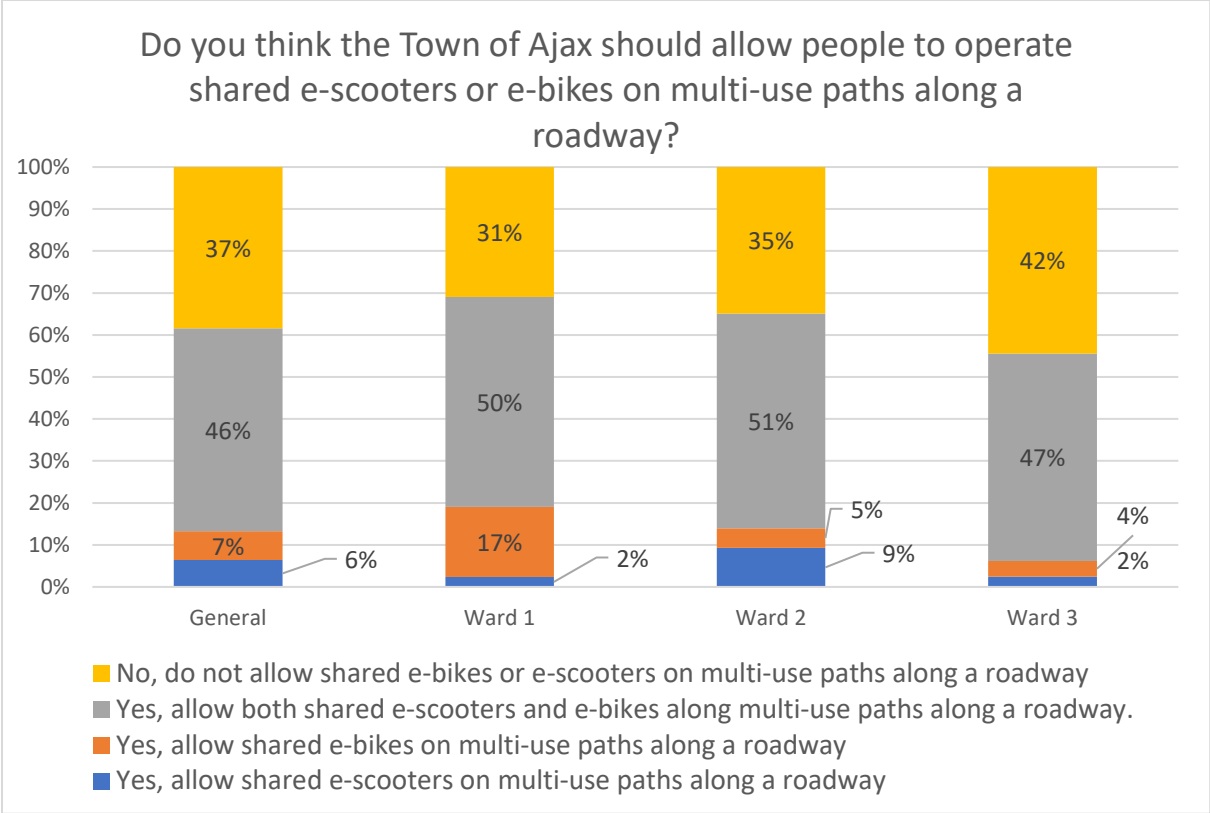
*Such as Millers Creek Trail, Carruthers Creek Trail

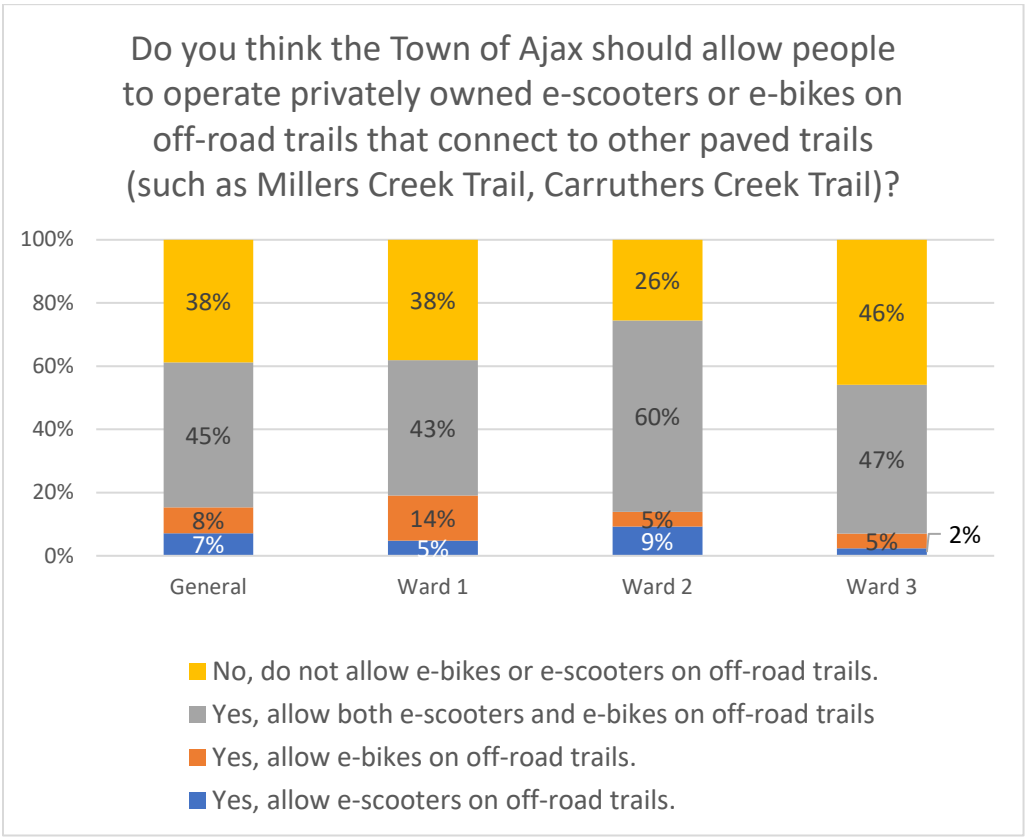

Do you think the Town of Ajax should allow people to operate privately owned e-scooters or e-bikes on off-road trails within parks that are not connected to other trails? Examples include Meadows Park near Vimy Ridge PS, St. Andrew's Park, etc.
100%
90%
80%
70%
60%
50%
40%
30%
20%
10%
0%
43%
40%
9%
7%
48%
38%
12%
2%
28%
51%
7%
14%
52%
39%
6%
4%
General
Ward 1
Ward 2
Ward 3
No, do not allow e-bikes or e-scooters on off-road trails within parks.
Yes, allow both e-scooters and e-bikes on off-road trails within parks.
Yes, allow e-bikes on off-road trails within parks.
Yes, allow E-scooters on off-road trails within parks

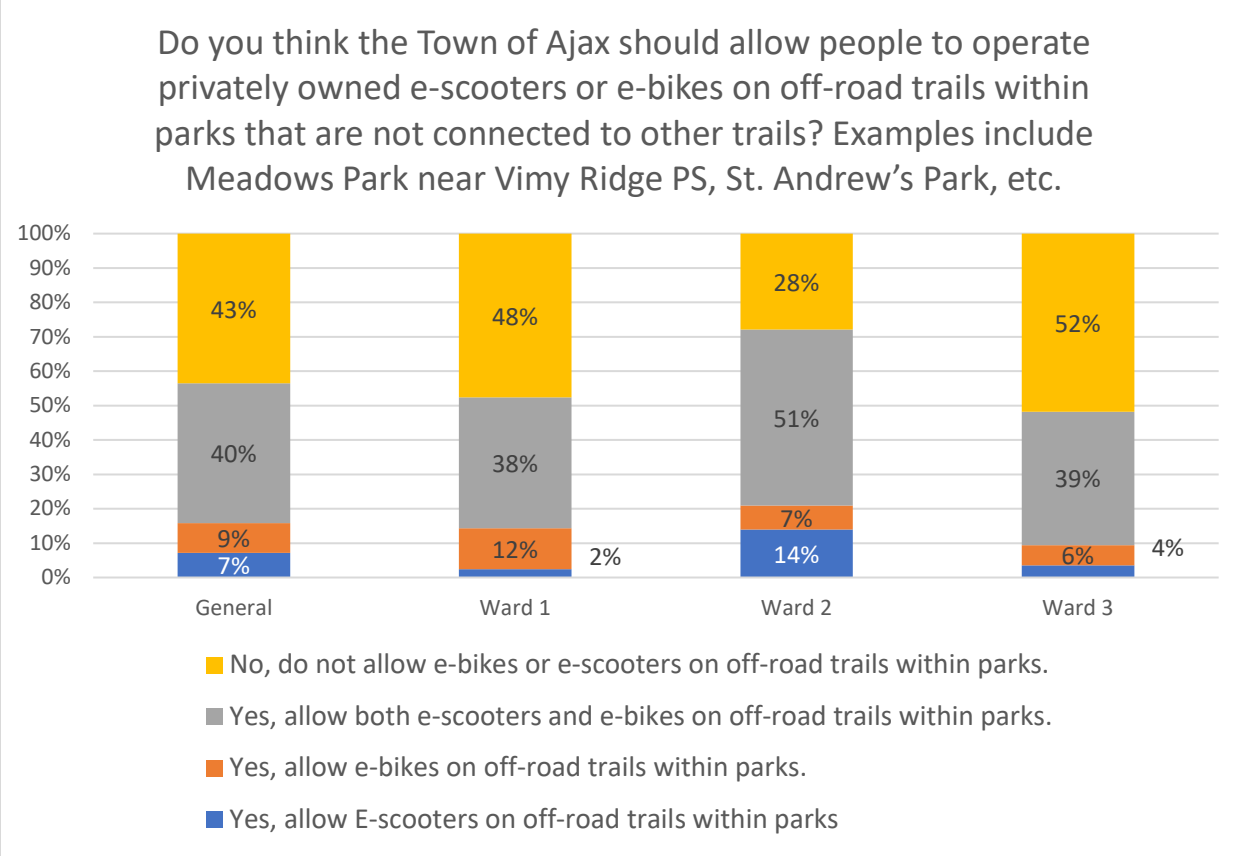
Shared E-scooters and E-bikes

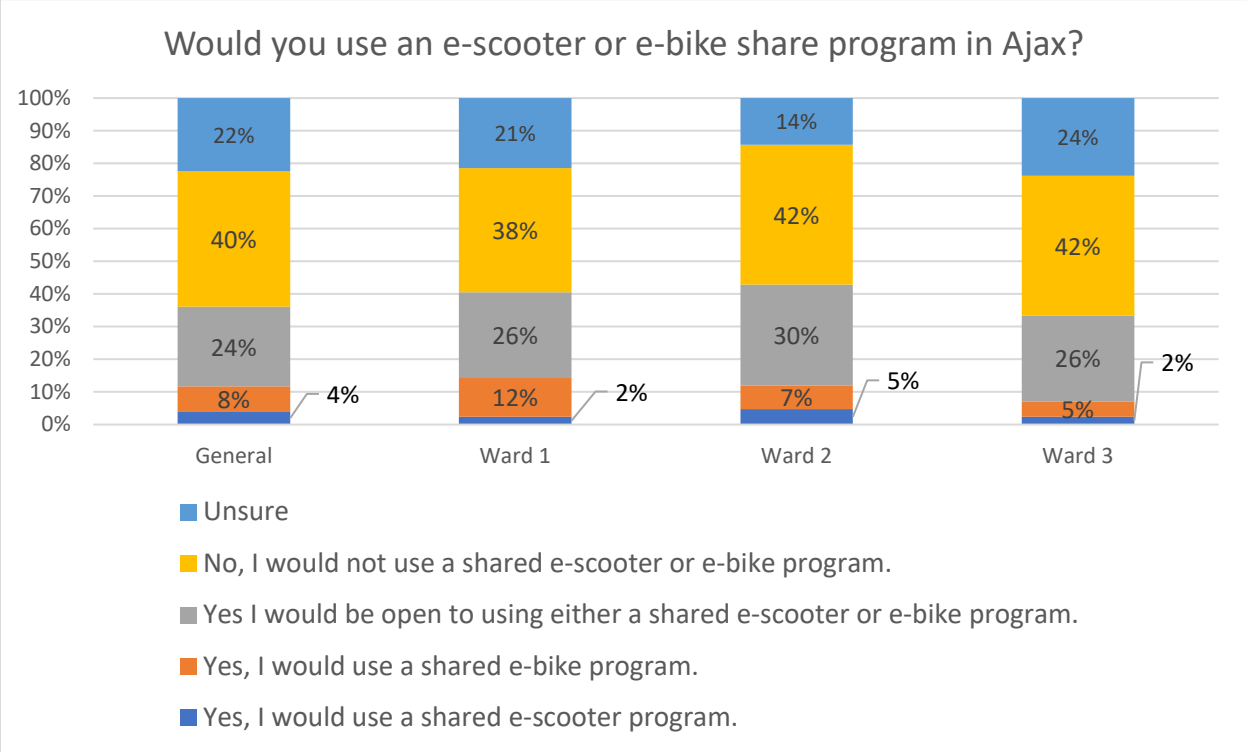


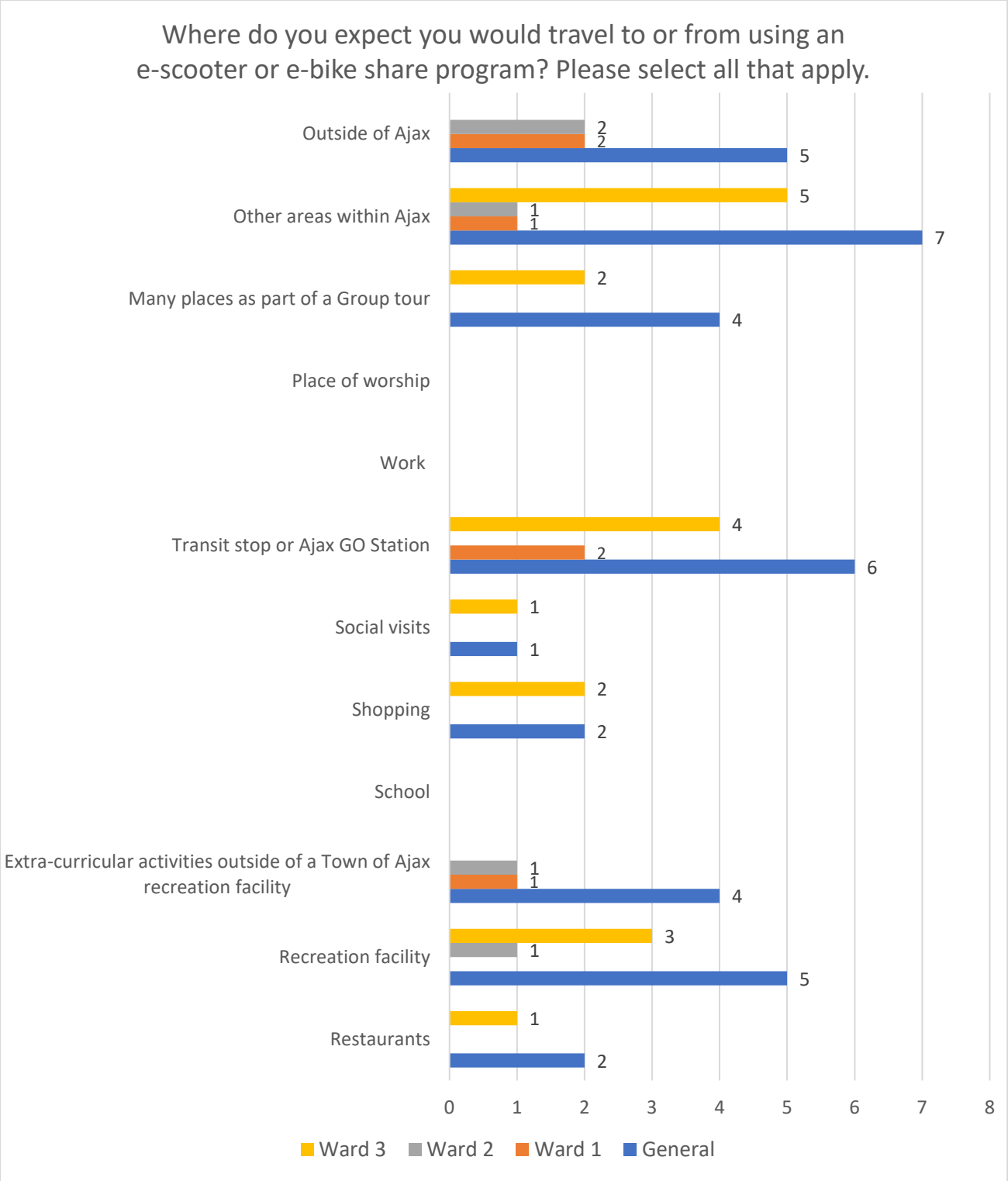



Do you think the Town of Ajax should allow people to operate shared e-scooters or e-bikes on multi-use paths along a roadway?
100%
90%
80%
70%
60%
50%
40%
30%
20%
10%
0%
37%
46%
7%
6%
31%
50%
17%
2%
35%
51%
5%
9%
42%
47%
4%
2%
General
Ward 1
Ward 2
Ward 3
No, do not allow shared e-bikes or e-scooters on multi-use paths along a roadway
Yes, allow both shared e-scooters and e-bikes along multi-use paths along a roadway.
Yes, allow shared e-bikes on multi-use paths along a roadway
Yes, allow shared e-scooters on multi-use paths along a roadway


Do you think the Town of Ajax should allow people to operate privately owned e-scooters or e-bikes on off-road trails that connect to other paved trails (such as Millers Creek Trail, Carruthers Creek Trail)?
100%
80%
60%
40%
20%
0%
38%
45%
8%
7%
38%
43%
14%
5%
26%
60%
5%
9%
46%
47%
5%
2%
General
Ward 1
Ward 2
Ward 3
No, do not allow e-bikes or e-scooters on off-road trails.
Yes, allow both e-scooters and e-bikes on off-road trails
Yes, allow e-bikes on off-road trails.
Yes, allow e-scooters on off-road trails.

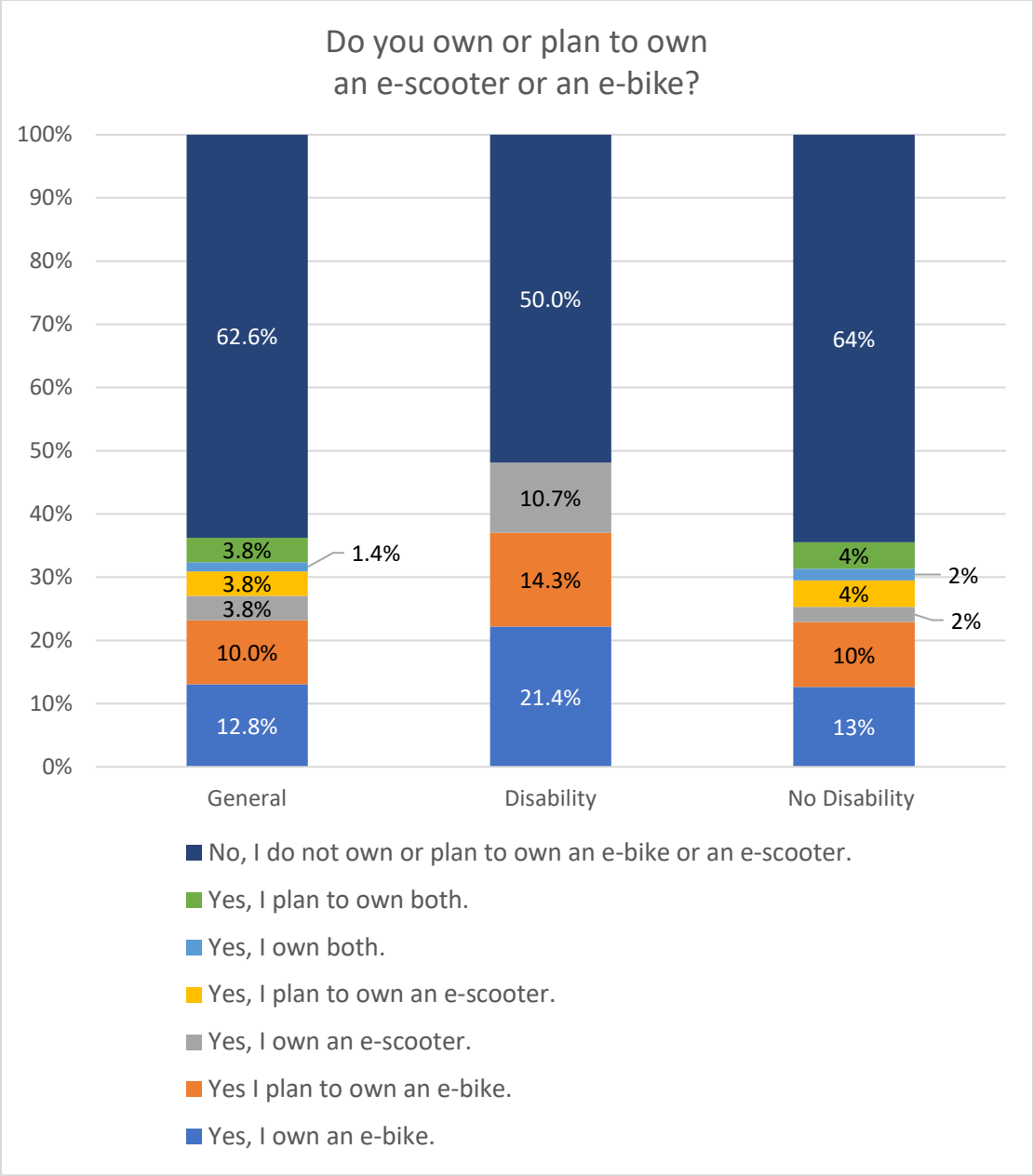

Do you think the Town of Ajax should allow people to operate privately owned e-scooters or e-bikes on off-road trails within parks that are not connected to other trails? Examples include Meadows Park near Vimy Ridge PS, St. Andrew's Park, etc.
100%
90%
80%
70%
60%
50%
40%
30%
20%
10%
0%
43%
40%
9%
7%
48%
38%
12%
2%
28%
51%
7%
14%
52%
39%
6%
4%
General
Ward 1
Ward 2
Ward 3
No, do not allow e-bikes or e-scooters on off-road trails within parks.
Yes, allow both e-scooters and e-bikes on off-road trails within parks.
Yes, allow e-bikes on off-road trails within parks.
Yes, allow E-scooters on off-road trails within parks

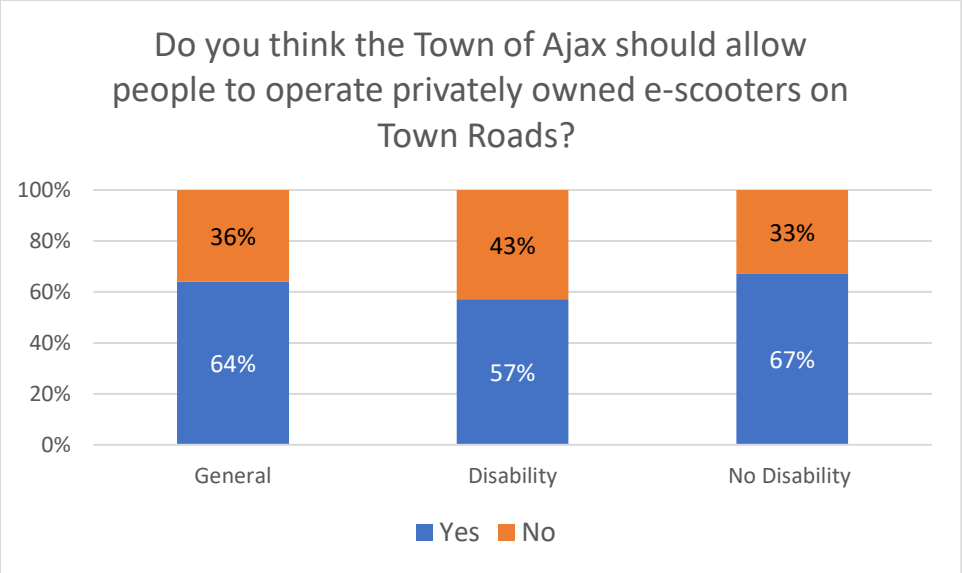

Would you use an e-scooter or e-bike share program in Ajax?
100%
90%
80%
70%
60%
50%
40%
30%
20%
10%
0%
22%
40%
24%
8%
4%
21%
38%
26%
12%
2%
14%
42%
30%
7%
5%
24%
42%
26%
5%
2%
General
Ward 1
Ward 2
Ward 3
Unsure
No, I would not use a shared e-scooter or e-bike program.
Yes I would be open to using either a shared e-scooter or e-bike program.
Yes, I would use a shared e-bike program.
Yes, I would use a shared e-scooter program.

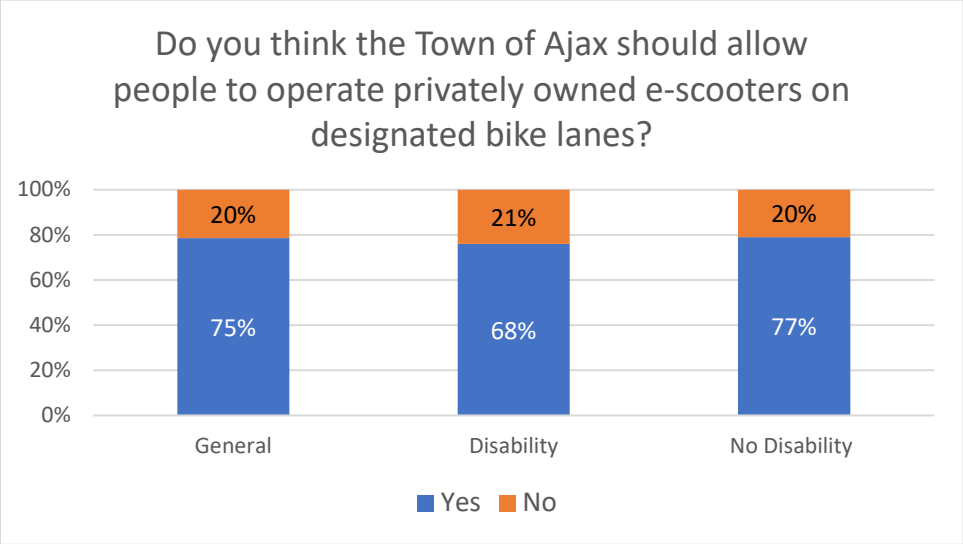

Where do you expect you would travel to or from using an e-scooter or e-bike share program? Please select all that apply.
Outside of Ajax
Other areas within Ajax
Many places as part of a Group tour
Place of worship
Work
Transit stop or Ajax GO Station
Social visits
Shopping
School
Extra-curricular activities outside of a Town of Ajax recreation facility
Recreation facility
Restaurants
0 1 2 3 4 5 6 7 8
Ward 3 Ward 2 Ward 1 General

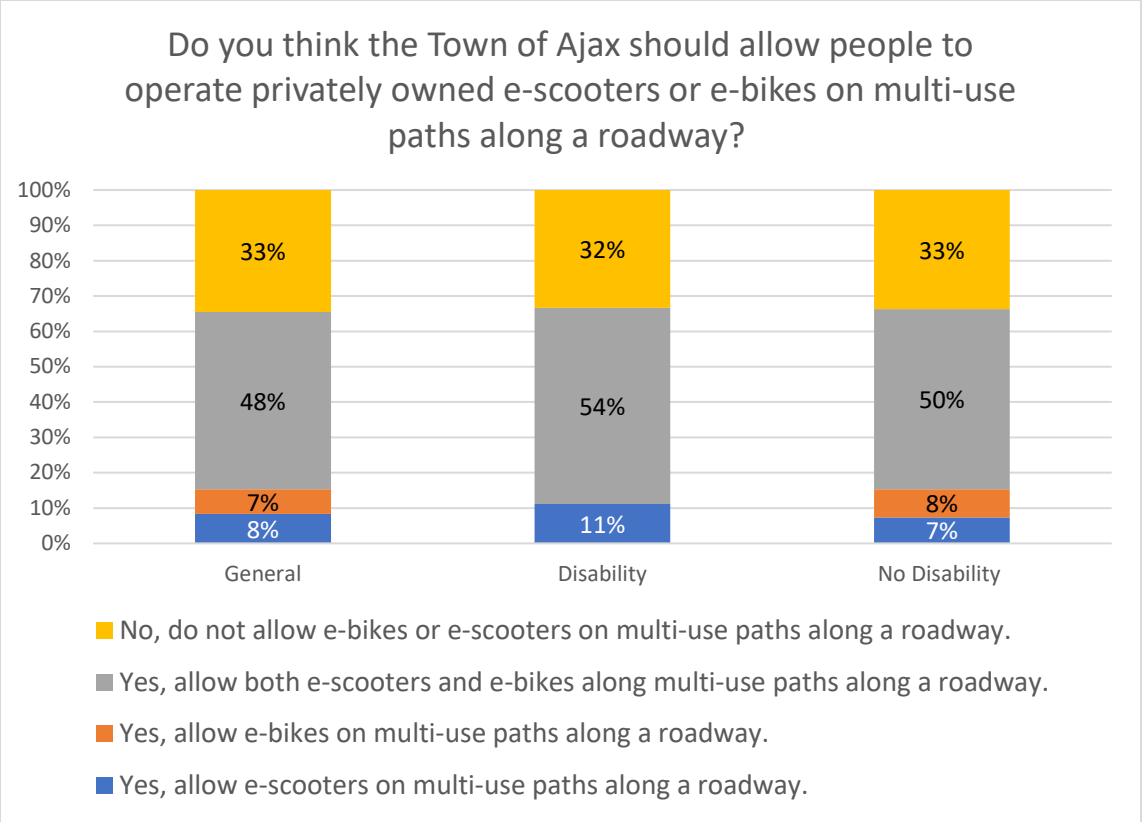
Public Opinion on E-scooters and E-bikes - Disability

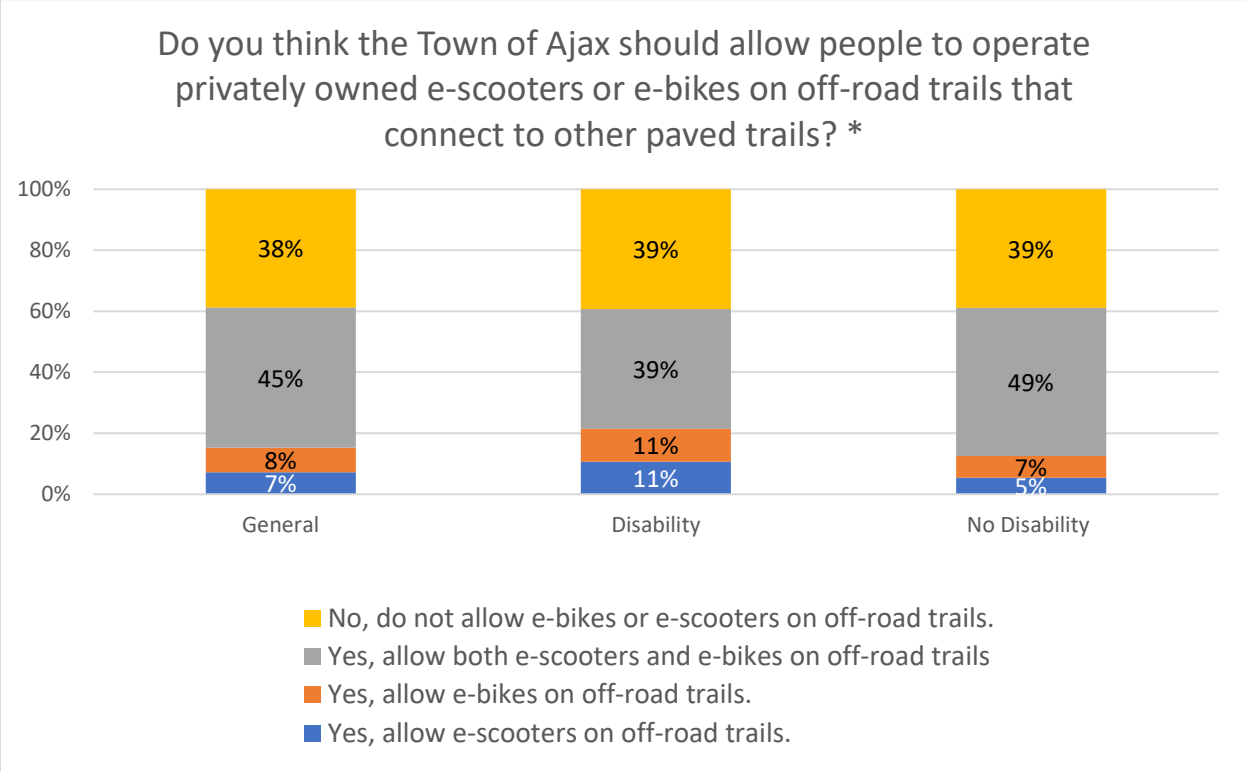
Privately Owned E-scooters and E-bikes



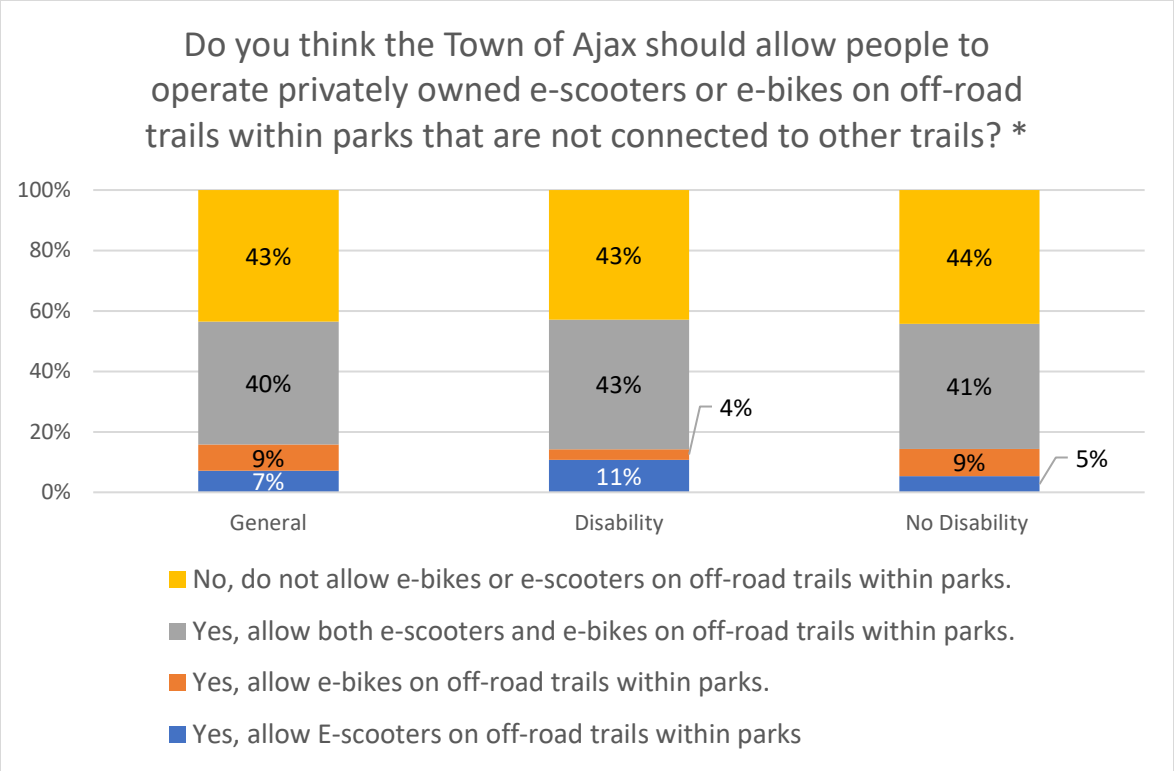

Do you think the Town of Ajax should allow people to operate privately owned e-scooters on Town Roads?
100%
80%
60%
40%
20%
0%
36%
64%
43%
57%
33%
67%
General
Disability
No Disability
Yes
No


Do you think the Town of Ajax should allow people to operate privately owned e-scooters on designated bike lanes?
100%
80%
60%
40%
20%
0%
20%
75%
21%
68%
20%
77%
General
Disability
No Disability
Yes
No



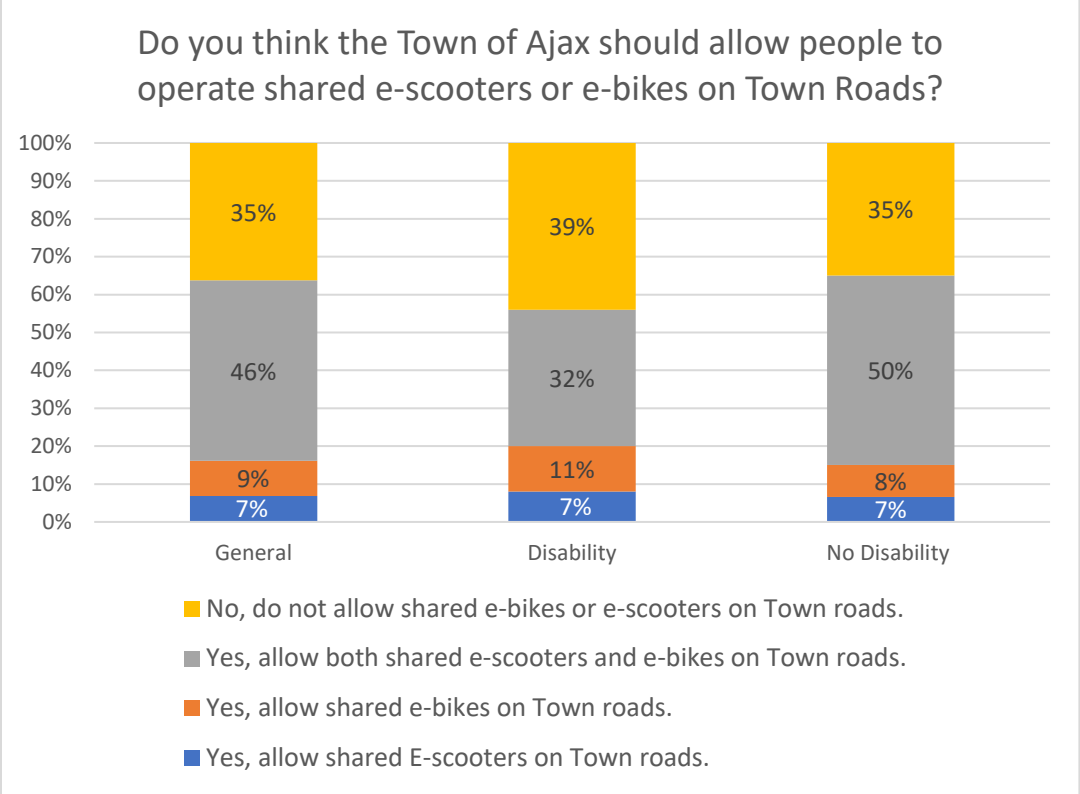


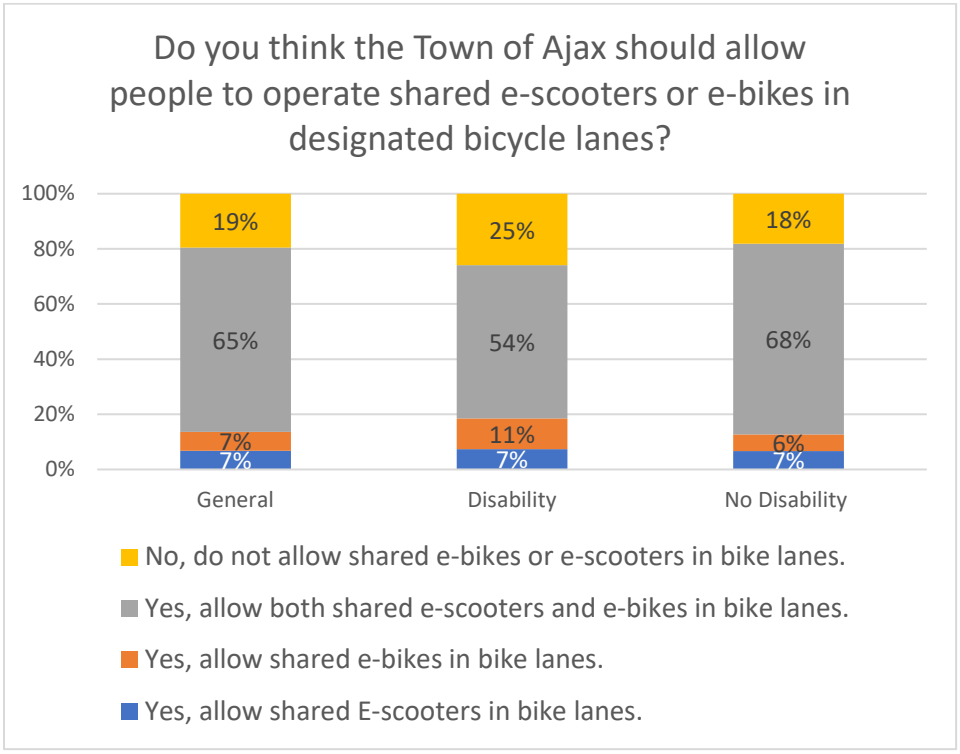
* Examples include Millers Creek Trail, Carruthers Creek Trail

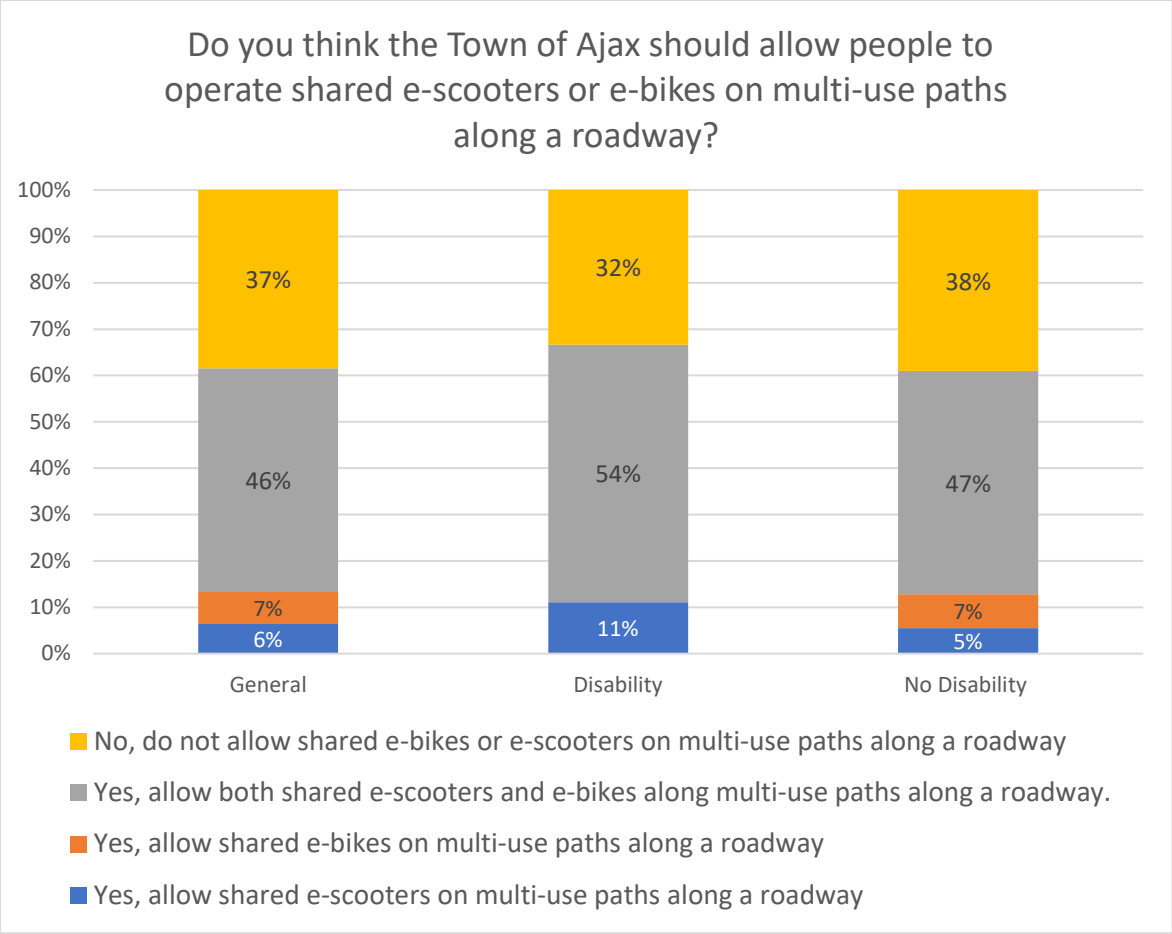


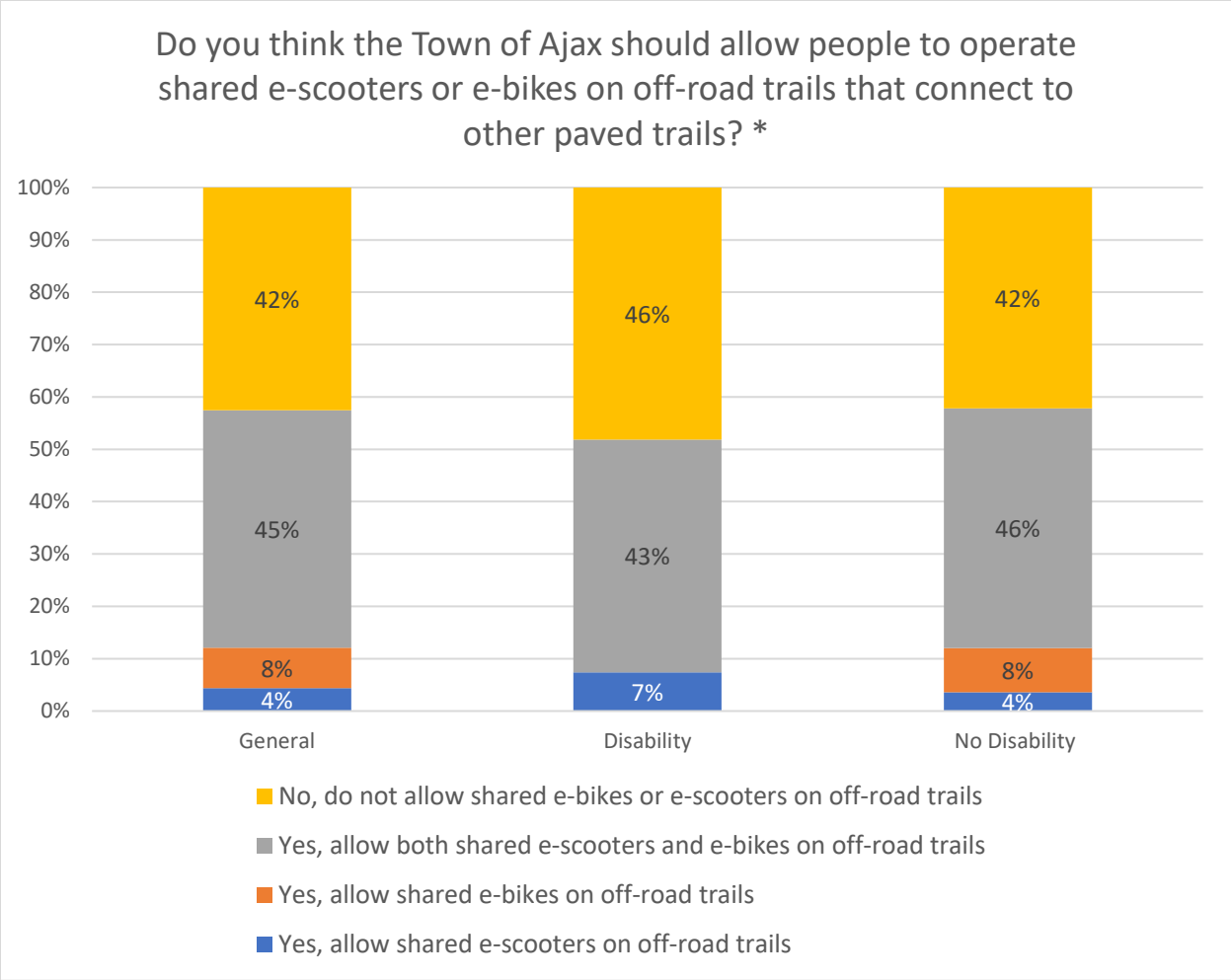
* Examples include Meadows Park near Vimy Ridge PS, St. Andrew's Park, etc.

Shared E-scooters and E-bikes

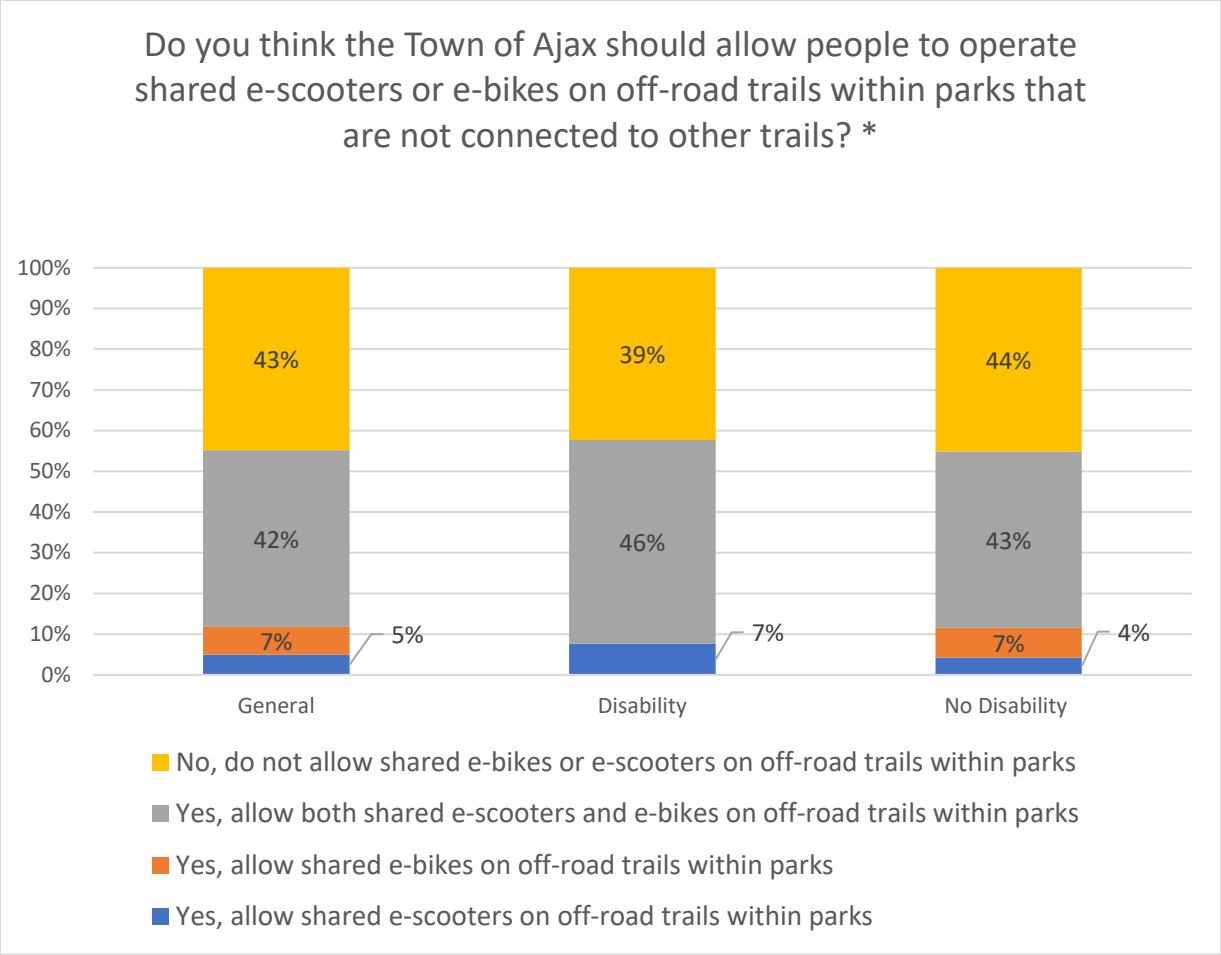




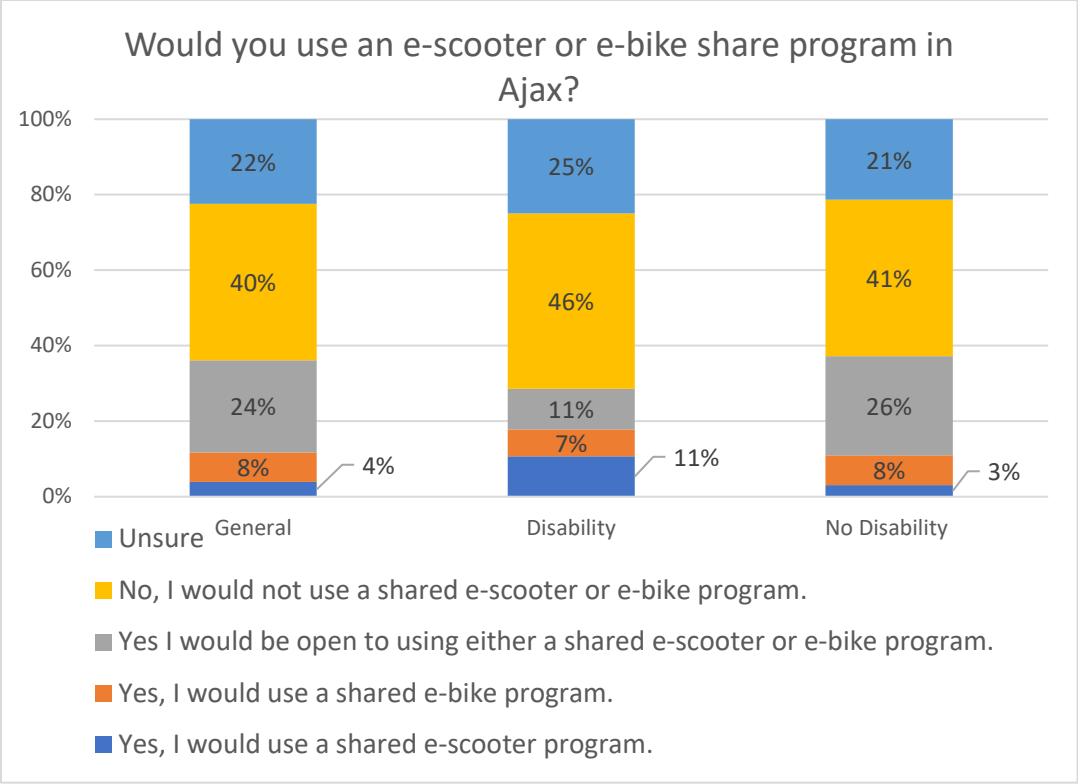

Do you think the Town of Ajax should allow people to operate shared e-scooters or e-bikes on multi-use paths along a roadway?
100%
90%
80%
70%
60%
50%
40%
30%
20%
10%
0%
37%
46%
7%
6%
32%
54%
11%
38%
47%
7%
5%
General
Disability
No Disability
No, do not allow shared e-bikes or e-scooters on multi-use paths along a roadway
Yes, allow both shared e-scooters and e-bikes along multi-use paths along a roadway.
Yes, allow shared e-bikes on multi-use paths along a roadway
Yes, allow shared e-scooters on multi-use paths along a roadway

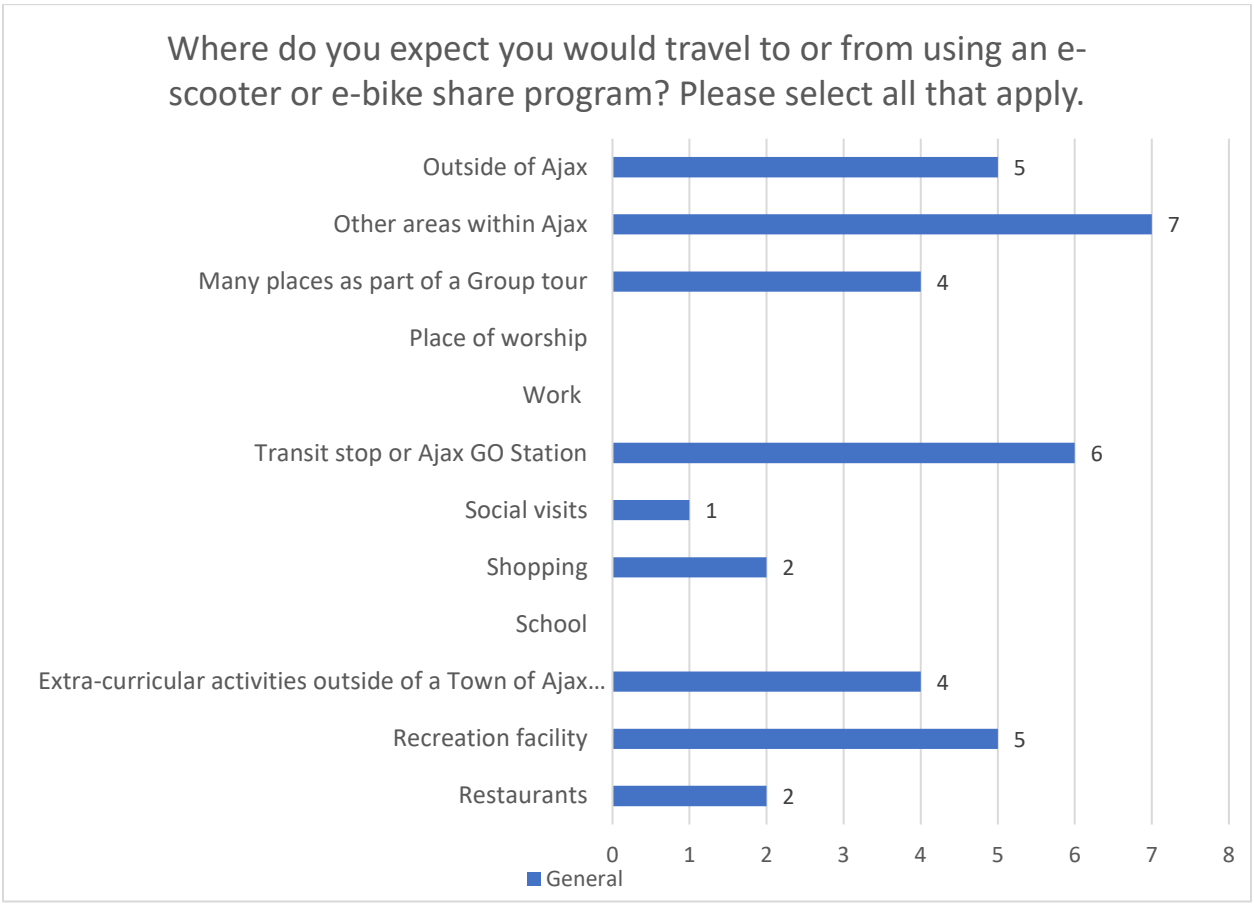


* Examples include the Waterfront Trail, Millers Creek Trail, Carruthers Creek Trail



* This includes paved paths that do not connect to other paved trails outside of the lot, which are typically located near elementary schools (such as Meadows Park near Vimy Ridge PS, St. Andrew's Park, etc.). It does not include trails within parks that connect to larger trails, such as trails within Millers Creek Community Park, Duffins Park, or Lakeside Park.


Would you use an e-scooter or e-bike share program in Ajax?
100%
80%
60%
40%
20%
0%
22%
40%
24%
8%
4%
25%
46%
11%
7%
11%
21%
41%
26%
8%
3%
General
Disability
No Disability
Unsure
No, I would not use a shared e-scooter or e-bike program.
Yes I would be open to using either a shared e-scooter or e-bike program.
Yes, I would use a shared e-bike program.
Yes, I would use a shared e-scooter program.


Where do you expect you would travel to or from using an e-scooter or e-bike share program? Please select all that apply.
Outside of Ajax
5
Other areas within Ajax
7
Many places as part of a Group tour
4
Place of worship
Work
Transit stop or Ajax GO Station
6
Social visits
1
Shopping
2
School
Extra-curricular activities outside of a Town of Ajax...
4
Recreation facility
5
Restaurants
2
0
1
2
3
4
5
6
7
8
General

Comments from Survey Results

Question: Help the Town develop decision making criteria that reflects residents' priorities. Below are considerations that will guide staff recommendations on whether or not to allow shared or privately owned e-scooters on Town roads, multi-use paths, or trails.

- People, including people with disabilities have mobility options, even if they cannot drive a car or do not have someone to drive them.
- Reduce traffic congestion.
- Reduce pollution and greenhouse gases.
- Respect among different mode users.
- Safety: Minimize risk of conflict with pedestrians and harm.
- Unobstructed paths for pedestrians.
- Feasible to implement based on capacity and authority.
- Consistency with other municipalities (i.e. Residents do not have to worry if one municipality allows e-scooters on trails while the neighbouring municipality does not).

Which of the above considerations is most important to you and why? Is there anything else that the Town needs to prioritize or consider when deciding the future of e-scooters and e-bikes? You can mention multiple considerations.

Responses:

- Cost should be the top priority. During a down economic time, the town should be looking to reduce costs and focus on core services. Why are we considering e-bikes any differently than bikes? If we are doing a shared bike pilot (of any kind), the pilot must test the economic viability - i.e. is it revenue neutral or revenue positive?
- Should not be allowed on sidewalks.
- People with disabilities being able to enjoy the waterfront trail.
- Additional considerations should include the cost to support decisions e.g. are there additional usage costs (maintenance, cleaning, enforcement, licensing)? Are there benefits available (e.g. greater tourism generated by shared e-bikes or scooters)?
- Reduce traffic congestion and give people more options on how to get around.
- Safety. Many pedestrians and those with mobility issues. Keep pathways well paved, limit paths to non-motorized bikes.
- Respect among users and unobstructed paths for pedestrians and dog walkers. Current unsafe operation of these vehicles by private owners.
- Safety and respect. Keep speed low, for regular bikes too when others using path.
- Reduce traffic, reduce pollution, unobstructed pathways.
- Safety. Always safety first. Did I say safety first clearly enough?
- Safety: Minimize risk of conflict with pedestrians and harm. Unobstructed paths for pedestrians. As a ajax resident who uses the waterfront trail all year around in all types of weather for either running, cycling or walking my baby in the stroller safety is a HUGE priority. There currently already is an issue with residents not keeping their dog on leash or to one side of the path. Adding high-speed e-bikes and e scooters to the mix adds risk to public safely.

- As long as people are being responsible with them, maintaining responsible speeds near other path users, they should be allowed. That can be reevaluated if problems arise.
- Unobstructed access / safety for pedestrians.
- Most important to me is - People, including people with disabilities have mobility options, even if they cannot drive a car or have someone drive them. It would be nice if these devices were not on ANY busy road - the likelihood of an accident is VERY high and collision with a car usually results in very serious injuries. Even bicycles should not be on ANY busy road. Sidewalks, multi-use paths and other pedestrian paths should be divided (physically or via markings) for use by true pedestrians and cyclists/e-scooters/e-bikes (a pedestrian collision with an e-scooter or e-bike would result in less serious injuries). Other than on local subdivision roads, I refer to bicycle lanes and as suicide lanes - cars/trucks/buses and cyclists should never be that close together. I have lived in Ajax for 40 years and have never seen a cyclist use the designated lanes on Hwy #2. In the question below - answered yes to allow Town Roads...as long as these roads are no more than moderately busy. Usage within my subdivision has been ongoing for quite a while now - many children using them for recreation or for very local transportation in lieu of bicycles. Use of trails and paths (wherever located) are often viable short cuts and should probably not be excluded.
- Safety, most people to not operate these vehicles properly. Should be licensed.
- Respect among different mode users. As a cyclist I find pedestrians often do not share multi-use pathways. Even if you use a bell well in advance of passing. I am interested in pedal assist bikes but would want to know there were many paths and bike lanes where they could be used.
- Great recreational tools but useless for anything else.
- Safety. Will there be enforcement to keep everyone safe who uses the trail and parks?
- Respect among different mode users. Consider a by-law that mandates bells for all devices using roads, pathways, trails.
- Unobstructed paths for pedestrians.
- I have a disability and I have a e-scooter that I take back and forth to work in the spring to fall and I am always follow the road rules and ride my e-scooter on the side of the road so cars and can pass me and I follow the road signs and follow the 4 way stops and 3 ways stops and go by the road rules.
- Safety. They should be treated the same as bicycles, with the same rules.
- We have no choice but to allow these vehicles, if we are to reduce our emissions from cars, and lower traffic congestion. But we need to build capacity on our roads, paths, and trails, and make it safe to do so. Ajax cannot continue down the car-centric path it has been going on for the past 40 years. We need alternatives for transportation, work, and recreation. E-bikes and Scooters (and cargo bikes) will reduce the number of cars on the road, and it is a win-win.
- These types of electrified vehicles pose a risk to pedestrians on Town paths and trails. In many cases they can reach dangerous speeds that would be unattainable on a manually operated vehicle. The introduction of these vehicles to Ajax paths and trails would send a message to pedestrians that they are not safe.
- Mobility options, safety, and consistency.
- E-scooters can be an excellent to individuals with disabilities, an alternate mode to transport, less pollution. And are to be mindful that there are individuals who use these

devices carelessly which can endanger pedestrian's safety. Considering the use of bike lanes for their usage may be helpful instead of sidewalks which is meant for walking.

- Alternative means of transit. Reduce traffic congestion.
- Reduce traffic
- I support the idea of e-transportation as long as it does not compromise Pedestrian Safety.
- Safety and unobstructed paths for peds.
- Mobility devices for people with disabilities should be allowed on trails but not e-bikes or any other motorized device in order to reduce risk of conflict and harm to walkers.
- An e-bike gets me out and about. I am 86 years old and have had ankles, knee, hip replaced.
- A major consideration will be consistency with other municipalities and respect different mode users. For 1, it will be quite confusing when rules change when traveling across town and is unsafe. For 2, I wish everyone could travel in their most interesting ways. (1 is consistency, 2 is respect)
- Consistency with other municipalities (i.e. Residents do not have to worry if one municipality allows e-scooters on trails while the neighbouring municipality does not).
- We have an excellent, and well-maintained waterfront in Ajax. Thank you. As a senior with a mild walking disability, I enjoy walking the waterfront path personally from Duffins Bridge to Harwood monument. More than once my safety has been compromised by e-scooters, e-bikes and cyclists who think they are training for tour de France cycle race. Ajax has spent thousands on signage for cycles. Walking path is for pedestrians and designated areas on roads bike paths and must for e-scooters, e-bikes, or cyclists.
- Safe, environmentally sound and flexible
- Safety, unobstructed paths for pedestrians
- Safety: Minimize risk of conflict with pedestrians and harm. Unobstructed paths for pedestrians.
- Increase of accidents and incidents outweigh advantages of e-bikes or e-scooters.
- Reduce traffic and increase safety. The Town should also consider navigability of non-road paths/trails (i.e., naming, signage, map/info stands, for trails and paths).
- Reduce traffic congestion, reduce pollution and greenhouse gases.
- Safety. We have safety issues now with speeding cyclists on trails. Allowing motorized units will only exacerbate liability issues. The ability to enjoy a walk or jog on trails peacefully will be detrimental to safety.
- E-scooters should be plated and off bike and walking paths. treat them like motorcycles.
- Reducing traffic congestion, reducing pollution and greenhouse gases, increasing travel options such as e-scooters, and respect and safety. I don't think what other municipalities are doing should matter and if we encourage this development, they may follow the Town's direction as well.
- E-bikes should travel the roads similar to regular bikes as they have a greater speed ability. E-scooters can travel the sidewalks and bike lanes where unsafe to travel on sidewalks. Safety is a big priority for both but especially pedestrians as controlling/providing consequences for unruly users of the e-bikes and e-scooters.
- Feasible to implement based on capacity and authority.

- Reduce pollution and greenhouse gases - we all need to do something to slow down climate change. Respect among different mode users - we all need to respect one another.
- Liability issue to town and riders and pedestrians.
- Safety is my main concern. Many cyclists do not obey road rules so I don't think many e-bike/e-scooter riders would on roads and trails. Perhaps a test and registration would help.
- Paths for pedestrians
- This will be a dangerous situation for all involved. I have never seen an e-bike or e-scooter rider be considerate of those around. They will monopolize trails. There are paths around my home that aren't maintained for pedestrians, let alone bikes. I am confident that this will be unsafe for the other residents sharing the roads, paths and trails.
- The above are all important, I think a Durham wide strategy is important - the towns are too small for this to work if it's not…the traffic impacts and connectivity for residents will be amazing!
- Only individuals with disabilities should be allowed shared accommodation.
- Safety: Minimize risk of conflict with pedestrians and harm. Unobstructed paths for pedestrians. Have been almost run over by people on e-bikes while walking on the sidewalk. You have people riding e-scooters on sidewalks, which is very dangerous because of the speeds they travel at.
- Safety: Minimize risk of conflict with pedestrians and harm. Unobstructed paths for pedestrians.
- Respect among different mode users.
- As a cyclist, I am aware there are many walkers on places like the waterfront trail that really don't like the bikes sneaking up on them and going too fast. Trails such as the Waterfront Trail are where many people gravitate to and should be shared by all. Proper awareness (signage) and a little respect for each other should go a long way. There are always a few bad apples but let's not have that penalize the rest of us that are just out to enjoy a nice ride.
- Safety, reducing congestion, reducing pollution.
- Safety is my primary concern. A lot of e-bike/e-scooter riders creep up quickly on you, and you barely hear them. They don't use their horns or bells so accidents will happen.
- safety including consideration of vulnerable groups like children.
- The mess of them left everywhere and anywhere, already happening in major cities like Toronto and Vancouver.
- Safety and unobstructed paths for pedestrians: e-scooters and e-bikes should not be allowed on sidewalks, paths, and trails. They are motorized and should be treated as such. They can go much faster than a regular bike and are hazardous to people who are walking.
- E-bikes are an awesome way for seniors to exercise and get around. Limiting their access is not the right thing to do. I'm 67 and cannot peddle a normal bike but I can use an e-bike. Don't take this form of transport and enjoyment away from me. If we have to ride on the road, we will end up injured or dead.
- Reduce traffic congestion and reduce pollution and greenhouse gases.

- Option for older adults or disabled to use e-bikes. Respect among different mode users. Safety.
- Safety: Minimize risk of conflict with pedestrians and harm. I would add a helmet mandate. I see so many people going a significant rate of speed without head protection. Increasing or encouraging use without a mandate adds burden to health care. With shared scooters, how do you mandate head gear? Only 18 and under are required to wear one by law, but at 32km per hour a head trauma would be significant.
- Respect among different mode users. E-bikes and e-scooters should be licensed. Users go at an excessive speed and most of the times feel that those on the road or on a path need to get out of their way.
- It only takes a small number of careless users to inflict harm to pedestrians, so protecting pedestrians from motorized vehicles should be a guiding criterion. So, safety! Forced reduced speeds for vehicles sharing pedestrian pathways when pedestrians are present.
- Consistency with other municipalities. The waterfront trail crosses multiple towns and once on a trail, users should be able to continue.
- E-bikes and e-scooters should be allowed in all areas (roads and paths) as bicycles. Certainly hope they aren't forced onto live traffic lanes.
- With an aging population I think e-bikes are a great idea and a nice way to travel along the Lake Ontario Trail and avoid vehicular traffic. Ajax has always embraced the use of bicycles.
  Mayor Steve was instrumental in that, and I truly thank him. I've cycled all my life but now that I'm older I appreciate the added help of an e-bike.
- It's clean and efficient and a great way to get around and from town to town, and the Lake Ontario Trail is perfect for this. The e-bikes are a great assistance for our aging population.
- Multi-use paths and trails are already dangerous for someone with mobility issues trying to walk slowly then having to add an e-scooters to the mix. Tripped trying to get out of the walk of bikes numerous times as they approach quickly (often silent). E-scooters move quickly and colliding with pedestrians is dangerous. Should encourage more walking and mobility paths. Toronto has just banned them -Disability advocate groups flagged various issues, including dangerous riding on sidewalks and the issue of improperly parked e-scooters tripping pedestrians.
- Terrible idea and a waste of taxpayers' money to even consider this. Countries in Europe are starting to ban e-scooters due to the amount of collisions with pedestrians. Take a look at the videos popping up on social media. Also the people I have seen here in Ajax along HWY2, and Westney are using the sidewalk to ride not the street. A huge risk for pedestrians and elderly people with disabilities to move out of the way in time. I think it is ridiculous that the town is promoting this as an advantage for people with handicaps as most of us are elderly and at risk of falling. Why would anyone with an impairment consider riding these little scooters? Bikes might work as long as they are used on the street and traffic laws are respected. Having said that you cannot even control people doing 80km an hour in 40 zones, how are you gonna enforce the e-bikes and e-scooters? Are you going to give us the same answer we get when we call for traffic control "the town does not have the budget". This is a joke, start enforcing by-laws and traffic and clean our snow properly that is how you help people with handicaps not by creating useless studies and filling third parties with our tax money.

- Safety: Minimize risk of conflict with pedestrians and harm. As it is now, cyclists are out-of-control, speeding on the trails, placing pedestrians at risk, and there's no monitoring, fines or penalties. E-bikes and/or E-scooters will just be more of the same and create more congestion.
- Providing e-bikes as a paid public form of transport like Toronto bikes would be a great way to get people moving. It is very difficult to efficiently get around Ajax without a vehicle.
- Pedestrian safety is most important to me. Secondly, the safety of the e-motorist.
- unobstructed paths with no bikes or E-scooters Should be the priority.
- Safety and ability to think quickly. Sometimes not totally safe on waterfront trail with bikes. Some people don't alert or ring bells.
- The Great Lakes Trail was conceived for bicycles and with an aging population, e-bikes are a great addition. I was on the trail yesterday on my e-bike and I was passed regularly by racing bikes. E-bikes aren't the problem, and we don't need more rules and regulations and common sense.
- Safety - I have seen people use e-scooters in an inappropriate manner.
- Respect among different mode users. This is because drivers in Ajax have little to no regard for or care for pedestrians or cyclists when crossing streets or when trying to access multi-use paths. It is important that the town prioritizes safety for pedestrians, regular cyclists and e-bike/e-scooter users. This can be done by improving intersection safety, giving priority ahead of cars, grade separation for bike lanes, maintenance of existing multi use paths (fixing holes, cracks, bumps, sharp curbs, etc.), better traffic calming (similar to that of the speed bumps near paradise park, not the ones along Pickering Beach Rd), and by designing streets so that cars are forced to drive slower and can have increased visibility of cyclists, pedestrians, e-bike/e-scooter users.
- Been cycling all my life and all over Ajax, and Mayor Parrish made this easier and more enjoyable. I now own an e-bike and ride the Great Lake Trail between Ajax and Oshawa regularly. When the e-bikes first came into popularity, I questioned whether they should be permitted on these trails, but after owning one for over a year I realize that they aren't as fast as people think. They max out at 32km/h and I am regularly passed on the trail by lightweight racing bikes. I own a number of lightweight road/racing bikes and it's nothing to do 35-50 km/h which is much faster than the governed e-bikes at 32km/h. Regulating and restricting access to these trails is unnecessary. Just be a kind, curious Canadian and we'll all be fine.
- All of the above are important to me but specifically I would say reducing pollution and traffic congestion are key. I would also like to mention that it is a great commuting option for those who cannot or do not want to rely on potentially unreliable bus schedules. It will also give Ajax an advantage as a more desirable town to live in.
- Reduce Traffic congestion. Though unobstructed paths for pedestrians is right up there, I feel that some of this could be taken care of with less aggressive driving, which surely will come by reducing congestion.
- Differentiate between necessity and leisure use. So, a mobility enhancing electric vehicle should be allowed on a park trail, while a leisure e-bike should only use street trails.
- Safety is an important factor. Many e-bikes are silent and move quickly. On multi-use paths they come up behind pedestrians with little or no warning.

- Respect among different mode users - it can be super challenging to share larger arteries with vehicles, buses, scooters, cyclists, and pedestrians, if they infrastructure and education and clearly marked areas are not there.
- Safety: Minimize risk of conflict with pedestrians and harm / Unobstructed paths for pedestrians Too often, users of these vehicles are on public pathways and don't alert walkers/runners that they are approaching. While I agree they should be allowed to use the path in a similar manner to a bike, they should also have a speed limit imposed. Reduce pollution and greenhouse gases - definitely a bonus.
- Respect among different mode users. We all need to get along. Ajax has many lovely trails, and these types of vehicles allow the less mobile to get around.
- With more electric assisted vehicles on the trail, it is getting extremely difficult to share the trail. Obviously, it is easier when there are twin trails, but even then, the signage is far too small, and people do not notice or study.
- People of all abilities and financial status should have mobility options for work, essential personal needs, and recreation.
- Should bring more high paying jobs to Ajax which are in line with property values. And have more bussing, possibly small and more frequent and covers the whole town in a few minutes.
- I recommend allowing E-scooters for many of the reasons listed above, wider cycling multi use paths are ideal such as the one on Bayly Street.
- Consistency with other municipalities is essential. The same rules must apply in all locations.
- I am concerned that the Lake Front and other Pedestrian trails will become a danger to the pedestrians and the drivers of electric vehicles. Regardless of the safety rules put in place, there is no way to prepare for the unpredictable movement of pedestrians, particularly small children who can dart out from parents at any whim.
  Check out the Lake front trails on any nice weather weekend, there is dense pedestrian traffic. I know non-electric bike riders who avoid the trails during the weekends because they consider it dangerous to ride during busy times. Electric assisted bikes and scooters with their increased speed will make it even more dangerous.
- E-bikes (pedal assist, not motorized) should be treated the same as regular bikes; e-scooters have a track record of dangerous accidents with pedestrians in all areas where they have been used, so e-scooters should be limited to ROAD bicycle lanes and NEVER used on multi-use paths or trails. Where possible there should be separate trails for non-motorized bikes (including e-bikes but not e-scooters) and then trails for walking, motorized wheelchairs and inline skating (inline skating should NOT be treated the same as a bike!). A "motorized" exception should be made for motorized wheelchairs. If a bike is on a trail with walkers, wheelchair users and inline skaters then the bike should give way because bikes can travel on grass, but wheelchairs and inline skaters cannot travel on grass.
- I would like to see unobstructed paths for pedestrians along the waterfront because I don’t think they are wide enough for even regular bikes and pedestrians, especially in summer. I’ve discovered that many bikers have no bell, so it isn’t pleasant walking on the path because I’m always looking behind me to make sure there aren’t bikers flying by. I was actually hit, mildly, by one and the person didn’t even apologize. However, I’m most concerned for young children and seniors being hurt. So I would like to see a separate

path for bikers, and e-scooters, and e-bikes if those two are allowed in Ajax. PS I live in ward 3 and not 1. The wards wouldn't move in the question later on.
- Safety: minimize the risk of conflict with pedestrians and harm.
  Unobstructed paths for pedestrians. E-scooters and e-bikes should not be allowed on paths and sidewalks used by pedestrians because of potential serious injury to those walking.

Question: Have you used an e-scooter or e-bike share program before? What was your overall impression of the program? Please explain your response.

NOTE: This document has omitted responses from residents that say "Yes" or "No" without an explanation.

Responses:

No – open to try

- Have not used either as there is no such opportunity in my vicinity....but would like to try.
- Have not. When out on trails and paths it is for exercise and or quiet down time.
- I haven't used one, but I was in Australia recently and they have this program there. While I think it's worthwhile, I did notice that many of the scooters were left in the middle of sidewalks or left at the side of the road. I'm assuming at some point these scooters were picked up but at times they were an eye sore in the community.
- no but I have had relatives use e-bikes in Europe to travel from town to town on bike trails.
- No but it's something I'd consider.
- No but I'd definitely use one if available and necessary.
- No I haven't however, I recently went on a trip to Seattle where e-scooters are prevalent there with their shared service. They were very popular among tourists and residents as they were able to easily and safely bypass traffic in the downtown core and allow people with mobility needs to more easily climb Seattle's steep hills. Had I spent more time in Seattle, I would've tried them out.

No – refuses to try

- No, not enough range with e-bikes or e-scooter.

No – highly concerned

- Have not used either but helmets should be mandatory as I know of someone that was killed from a head injury from a fall on an e-scooter.
- I think this is a horrible idea. Instead of promoting physical health and mental health from being outdoors it promotes obesity and laziness. In addition this survey seems to be worded in a manner to promote e-scooters and e-bikes. It seems biased in how it was developed.
- I have not used but have seen them in operation. The issue is getting all the devices back to the rental location. I would be concerned for abandoned bikes and scooters around town.

- Never used. Looks to be dangerous. Have seen users weave around vehicles and pedestrians dangerously fast. Accidents waiting to happen especially when rider not wearing helmet.
- No I haven't. I've only seen erratic, inconsiderate users.
- Some cities are not allowing them or if they have had them the program has now been done away with.
- No, stop trying to control us please by forcing us to spend money or rentals.
- Waste of taxpayer money. Novelty that will not be utilized.
- Go take a look at Hamilton by Western U. Complete failure and waste of taxpayer money. A lot of the bikes have been dumped or vandalized. It makes sense there as there is lots of students who do not drive but as I said weekly you can see damaged bikes or simply dumped along the area.
- No. They need a certain skill level that too many people do not have and that poses a danger to others.
- No, I have two legs to move myself, this does not promote healthy behaviors.
- I have not used either piece of equipment. The program does not fit all residents and needs to be monitored.

Yes – positive experience

- I have used a program like this overseas, it was hit and very convenient.
- I own an e-Scooter and I like it and I take it back and forth to work in the spring to fall and I follow the road rules and ride on the side of the road to allow traffic to pass me.
- I have used the Citibike program in NYC. They are docked bikes and e-bikes. They provide a huge benefit and alternative/adjunct to mass transit and private cars. But also, they require a commitment to separated bike infrastructure, you need both. Ajax is still not reallocating enough road real estate to these modes and has not addressed the cross 401 barriers that exist on Westney, Harwood and Salem that cut off the north and south sides of the city. Also they need to ubiquitous in neighborhoods and destinations, NYC has docks almost every two blocks. You walk at most 2-3 minutes between docks. If Ajax implements a system with only a few docks you will be dooming it before it has a chance, and it will only reinforce the car-dominant culture we are already suffering from. i.e. "we tried it, it didn't work". I'd prefer nothing for now over that.
- I've used both in major North American cities. They were conveniently located, reasonably priced, and a great way to get around. Far cheaper than Uber or Lift or taxis.
- I do have such experience in China but the infrastructure there allows convenient return of e-bikes/e-scooters at any major & amp; selected minor junctions. I do doubt whether Ajax will build the same amount/density of such facility so returning and managing the bikes will be critical.
- Yes, it was great.
- I've used Toronto's Bike Share to explore the waterfront and had a pleasant experience. The dedicated lanes certainly helped with that many people, but I think Ajax can make shared paths work with common sense and an education campaign on rules and etiquette.
- Multiple times. Loved it. Great way to explore cities and an alternative way of transportation. Very handy. Never felt stranded or the need to be relying on Uber to get around.

- I have not used an e-scooter program before, but I have used a bike share program before. I think that it is a good program to have and allows people to have more freedom in how to travel. More options to travel is good, especially in our Town where you are simply forced to travel with a car.
- I also think that it was a good program because it was affordable, easy to use and handy to use to go to my friends' places and to explore.
- I liked it, had a 45kmh limit so was very efficient for me delivering food faster than on a bike.
- Great way to get around. Fun and efficient. I've used them in Ottawa and Edmonton. Way better than getting an Uber to travel to my destination.
- Yes. I used a shared e-scooter program in Kansas City - it was amazing, bikes may be clunky and cumbersome, but the e-scooter program was fantastic.
- The scooter share was tap and go and was widely used by all ages to get around town.
- I use bike share in Toronto. It has a few e-bikes available. I'm happy with the program.
- Yes. The option is convenient when travelling. I have only used one in Europe where riders were required to wear helmets and on designated lanes. It made so much sense. However, it is a powered device and one can lose control if he/she is not paying attention, even at a slow speed.
- Having infrastructure for where e-bikes and e-scooters can ride will prevent harm to pedestrians and motorists.
- Yes, it was a good experience. Made cycling more accessible to older riders.
- No, but I have used a dozen bicycle share programs in Toronto and around the world. It was a wonderful way to get around a city.
- I used bike share in Toronto and really liked it.
- I have used both e-scooter and e-bike share services in Europe and the experience was great. It was an excellent commuting option that did not require the use of polluting vehicles and was also a fun way to get around. It was also more convenient because you are freer to park and go as you need to. I was also a heavy user of the Toronto bike share when I would frequent the city. Ajax has been increasing bike lanes and public paths which would make e-scooters and e-bikes an excellent method of getting around.
- On a large university campus was a fast way to get around.
- The program was fine - I used it in another city I had travelled to, as an easy way to commute without using an Uber for shorter distances that were just outside of walkability. It was easy to use; not my favourite as it’s my least favourite way to get around, but it worked well, and was very easy to find - they were literally just scattered on almost every street corner (e-Scooters in Indianapolis).
- I’ve used both and found them to be an incredible method of travelling in cities I am visiting. I have been impressed with the acceptance and respect shown by people using other modes of transportation.
- Had a good impression and experience in Istanbul.

Yes – negative experience

- Used the bike share in Toronto, too many cars and people opening doors in front of you. Wouldn’t do it again too dangerous.
- Observed both in Lisbon. Seemed to be a lot of them ran out of power and were simply dropped where that happen and left there for a considerable time.

- I have used them before with Zero benefits. They mainly benefit lazy people who sit in the couches all day.
- Yes & amp; limited success in Europe. They became for vandalism & amp; damaged or dead battery scooters littered roadsides.
- Yes, I have. It was too expensive for everyday use.
- Yes, e-scooters are dangerous.
- E-bike. The condition of bikes not always good. Payment methods are sometimes difficult. You have to use a credit card which may not work for some.

Question: Do you think **privately owned/operated e-scooters or e-bikes** should have different operating rules (e.g. prohibited on trails, parks, etc.)? Please explain.

NOTE: This document has omitted responses from residents that say “Yes” or “No” without an explanation.

Responses:

- All should have the same rules. Why are we treating these electronic bikes differently than bikes? Why are we trying to solve a problem that doesn't exist?
- There should be reasonable speed limits when operating on pathways that are shared with pedestrians.
- E-bikes regulation is covered in the Highway Traffic Act. E-scooters and e-bikes should not be allowed on sidewalks.
- Privately owned e-bikes and e-scooters should be subject to the same regulations (speed controls, licensing, road rules, etc.) consistent with publicly owned vehicles.
- With respect to earlier questions, I do support availability of private e-vehicles and allow them to access multiuse paths and off trail routes -however the preference is for them to have dedicated e-bike/e-scooter lanes for the safety of bikers and pedestrians.
- Keep safety in mind. Respect the rules if the road.
- Technically they are motorized vehicles and should be excluded from all paths that currently restrict motorized vehicles.
- No. All the e-bikes and e-scooters should be treated exactly the same no matter what the ownership.
- Needing a license to operate one. A pedestrian hit with an e-scooter or e-bike can have serious health implications. Often those operating these devices don't understand the rules of the road. In addition, if someone wanted to commit a crime, an e-scooter or an e-bike is a faster way to get away than on foot.
- As long as people are being responsible with them, maintaining responsible speeds near other path users, they should be allowed. That can be reevaluated if problems arise.
- Bicycles are prohibited on trails and so should e-bikes. These machines travel 3 to 4 times faster than a pedestrian and are not compatible with small children and seniors on trails and multi-se paths. Keep them totally separate.
- Also, prohibit left turns for all these machines. A bike crossing system needs to be in place at every controlled crossing. Go to the Netherlands - Utrecht see how it works there.
- Speed limiting will not work as there is no enforcement.

- Keep these machines to dedicated bike lanes. Also, redesign all roads to keep these individuals safe from motor vehicles. Bike lanes are useless and dangerous, these machines need a dedicated lane that motor vehicles cannot enter. Same issue motor vehicles are heavier and faster than these machines.
- ANY type of reckless or dangerous operation should be prohibited - but how would that be monitored or proven? How would liability be addressed for a serious incident? While usage may be somewhat similar to old fashioned traditional bicycles....these new types of personal electric micro-mobility vehicles considerably raise the stakes when it comes to potential bodily injury and property damage.
- Licensed, plated. Speed enforced.
- Yes, I think it's fair to put speed limits on place on pathways.
- Both should have the same operating rules.
- Respect to individuals on foot being given right away.
- No. Same rules...less confusion and easier to enforce.
- Both should follow the same rules/laws.
- They drive very fast on the lake front trail. The lakefront path east of shoal point road--Need another path for the bikes, e-bikes and e-scooters and a dedicated one for pedestrians and strollers.
- I own an e-Scooter and I ride on the side of the road and allow the cars to pass me without a problem.
- No, there should not be any different treatment.
- These are unenforceable ideas on a daily mass scale. You cannot address infrastructure and capacity issues by enforcement rules. Only design can address these issues. We must look to other municipalities that have achieved a high integration of these modes to see what works. Asking residents who have not experienced a successful implementation of these modes to say what they want is going to limit what we can get. How would residents know what is possible?
- These should be treated as motorized vehicles.
- Setting maximum speed limits, ticketing for offences and clear guidelines for their operation prior to approval is essential.
- Licensing, with mandatory training and testing is a must. Heavily modified vehicles and motor scooters (de facto electric motorcycles with barely functioning pedals) should be banned. More important than overall speed limits would be rules about overtaking pedestrians. There is nothing unsafe about going 20km on a multi-use path if there is no other pedestrians nearby. Slow down or dismount depending on the situation. Countries like Holland have heavy integration of pedestrians and 2 wheeled vehicles with great success! Training and awareness are the keys. There are so many benefits to using these devices that it would be a shame to see their use restricted because of a few bad actors.
- I have had my scooter and e-bike for about a year and have ridden 1000s of Kms throughout Durham Region without incident. I would be happy to pay for a license.
- The same rules should apply.
- They do not belong on trails with pedestrians.
- The same rules that cars have to follow.
- Prohibited on Waterfront Trail because there are so many pedestrians, especially children and elderly people. There are also lots of sightseers, social gatherings, nature

watchers and people enjoying a wide variety of leisure activities along the waterfront trail. Everyone is going at different speeds and in different directions. Oftentimes stopping and inadvertently blocking the path. The waterfront trail is known to be a slower pace with many people and congested areas. Even traditional bicycles at racing speeds is already dangerous enough. Definitely not safe for speed-unlimited electric vehicles.

- Right now, I am unaware of any opportunities to rent or share e-scooters or e-bikes in Ajax. Mandate speed limits and conduct of operation for these affordable transportation options and enforce them. Educate pedestrians on the fact that these trails are not just for them and establish a code of conduct for them too.
- No. Speed limit signs should be posted for safety.
- They should be prohibited on trails used primarily by pedestrians but allowed on bike lanes. The exception is people with disabilities who use scooters as a mobility device.
- Should have same rules as ordinary bikes.
- Should have the same operating rules.
- Setup designated route for e-bikes/e-scooters, they don't necessarily have to drive on the routes when riding. But can be used as guidance when facing incoming pedestrian traffic.
- Limit speed on all vehicles to 32 kms as set down by provincial rules.
- Owners, by-laws of e-bikes/e-scooters riding will be proficient uses over short term operator.
- Some rules for road cyclists.
- People using these bikes as their means of movement (e.g. cannot walk trails) should have some type of pass.
- E-scooters or e-bikes are motorized vehicles and belong on the road, and because they are in the road, they should have to buy a license. The money than could help pay for the appropriate signage.
- The use of non-handicapped motorized vehicles should be used in the designated bike lanes on the roads on the Town of Ajax. Drivers of these vehicles should be fined if they are not wearing a helmet. Effective penalty for not obeying the rules of the road according to provided traffic safety convictions. These vehicles should be licensed and have fees.
- Personal ownership should not restrict use.
- Only privately-owned e-bikes and e-scooters should be allowed on the trails.
- No, same rules for all.
- E-bikes should be governed by existing requirements for bicycles. E-scooters should not be allowed on roads or pathways (IMHO....there is an abundance of injury related data re: e-scooters).
- Should be prohibited on all but designated "bike" lanes on roadways. I've seen too many people get run down by these things on the multi-use "paths" around town.
- ENFORCE Speed limitations with HEAVY fines and a requirement to warn pedestrians being approached.
- Do not allow as accidents and incidents will increase.
- Speed restrictions or general restrictions/prohibitions based on path width.
- I think private e-scooters/e-bikes should be limited to pathways that provide access elsewhere and should be prohibited from locations like recreation trails (a loop trail).

- Operating rules should be the same. If there is a known busy area and the private scooter cannot have its speed reduced, then perhaps they are not allowed in that area at all, and it is enforced by bylaw.
- Speed limits, proof of insurance, working horns and lights, vehicle registration and plated.
- The primary issue is safety for walkers and runners. Parents with children. I think speeds reduced would work. Safety - separation between pedestrians and people using e-bikes and e-scooters. Prohibition on parks itself would work as long as it does not impede the e-scooters and e-bikes way of travelling.
- Safety - separation between pedestrians and people using e-bikes and e-scooters.
- No, rules should be the same, but there should be consequences for not obeying rules.
- Establish Speed limits or ‘reduce speed areas’ where there is known to be a high volume of people.
- Just legitimate people with disabilities should be able to ride trails and parks. A disability sticker should be on method of transportation.
- Privately owned scooter and e-bike owners are usually inconsiderate and should go away from pedestrians, children etc.
- How will you control or police allowing some and not others? Many will take advantage. Are you expecting by law to get involved. By the time someone could even get ahold of by law for an unauthorized e-bike/scooter whizzing by, they’d already be long gone. You can’t enforce the many dogs off leash in parks etc., yet you think you’ll be able to (or care to) enforce these rules either.
- Please remember, many people aren’t following any rules these days. If you cannot provide a clear plan for enforcing set rules, then don’t embark on this project.
- Yes. They are motorized vehicles. The same rules should apply as a vehicle. They are dangerous for pedestrians.
- Should not be allowed on sidewalks.
- Cities around the world are realizing that e-scooters and e-bikes are more of a menace to public safety and well-being. They have realized that the experiment has failed and started banning them. case in point, City of Paris. I hope we don't get there only to realize that this was a stupid idea in the first place🙏
- No, as long as they are legal e-bikes and e-scooters by our Ontario laws. Not modified for more speed.
- I think just where they can be used should be implemented across these categories.
- I think that only people with mobility issues should be given consideration in places typically used by pedestrians and person powered bicycles.
- No, unless you could privately buy a geo-fenced e-scooter from an approved dealer (think fundraiser for local non-profits) or ability to after-market geo-fence and have annual permits to ensure no tampering.
- They don’t stop for stop signs or obey the traffic rules! They should have the same rules. People on bikes should be held to the same rules, they don’t stop for stop signs, they just think they run the roads.
- No. Privately owned e-scooters and e-bikes should have the same rules as shared. Neither of them should be allowed anywhere where there are pedestrians.
- bicycle styled e-bike which are peddle assisted should be the criteria.

- I think a maximum speed should apply to privately owned scooters. All rules should be the same when it comes to private vs. shared e-scooters and e-bikes.
- Enforced speed limits in parks.
- Use bell/beeper when approaching pedestrians.
- No e-bike or e-scooter on trails or pathways which pedestrians use unless required for mobility with a government issued pass. (Like for cars in designated accessible parking spots).
- Set a speed limit.
- Yes, they should be treated the same as motor vehicles in terms of violations and speeding limit.
- Yes, when pedestrians are passing or close....that the e-bike riders are to slow down. I currently do that.....
- As mentioned above they need to be licensed to contribute to the maintenance and repair of these lanes/paths/roads. The speed of these e-bikes and e-scooters can badly harm a pedestrian. If you think about it, we make cyclists wear helmets so that if they fall, they protect themselves however pedestrians walking are not wearing protective gear should they encounter a e-bike or e-scooter.
- Limiting speed via signage for e-vehicles in parks and on trails seems a logical step.
- No...it will be too confusing. We don't have different laws for privately owned cars vs. rental cars. Speed limits should apply equally to all. It is up to the user to ensure they are obeyed.
- They should be licensed and insured.
- Rules and common sense apply to all. Riders on lightweight racing bikes are capable of reaching much higher speeds than my regulated/governed e-bike.
- Speed is my concern, as a bike rider I must be very cautious about sharing the trail and overtaking pedestrians.
- No it's not about ownership, all should have the same rules.
- SAME RULES FOR EVERYONE public/private ownership. The same can be done to cars (illegal modifications). Do NOT prohibit an affordable mode of transportation from anywhere.
- Same rules for all. Do not allow on off-road trails and within parks. Encourage walking and mobility vehicles only.
- Create e-scooter arenas like a skateboarding park and charge for usage, that way you can use that money to clean the snow for disabled seniors and to enforce by-laws to beautify our neighborhoods which are looking like some third world neighborhood.
- They should not be allowed in parks or on trails.
- The people operating these go way too fast. They have no consideration for other people and especially vehicles. Seems like a good way to get seriously injured or killed.
- Banned except for on roads. Since there is no enforcement, allowing them on trails and paths will encourage use on sidewalks and paved paths. Example - the waterfront is already dangerous for pedestrians in the spring/summer/fall.
- Allowing them at the waterfront is a DISASTER waiting to happen.
- You're assuming that private riders would be FAMILIAR with any operating rules, which is unlikely they'll make the effort. They really can't be mixed with any pedestrian path. And helmets must be mandatory, whether they're provided independently or as part of the bike share, the rider must wear one.

- Restricted from areas where pedestrian use occurs. Bike lanes only.
- Ajax was one of the first towns to embrace cycling thanks in great part to Mayor Steve.
- The trails along the waterfront have been in place for over 30 years and we're adequate at the time but are too narrow and need to be widened as Whitby and Oshawa have done.
- No, I don't think privately owned/operated e-scooters or e-bikes should have different operating rules.
- E-bikes should be allowed anywhere bikes are. E-scooters should only be allowed on roads.
- As mentioned, e-bikes are not as fast as lightweight racing bikes.
- I think privately owned and publicly owned e-scooters and e-bikes should have the same operating rules as I have indicated above. It is pivotal that these are able to be used in all bike lanes/trails/paths in order to encourage their use.
- Prohibited on trails, parks etc.
- No, adding different rules adds confusion and complexity. Keep it Simple.
- Higher levels of government can regulate sales of such devices, to ensure speed limits. Geofencing isn't a good idea, in case there's a detour or unexpected situation.
- I believe the same rules should be applied to both private/shared e-bikes/e-scooters. There doesn't necessarily have to be a speed limit for e-bikes as long as they are operated safely like how users of regular bikes operate safely in parks, roads, and multi-use paths in Ajax.
- Prohibit all trails through parks and waterfront.
- License and insurance.
- I don't think there needs to be different rules, but some rules (i.e. speed limits) should be in place, and the capacity for by-law to enforce in some way.
- Same rules or too much confusion and enforcement is very complicated.
- If people want to use their e-scooters or e-bikes on trails and park they should know to use a reasonable speed and show consideration for pedestrians if they want to enjoy the privilege.
- Maybe some posted reminders on trails and paths.
- Maybe do it on a trial basis and if it is abused cancel it.
- No. Same vehicle, same rules.
- No. Easier for everyone to learn and abide by one set of rules. Easy to make and buy appropriate signage as determined. 😉
- They should not be permitted on walking paths due to the risk of injury to pedestrians. There should be speed rules and helmets should be required,
- Rules should cover everyone. License all bikes, trikes, and scooters.
- Check safety equipment and sign to abide by the rules of the town.
- Any rules are only as good as the ability to police them. All users of roads, trails, paths, and walkways should be educated and encouraged to travel safely with respect to the diversity of other users. This includes pedestrians and operators of large motorized vehicles too.
- Speed limits should be specified. Road rules followed (drive on right side).
- They should not have separate rules than bikes.

- Since some of the e-bikes can go up to 50 KM per hour, they are a great risk on pedestrian walkways including trials. So they should be considered as motor vehicles rather than bicycles and the same rules should apply, including licensing.
- Rules should be the same across the board regardless of whether they are shared or privately owned.
- There should not be shared or private escorted on any road. For them the only place is a designated bike lane not even shared road and bike lane.
- Same operating rules that apply to shared e-bikes and scooters.
- I think the rules should be the same for private and shared e-bikes and e-scooters.
- Yes, because safety is most important. If something isn't safe or can't be made, then it doesn't make sense to endanger toddlers and small kids running into fast moving e-bikes and e-scooters.
- Same rules. Both e-scooters and e-bikes in road bike lanes. No e-scooters on paths or multi-use trails (too dangerous to others). Separate paths for bikes and e-bikes if possible; then treat pedestrians, motorized wheelchairs, and inline skating as one group (wheelchairs and inline skaters cannot travel on grass, pedestrians can but should have right of way over bikes which should pass on grass if they cannot safely pass on the left because other path users are travelling in the opposite direction).
- Should only be allowed on roads, not on walking trails, in public parks, on sidewalks or any area used by pedestrians because of danger to those walking, for example seniors, the disabled and children.

Question: Is there anything else you would like to say about e-scooters or e-bikes that has not already been said?

Responses:

- Please consider the entire cost of the pilot and program (including signage, staff to maintain, staff to retrieve abandoned bikes, etc.).
- I would prefer the town to focus on improving existing services and improving existing levels of efficiency within the same budget levels. During a down economic time, the town should be helping their existing tax base control expenses.
- With the new casino in Pickering, revenue from the ajax slot business will decrease, please do not add to our tax burden.
- If a shared system is introduced, it is important that the operator retrieves “abandoned” vehicles regularly so that they aren’t neglected. Also, ensure that there is liability insurance for users.
- I am physically active and frequently (daily) walk along the Ajax waterfront - and feel this should be accessible to all potential users. I welcome more users but wish to ensure they can enjoy the space safely and would advocate separate bike/scooter lanes vs pedestrian walkways.
- They would give people more options and, in my opinion, increase quality of life.
- I feel more comfortable with e bikes than e-scooters because I’m ignorant on e-scooters.
- I used my e-scooter to commute to and from the Ajax GO station using the public roads for several years quite successfully.
- I do not support them being used in ajax at all.

- Just not compatible with pedestrians, neither are bikes.
- I am an avid bike rider but would never ride on a trail or multi use path. It's too dangerous. Pedestrians are too unpredictable. I also walk the lakeshore trail every day from rotary park to Shoal Point Rd. I see every day the danger, and the near misses.
- The active trail at the east end of the lakeshore trail is often full of pedestrians. No enforcement so they do what the like. To the annoyance of cyclists.
- Canada is not a society of self-disciplined people, unless there is some form of control, they will do whatever they want. So no enforcement - chaos.
- Shared e-bikes/e-scooters should NOT BE available for use on the waterfront and recreation paths. Ajax will become an amusement-like destination (especially at the waterfront, which is already heavily used/travelled). There is already not enough space along the majority of these pathways for passive and active trail users to safely get around one another. E-bikes and scooters will be great for short commutes on Ajax roads / bike lanes, but not for recreation.
- They look like fun...but are still priced way out of my budget. My concern is usage by minor children who may not fully comprehend the caution required when operating these devices (at night and at high speeds without a helmet while glancing at their cell phones) - parental responsibility I know.
- Do not allow use on Town pathways. Bicycles present enough of a safety hazard.
- Considering a license/certification is not required, it would only create chaos on the public pathways.
- Regular bikes can exceed the speeds of e-assisted devices. Common sense should prevail but doesn't always. Some cyclists think they are training for the Tour de France along the waterfront trail and that should be discouraged somehow.
- The e-scooters/e-bikes are a hazard on the roads and paths. They have no insurance i.e. liability/damage etc. that car drivers/motorcyclists must have. Young kids are riding around on them barely looking out for traffic roads.
- Treat them the same as bicycles, same locations, same rules etc.
- When you design these questionnaires a great deal of emphasis goes to fears and safety concerns- as if bicycles and e-bikes/scooters are a new risk to pedestrians/elderly that greatly outweighs the existing deadly risk of cars vs. bikes/pedestrians and the actual daily fatalities and injuries that occur. This is not helping us move away from the over reliance on private vehicles on shared public roadways. Pedestrians are at greatest risk from vehicles, this needs to be the top line statement. The only reason safety gets such attention with respect to other modes is that the shared cycling infrastructure is merged and competitive with many other modes, walking, children, strollers, joggers etc. If we are all forced to compete for scant resources and no space is reapportioned from private cars it will only make people revert to old ways. The solution is always "all of the above;" more space on shared use paths, more separated bike/e-bike lanes, for-hire bikes and scooters, more options to reduce car-dependency. Induce demand on this side and you will see a reduction of demand on the car side and safer roads with fewer accidents and fatalities.
- These vehicles should follow the same standards as regular bicycles. Supposed to comply with the highway traffic act.
- There is little point to allowing or not allowing e-bikes/scooters on roads/trails/etc. if there is no enforcement. (As the case seems to be now).

- The way of the future (at least part of it).
- They have to be restrictions placed on the operators, so people don’t get hurt.
- They are a financially viable transportation option for people during these trying times. People are often resistant to change if it doesn’t benefit them. Don’t let those voices distract you from doing the progressive thing.
- Trails are already quite congested in summer while bike lanes are rarely used. Bike lanes would be more appropriate for e-bikes and e-scooters except for people with disabilities who use them as mobility devices. They should be allowed wherever pedestrians are allowed.
- Please make this shared program a reality.
- Permits should be required and/or with a disability card.
- As an active runner on roads and waterfront paths I have encountered bikes and e-bikes on a regular basis. Enforcement of speeds is all that should apply. Paths are for everyone. I also own an e-bike and enjoy exploring even more of our town. It allows more people access to outdoors beyond just their typical home radius. And any time I can avoid driving is great.
- I find when walking along waterfront trail that e-bike/e-scooter users are using excessive speeds. They are sometimes hard to hear and scare the 💩 out of you when they pass. Nobby tires are making a mess of the trails. The Town of Ajax needs to do more to ensure the trails are maintained. If an e-bike/e-scooter has a motor, it should be on the road.
- I think this survey was ill-conceived in conflating e-bike and e-scooters. Most people have a general awareness of the rules of the road regarding bicycle safety (and I would include “assisted” e-bikes). Introducing e-scooters is a new and as yet unproven element.
- Great way to promote being outside and alternative ways of transport.
- Any motorized vehicle or bicycle using roadways, trails or paths should be licensed and insured for liability and injury.
- I think that implementation and sharing e-scooters and e-bikes will be a good addition to our community.
- I think the share program is a great idea but would like further information on where they would be placed to be borrowed.
- Ban them from the town in its entirety. Too dangerous to foot pedestrians.
- People are responsible for their behaviour riding a bicycle or driving a car, the same should apply with e-scooters/e-bicycles.
- Would there be parking sheds/areas anywhere for privately owned e-vehicles? Shopping places for example.
- By allowing this, you will make it difficult for residents to safety enjoy paths and trails in our community.
- There is no liability associated with these e-scooters. The person driving one can kill themselves or someone else with no consequence. If they are to be used it should be in e-bike designated areas only. These units are motorized vehicles with no real rules associated with them. Going green doesn’t mean you can drive wherever you want.
- Only individuals with disabilities should have exceptions to this.
- The city of Paris tried this experiment. After pumping in millions of dollars have arrived at the conclusion that this was a stupid idea in the first place. Let's learn from their

mistakes. Please review the below article before arriving at a decision. https://www.cnn.com/2023/04/05/opinions/escooters-paris-ban-safety-filipovic/index.htm

- E-bikes are definitely fun and useful for errand running.
- To prohibit them anywhere that a regular bike is allowed would be a mistake.
- You would need to have a training course for people to ride them. I almost hit a small girl in our neighbourhood a couple of years ago when she was riding down the roadway criss-crossing with another young girl. The scooters were adult size but yet the parents let them ride them in an unsafe manner. I could have hit the child but instead choose to stop my car when they started to ride wildly down the street.
- Increased education regarding safety required & amp; lobby for insurance requirement similar to auto? Who is responsible for injuries between e-scooter & amp; pedestrian - not a big deal for small injuries, but a big one will come.
- WE DON'T WANT OR NEED THEM!!!! Fix the homeless, fix the true problems before you add this!!!!
- There are two types of e-bikes, the ones that look like small motorcycles and the pedal assist bicycles. I support the use of the peddle assist bicycles only on trails, walkways, parks etc. These are used for recreational purposes which are similar for the most part to regular bicycles.
- Ensure people return the e-bikes or scooters to designated areas.
- They are a convenient option for some people. My opinion is that they are too slow for roads without designated bike lanes, and too fast or automated for sidewalks or pathways where pedestrians are. They need their own lanes to prevent injury.
- I would not mind riding on the street but there are too many idiots on the street...I have ridden in Whitby on the roads and it's like day and night with drivers' attitudes....
- If e-devices are to become common, then charging stations should be made available at most accessible areas with a common universal connection method for both private and shared devices.
- I think a shared program is a great idea. Not sure how popular it will be in Ajax but still a great idea in the right direction.
- Let's be rational and not judge the actions of a few to rule the masses.
- It would be very difficult to prohibit private vs shared e-devices.
- Our transit system sucks to be blunt. No service in my area. ZERO buses in Ajax. You are landlocked without a car. I have a car but prefer biking and public transit! No one talks about affordability. Not everyone can afford a car!!!
- I would focus on ways the Town could encourage people to walk safely. Utilize parks and multi-use paths at night with walking buddies. Have days of the week where dog owners can use areas to be leash free for dogs i.e. first Saturday of the month on paths. Promote being physically fit. You painted animals on the paths and made routes that are not utilized. Focus on getting people moving- e scooters would do the opposite. The last bike pedestrian injury left me house bound for two weeks.
- Not a good idea at all. An actual danger to handicap people and seniors.
- I think that there should be more policing because they do not pay attention to what they are doing. Go way to fast and just zip in front of your vehicle. A good way for them to injure or kill themselves.
- I live on Gregory Road adjacent to the waterfront. I've had a front seat view as motorized recreational vehicles increase each year. As a daily waterfront trail user and LOCAL

TAXPAYER I can say I feel more and more unsafe (future roadkill) each year. There is no enforcement and its survival of the fittest...come watch the scene on a sunny Saturday in July or August...honestly, I am surprised a pedestrian hasn't been killed by a recreational vehicle collision at this point. Please do not do this project.

- I think a "pedal-assist" bike is a great option and could share any pedestrian path. For people who aren't in shape for cycling, the ups and downs are intimidating, and that can help them up the hills, making them irrelevant. It really opens up bike commuting to a much wider segment.
- The bike should have a sizeable basket, to carry groceries or work gear, so that it truly is a decent option for replacing other modes of travel around town.
- And finally, a plan that will prevent e-bikes from being strewn around walkways is essential. That's a problem in virtually every municipality with a non-docking program; a hassle and an eye-sore for everyone, but a special obstacle for those with mobility disabilities—a class you wish to benefit.
- To add to the demographic information below: cycling is my primary method of travel around Ajax.
- Look to other jurisdictions where these things have become a hazard and have been a nuisance and have caused numerous injuries including to pedestrians or non-users.
- Experience shows bikes are dangerous on [the] waterfront trail. Therefore e-scooters and e-bikes would be as dangerous or more dangerous.
- Towns across Canada like Banff, Alberta have embraced e-bikes and encourage residents to use them.
- I would really appreciate it if we could get this environment-friendly option for our municipality.
- They should ha e designated pathways. If being used in public trials. The maximum speed should be defined and controlled.
- Not a good idea to bring in shared e-scooters or e-bikes, it affects the taxi industry.
- E-scooters and e-bikes are not a threat to pedestrian safety in Ajax, whether that is on multi-use paths, trails, parks, or bike lanes. I'm an avid cyclist that uses a wide variety of lanes and paths to get around Ajax, the only threat to safety I've had was when I had to interact with cars. In the past month since the weather has gotten warmer, I've had nearly a dozen incidents where a care has nearly hit me as I was crossing a street (I had the right of way and the hand wasn't flashing), and multiple times where I would have the right of way but would have to wait because cars would continue to turn right or left into the cross walk. Humans are prone to accidents; however it has been shown in countless studies that the lethality of e-scooters or e-bikes is minimal, but a car going 40km/h in a residential zone has a 20–50% of killing a pedestrian if they run them over. This lethality rate dramatically increases the higher the speed limit. If e-scooters and e-bikes mean more people have access to get around the town without needing a car, I as a cyclist, welcome it wholeheartedly. Kids, the elderly, and those with mobility disabilities should not be forced to only be able to get around town in a car, and they should be able to use a bike, e-bike, e-scooter without fearing that they might get run over by a car.
- Environmentally this is an excellent idea. Ajax, Whitby and Oshawa have done an outstanding job on the Waterfront Trail which is brilliant! Would love to see more bike lanes further north running east and west too. There is a drastic shortage of arteries north and south for both vehicles and bikes.

- I would like to further emphasize my support of an e-scooter and/or e-bike program. As somebody who has used these services, I can say from experience that they work great. Since these services are not new, Ajax can study and evaluate existing shared services to implement rather than trying to "re-invent the wheel" or starting from scratch.
- At this point in my life, I would not use them. I prefer a pedal bike. That said, I do think in the future, when a pedal bike may be too much for me, I would use an e-bike.
- These users have little knowledge of road rules and have no insurance.
- A lot of it will come down to the capacity to enforce rules in place to keep others safe (i.e. pedestrians sharing a path) - if that is not designed with the program at least at the start, it will definitely be a lot more challenging and frustrating for others trying to share the roads.
- I have responded with a yes to most of these questions elapse, I believe there are lots of people who would like to be able to enjoy this even though I would not myself as I'm getting older and don't want to hurt myself. I prefer walking.
- Require helmets.
- Yes please. Please add e-trikes.
- This is my third year owning one. Usually travel on the roads. It’s a whole lot safer than the trails.
- Think forward. Think about inclusion. Think sustainable.
- Owners of their own e-bike are more responsible riders than people who rent for occasional use.
- The use of these is using considerably. Please regulate them before they’re out of control.
- If e-scooters and e-bikes are permitted on trails they could be restricted to twinned trails for pedestrian safety.
- Careful consideration should be given to locations of docking stations (for rentals) and parking facilities for privately owned e-bikes and e-scooters.
- I think that it’s important to distinguish whether residents are interested in using e-bikes and e-scooters for recreation or as a mode of transportation as that will play an important part in determining if they should be permitted on trails or roads.
- Please don't bring them on the road to share with cars and don't take them on trails and sidewalks to share with pedestrians.
- Need for helmets, other safety equipment and markings lights if used in the evening or night conditions, insurance is a must and bikes and scooters should have a license displayed in clear view.
- They are the way of the future and need to be considered now for future planning.
- I think shared e-scooters should not be allowed. People leave them everywhere and they are always out of power. Shared bikes are returned to specific bike share locations, so they are a lot more manageable. Also, people are used to sharing pathways with regular bikes, which are similar to pedal-assist e-bikes in speed, but e-scooters are much larger and faster that regular scooters and the risk of conflicts with pedestrians is much greater than for bikes.
- If the use or limited use of e-bikes and e-scooters is passed, what kind of testing would happen to ensure the operators of these vehicles would be competent to operate them.

- Please review the negative results that other communities have had with e-scooters including serious accidents for both users and pedestrians. If you care about the health of Ajax residents, please restrict e-scooters to bike lanes on roads only.
- I think all e-scooters and e-bikes should require a license as they are motorized vehicles like cars. Like cars they can be driven at high speeds and can pose a risk for pedestrians.

Committee Presentations Results Summary

1. Durham Region Cycling Coalition Monthly Meeting
March 6, 2023, 7-8PM
7 attendees from Ajax, Oshawa, Whitby

- Agreement that consistency should be prioritized. If there is no consistency, people will ignore the rules.
- Support for permitting e-bikes and e-scooters on multi-use paths and trails.
- Reality is that e-scooters and e-bikes are here and people will still use them even if they are prohibited unless they are enforced.
- Risks are similar to owning a motorcycle or a car.
- One concern about using them on roads, specifically left turns. Seeing e-scooter users on the road will be an adjustment for motorists in the short term.
- Should not restrict age—example of a 13 year old using it responsibly.
- Need to accommodate for e-bikes and e-scooters by creating some sort of separation from pedestrians on multi-use paths and trails, such as a centreline or separate path altogether.

2. Youth Engagement Advisory Committee
March 8, 2023, 6-7PM
14 attendees, 6 of whom had prior experience using an e-bike or e-scooter

- Mixed views about whether they should be allowed on trails, on the roads, or if helmets should be required for people over the age of 18.
- Some still prefer to not have them on trails though some were open to having them on trails if they were operated at similar speeds as pedestrians.
- For committee members, the decision on whether to use an e-bike or e-scooter as a transportation option depends on price, and whether or not they are allowed.
- Concerns as pedestrians: Speeds and risk of collision including a dog walker and a teenage girl who was almost hit by an e-scooter user on a sidewalk.
- Some noted that they know people who use e-bikes but do not use them at speeds considerably higher than a regular bike.
- Education: need training on the rules.
- Concerned about confusion and not knowing if it is allowed in one municipality or the other. They did not know which municipalities allow them and which did not.

3. Accessibility Advisory Committee

April 19, 2023, 6-6:30PM

6 attendees who listened to a presentation by Michael Jenkins from Ontario Tech University on a recent study of the physiological impacts of e-bikes on seniors

	For pedestrians	For e-scooter/e-bike users
Concerns	• Increased congestion on sidewalks and multi-use paths. • Personal liability. • Limitations to enforcement– especially the logistics of having to "catch someone in the act", regulate speed, and if By-law does not have the resources to enforce and patrol.	• Falls due to the weight of e-scooters and e-bikes. • Consistency to explore the waterfront. • Personal liability, need to require helmets.
Preferences/ Requests	• Audible warning using a bell. • Separation between pedestrians and people using e-scooters/e-bikes. • Interest in licensing privately owned e-scooters and e-bikes (registering the vehicles with By-law). • Need identification numbers in large print and high contrast so that others can report infractions.	• E-bikes seem more useful for seniors and people with disabilities than e-scooters.

4. Age-Friendly Committee

April 20, 2023, 10-11:30AM

6 resident attendees who listened to a presentation by Michael Jenkins from Ontario Tech University on a recent study of the physiological impacts of e-bikes on seniors.

Concerns about conflicts with pedestrians and dog walkers

- Conflicts between pedestrians and cyclists are an ongoing issue, concern that permitting e-bikes and e-scooters would exacerbate the problem. Shared e-scooters and e-bikes may encourage more people to buy their own e-scooters and e-bikes.
- Concerns about expansion of e-scooters and e-bikes on the trails in warmer seasons, particularly with unsafe behaviours and injury, potential decrease in pedestrian use of trails.
- Concerns with e-bikes being used on sidewalks.
- There are members who are against permitting e-bikes and e-scooters on the trail.
- Need to separate cyclists and pedestrians.
- Even if there are separate paths, it is up to trail users to respect that. Cannot guarantee that people will use the designated paths. Council needs to approve budget to create separate paths. There is also a concern with space available to create the paths.

Speeding and Detection when Passing

- Privately owned e-bikes and e-scooters need to provide audible warning when passing pedestrians.
- Do not assume that all pedestrians can hear. Even if people use bells, there are also pedestrians who have hearing loss or people who are deaf who cannot detect people passing them.

Enforcement

- Preference for increased enforcement during the same time that there are parking restrictions.
- Enforcement is still extremely difficult: challenging to pull over people who are using e-scooters and e-bikes.
- Possible for By-law to have access to e-bikes or e-scooters to help enforce the by-law.

Licensing

- One member brought up requiring a license for e-scooters and e-bikes because he saw licensing as the opportunity to ensure that people get some notice about what behavior is acceptable.
- Licensing bicycles was brought up by a resident.

Other

- Michael explained that the typical speeds of pedal assist e-bikes are similar to conventional bikes.
- E-bikes are easier to integrate into current infrastructure because they can use existing bike facilities.
- One member mentioned that they saw a couple people using pedal assist tricycles but using them cautiously.
- Once the pilot starts and people know that they are allowed, it will be challenging to opt out and get the information out there about changes.